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MOHAMED MUUMIN MUSSA *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Muro, J.)

CRIMINAL REVISION No. 27 OF 2001

Criminal Practice and Procedure – Charges – Charge alleging an offence against a statutory provision that does not exist – Proceedings null and void.

Immigration – Charges – Person charged with and convicted of an immigration offence that does not exist under the law – Proceedings null and void.

This was an application for revision against the proceedings and order of the District Court of Kibaha in Criminal Case Number 188 of 2001. In that case the applicant was convicted allegedly on his own plea of guilty of aiding and abetting persons to enter into the United Republic of Tanzania in contravention of section 31(1)(p) and (2) of the Immigration Act and sentenced to serve 3 years imprisonment, subject to confirmation by the High Court. At the hearing of the application it was argued that the applicant was charged under a non-existing provision of the law, that he was convicted on an equivocal plea of guilty and that he was not given the option of paying a fine.

Held: (i) Perusal of the Immigration Act 1995 reveals that there is no section 31(1)(p), under which the applicant was charged;

(ii) The applicant had pleaded to an offence that does not exist in law and as such the conviction was null and void ab initio;

(iii) The conviction is quashed and sentence set aside.

Application allowed

Cases referred to:

(1) *Munissi Marko Nkyo v. Republic* [1989] T.L.R. 59

(2) *Salum Shaban v. Republic* [1985] T.L.R. 71

Mr Mafuru, for the Applicant

Ms Maganga, for the Respondent

RULING

(Delivered 13 December 2001)

Muro, J.: Before this Court is an application for revision against the proceedings and order of the District Court of Kibaha in Criminal Case Number 188 of 2001 between the Republic and one Mohamed Muumin Mussa made on 6 November 2001 by Honourable DM PK Lunyelele.

The application is made under section 44(1) of the Magistrates Courts Act 1984 and is duly supported by the affidavit of MM Mafuru the learned counsel for the applicant. The application had been filed under a Certificate of Urgency.

According to the record of this case, the applicant Mohamed Muumin Mussa a Kenyan was charged with the offence of aiding and abetting persons to enter unlawfully in the United Republic of Tanzania contrary to section 31(1)(p) and (2) of the Immigration Act Number 7 of 1995.

It was alleged that on 5 November 2001 at Maili Moja area in Kibaha, the applicant being a Kenyan citizen was found to be aiding the abetting six Somalis to enter into the United Republic of Tanzania, without possessing valid pass or permit which allowed them to do so. When the charge was read over to him he stated:

> It is true I assisted the 6 men to enter Tanzania. I was with them in the bus. I met them at Lingido at Namanga inside Tanzania.

This was entered as a plea of guilty to the charge and was sentenced to serve 3 years imprisonment the sentence that was made subject to confirmation by this Court.

Aggrieved by both the conviction and the sentence the applicant has now moved this Court to exercise it revisional powers to quash the proceedings and either acquit the applicant or order payment of fine instead of the imprisonment.

At the hearing of the application Mr Mafuru, learned counsel was in the services of the applicant and challenged the proceedings on two main fronts. First, it is his contention that although the applicant made an equivocal plea of guilty, it could not necessarily amount to a plea of guilty as the facts given by the prosecution side did not by any margin fully disclose the ingredients or elements of the offences the applicant stood charged with. He cited the case of *Munissi Marko Nkyo v. Republic* (1) in support of his argument. Secondly, it is his further contention that the applicant was charged with an offence which does not exist at all in law quoting the Latin maxim, "*Nula Poena Non Criminen Lege*" which means do not charge a person for a non existing offence.

In the alternative, he contended also that even if the plea of guilty was made unequivocally, where the legislation has given an option of a fine or imprisonment the Court should have ascertained that a sentence of fine should first be imposed and in default of payment of such fine, then a sentence of imprisonment would have then been given. He cited the case of *Salum Shaban v. Republic* (2) in support of his argument.

The learned State Attorney Miss Maganga agreed in total with the submission of Mr Mafuru. I have considered the submission made by the learned counsel and read the case he has cited in support of this application. I have also read the record of this case very carefully.

Perusal of the Immigration Act 1995 reveals that there is no section 31(1)(p) under which the applicant was charged. However section 31(2) of the same Act reads as follows:

> (2) Any person who commits an offence under this Act shall, except where any other penalty is specifically provided therefore, be liable

on conviction to a fine not exceeding one hundred thousand shillings or to imprisonment for a term not exceeding three years or to both such fine and imprisonment.

Whatever the plea that was entered, be it unequivocal or equivocal, so long as the offence said to have been committed is non existent, there was absolutely no basis within which the applicant could be convicted. It is my opinion that the conviction, the subject matter of this application was null and *void ab initio*.

Even if there exists an offence in the relevant law, the applicants admission that "I was in the same bus with 6 Somalis, I deal with Mitumba" does not amount to a plea to the offence he was alleged to have committed. Granted, the fact in record also disclose that he had admitted to have helped them. But so long as it was not established if the assistance was lawful or unlawful, the admission cannot be used against him. He could have helped them with their language, or to show them the way. The facts also show that he had seen them at Longido at Namanga and not outside Tanzania.

It is a finding of this Court therefore that the applicant had pleaded to an offence that does not exist in law and as such the conviction was null and *void ab initio*. The question of sentence or fine would under the circumstances, not arise.

This Court having satisfied itself in that respect is unable to support the conviction and the sentence of the Trial Court. The conviction is hereby quashed and the sentence set aside. The applicant should be released immediately from jail unless otherwise lawfully held.

The application is allowed.

IDDI OMAR MKAMBAKU AND OTHERS *v.* APPEAL COMMITTEE FOR LOCAL GOVERNMENT AND OTHERS

HIGH COURT OF TANZANIA
(DAR ES SALAAM DISTRICT REGISTRY)
AT DAR ES SALAAM

(Kyando, J.)

IN THE MATTER OF THE APPLICATION TO APPLY FOR ORDERS OF CERTIORARI AND PROHIBITION

AND

IN THE MATTER OF LOCAL GOVERNMENT ELECTIONS

ACT 1979 AND THE LOCAL GOVERNMENT ELECTIONS

RULES GN. 255 OF 1999

MISCELLANEOUS CIVIL CASE No. 72 OF 2000

Natural Justice – Right to be heard – Applicants not cited as the respondents in an appeal before the first respondent but were adversely affected by the decision in the appeal – Whether they had a right to be heard in the appeal.

Local - Government – Elections – Local government elections – Power to avoid or nullify local government election results – Whether the Local Government Appeals Committee has jurisdiction to nullify or avoid election of members and chair of a Mtaa Committee.

The first applicant and the other applicants were elected as chairman and members respectively of the Committee of the Mtaa of Rangitatu in Temeke District. More than 4 months later they were informed that their election was nullified by the first respondent. The applicants then brought this application for *certiorari* and *mandamus* on the grounds that the first respondent's decision was made in breach of the applicant's

right to be heard and also that the first respondent had acted *ultra vires*. On breach of the right to be heard the respondents contended that the appeal that led to the nullification of the applicants' election was an appeal against the Returning Officer, the second respondent, not against them; there was, therefore, no denial of a right to be heard to the applicants.

Held: (i) Although the applicants were not parties to the appeal and it is only the Returning Officer who was the respondent, the applicants were affected by the results of the decision of the Appeals Committee which, therefore, had a duty to hear them as well;

(ii) The applicants were not afforded the opportunity to be heard before the Appeals Committee nullified their election;

(iii) The duty to hear both sides is a responsibility which must be fulfilled by a body such as the Appeals Committee, the first respondent, for any decision arrived at by it to acquire validity;

(iv) Under the Local Authorities (Elections) Act 1979 which governs the elections in question, the power to nullify or avoid elections of members of a *Mtaa* Committee or its chair is vested in the Court of resident magistrate;

(v) Although the rules and regulations confer power upon the complaints committee and the first respondent, the Appeals Committee, to hear complaints and appeals concerning the conduct of a *Mtaa* elections, these committees have no power to void an election in a *Mtaa*; by avoiding the election of the applicants, therefore, the first respondent acted *ultra vires* or without jurisdiction.

Certiorari and mandamus granted

Case referred to:

(1) *King v. University of Cambridge* (1723) 1 Str. 557

Statutory provisions referred to:

(1) Local Government (Urban Authorities) Act 1982 Number 8 of 1982, section 14(b)(c)

(1) Regulations for the Election of the Chairman and Members of the Committee of a Mtaa 1999, G.N. 255 of 1999, regulations 11 and 12.

(3) Local Authorities (Elections) Act 1979 Number 4 of 1979, sections 2 and 3.

Mr. Maleta for the Applicants

Mr. Mwaimu Senior State Attorney, for the Respondents

RULING

(Delivered 14 December 2001)

Kyando, J.: This is an application for the prerogative remedies of *certiorari* and *mandamus* respecting a decision or decisions of the first respondent to nullify the election of the applicants to the position of Chairman (for the first applicant) and members (for the rest of the applicants) of the Committee of the *Mtaa* of Rangitatu, Temeke district, Dar es Salaam. The elections were held on 28 October 1999. All the applicants ran on the CUF ticket in the said elections and they were duly notified by the relevant authority that they had been elected to their respective positions. However, according to the affidavit of Iddi Omari Mkambaku filed in support of this application, later they each received letters which were in the following form:

TUME YA MANISPAA YA TEMEKE

OFISI YA MTENDAJI WA KATA

KATA YA CHARAMBE

10 Machi 2000

Kumb. Na. TMC/CHARG/O/42

Ndugu Iddi O. Mkambaku,

Mgombea Nafasi ya uenyekiti

Mtaa wa Rangitatu,

Yah: KUTENGULIWA MATOKEO YA UCHAGUZI MTAA WA RANGITATU

Kamati ya Rufaa Wilaya ya Temeke iliyokaa kusikiliza malalamiko juu ya uchaguzi uliofanyika katika Mtaa wa Rangitatu tarehe 28 October 1999 imeridhika kuwa kulikuwa na ukiukaji wa taratibu za uchaguzi na hivyo imetengua matokeo ya uchaguzi na kuagiza kuwa uchaguzi urudiwe upya.

Kwa sababu hiyo unaagizwa kukabidhi shughuli za ofisi ya mtaa wa Rangitatu kwa Afisa Mtendaji Kata mara upatapo barua hii.

Pamoja na barua hii naambatanisha muhtasari wa maamuzi ya rufaa hiyo.

Ahsante,

(Imesainiwa na)

MASAA, T.M

MSIMAMIZI MSAIDIZI WA UCHAGUZI

KATA YA CHANG'OMBE

Nakala: (1) Mkurugenzi wa Kanda

Temeke.

NB: Tarehe ya kurudiwa uchaguzi itatangazwa baadaye.

The applicants state here that they were surprised to receive these letters. They complain that they had not been made aware that there had been an appeal against their election and that they were not present where or when their appeal was heard. They say they were condemned unheard therefore and this is their principal complaint in this case. Additionally it is submitted on their behalf that the first respondent heard the appeal out of time and thus it exercised its powers *ultra vires* its lawfully vested powers. They pray therefore that by *certiorari* I quash the decision of the first respondent and that by *mandamus* I direct their reinstatement to the positions they had been elected to.

In their defence the respondents, who are represented by the Attorney General contend that rule 18(4) of GN 233 of 1999 *(sic)* (The correct GN is Number 255 of 1999) provides in part:

Rufaa kuhusu uamuzi wa malalamiko ya uendeshaji wa uchaguzi itasikilizwa na kuamuliwa na Kamati ya Rufaa katika muda usiozidi siku 5 tangu siku ya mwisho ya kuwasilisha rufaa...

They say as the complaints and resultant appeal concerned "uendeshaji wa uchaguzi" (the conduct of the elections) the proper respondent before the first respondent, during the hearing of the appeal, was the Returning Officer, the second respondent, and not the applicants. They say that the applicants were informed of the existence of the appeal and that it was for them to decide either to apply to be joined in it as respondents with the second respondent or to ask to be made witnesses in the appeal. The respondents deny therefore that there was denial of a right to be heard to the applicants in the appeal.

To these contentions in defence the applicants submit that in the letter of notification of the existence of the appeal their names are not there. They say, which appears to be true, that the names appearing in the said letter or notice are those of other people. Secondly, they state that during the hearing stage of the complaints, they themselves were the respondents, even though the complaints concerned the conduct of the elections, and not the Returning Officer. They say they do not understand then how the Returning Officer became the (sole) respondent at the appellate stage. They say when they were the respondents at the hearing stage, before the Complaints Committee, they emerged victorious. They lost on appeal when the appeal went to the Complaints Appeals Committee, which as shown above, they say did no hear them.

The issue for determination here then is whether or not the applicants were afforded a hearing before their election to their respective officers were nullified by the 1st respondent.

Both the Complaints Committee and the Complaints Appeals Committee are creatures of statute. They are established under section14(B)(e) of the Local Government (Urban Authorities) Act 1982, and Regulations 11 and 12 of the Regulations for the Election of the Chairman and Members of the Committee of a Mtaa 1999

(GN 255 of 1999). Briefly there is a committee of a *Mtaa* and those who constitute the Committee are the Chairman and Members. These are elected by adult members of the *Mtaa* and the election is according to the rules made by the Minister.

For the present case, the rules or regulations mentioned above are the governing rules. The rules are the ones which specifically establish the Complaints committee and the Complaints Appeals Committee. A party who is dissatisfied with the conduct of the election of the Committee Members and/or its Chairman can lodge a complaint to the Complaints Committee. A party aggrieved by the decision of the Complaints Committee appeals to the Complaints Appeal Committee.

Turning to the present case, it is more than clear to me that the applicants were not given a hearing before the Complaints Appeals Committee, the first respondent, decided to nullify their election. The respondents say they were not parties to the appeal but it is the Returning Officer who was the respondent. However, it is the applicants who were affected by the results of the decision of the first respondent. It was incumbent for the Committee to hear them as well therefore, by arranging for their presence and participation in the appeal proceedings. The respondents contend further that they were notified but the document on which they rely in making this contention (Annex D3) does not bear any of the names of the applicants. As contended on their behalf, that document has names of totally different people. The respondents cannot succeed therefore, relying on this document, in their contention that the applicants were fully notified of the existence of the appeal against them and where and when it was to be heard. And if it was found necessary to notify these other people whose names are in D.3, one may ask, why was it not found necessary to notify the applicants herein, too? I hold on the issue stated above that the applicants herein were not afforded the opportunity to he heard before the first respondent nullified their election to the offices/positions to which they had been elected by the members of their *Mtaa*.

The right to a hearing is one of the rules of natural justice. It is expressed in the Latin Maxim "*audi alteram partem*". Others shorten the expression to simply "Hear the other side". The rule embraces the whole notion of fair procedure or due process. Its requirement can be briefly stated to be that any person or authority charged with the responsibility or duty to perform a public duty should not do any act or exercise his powers in any way which may affect the rights or interests of an individual without affording that individual the opportunity to be heard first either in his defence or in his cause. This rule is almost of universal validity. It is of ancient origins too. According to one pictures-que decision, in *The King v. University of Cambridge* (1) the rule made its appearance in the Garden of Eden. In the *University of Cambridge* case (1) the University deprived the recalcitrant Bently of his degrees. He was able to have the act declared a nullity because he had not first been heard in his own defence. One of the judges observed that even Adam had been called upon by God to meet the charge of having eaten of the forbidden tree, before suffering expulsion.

But hearing the other side may prove an intimidating and perplexing experience for some. A story about a King in England, who in regard to this, is illustrative of the point. The King's name was James I. He is said to have summoned all the judges before him and told them that he proposed to take any cases he pleased away from judges for decision and try them himself. He had the support in this of the Archbishop, Bancroft, who declared that it was clear in divinity and that such power doubtlessly belongs to the King by the word of God in the Scriptures. The Chief Justice, Lord Coke, however, told the King that he had no power to do so, and that all cases ought to be determined in a Court of justice. The exchanges between the King and the Chief Justice are said to have then gone on as follows:

> King: I always thought and I have often heard the boast that your English law is founded upon reason. If that be so, why have not I and others reason as well as you the judges?

Chief Justice: True it is, please Your majesty, that God has endowed Your Majesty with excellent science as well as great gifts of nature; but Your Majesty will allow me to say so, with all reverence, you are not learned in the laws of this yours realm of England ... which is an art which requires long study and experience before that a man can attain to the cognisance of it. The law is the golden met-ward and measure to try the causes of Your Majesty's subjects, and it is by that law that Your Majesty is protected in safety and peace.

King (in great rage): Then I am to be under the law - which it is treason to affirm.

Chief Justice: Thus wrote Bracton, "the King is under no man, but under God and the law".

King James I, nevertheless decided to try his hand as a judge but he is said to have been so much perplexed, when he heard both sides, that he abandoned the attempt in despair. He said,

> I could get on very well hearing one side only, but when both sides have been heard upon my word I know not which is right.

Perplexing an experience, it may be, as King James I found out, hearing both sides for a body such as the first respondent in the instant matter, upon which the duty to hear (appeals) has been imposed, is a necessity. It is a responsibility which cannot be avoided or evaded or even abandoned. It is a responsibility which must be fulfilled for any decision arrived at to acquire validity. Failure to hear both sides, or to generally observe rules of natural justice, may lead to a decision arrived at or an act done to be quashed by this Court. The first respondent in this case no doubt was an authority charged with the responsibility of performing a public duty – that of hearing appeals in complaints in civic elections. By failing to hear the applicants before deciding to nullify their election, it denied the natural justice in that it acted in breach of the "Hear the other side" rule. It must have heard only

one side to the appeal. Its decision therefore cannot be allowed to stand by this Court.

There is another consideration to be made about the first respondent's decision. It (the first respondent) appears to have had no jurisdiction to nullify or avoid elections of members of the committee of a *Mtaa* or its chairman. As shown above, the first respondent is established by regulations or rules made under the Local Government (Urban Authority) Act. Under section 2 of the Local Authority *(sic)* (Elections) Act 1979, the definition section of the Act, the term "Act" is defined. It is defined as, in relation to an urban authority, the Local Government (Urban Authorities) Act. This Act, i.e. the 1979 Act, applies to "all local authorities in respect of which it is provided that some or all of the members *shall be elected* [emphasis supplied] (See section 3 of the Act). And under the definition section of the Local Government (Urban authorities) Act, "urban authorities" means a Town Council, a Municipal Council a City Council or a *mtaa*. This means that the Local Authorities (Elections) Act applies, in virtue of section 3 *(supra)*, to elections to the *Mtaa* Committee as well. Now, all elections under the Local Authorities (Elections) Act can only be avoided by the Court of the Resident Magistrate. In other words, a party aggrieved in a local authority election has to petition the Court of the Resident Magistrate if his desire is to have the elections voided.

The above is reinforced by the fact that although the rules or regulations confer upon the complaints committee and the Complaints Appeals Committee, respectively, the power to hear complaints and appeals concerning the conduct of a *Mtaa* election, it is not provided in the rules what then they are to do upon hearing the complaints or appeals. Certainly these committees have not been conferred with the power to void an election in a *Mtaa*. This power, as I have said, is exclusively exercisable by the Court of the Resident Magistrate only. This being the case, in avoiding the election of the applicants, the first respondent acted *ultra vires* its powers or, more appropriately and as already indicated, it acted without jurisdiction. This also can be ground for nullifying its (first respondent's) decision.

For these reasons above, I see no reason why I should allow the first respondent's decision in this case to stand. By an order of *certiorari* I quash and set aside the decision of the first respondent to nullify the applicants' election to the position to which they were elected and by an order of *mandamus* I direct reinstatement of the applicants to these positions. If there was anyone aggrieved by the outcome of the elections and wanted to have them avoided, as already shown, the proper forum for him was in the Court of the Resident Magistrate and not the Complaints Committee or the first respondent. This application is granted in the manner and for the reasons shown or set out above.

JULIUS ISHENGOMA FRANCIS NDYANABO *v.* ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Samatta, C.J. Kisanga and Lugakingira, JJ.A.)

CIVIL APPEAL No. 64 OF 2001

(Appeal from the majority decision of the Hight Court of Tanzania at Dar es Salaam, Kyando and Ihema, JJ., Kimaro, J., dissenting, dated 29 June 2001, in Miscellaneous Civil Cause No. 2 of 2001)

Constitutional law – Election petition – Mandatory requirement to deposit TZS 5 million security for costs for election petition to be heard – Whether the mandatory requirement is constitutional – Section 111(2) of the Elections Act 1985.

Constitutional law – Basic rights and duties – Enforcement of constitutional rights – Right to challenge constitutional validity of mandatory statutory requirement to deposit TZS 5 million as security for costs for election petition to be heard – Article 30(3) of the Constitution and section 4 of the Basic Rights and Duties Enforcement Act 1994.

Election Petition – Security for costs – Amendment to elections law introduces a mandatory requirement to deposit TZS 5 million security for costs for an election petition to proceed to hearing – Whether the trial High Court has discretion to direct other form of security or to waive the requirement of security – Rule 11(3) and (4) of the Elections (Election Petitions) Rules 1971 and section 111(2) of the Elections Act 1985 as amended.

Constitutional Law – Statute – Constitutional validity of statutory provision – Statutory requirement to deposit TZS 5 million as security for costs for an election petition to proceed to hearing – Whether the statutory provision is constitutionally valid – Section 111(2) of the Elections Act 1985 and Article 30(3) of the Constitution.

Basic Rights – Equality before the law – Mandatory requirement to deposit TZS 5 million for an election petition to be heard – Whether the requirement contravenes the right to equality before the law – Section 111(2) of the Elections Act 1985 and Article 13(1) and (2) of the Constitution.

Constitutional Law – Basic rights and duties – Right of access to justice – Right to seek justice through the Courts of law – Mandatory requirement to deposit TZS 5 million for an election petition to be heard – Whether the requirement restricts the right of access to justice – Section 111(2) of the Elections Act 1985 and Article 13(6)(a) of the Constitution.

Constitutional Law – Parliament – Legislative powers of Parliament – Whether the legislative powers of Parliament have limits.

The appellant had stood as a candidate in the October 2000 general election and lost. Aggrieved he filed an election petition before the High Court to challenge the validity of the results as per section 111(1) of the Act. In accordance with section 111(2) of the Act the Registrar did not fix a date for hearing as the appellant had not deposited the mandatory TZS. 5 million as security for costs required by the subsection. The appellant then filed a petition under article 30(3) of the Constitution and section 4 of the Basic Rights and Enforcement Act 1994 for a declaration that the subsection was unconstitutional as it denied ordinary persons without means access to justice. It was the contention of the appellant before the High Court that the requirement to deposit TZS. 5 million was unconstitutional, arbitrary discriminatory, unreasonable and an unjustified restriction on the right of a citizen to have access to the Courts. The respondent replied that the requirement was intended to curb unreasonable and vexatious petitions. The respondent further argued that petitioning was the wrong

approach; the appellant should have applied under rule 11(3) of the Elections (Election Petitions) Rules 1971 for a direction that he gives other form of security or for exemption from payment of any form of security for costs. Kyando and Ihema, JJ., found against the appellant, Kimaro, J. dissenting. The appellant appealed to the Court of Appeal. The arguments in the High Court were repeated in the Court of Appeal.

Held: (i) Where an Act passed subsequent to the making of the rules is inconsistent with such rules then the Act must prevail unless it was passed with a different object;

(ii) section 111(2) of the Elections Act 1985 introducing a mandory requirement of a deposit of TZS. 5 million was passed with the intention of providing for security for the costs of a respondent in an election petition;

(iii) Since section 111(2) of the Elections Act 1985 conflicts with rule 11(3) and (4) which gives the High Court discretion to direct a petitioner to provide some other form of security or to waive it altogether in certain circumstances, by necessary implication, the section repeals that rule with the result that a petitioner who fails to deposit the mandatory TZS. 5 million as security for costs is denied access to the Courts to have his complaint against illegalities and irregularities in the conduct of a parliamentary election heard;

(iv) The anti-discrimination provisions contained in article13(5) of the Constitution apply to both natural and juristic persons and in an appropriate case a juristic person may also complain to Court against violation of the principle of equality before the law;

(v) Access to justice does not mean the mere filing of pleadings and paying the required Court fees, but it also includes the right to present one's case or defence before the Courts;

(vi) The mandatory requirement to pay TZS. 5 000 000 security for costs as required by section 111(2) of the Elections Act 1985 effectively denies access to justice to indigent petitioners without justifying the denial, especially as there is no similar requirement in litigation not arising from elections;

(vii) By denying an indigent petitioner the right to be heard by the High Court section 111 (2) of the Act is unconstitutional and void *ab initio,* consequently subrules (3) and (4) of Rules 11 as amended are still in force;

(viii) The legislative competence of Parliament is limited to the making of laws that are consistent with the Constitution and Parliament exceeded its powers by enacting section 111(2) of the Elections Act 1985 which is unconstitutional;

(ix) Fundamental rights are not absolute, but any limitation imposed on them must not be arbitrary, unreasonable or disproportionate to any claim of state interest; a restriction of a fundamental right has to serve a legitimate purpose;

(x) ***Obiter:*** The Constitution of the United Republic of Tanzania rests on three principal pillars, namely (1) rule of law, (2) fundamental rights, and (3) independent, impartial and accessible judicature; it is access to justice which gives life to the three pillars;

(xi) ***Obiter:*** In discharging the task of constitutional interpretation Courts should avoid crippling the basic law by construing it technically or in a narrow spirit; fundamental rights provisions should be interpreted broadly and liberally, jealously protecting and developing the dimensions of those rights;

(xii) ***Obiter:*** Until the contrary is proved, legislation is presumed to be constitutional and the onus to prove unconstitutionality of it lies upon those asserting the same; where, however, those supporting a restriction on a fundamental right rely on a claw-back or exclusion clause, the onus of justifying the restriction rests upon them;

(xiii) ***Obiter:*** TZS. 500 is now too little to serve any useful or practical purpose in terms of providing security for costs, but it is not within the competence of the Court or any other Court, for that matter, to amend the rule providing for that amount as security

Appeal allowed with costs

Cases referred to:

(1) *Kukutia Ole Pumbun and another v. Attorney General and another* [1993] T.L.R. 159

(2) *Faroque v. Secretary of the Ministry, Water Resources & Food Control (Bangladesh) and another* [2000] 1 LRC 1

(3) *Sugumar Balakrishnam v. Pengarah Imigresen Negeri Sabah and another* [2000] 1 LRC 301

(4) *Harvest Sheen Ltd & another v. Collector of Stamp Revenue,* 2 CHRLD 246

(5) *Director of Public Prosecutions v. Daudi Pete* [1993] T.L.R 22

(6) *In Re Boaler* [1915] 1 KB 829

(7) *Chester v. Bateson* [1920] 1 KB 829

(8) *R. & W. Ltd v. The Wheat Commission* [1937] AC 139

(9) *Pyx Granite Co. Ltd v. Ministry of Housing and Local Government and others* [1960] AC 260

(10) *Raymond v. Honey* [1983] AC 1

(11) *Chief Diseko Lesapo v. North West Agriculture Bank and Messenger of the Court,* Ditsobotea Case Number CCT 23/99

(12) *A.G. v. De Keyse's Royal Hotel* [1920] AC 508, 551

(13) *Ex parte Davis* (1872) LR 7. Ch. 529

(14) *Britt v. Buckingham CC* [1964] 1. QB 77, 78

(15) *Kruse v. Johnson* [1898] 2 QB 91

(16) *His Holiness Kesavanada Bharati Sripadaragalavaru v. State of Keralar and another* [1973] Supp. SCR 1

(17) *State of Madras v. VG Row* [1952] SCR 597, 607

Statutory provisions referred to:

(1) Elections Act 1985, section 111(2), (3) and section 129(b)

(2) Electoral Laws (Miscellaneous Amendments) Act 2000

(3) Constitution of the United Republic of Tanzania, article 13(1), (2), (a) and (f) and (6) (a), and article 30(3)

(4) Elections (Election Petitions) Rules 1971, rules 11(1), (2), (3) and

(5) Elections (Election Petitions) (Amendment) Rules 1981

(6) Elections (Elections Petitions) (Amendment) Rules 1996

(7) Civil Procedure Code 1966, Order 25 rule 1(1)

Other sources referred to:

Mr. Justice EO Ayoola, former Chief Justice of Gambia: ***Independence of the Judiciary,*** a paper delivered in Port Louis, Mauritius, 1998.

Dr Dunga Das Basu, *Shorter Constitution of India,*(12 ed),104

Mr Justice Chandrachud,*Fundamental Rights in Their Economic, Social and Cultural Context,* an Article published in *Developing Human Rights Jurisprudence*, page142.

M.P. Jain, **Indian Constitutional Law,** (4 ed) 472.

JM Kelly and Gerry Whyte, **The Irish Constitution** (3 ed) Footnote, Number 53, page 722.

CB.Srinivasan, *Towering Justice*, page 380 quoting Lord Macaulay.

Professor Shivji, Mr Maira, Mr Rweyongeza and *Mr Magafu,* for the Appellant

Mr Mwidunda and *Mr Salula,* for the Respondent

JUDGMENT OF THE COURT

(Dated 12 February 2002)

Samatta, C.J.: This is an appeal from a decision of the High Court (Kyando and Ihema, J.J., Kimaro, J. dissenting) dismissing a petition filed by the appellant for a declaration that section 111(2), (3) and (4) of the Elections Act 1985 (the Act), is unconstitutional for being violative of article 13(1), (2) and 6(a) of the Constitution of the United Republic of Tanzania (hereinafter referred to as the Constitution). Essentially, the appeal is about access to justice.

The background to the appeal may, we think, be stated as follows. In the General Election held in this country in October 2000 the appellant, an advocate by profession, entered into a contest for the parliamentary seat in Nkenge Constituency. According to the results of the contest announced by the Returning Officer, the appellant

lost the election. He was aggrieved by those results. As he was entitled under section 111(1) of the Act, he filed an election petition before the High Court, questioning the validity of the declared victory of one of his opponents in the election. The Registrar of the Court has not, in compliance with the provisions of section 111(2) of the Act, fixed a date for the hearing of the petition. The subsection, as amended by the Electoral Laws (Miscellaneous Amendments) Act 2001, reads:

> (2) The Registrar shall not fix a date for the hearing of any election petition unless the petitioner has paid into the Court, as security for costs, a sum of five million shillings in respect of the proposed election petition.

The appellant, who has not paid the required deposit, decided to file, under article 30(3) of the Constitution and section 4 of the Basic Rights and Enforcement Act 1994, a petition questioning the constitutionality of the subsection and praying for a declaration that the said statutory provision is unconstitutional. It is the decision of the High Court on that petition which has given rise to the appeal now before us. Before the High Court it was the appellant's contention that the requirement in the subsection is unconstitutional, on the ground that it is arbitrary, discriminatory and unreasonable and therefore it constitutes an unjustified restriction on the right of a citizen to be heard by the Court on his complaint against illegalities or irregularities in the conduct of a parliamentary election.

The learned Attorney General's response to the petition was a fairly simple one: the requirement to deposit TZS. 5 million as security for costs was "consistent with the avoidance of unnecessary and unreasonable costs to the Government, as well as individuals involved which can be caused by unreasonable and vexatious petitioners who might bring petitions without any reasonable cause." The learned Attorney General urged the learned Judges of the High Court to hold that the appellant had taken a wrong step in law in challenging the constitutionality of the requirement of depositing TZS. 5 million as security for costs; what he should have done was a file an application

under rule 11(3) of the Elections (Elections Petitions) Rules 1971 as amended (for short "the Rules") for a direction that he gives such other form of security as the Court would consider fit, or that he be exempted from payment of any form of security- for costs. The learned Attorney General also rested his defence to the petition on the provisions of article 30(2)(a) and (f) of the Constitution, asserting that those claw back clauses save the statutory requirement of depositing TZS. 5 million as security for costs complained against by the appellant from the vice of unconstitutionality. It was his case that the provisions of section III meet the test of constitutionality laid down by this Court in *Kukutia Ole Pumbun and another v. Attorney General and another* (1) Kyando and Ihema, J.J., who examined the issues raised before the Court at a great length, entertained no doubt whatsoever that the statutory provision under attack does not suffer from unconstitutionality. In the course of their ruling they said:

> We have carefully considered the parties' pleadings and their lucid submissions thereto and we are of the firm view that the petition has been filed without any colour of merit. It is bound to fail.

Accepting, as they did, the contention of counsel for the learned Attorney General that the impugned statutory provision was aimed at protecting respondents in election petitions on the question of costs, the learned Judges said:

> As a general principle payment of security for costs is intended to secure "the payment of costs if such person does not prevail" And as correctly submitted by Mr Mwidunda, learned Senior State Attorney, for the respondent the provision for costs puts a just and fair obligation on the part of the petitioner to secure the costs of those he drags to Court and as such the provision is legally necessary to protect a respondent in the costs to be incurred in the litigation. We agree and" hold that the provisions of section 111(4) of the Elections Act 1985, as amended, are in tandem with Article 30(1) and 2(a) and (f) of the Constitution of the United Republic of Tanzania, imposing limitations upon, and enforcement and preservation of basic rights, freedoms and duties.

Article 30(1) and (2) (a) and (f) of the Constitution provides:

> 30(1) The human rights and freedoms, the principles of which are set out in this Constitution, shall not be exercised by a person in a manner that causes interference with or curtailment of the rights and freedoms of other persons or of the public interest. (2) It is hereby declared that the provisions contained in Part of this Constitution which set out the basic human rights, freedoms and duties, do not invalidate any existing legislation or prohibit the enactment of any legislation or the doing of any lawful act in accordance with such legislation for the purpose of-
>
> (a) ensuring that the rights and freedoms of other people or of the interests of the public are not prejudiced by the wrongful exercise of the freedoms and rights of individuals;
>
> (b) ...
>
> (c) ...
>
> (d) ...
>
> (e) ...
>
> (f) enabling any other thing to be done which promotes or preserves the national interest in general.

The learned judges dismissed as untenable the contention of the appellant that the provisions of section 111(2) and (3) of the Act are discriminatory on the ground that they deny equal access to the High Court because they place a private election petitioner and the Attorney General on unequal footing on the matter of depositing a sum of money as security for costs. They said:

> The petitioner supports his proposition by contending that adherence to the rule of law demands equal treatment before the law in terms of article 13(1) of the Constitution and the extent that a legal provision which is discriminatory in itself or its effect is prohibited by article 13(2) of the Constitution. We quite agree that is a correct proposition of the law but we hasten to say that litigation, including election petitions involving the Government, are governed and or regulated by a specific legislation, the Government Proceedings Act 1967 as amended whereas, as correctly submitted by the learned Senior State Attorney, litigants' costs against the Government are more than secured under section 15 of that Act. We are of the considered view that such a practice is more of an exception than outright discrimination as alluded to by the petitioner. There is therefore no violence done to article 13(1) and (2) of the Constitution which basically guarantees equality before the law

A little later, the learned judges concluded their consideration of the arguments of counsel. They said:

> We agree that the spirit behind the amendment to section 111 of the Elections Act 1985 was intended to ensure that respondents in election petitions are protected in terms of cost which they are forced to incur in defending their cases. We are not persuaded' that the amendment was either intended to introduce a new aspect unknown to law or a precondition to curtail the right to fair hearing and equality before the law. For we reiterate that the legal requirement for payment of security for costs is well established and accepted in many jurisdictions where the rule of law is vigorously followed. We on the other hand find it desirable to introduce such adequate safeguards for a petitioner *(sic)* who is not able to give the prescribed security for costs. Essentially this is what is provided for in rule 11(3) of the Election (Elections Petitions) Rules 1971 which we believe is still in force and applicable. For the avoidance of doubt we advise that the wording of rule 11(3) of the Election (Election Petitions) Rules 1971, be also uplifted and introduced in the provisions of section 111 of the Elections Act 1985.

As already indicated, Kimaro, J., found herself unable to share her brethren's views on the constitutional status of the challenged statutory provision. She held that the provisions of section 111(2) and (3) of the Act are violative of the Constitution. In the course of her dissenting ruling, she said:

> By any standard the provisions of section 111(2) and (3) have been made arbitrarily and the limitations imposed in the law cannot be said to be

reasonably necessary for achieving a legitimate objective. The impression created by the provisions is that they are safeguards of interests of few people.

Dealing with the argument of counsel for the Attorney General that the amount of money required to be deposited as security for costs is not excessive, the learned Judge said:

> My views are that the amount being required to be deposited as security for costs being excessive, it is only few people who can afford to pay. This means that the right to sue though given by the Constitution and the law concerned, will be curtailed. Accessibility to justice will be open to only those who can afford to pay security for costs.

The appellant now says that Kyando and Ihema, J.J., misdirected themselves in law in finding no merit in his petition, and Kimaro, J. was right in dissenting from that, view. Before us he was represented by Professor Shivji, who was assisted by Messrs Maira, Rweyongeza and Magafu. The High Court's decision is impugned on the following six grounds of appeal:

1. The trial judges erred in law and in fact in holding that the right to access to Court as provided under article 13(1) of the Constitution of the United Republic of Tanzania is fulfilled by simply filing the pleadings and payment of requisite Court fees.
2. The trial judges erred in law and in fact in not holding that the principle of equality before the law as contained in article 13(1) and 13(6)(a) of the Constitution of the United Republic of Tanzania means that all persons must have free access to Court and must be equally protected from discriminatory pre-conditions which curtail the right to be heard.
3. The trial judges erred in law and in fact in holding that the mandatory pre-condition of payment of TZS. 5 million as per section 111(2) of the Elections Act 1985, is realistic, reasonable and necessary to achieve legitimate purpose of securing respondent's costs in a petition without taking into account that the majority of Tanzanians are poor.

4. The trial judges erred in law and in fact in not holding that implementation of section 111(3) of the Elections Act 1985, is discriminatory in nature rather than an exception as natural persons are mandated to deposit security amounting to TZS. 5 000 000 for costs unlike the Attorney General.
5. The trial judges erred in law and in fact in not holding that sections 111(2) and (3) of the Elections Act 1985, have been made arbitrarily and the limitations therein are unreasonable and unfair to the citizens of Tanzania.
6. The trial judges erred in law and in fact in not holding that the mandatory pre-condition for security for costs as provided under section 111(2) of the Elections Act 1985, operates as to stultify or curtail the right to fair hearing [of] an ordinary citizen who cast his vote.

Professor Shivji argued first, second, third and sixth Grounds of Appeal together, and the remaining two grounds also together. Mr Mwidunda Senior State Attorney, who appeared, together with Mr Salula, for the respondent Attorney General, adopted the same method of presentation of his arguments. We hope we are not misrepresenting or failing to do justice to counsel if we seek to summarise their submissions.

Dealing with Grounds of Appeal 1, 2, 3 and 6, and citing article 13(1) and (6) of the Constitution *Farooque v Secretary of the Ministry of Irrigation, Water Resources and Food Control (Bangladesh) and others* (2); *Sugumar Balakrishnan v Pengarah Imigresen Negeri Sabah and another* (3), among other authorities, the learned advocate for the appellant pressed us to attach special importance to the right of unimpeded access to justice. In this connection, he called our attention to a number of passages from some judgments from various cases, including *Balakrishnan's* case (3) in which, speaking for the Court of Appeal of Malaysia, Gopal Sri Ram, J.C.A., said:

> ...We are of the view that the liberty of an aggrieved person to go to Court and seek relief, including judicial review of administrative- action, is one of the many facets of the personal liberty guaranteed by article

5(1) of the Federal Constitution. Were it otherwise, the protection afforded by articles 5(1) and 8(1) of the Federal Constitution will be illusory and the language of the supreme law no more than high sounding words of no practical significance.

Professor Shivji challenged the constitutionality of section 111(2) of the Act with great force. He submitted that the statutory provision creates almost an insurmountable obstacle to the exercise of the right of access to justice because a trial of an election petition is made contingent upon paying the deposit. According to counsel, the requirement, which leaves no discretion in the Court, is a violation of article 13(1) and (6) of the Constitution. Relying on a passage in the judgment of the High Court of Hong Kong III *Harvest Sheen Ltd. and another v. Collector of Stamp Revenue* (4), the learned advocate submitted that "if a litigant is entitled to a fair trial, it must be implicit that the litigant gets to trial in the first place." He went on to contend that a petitioner in an election petition cannot ask the High Court to summon the aid of the provisions of rule 11(3) of the Rules in his favour. The sub-rule provides:

> (3) Where on application made by the petitioner, the Court is satisfied that compliance with the provisions of paragraph (1) or paragraph (2) of this rule will cause considerable hardship to the petitioner, the Court may direct that:
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> (a) the petitioner give such other form of security as the Court may consider fit; or
>
> (b) the petitioner be exempted from payment of any form of security for costs:
>
> Provided that no order shall be made under this paragraph unless an opportunity had been given to the respondent, or, where there are two or more respondents, to each of the respondents to make representations in that behalf.

Professor Shivji contended that a petitioner cannot now make an application referred to in the sub-rule because, as the learned advocate put it, the sub-rule has, by necessary implication, been repealed by

section 111(2) of the Act. Mr Mwidunda's response to these arguments was an uncompromising one. He sought to combat the arguments by contending that section 111(2) of the Act does not in any way constitute an impediment to access to justice; what its provisions do is to balance rights and duties of litigants in election petitions. Treating article 30(2)(a) and (f) of the Constitution as the sheet-anchor of his response, the learned Senior State Attorney went on to submit that sections 111(2) and (3) was enacted to ensure that the rights and freedoms of petitioners in election petitions are not used to the prejudice of respondents in those proceedings as far as costs are concerned. According to the learned Senior State Attorney, the provisions of section 111(2) of the Act meet the test of reasonableness of a restriction on a fundamental right, laid down by this Court in *Pumbun's* case (*supra*). Very fairly, however, he conceded that the **Hansard** does not disclose the criterion which was used in fixing TZS. 5 million shillings as the amount of deposit to be made. Mr Mwidunda further submitted that, contrary to Prof. Shivji's contention, section 111(2) has not abolished the discretionary power of the High Court under rule 11 of the Rules to direct that a petitioner provide some other form of security or to waive the requirement to deposit TZS. 500 as security for costs. According to the learned Senior State Attorney, the requirement of depositing five million shillings does not limit the right of access to justice in election petitions.

Making his submissions on the fourth Ground of Appeal, Professor Shivji contended that section 111(3) of the Act is discriminatory against a private petitioner because the Attorney General is exempted from being required to make a deposit for security for costs. According to the learned advocate, whether the Government Proceedings Act is applicable to election petitions or not, the private petitioner is discriminated against because an award for costs against the Government is most unsecure. Mr Mwidunda's response to this argument was that section 15 of the Government Proceedings Act protects the interests of a decree-holder in a case against the Attorney General the costs of such a litigant are more than secure. The learned Senior

State Attorney also sought to meet Prof. Shivji's challenge of the constitutional validity of section 111(3) of the Act by submitting that the discrimination envisaged under Article 13(5) of the Constitution does not include the alleged discrimination in that section because the vice frowned upon by the constitutional provision is one relating to natural persons.

In support of the fifth Ground of Appeal, Prof. Shivji submitted that the requirement in section 111(2) of the Act, complained against by the appellant, is arbitrary in two respects: (1) it does not leave any discretion in the Court (2) the amount was fixed arbitrarily. Putting it interrogatively, the learned advocate asked: Why was not the amount fixed at TZS. 10 million shillings or at TZS. 50 million shillings? He reminded us that costs of litigation cannot reasonably be fixed before trial. He then went on to submit, citing *Director of Public of Prosecutions v. Daudi Pete* (5), that a restriction on a fundamental right must serve legitimate purpose and has to be proportionate. According to the learned advocate, the net in section 111(2) has been cast too widely, and the statutory provision should, therefore, be struck down as being unconstitutional. Mr Mwidunda, calling our attention to the fact that litigation costs have been on the rise in this country, valiantly contended that the sum of five million shillings cannot, in the circumstances, be said to be arbitrary. If the appellant finds it impossible to raise that amount it is open to him, the learned Senior State Attorney went on to submit, to ask the High Court to invoke its discretionary power under rule 11(3) of the Rules in his favour. It will be recalled that the learned Senior State Attorney had earlier contended that the provisions of that sub-rule are still in force.

We propose, before commencing to examine the correctness or otherwise of counsel's arguments, to allude 'for general principles governing constitutional interpretation which, in our opinion, are relevant to the determination of the issues raised by counsel in this appeal. These principles may, in the interests of brevity, be stated as follows. First, the Constitution of the United Republic of Tanzania

is a living instrument, having a soul and consciousness of its own as reflected in the Preamble and Fundamental Objectives and Directive Principles of State Policy. Courts must, therefore, endeavour to avoid crippling it by construing it technically or in a narrow spirit. It must be construed in tune with the lofty purposes for which its makers framed it. So construed, the instrument becomes a solid foundation of democracy and rule of law. As was correctly stated by Mr Justice EO Ayoola, a former Chief Justice of the Gambia, in his paper presented at a seminar on **the Independence of the Judiciary**, in Port - Louis, Mauritius, in October 1998:

> A timorous and unimaginative exercise of the judicial power of constitutional interpretation leaves the constitution a stale and sterile document.

Secondly, the provisions touching fundamental rights have to be interpreted in a broad and liberal manner, thereby jealously protecting and developing the dimensions of those rights and ensuring that our people enjoy their rights, our young democracy not only functions but also grows, and the will and dominant aspirations of the people prevail. Restrictions on fundamental rights must be strictly construed. Thirdly, until the contrary is proved, a legislation is presumed to be constitutional. It is a sound principle of constitutional construction that, if possible, a legislation should receive such a construction as will make it operative and not inoperative. Fourthly, since, as stated a short while ago, there is a presumption of constitutionality of a legislation, save where a clawback or exclusion clause is relied upon as a basis for constitutionality of the legislation, the onus is upon those who challenge the constitutionality of the legislation; they have to rebut the presumption. Fifthly, where those supporting a restriction on a fundamental right rely on a clawback or exclusion clause in doing so, the onus is on them; they have to justify the restriction.

With the above principles, among others, in mind, we proceed to deal with the arguments addressed to us. Convenience, we think, requires that we commence with Mr Mwidunda's argument on the true application of article 13(5) of the Constitution. It will be recalled

that it was the learned Senior State Attorney's submission that the provisions of the sub-Article have nothing to do with discrimination against juristic persons. Who, we ask, are the intended beneficiaries of the principle of equality before the law, embodied in article 13 of the Constitution, Mr Mwidunda's answer would be: Natural persons only. According to the learned Senior State Attorney's submission, the principle does not relate to juristic persons or collective bodies. We have given anxious and careful consideration to this submission and in the upshot we are of the settled opinion that, though not lacking in attractiveness, it is without merit. But, first, let us quote the sub-Article. Correctly and literally translated the provision should read (we think the official translation of it is not entirely correct):

> (5) For the purposes of this article the expression "discriminate" means to satisfy the needs, rights or other requirements of different persons on the basis of their nationality, tribe, place of origin, political opinion, colour, religion or station in life such that certain categories of people are regarded as weak or inferior *and* being subjected to restrictions or conditions whereas persons of other categories are treated differently or are accorded opportunities or advantage outside the specified conditions or the prescribed necessary conditions, provided that the expression "discriminate" shall not be so construed as to prevent the Government from taking deliberate steps aimed at solving problems in society [emphasis supplied].

The language in this provision has exercised our minds considerably, but in the end we are satisfied that the use of the word "and" immediately after the word "inferior" could not have been intended, for, so read, the provision would not make much sense. The framers of the Constitution, it seems to us, bearing in mind the wording of the provision, intended the provision to comprise two limbs. They must, therefore, have intended to use the word "or" immediately after the word "inferior" If that word is taken to be used there, it cannot be doubted, in our opinion, that the definition of the expression "discriminate" in the provision also embraces juristic persons and collective bodies emboldened in the view that the definition was not intended to relate

to natural persons only by the fact that, while in article 12 of the Constitution the framers used the expression "human beings", in article 13(4) and (5) they chose to use the expression "persons".

The use of those two different expressions strongly suggests to us that the framers intended to make a distinction between the beneficiaries of the principles underlying the two articles. It appears unlikely that they would have been indifferent to discrimination which juristic persons or collective bodies might be subjected to. While we recognise that the wording of a relevant constitutional provision is important in determining whether the Constitution treats juristic persons and collective bodies as beneficiaries of the principle of equality before the law, we wish to draw attention to a footnote in the book, **The Irish Constitution,** (3 ed)., by 1. M Kelly and Gerry Whyte, in which the learned authors disclose, at page 722, the way the Courts in Germany and Italy have applied the principle on the aspect of beneficiaries. The footnote, number 53, reads:

> The position reached in Ireland, on the mere strength of a narrow interpretation of the phrase "as human persons", should be contrasted with that reached in Germany and Italy in respect of the "equality before the law" guarantee in the Constitutions of those countries. In both jurisdictions it has been for many years clear that juristic as well as natural persons are entitled to the benefit of the rule: and (in Germany) that even groups with no legal personality, such as political parties, may rely on it. The concise reasoning of the Italian Constitutional Court in a case about associations for the assistance of disabled persons may be cited: "An unjustified discrimination between the different associations must inevitably have repercussions on the legal sphere of the members, and so must amount, even if only indirectly, to a violation of the equality of the citizen" (Corte constituzionale 1966/25). It is true that this conclusion is facilitated by article 2 of the Constitution, which guarantees the inviolable right of man "whether as an individual, or in the social formations in which his personality unfolds": but this is simply a handsome pleonasm. The very word "citizen" carries within it the recognition that the subjects of the legal system exist within a society.

In an appropriate case a juristic person may, in our opinion, complain before the High Court of a violation of the principle of equality before the law.

We observed at the beginning of this judgment that, essentially, this appeal is about access to justice. That right has, for a very long time and in many jurisdictions, been regarded as one of the most important rights a person is entitled to enjoy in a democratic society. Even in England, where, consistent with the doctrine of Parliamentary sovereignty, legislative powers of Parliament have been regarded by Courts to be unlimited, the right of access to justice has been jealously guarded by the Courts. More than eighty years ago, in *In Re Boaler* (6), Scrutton, J. emphasised the importance of that right. He said, at page 26:

> One of the valuable rights of every subject of the King is to appeal to the King in his Courts if he alleges that a civil wrong has been done to him, or if he alleges that a wrong punishable criminally has been done to him or has been committed by another subject of the King. This right is sometimes abused and it is, of course, quite competent to Parliament to deprive any subject of the King of it either absolutely or in part. But the language of any such statute should be jealously watched by the Courts, and should not be extended beyond its least erroneous meaning unless clear words are used to justify such extension.

The importance of the right has also been emphasized in many other English cases, including *Chester v. Bateson* (7); *R and W Paul Ltd. v. The Wheat Commission* (8); *Pyx Granite Co. Ltd. v. Ministry of Housing and Local Government and others* (9) and *Raymond v. Honey* (10). In *Pyx Granite Co's case* (9), Viscount Simonds expressed the emphasis in the following celebrated words, at page 286:

> It is a principle not by any means to be whittled down that the subject's recourse to Her Majesty's Courts for the determination of his rights is not to be excluded except by clear words. That is, as McNair, J. called it in *Francis v. iewsley and West Drayton. Urban District Council* [1957] 2QB 136, 138; [1957] 1 All ER 825, a "fundamental rule" from which I would not for my part sanction any departure.

While in England a person's right to unimpeded access to Court can be limited by mere express enactment, in Tanzania that right can be limited only by a legislation which is not only clear but which is also not violative of the provisions of the Constitution. Having considered the importance of access to Courts in the context of circumstances prevailing in Bangladesh, Rahman, J. in *Farooque's* case (2), said, at page 31:

> Effective access to justice can thus be seen as the most basic requirement, the most basic 'human rights' of a system which purports to guarantee legal rights.

We agree with Professor Shivji (we did not hear Mr Mwidunda expressing a view contrary to that submission) that the Constitution rests on three fundamental pillars namely, (1) rule of law; (2) fundamental rights; and (3) independent, impartial and accessible judicature. These three pillars of the constitutional order are linked together by the fundamental right of access to justice. As submitted by. Professor Shivji, it is access to justice which gives life to the three pillars. Without that right, the pillars would become meaningless, and injustice and oppression would become the order of the day. About two years ago, delivering his judgment in *Chief Direko Lesapo v.* (1) *North West Agricultural Bank* (2) *Messenger of the Court, Ditsobotla* (11), with which the rest of the members of the Constitutional Court of South Africa agreed, Mokgoro, J.said, at page15:

> The right of access to Court is indeed foundational to the stability of an orderly society. It ensures the peaceful, regulated and institutionalised mechanisms to resolve disputes, without resorting to self help. The right of access to Court is a bulwark against vigilantism, and the chaos and anarchy which it causes. Construed in this context of the rule of law and the principle against self help in particular, access to Court is indeed of cardinal importance. As a result, very powerful considerations would be required for its limitation to be reasonable and justifiable.

Access to Courts is, undoubtedly, a cardinal safeguard against violations of one's rights, whether those rights are fundamental or not. Without that right, there can be no rule of law and, therefore, no democracy. A Court of law is the "last resort of the oppressed and the bewildered." Anyone seeking a legal remedy should be able to knock on the doors of justice and be heard.

We deem it logical, before examining the question whether section 111(2) of the Act is violative of article 13(2) of the Constitution, to deal first with the issue whether, as was very manfully contended by Mr Mwidunda, rule 11(3) of the Rules, as amended by the Elections (Election Petitions) (Amendment) Rules 1981, and the Elections (Election Petitions) (Amendment) Rules 1996, is still in force. Prior to the enactment of the section, the High Court had a discretionary power to direct either that a petitioner in a parliamentary election petition give such form of security it considered fit, or that the petitioner be exempted from payment of any form of security for costs. We propose, in the interests of clarity and for the sake of completeness, to quote the rule *in extenso*. It reads:

> 11(1) The Registrar shall not fix a date of the hearing of any petition unless the petitioner has paid into the Court, as security for costs, a sum of five hundred shillings in respect of each respondent. (2) Where any person is made a respondent pursuant to an order of the Court, the petitioner shall within such time as the Court may direct or if the Court has not given any direction' in that behalf, within seven days of the date on which the order directing a person to be joined as a respondent is made, pay into the Court a further sum of five hundred shillings in respect of such person. (3) Where on application made by the petitioner, the Court is satisfied that compliance with the provisions of paragraph (1) or paragraph (2) of this rule will cause considerable hardship to the petitioner, the Court may direct that :
>
> (a) the petitioner give such other form of security as the Court may consider fit; or

> (b) the petitioner be exempted from payment of any form of security for costs:
>
> Provided that no order shall be made under this paragraph unless an opportunity had been given to the respondent, or, where there are two or more respondents, to each of the respondents to make representations in that behalf. (4) No security for costs shall be payable by a petitioner who has been granted legal aid under the Legal Aid Scheme of either the Faculty of Law, University of Dar es Salaam, the Tanganyika Law Society or the Tanzania Women Lawyers' Association.

Drawing our attention to the fact that the Rules were saved by section 129(b) of the Act when the legislation under which they were made was repealed, Mr Mwidunda strenuously argued that sub-rule (3) was not repealed or amended by the Electoral Laws (Miscellaneous Amendments) Act 2000, and is therefore, still in force. By that Act, Parliament enacted, among other things, section 111(2) and (3), the constitutionality of which the appellant challenged before the High Court. As already pointed out, Professor Shivji pressed us to hold that the sub-rule was, by necessary implication, repealed by the section.

In spite of the soldierly courage which he demonstrated while arguing this point, Mr Mwidunda has not succeeded to persuade us that rule 11(3) of the Rules is still in force. We entertain no doubt that Professor Shivji's contention that the sub-rule is no longer in force is incontrovertible. Why do we hold that view? That we will tell. It is an established principle of common law that rules must be read together with their relevant Act: see *AG v De Keyser's Royal Hotel* (12) per Lord Moulton. Rules cannot repeal or contradict express provisions in the Act from which they derive authority: see *Ex p. Davis* (13). Dealing with that point in that case, James, L.J., said, at page 529:

> If the Act is plain, the rule must be interpreted so as to be reconciled with it, or if it cannot be reconciled, the rule *must give way to the plain terms of the Act.* [emphasis supplied]

It is also a well-established principle of law that where an Act passed subsequently to the making of the rules is inconsistent with them, the Act must prevail unless it was plainly passed with a different object and then the two will stand together: *Britt v Buckingham CC* (14). In their book, **Interpretation of Statutes and Legislation**, (7 ed), at page 157, Mahesh Prasad Tandon and Rajesh Tandon make the same point by saying:

> Where a later enactment or a subordinate legislation is so inconsistent with or repugnant to an earlier enactment or subordinate legislation that the two cannot co-exist, then the latter one would effect repeal of the former by implication.

A later Act can, by implication, restrict the scope of a regulation which has been brought into force under an earlier Act: *Kruse v. Johnson* (15), per Lord Russell of Killowen, C.J. We readily agree with Professor Shivji that section 111(2) of the Act has, by necessary implication, repealed rule 11(3) of the Rules. If Parliament had intended that the High Court continue having the power it had under the sub-rule, it could easily have added a provision in the section identical with or similar to the sub-rule or one saving the sub-rule. It seems clear that the law–making authority wanted to abolish the power and make it a rule without exception that each petitioner, regardless of his financial standing, must deposit the sum of five million shillings as security for costs before his petition can be fixed for hearing. We have no doubt that the subsection and the sub-rule are inconsistent with each other, and, therefore, they cannot co-exist or stand together.

For the reasons we have given, we have reached the unhesitating conclusion that, contrary to the views expressed by Kyando and Ihema, J.J., on the point in their ruling, section (2) of the Act has, by necessary implication, repealed rule 11(3) of the Rules and, therefore, the High Court no longer has the power to prevent or mitigate the rigours of the subsection by directing either that a petitioner give such form of security as it considers fit, or that the petitioner be exempted from payment of any form of security for costs. Therefore, unless we are satisfied that the subsection is not, as submitted by Mr Mwidunda,

violative of the Constitution, a parliamentary election petition cannot, under any circumstances, be heard or tried before the petitioner pays into the High Court, as security for costs, a sum of five million shillings in respect of his petition. It must also be correct to say, as we do, that the provisions of sub-rule (4) of rule 11 of the Rules have also, by necessary implication, been repealed by section 111(2) of the Act. It will be recalled that sub-rule (4) exempted a petitioner who was granted legal aid under the Legal Aid Scheme of the Faculty of Law, University of Dar es Salaam, the Tanganyika Law Society or the Women Lawyers' Association from paying security for costs in respect of his petition. It means that now even such petitioners must deposit a sum of five million shillings as security for costs. Having arrived at these conclusions, we must now turn our attention to the question whether subsections (2) and (3) of section 111 of the Act are unconstitutional.

Keeping in view the principles of constitutional interpretation we referred to earlier, can it be said that those statutory provisions are violative of article 13 of the Constitution? Professor Shivji valiantly attacked Kyando and Ihema, J.J.'s conception of the right of access to justice. Referring to the requirements for paying or depositing security for costs under Order 25, rule 1(1) of the Civil Procedure Code and section 111(2) of the Act, the learned Judges said:

> It is pertinent to note that in both situations the party required to pay or deposit security for costs will have already accessed to the Court by filing his/her pleadings and paid the necessary Court fees.

With great respect to the learned Judges, we cannot agree that access to justice constitutes mere filing of pleadings and paying the required Court-fees. The right to have recourse or access to Courts means more than that. It includes the right to present one's case or defence before the Courts. It cannot, therefore, be correct to say that once he files his petition a petitioner in an election petition has enjoyed the whole of his right of access to justice. Access to justice is not merely knocking on the door of a Court. It is more than that.

Fundamental rights are subject to limitation. To treat them as being absolute is to invite anarchy in society. Those rights can be limited, but the limitations must not be arbitrary, unreasonable and disproportionate to any claim of State interest: see *Pumbun's* case (1) Under the Constitution, an individual's fundamental right may have to yield to the common weal of the society. What is observed by Dr Durga Das Basu in his book, **Shorter Constitution of India**, (12 ed), at page 104, in connection with the Constitution of India is entirely applicable to our own Constitution. The learned author states:

> There cannot be any such thing as absolute or uncontrolled liberty wholly free from restraint for that would lead to anarchy and disorder. The possession and enjoyment of all rights are subject to such reasonable conditions as may be deemed to the governing authority of the country to be essential to the safety, health, peace, general order and moral of the community. Ordinarily every man has the liberty to order his life as he pleases, to say what he will, to go where he will, to follow any trade, occupation or calling at his pleasure and to any other thing which he can lawfully do without let or hindrance by any other person. On the other hand, for the very protection of these liberties the society must arm itself with certain powers. What the Constitution, therefore, attempts to do in declaring the rights of the people is to strike a balance between individual liberty and social control.

Personal freedoms and rights must necessarily have limits, for, as Learned Hand also rightly remarked in his eloquent speech on The Spirit of Liberty, cited by Khanna, J., in his judgment in *His Holiness Kesavananda Bharati Sripadanagalavaru v. State of Kerala and another* (16):

> A society in which men recognise no check upon their freedom soon becomes a society where freedom is the possession of only a savage few...

Prof. Shivji submitted, as will be recalled, that section 111(2) of the Act is arbitrary and violates the principle of equality because it unreasonably classifies petitioners into two groups: those who can cause the Registrar of the High Court, by paying a deposit of the sum of five million shillings as security for costs, to fix the hearing

dates of their petitions, and those who can only sit by as they watch the files of their petitions accumulate dust because they cannot pay the deposits and there are no statutory provisions which empower the Court to waive the requirement to make the deposits. While he appeared to concede that section 111(2) of the Act constitutes a restriction on the right of access to Courts, Mr Mwidunda contended that, having been passed to protect respondents from frivolous or vexations petitions, and to ensure that those litigants recovered their expenses incurred while defending themselves if eventually the petitions are dismissed 'the statutory' provision cannot be said to be arbitrary or unreasonable. What is the test of reasonableness in this context? We find the observations of the Supreme Court of India in *State of Madras v. VG Row* (17) very helpful, if we may respectfully say so, in answering that question. Speaking by Patanjali Sastri, C.J., the Court said, at page 607:

> The test of reasonableness ... should be applied to each individual statute impugned, and no abstract standard, or general pattern of reasonableness can be laid down as applicable to all cases. The nature of the right alleged to have been infringed, the underlying purpose of the restrictions imposed, the extent and urgency of the evil sought to be remedied thereby, the disproportion of the imposition, the prevailing conditions at the time, should all enter into the judicial verdict.

We also find very useful the following passage from the judgment of Barnett, J. in *Harvest Sheen Ltd's* case (4), at page 13:

> ... the Court must be satisfied, firstly, that the limitations applied do not restrict or reduce the access [to the Courts] left to the individual in such a way or to such an extent that the very essence of the right is impaired. Secondly, a restriction must pursue a legitimate aim and there must be a reasonable relationship of proportionality between the means employed and the aim sought to be achieved.

Applying the test stated in these two passages, we are of the settled opinion that section 111(2) of the Act is arbitrary. According to subsection (1) of the section, an election petition may be presented by, among

others, a person who lawfully voted or had a right to vote at the election to which the petition relates. Many of such voters would be persons who cannot possibly raise even one-tenth of the required five million shillings as security for costs or for any other purpose. Bearing in mind the minimum wage in the Civil Service, which we can take judicial notice of under section 58 of the Evidence Act 1967, a minimum wage-earner will require literally more than all his eight years' wages to pay five million shillings. When this fact is borne in mind, it cannot, in our opinion, be disputed that it is utterly impossible for an indigent voter to pay five million shillings as required by section 111(2) of the Act. The statutory provision, therefore, effectively denies access to justice to indigent petitioners. Is the infliction of this extreme disability on an indigent voter or candidate justified? We have no hesitation in answering that question in the negative. Mr Mwidunda strenuously contended that the provisions of the statutory provision are justified on the ground that they prevent the filing of frivolous or vexatious petitions and also they ensure that respondents in election petitions recover their litigation expenses in the event the petitions are unsuccessful. We find no merit in this argument. First, fundamental rights and costs of litigation should not be weighed in the scales against each other. Secondly, we think that the answer to the learned Senior State Attorney's argument is partly to be found in a statement by Lord Macaulay in his criticism of a preamble of a Bengal Regulation of 1795 which purported to justify Court fees on the ground of discouraging frivolous variety of litigation. The statement, quoted by C.B. Srinivasan in his book, **Towering Justice**, at page. 380, reads:

> ... It is undoubtedly a great evil that frivolous and vexatious suits should be instituted. But it is an evil for which the Government has only itself and its agents to blame, and for which it has the power of proving a most efficient remedy. The real way to prevent unjust suits is to take care that there shall be just decision. No man goes to law except in the hope of succeeding. No man hopes to succeed in a bad cause unless he has reason to believe that it will be determined according to bad laws or bad judges.

> Dishonest suits will never be common unless the public entertains an unfavourable opinion of the administration of Justice.

Thirdly, as was pointed out by Mr Justice (Rtd) Chandrachud in his Article, "Fundamental Rights in Their Economic Social and Cultural Context", published in the **Journal of Developing Human Rights Jurisprudence**, at page 142:

> The fact that a forum for justice is misused does not justify the closing of the doors of justice.

Abolishing the right of an indigent petitioner to apply to the High Court for a direction that either he give some other form of security, or he be exempted from payment of any form of security for costs, and repealing the provisions of rule 11(4) of the Rules which provided that no security for costs were payable by a petitioner who had been granted legal aid under the Legal Aid Scheme of the Faculty of Law, University of Dar es Salaam, the Tanganyika Law Society or the Tanzania Women Lawyers' Association amount, in practical terms, to - closing the doors of justice to such seekers of legal remedies. To such petitioners, the right of access to justice becomes meaningless. Be that as it may, there appears to be no explanation why the so-called protection of respondents is not made available to respondents in litigation not arising from elections.

The repeal of rule 11(3) and (4) of the Rules has, as we have endevoured to demonstrate, effectively classified those who are aggrieved by the results of a parliamentary election and have a right to file a petition before the High Court into two distinct groups, namely, those who, because they can afford to pay a deposit of five million shillings, will be able to have their petitions heard by the Court, and those who, as a result of their poverty, the doors of justice will be firmly shut against them. It is not a principle of law that all laws must be of universal application or that the state has no power of distinguishing or classifying persons or things for the purpose of legislation. What the law demands is that any classification or differentiation must have a rational nexus to the object sought to be

achieved by the legislation in question. What is forbidden by article 13 of the Constitution is class legislation and not reasonable classification. The legislative power to make differentiation or classification is important, for, as Professor MP Jain states in his book, **Indian Constitutional Law**, (4 ed), at page 472:

> All persons are not equal by nature, attainment, or circumstances. The varying needs or different classes or sections of people require differential and separate treatment. The Legislature is required to deal with diverse problems arising of an infinite variety of human relations. It must, therefore, necessarily have the power of making laws to attain particular objects and, for that purpose, of distinguishing, selecting and classifying persons and things upon which its laws are to operate.

It is, of course, for the Courts to decide whether a classification adopted by a law is reasonable or not. The judicial antennae must be sensitive to any classification with a view to ensuring that the classification is rational. To be assured of a bright future a country must have its foundations of justice and equality truly and firmly laid. It is salutary to remember - and here we gratefully adopt the words of Rahman, J. in *Farooque's* case (1), at page.25, as our own:

> If justice is not easily and equally accessible to every citizen there then can hardly be a rule of law. If access to justice is limited to the rich, the more advantaged and more powerful sections of society, then the poor and the deprived will have no stake in the rule of law, and they will be more readily available to turn against it. Ready and equal access to justice is a *sine qua non* for the maintenance of the rule of law. Where there is a written Constitution and an independent judiciary and the wrongs suffered by any section of the people are capable of being raised and ventilated publicly in a Court of law there is bound to be greater respect for the rule of law.

Frivolous or vexatious litigation is, undoubtedly, a detestable thing. But the right way to deal with that evil is not to close the doors of justice, but to depend upon Courts invoking their inherent or statutory jurisdictions to strike out actions of that nature. The doors of justice

must always be left open even to the poorest man or woman in the country. Section 111(2) of the Act is likely to stultify *bona fide* petitions from indigent persons.

Having paid due attention to counsel's arguments, we are satisfied, for the reasons we have endeavoured to give, that Kyando and Ihema, J.J., erred in holding, as they did, that section 111(2) of the Act is not unconstitutional. In our view, the statutory provision is a class legislation. It is also arbitrary and the limitation it purports to impose on the fundamental right of access to justice is more than is reasonably necessary to achieve the objective of preventing abuse of the judicial process. Plainly, Parliament exceeded its powers by enacting the unconstitutional provision. Legislative competence is limited to making laws which are consistent with the Constitution. These conclusions are sufficient to dispose of the appeal, but we consider it useful to say a word or two on the arguments addressed to us concerning the exemption granted to the Attorney General by section 111(3) of the Act.

The importance of the role of the Attorney General in his capacity as the guardian of public interest cannot, in our opinion, be over-emphasized. But the problem arising from section III of the Act is not that the statutory provision purports to exempt the Law Officer from giving security for costs, but, by repealing rule 11(3) of the Rules, that it purports to deprive a petitioner of his right, under the sub-rule, to apply for an exemption. As far as legislative discrimination is concerned, what is decisive is not the phraseology of the statute but the effect of the legislation. However, since we have held that subsection (2) of the section is unconstitutional, it follows, as day follows night, that rule 11(3) is still in force, and, therefore, a petitioner still has a right to apply for an exemption. In practical terms, therefore, an ordinary petitioner cannot be said to be subjected to discrimination by section 111(3) of the Act. In the circumstances, we agree with Kyando and Ihema, J.J, though for different reasons, that the subsection is not violative of the provisions of article 13(2) of the Constitution.

For the foregoing reasons, in our opinion, this appeal must succeed. Allowing the same with costs, we reverse the decision of the High

Court and declare that section 111(2) of the Elections Act 1985, is unconstitutional and, therefore, devoid of any legal force *ab initio*, that is to say, from the date of its enactment. For the avoidance of doubt, it must be distinctly stated that, since the subsection has been so declared, the provisions of rule 11(3) of the Elections (Elections Petitions) Rules 1971, as amended, are still in force and, therefore, the powers conferred upon the High Court by those provisions may, in appropriate cases, be invoked by the Court in favour of petitioners. One of the results of section 111(2) being struck down for being unconstitutional is that the sum of money which a petitioner is required to pay as security for costs in a parliamentary election petition is still five hundred shillings. Bearing in mind the decline of the value of the shilling which has taken place since 1971, when the Rules were made, it cannot be disputed that that sum is now too little to serve any useful or practical purpose in terms of providing security for costs, but it is not within the competence of this Court or any other Court, for that matter, to amend the Rule.

JUDGE-IN-CHARGE, HIGH COURT AT ARUSHA AND THE ATTORNEY GENERAL *v.* NIN MUNUO NG'UNI

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Makame, Ramadhani and Lugakingira, JJ.A.)

CIVIL APPEAL No. 45 OF 1998

(Appeal from the Judgment of the High Court of Tanzania at Arusha, (Mapigano, Mchome, and Rutakangwa, JJ.A.), dated 17 March 1998, in Civil Cause No. 3 of 1993, reported in [1998] T.L.R 464)

Civil Practice and Procedure – Appeal – Cross appeal – Notice of Cross Appeal to the Court of Appeal – Respondent files Notice of Cross Appeal seven days after the Notice of Appeal is filed and well before the Memorandum of Appeal is filed – Whether the Notice of Cross Appeal is properly filed – Rule 87 of the Tanzania Court of Appeal Rules 1979.

Natural Justice – Right to be heard – Suspension without first being heard – Advocate suspended from practice – Whether the advocate had the right to be heard before being suspended – Section 22(2) of the Advocates Ordinance Chapter 341.

Advocates – Suspension from practice – Advocate suspended from practice without first being heard – Whether section 22(2) of the Advocates Ordinance dispenses with the right to be heard.

Basic Human Rights – Right to a just remuneration for one's work as guaranteed under the Constitution – TZS. 500 prescribed as the maximum remuneration to an advocate for legal representation in the High Court – Whether an infringement upon the constitutional right – Section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969 and Article 23(2) of the Constitution of the United Republic.

Civil Practice and Procedure – Damages – Special damages – Special damages awarded where they are not specifically pleaded – Whether the award is proper.

Constitutional Law – Separation of Powers – Administration of justice – Final authority in the administration of justice – High Court finds an action or enactment invalid or unconstitutional – Whether the Court should not declare it invalid or unconstitutional but should refer the matter to some other organ of state for remedy – Section 13(2) of the Basic Rights and Duties Enforcement Act 1994 and Article 107A of the Constitution of the United Republic.

The respondent, an advocate of the High Court based in Arusha was assigned six Court briefs to represent accused persons at a High Court criminal session in Babati. He refused to accept them, whereupon the first appellant suspended him from practice, pending a reference to the High Court. He petitioned the High Court asking for, *inter alia,* an order that his suspension was illegal for breach of natural justice, a declaration that section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969 prescribing a maximum remuneration of TZS. 500 to an advocate for a legal aid brief was *ultra vires* the Constitution, and an award of damages. He was successful in the High Court [1998] T.L.R 464, and hence this appeal.

Seven days after the appellants had filed their Notice of Appeal the respondent filed a Notice of Cross Appeal. At the hearing the appellants contended that the respondent should not have filed his notice until after the Memorandum of Appeal was filed as rule 87(2) of the Tanzania Court of Appeal Rules 1979 provided for the right to file a cross appeal within a period of 30 days after the filing of the Memorandum of Appeal. The Court heard submissions on the preliminary objection as well as on the merits of the appeal.

Held: (i) Rule 87 of the Tanzania Court of Appeal Rules 1979 does not prohibit the filing of a Notice of Cross Appeal before filing, or before receipt of a copy of, the record and Memorandum of Appeal; the respondent, therefore, was entitled to file his Notice of Cross Appeal as he did;

(ii) section 22(2)(b) of the Advocates Ordinance, which gives a judge of the High Court power to suspend an advocate, does not dispense with the right to be heard, and current trend and tempo of human rights demand that there should be a right to be heard even for such interim decision;

(iii) The first appellant's letter was not a mere "show cause" notice but an ultimatum showing that the first appellant had made up his mind to take disciplinary action against the respondent should the latter not take up the briefs assigned to him; the respondent, therefore, was not given any opportunity to be heard;

(iv) section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969, which prescribes a maximum of TZS. 500 as remuneration to an advocate for a legal aid brief, infringes the provisions of Article 23(2) of the Constitution which provides for the right to a just remuneration for one's work;

(v) Following the Court of Appeal remarks in *Attorney General v. W.K. Butambala* (7) about the remuneration payable under section 4 of the Legal Aid (Criminal Proceedings) Act 1969 being grossly inadequate and out of date, the High Court was justified to hold that there was neglect on the part of the Attorney General in failing to initiate amendments to section 4 of the Act;

(vi) Although, ordinarily, special damages have to be specifically pleaded and proved, in a case founded on breach of basic fundamental rights like this one, a mere statement or prayer of a claim for such damages may suffice for the Court to consider awarding them;

(vii) After finding that section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969 offends the Constitution the High Court cannot stop short of declaring it invalid or unconstitutional and then refer the matter to Parliament or to some other authority as provided for under section 13(2) of the Basic Rights and Duties Enforcement Act 1994 because to do so would amount to giving "the final say in the administration of justice" to some authority other than the judiciary, and would also cause delay in the rendering of justice contrary to articles107A(1) and 107A(2)(b) of the Constitution respectively;

(viii) As striking the whole of section 4(2) of the Legal Aid (Criminal Proceedings) Act 1969 abolishes any sort of remuneration to advocates taking legal aid briefs and because it is not the entire section 4(2) that is unconstitutional but only the amounts stipulated therein, the High Court erred in striking out the whole of section 4(2) of the Act.

Appeal dismissed; cross appeal on quantum of damages allowed

Cases referred to:

(1) *Rawal v. Mombasa Hardware* [1968] EA 392

(2) *Mauji v. Arusha General Stores* [1968] EA 137

(3) *Cooper Motors Cooperation (T) Ltd v. Arusha International Conference Centre* [1991] T.L.R. 165

(4) *General Marketing Company Ltd v. A.A. Shariff* [1980] T.L.R. 61

(5) *The Stte (Irish Pharmaceutical Union) v. Employment Appeals Tribunal* [1987] ILRM 36

(6) *Irish Family Planning Association v. Ryan* [1979] IR.295

(7) *Attorney General v. WK Butambala* [1993] T.L.R. 46

(8) *Grace Ndeana v. Consolidated Holding Corporation*, CAT – Civil Appeal Number 76 of 1999 (unreported)

(9) *Cooper Motor Cooperation Ltd v. Moshi/Arusha Occupational Health Services* [1990] T.L.R. 96

(10) *Dr Ally Shabhay v. Tanga Bohora Jamat*, CAT – Civil Appeal Number 40 of 1997 (unreported)

(11) *Rev. Christopher Mtikila v. Attorney General* [1995] T.L.R. 31

(12) *Smith v. East Elloe Rural District Council* [1956] AC 736

(13) *DC Kiambuu v. Republic and others* [1960] EA 109

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, GN 102/1979, r.87(1) and (2)

(2) Advocates Ordinance Chapter 341, section 22(2)

(3) Legal Aid (Criminal Proceedings) Act 1969, Act Number 21 of 1969, section 4(2)

(4) Basic Rights and Duties Enforcement Act 1994, Act Number 33 of 1994, section 13(2)

(5) The Constitution of the United Republic of Tanzania 1977, articles 23(2), 107A(1) and 107A(2)(b)

Mr. Kamba, PSA for the Appellants

JUDGMENT

(Dated 5 March 2002)

Ramadhani, J.A.: The respondent, NIN Munuo Ng'uni, is an advocate of the High Court of Tanzania based at Arusha. On 4 November 1993 the High Court of Tanzania, Arusha Registry, assigned him six Court briefs for a criminal session in Babati. He did not accept them. So, the learned Judge in charge of the High Court, Arusha, suspended his practice pending a reference to the High Court. He filed a suit claiming a number of things: That his suspension was illegal and that it should be lifted, that the Court should make a declaration that the Legal Aid (Criminal Proceedings) Act 1969, Act Number 21 of 1969, (hereinafter referred to as Act Number 21 of 1969) is *ultra vires* article 23 of the Constitution of the United Republic of Tanzania, 1977, (hereinafter referred to as the Constitution), and that he should be awarded damages.

He was successful in the High Court before a panel of three judges since it was a claim under the Basic Rights and Duties Enforcement Act 1994, Act Number 33 of 1994, (hereinafter referred to as Act Number 33 of 1994). The appellant filed a Notice of Appeal on 20 March 1998 and the respondent filed a Notice of Cross Appeal on 27 March 1998, that is, seven days afterwards.

At the hearing Mr Kamba, Principal State Attorney, represented the appellants while the respondent appeared in person. The appellants raised a preliminary objection which we heard but reserved our ruling to the present. We now give it.

The appellants claimed that the notice of cross-appeal by the respondent was filed contrary to rule 87(2). Mr Kamba submitted that the respondent was required to file a notice of cross-appeal after a copy of Memorandum of Appeal by the appellants was served on him and that he had thirty days in which to do so. Mr Kamba contended that the respondent jumped the gun, so to speak.

The respondent simply said that the moment he received a copy of the Notice of Appeal by the appellants, he knew that he was the respondent and, therefore, he could only file a cross-appeal. He pointed out that rule 87(2) does not bar a person from filing a cross-appeal before service of a Record of Appeal and a Memorandum of Appeal. He submitted that rules should not be used to thwart substantial justice. Mr Kamba admitted that the appellant has not been prejudiced in any way by the filing of the notice of cross-appeal before the respondent was served with a copy of the record and Memorandum of Appeal. Now, it is trite law that procedural irregularity should not vitiate proceedings if no injustice has been occasioned; see: *Rawal v. Mombasa Hardware* (1); *Mauji v. Arusha General Stores* (2) and *Cooper Motors Corporation (T) Ltd. v. Arusha International Conference Centre* (3). So, this ground is lame.

Then we agree with the respondent that rules should not be used to thwart justice. In fact a prominent judge in this jurisdiction, the late Biron, J. said in *General Marketing Co. Ltd. v. A.A. Shariff* (4)

at page 65, that rules of procedures are handmaids of justice and should not be used to defeat justice.

To clinch it all, the thirteenth Amendment to the Constitution has promulgated article 107A which provides, in sub-article (2)(e), as follows:

> (2) Katika kutoa uamuzi wa mashauri ya madai na jinai kwa kuzingatia sheria, mahakama zitafuata kanuni zifuatazo, yaani:
>
> [(a) ... to (d) not relevant]
>
> (e) kutenda haki bila ya kufungwa kupita kiasi na masharti ya kiufundi yanayoweza kukwamisha haki kutendeka.

That can be translated as follows:

> (2) In the determination of civil and criminal proceedings according to law, the Courts shall have regard to the following principles, that is to say:
>
> [(a) ... to (d) not relevant]
>
> (e) administering justice without being constrained too much by technical requirements, which are capable of stopping justice from being done.

In this case we are totally convinced that apart from affording the appellants a win by knock out, the appellants are not in any way prejudiced, and granting their objection would only deny the respondent an opportunity of cross-appeal.

Rule 87(1) and (2) provides as follows:

> 87(1) A respondent who desires to contend at the hearing of the appeal that the decision of the High Court or any part of it should be varied or reversed, *either in any event or in the event of the appeal being allowed in whole or in part,* shall give notice to that effect ...
>
> A notice given by a respondent under this rule ... shall be lodged in quadruplicate in the appropriate registry not more than thirty days after service on the respondent of the Memorandum of Appeal and the Record of Appeal. [emphasis supplied]

It is clear to us that there are two possibilities under this Rule. One, a party wants to appeal but is forestalled because the opposite party or parties has/have filed a Notice of Appeal first. So, the only venue open to him is to file a cross-appeal. In this case Mr Kamba conceded that the respondent was aware of the Notice of Appeal of the appellants and so, he could only file a cross-appeal. The second possibility is where a party is not intending to appeal at all but is wary of the appeal of the other party and is afraid of the consequences of the success of that appeal, in whole or in part; so he files a cross-appeal.

It appears to us that in the first instance, the party need not wait for the memorandum and Record of Appeal to be served on him. His cross-appeal has not been prompted by the appeal of the other party. However, a party in the second category needs to know the grounds of appeal of the intended appellant before he files his notice of cross-appeal. For such a person the rule provides that he files his notice of cross-appeal not later than thirty days after service on him of the memorandum and Record of Appeal.

It is our considered opinion that the aim of the rule is not to prevent the first type of an intended cross-appellant from filing his notice of cross-appeal but it protects the intended appellant from being ambushed by the second type of an intended cross-appellant. Hence the rule prescribes this period of thirty days as the outermost time limit for a person in the second category to file his notice of cross-appeal. Our opinion is that that rule does not prohibit a person to file a notice of cross-appeal before he is served with the record and Memorandum of Appeal. For the reasons given above we dismiss the preliminary objection.

Mr Kamba had seven grounds of appeal and decided to combine the first two. In grounds one and two the complaint was that the learned judges erred in holding that the first appellant had a duty to give the respondent a right of hearing before exercising his powers

of suspending an advocate under section 22(2) of the Advocates Ordinance Chapter 341 as amended by Act Number 10 of 1990 (hereinafter referred to as the Ordinance).

Mr Kamba, in our opinion, argued in the alternative: first he submitted that there was no need to give a right of hearing under the Ordinance and in any case the respondent was accorded that right by the first appellant. The learned Principal State Attorney reiterated the argument at the trial that Exhibit P3, a letter from the first appellant to the respondent, was a Notice to Show Cause and that the respondent ignored the opportunity to be heard. The respondent said that he gave evidence in Court and was not challenged. He submitted that Exhibit P. 3 was not a Notice of Hearing but it was a threat of administering an unspecified disciplinary action.

Section 22(2)(b) of the Ordinance provides as follows:

> Any judge of the High Court shall have power to suspend any advocate in like manner [i.e. from practising], temporarily, pending a reference to, or disallowance of such suspension by the High Court.

Does that paragraph dispense with the principle of natural justice of *audi alteram partem,* that is, hear the other side? We think not. Admittedly, the action of a High Court judge under that paragraph is purely interim and awaits the decision of the High Court, it nevertheless affects the rights of an individual. We agree with the learned trial judges that the current trend and tempo of human rights demands that there should be a right to be heard even for such interim decision.

In fact, nowadays, Courts in some jurisdictions, like the Eire Republic, demand not only that a person be given a right to be heard but that he be given an "adequate opportunity" to be heard; see: **The Irish Constitution,** by JM Kelly, (3 ed), by Gerald Hogan and Gerry Whyte (Butterworths, 1994) at page 350. We also agree with the judgment of McCarthy, J., in *The State (Irish Pharmaceutical Union) v. Employment Appeals Tribunal* (5) that:

> ... it is a fundamental requirement of justice that a person or property should not be at risk without the party charged being given adequate opportunity of meeting the claim, as identified and pursued. If the proceedings derive from statute, then, in the absence of any set or fixed procedures, the relevant authority must create and carry out the necessary procedures; if the set and fixed procedure is not comprehensive, the authority must supplement it in such a fashion to ensure compliance with constitutional justice.

We are aware that the *audi alteram partem,* like all legal rules, have exceptions. For instance, the whole object of censorship legislation would be defeated if a censorship board would be required to give adequate opportunity to be heard to a publisher who could not be readily traced: *Irish Family Planning Association v. Ryan* (6). But this case was not in that category.

To come back to the appeal, was the respondent given an opportunity to meet the claim of the first appellant? Was such opportunity given in Exhibit P3? Was it notice to show cause and that the respondent let go? The first appellant wrote to the District Registrar Exhibit P3 saying:

> Following the discussions we had in my chambers yesterday, please write to Mr Munuo, Advocate, to inform him that I have seen his letter to you and I *have satisfied myself* that he has no good reasons for not taking the dock briefs assigned to him and that refusal by him to take them will result in immediate disciplinary action against him under Chapter 341 of the Laws. *He should signify acceptance by tomorrow.* [emphasis supplied]

We have no flicker of doubt in our minds, and we agree with the respondent, that this letter was nothing but an ultimatum. The first appellant had already made up his mind to take disciplinary action. He was not even in a position to accommodate a hearing, let alone giving that opportunity. So, whatever the appellant would have done, except taking up the briefs, would have been window dressing. So, we dismiss these two grounds of appeal.

In the third ground of appeal the appellants averred that the learned trial judges erred in finding that the suspension order violated article 13(6)(a) of the Constitution:

> When the rights and duties of any person are being determined by the Court or any other agency, that person shall be entitled to a fair hearing and to the right of appeal or other legal remedy against the decision of the Court or of the other agency concerned;

We do not think that this ground should take much of our time. Entitlement to a fair hearing includes the principle of *audi alteram partem.* So, that principle is part of the Constitution. Since, we have found that the suspension order violated the principle of *audi alteram partem,* then, it has also violated the Constitution. So, this ground of appeal also fails.

In the fourth ground, the appellants sought to fault the learned judges in holding that section 4(2) of Act Number 21 of 1969 has violated the basic rights of the respondent secured under article 23(2) of the Constitution. Mr Kamba conceded that a maximum remuneration ceiling of TZS. 500 imposed by section 4(2) is low. Nevertheless, he argued that it is not necessarily unconstitutional. The respondent merely acknowledged the admission of Mr Kamba that the amount is low and added that that was so in 1993.

Admittedly the Act was enacted in 1969 and at that time TZS. 500 was substantial. But at the present time that amount is peanuts. As such we entertain no doubt at all in our minds that that amount obviously infringes article 23(2) which provides:

> Every person who works is entitled to a just remuneration.

Now, the **Pocket Oxford Dictionary** defines the word "just" as:

> Equitable, fair; deserved, due; well-grounded; right in amount; proper; exact.

We are of the considered opinion that that definition speaks for itself and it needs no elaboration on our part. A remuneration of

TZS. 500 for defending a serious criminal case like murder does not compare with any of the above quoted adjectives. We agree with the learned judges that section 4(2) of Act Number 21 of 1969 infringes article 23(2) of the Constitution. We, therefore, dismiss this ground of appeal. Of course, there is what is to be done to that offensive subsection. The learned judges struck it out. There is no ground of appeal challenging that though Mr Kamba addressed us on it. We shall deal with it shortly.

In the fifth ground the appellants sought to fault the learned judges for holding that the second appellant was to blame for his negligence to take steps to amend section 4(2) of Act Number 21 of 1969. Again Mr Kamba conceded that the Attorney General is duty bound to initiate amendments but argued that the respondent has also an obligation to draw the attention of the Attorney General to pieces of legislation needing revisiting. The respondent submitted that the Attorney General is the principal legal adviser to the Government under article 59(3) of the Constitution and contended that it was his duty to amend the offending section. Their lordships had this to say in their judgment:

> In actual fact a number of repeals and amendments of the law have been made since the commencement of Act 16 of 1984. But nothing has been done to the impugned provision in order to bring Act 21 of 1969 into conformity with the basic rights provisions of the constitution. There being no evidence that the Attorney General has taken any steps in that direction, the reasonable inference is that he has been remiss in his duty and a charge of neglect, not negligence, has thus to stick.

For the sake of clarity we have to point out that Act 16 of 1984 referred to by their Lordships is the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984. That Act gave the Government three years in which to bring existing laws into conformity with the basic rights provisions of the Constitution and thus stalling any action in that period of time.

We are at one with the learned judges and, we wish to add, that this Court prompted the Attorney General into action in *Attorney*

General v. WK Butambala (7), which dealt also with section 4(2) of Act Number 21 of 1969. This Court said at page 54:

> By way of post-script we desire to add that the fees payable under section 4 of the Legal Aid (Criminal Proceedings) Act 21 of 1969, may be grossly inadequate and out of date. We think something positive must be done...

This Court said that on 14 June 1991, yet up to 9 November 1993, when the cause of action in this matter arose, a period of almost thirty months, nothing was done by the Attorney General. In that appeal, just as in this one, the Attorney General was very ably represented. We, therefore, find that the learned judges were justified to hold that the charge of neglect was correctly placed at the door of the second appellant. We cannot fault them. This ground, too, fails.

The sixth ground was that the learned judges erred in holding that the reputation of the respondent was injured by the wrongful acts of the appellants. The learned judges said:

> In relation to the first respondent, we take it [injury to reputation] to have reference to his failure to give the petitioner a hearing and so his decision to suspend the petitioner from legal practice; and in relation to the second respondent we understand it to have reference to his failure to have section 4(2) of Act 21 of 1969 amended appropriately.

Both Mr Kamba and the respondent reiterated their submissions for grounds one and four. However, the respondent added, and correctly so, in our opinion, that to an advocate with a blameless record for the sixteen years of practice, an illegal suspension is obviously injurious to his reputation. We agree with Mr Kamba that the second appellant has not in any way injured the respondent the neglect to amend section 4(2) of the Act did not in any way injure the respondent's reputation. So, we have only to consider the first appellant,

We agree with the learned judges that:

> We have come to the conclusion that this complaint has substance. It is certainly an infliction of great harm on the reputation of an advocate to call him undisciplined, as it was done in the Majira article... Mr Songoro [learned Senior State Attorney] contends that there is no corroborative evidence that the petitioner has suffered such injuries, probably forgetting that a Court is entitled to believe the word of a complainant and to apply common sense.

However, the learned judges made it abundantly clear that "upon the evidence it cannot be held that the first respondent was behind the publicity given to the suspension order". Nevertheless, they found it as a fact that the *Majira* newspaper published it and their lordships were satisfied that "the suspension was bound to be known by the members of the public". But, we ask, would that have injured the respondent's reputation?

For the avoidance of doubt, we reiterate that the learned judges were emphatic that the first appellant was not behind the publication in the *Majira* newspaper. We agree with their lordships that the public was bound to know of the suspension. However, the public would only have known that the respondent was suspended because he refused to take up dock briefs protesting the payment of TZS. 500 per brief. We do not think that that would have injured his reputation even though the suspension was illegal. What injured the respondent's reputation was what *Majira* wrote, that he was undisciplined. That was not the work of the first appellant.

Thus even the first appellant did not injure the respondent's reputation and we, therefore, allow this ground of appeal.

The last ground was that the learned judges erred in law in their assessment of special and general damages. Mr Kamba pointed out that special damages have to be specifically pleaded and proved and that neither of the two was done. Mr Kamba said that the learned judges accepted a document produced by the respondent as evidence that his income was TZS. 300 000 per month (Exhibit P4). The learned Principal State Attorney pointed out that the respondent himself conceded that Exhibit P4 was not signed by its maker and therefore, it should not have been relied upon.

The respondent, on the other hand, pointed out that damages were specifically pleaded in paragraph 17 of the Amended Plaint. The respondent also said that a lawyer is entitled to more than what was awarded him. He referred us to the decision of this Court in *Grace Ndeana v. Consolidated Holding Corporation*, (8) where this Court awarded a Head Teacher of a Primary School TZS. 50 million for defamation.

In paragraph 17 of the Amended Plaint the respondent merely said:

> That the petitioner's reputation has been injured by the respondent act or omissions and he claims damages amounting to TZS. 100 million.

He did not say whether what he claimed was special or general damages. We agree with Mr Kamba that special damages have to be specifically pleaded and they were not in this case, even loss of earnings as an advocate. The learned judges were, of course, aware of this and they addressed themselves on the matter. This is what they said:

> The omission to plead the damages specifically is however, not fatal. The rule has been judicially evolved, and we consider it a sensible one, that a Court should take a liberal approach to rules of practice and procedure where basic rights and freedoms are invoked, so as to give to the complainant a full measure of his rights: see *Jaundoo v. AG*, [1971] AC 972 at 983; and *Rev. Longwe and others v. AG and another.* Miscellaneous Civil Appeal Number 11 of 1993 of the Malawi High Court (unreported). The rationale is that since the rights guaranteed by the Constitution are effectively enforced, and that to decline to examine the merits of a petition on the basis of a procedural technicality would be an abrogation of that duty. We wholly subscribe to that view.

We have not been given any reason, let alone a good one, and we do not see any, why we should differ from our learned brothers in the view they have wholly subscribed to.

But even this Court has been very liberal on the question of pleadings in respect of damages. We have held in *Cooper Motor Corporation Ltd. v. Moshi/Arusha Occupational Health-Services* (9) at page 100 that it suffices in the case of general damages merely to aver that such damage has been suffered. We reiterated that in *Dr Ally Shabhay v. Tanga Bohora Jamat* (10). However, this Court said in *Cooper Motor Corporation (9)* that:

> It is abundantly clear from the above quoted passage that *only general damages can be asked for by a "mere statement or prayer of a claim" and this is what has been done in this case.* [Emphasis supplied]

It is clear that this Court excluded asking specific damages by a mere statement or prayer. But since this is a claim on basic and fundamental rights, from above cited persuasive authorities from sister jurisdictions, we are duty bound to admit a mere statement and prayer in asking for specific damages, like loss of earnings from the practice as an advocate for the 17 months the respondent was suspended.

It is true that the respondent produced a document in support of his monthly income, which was not signed by the auditor, and so, it should not have been acted upon. However, we agree with the learned judges' opinion that an income of TZS. 300 000 per month for an advocate is rather on the low side. So, we fail to fault the learned judges on that score.

The respondent had six grounds in his cross-appeal but he decided to abandon the first four grounds and argued the last two, that is, grounds five and six. In ground five he averred that TZS. 5 million was not a fair compensation and that damages for injury to reputation should be enhanced. He asked us to consider his arguments in reply to ground five of the appeal. Mr Kamba also recapitulated what he had submitted in his appeal and concluded by saying that he was leaving the issue of general damages to the Court.

As we have already upheld the learned judges in their finding of injury to the reputation of the respondent, we have to consider whether or not TZS. 5 million is adequate compensation. In *Grace Ndeana* (8) the appellant borrowed some money from the National Bank of

Commerce and when she failed to pay, the respondent's agents went around Singida town in a van saying *"kukopa harusi kulipa matanga"* while they were advertising the auction of the mortgaged house. This Court awarded TZS. 50 million to the appellant, a Primary School Head Teacher, as compensation for defamation. Mr Kamba properly pointed out that in *Grace Ndeana* (8) defamation on the part of the respondent was proved. This case, therefore, is distinguishable from *Grace Ndeana (8)* as we have found that the action of the first appellant did not injure the respondent's reputation.

Even then we are prepared to find that the seventeen months suspension did cause mental pain and suffering to the respondent. We think also that a compensation of TZS. 5 million leans more on the low side since the respondent has been an advocate based in Arusha and Moshi for sixteen years and has a family. So, we think a compensation of TZS. 10 million may be adequate in the circumstances. So, we allow ground five of the cross-appeal to that extent.

In ground six of the cross-appeal, the respondent was claiming that the order of stay of execution granted to the appellants in their Civil Application Number 4 of 1998 perpetrated his pain and suffering. This ground was dropped because the respondent conceded that he ought to have sought a reference from that order of a single judge and that the order should not be a subject of cross-appeal because it was not a decision of the learned trial judges.

Now, we have to go back to what should be done to section 4(2) of the Act Number 21 of 1969 once we have upheld the learned judges that it infringes article 23(2) of the Constitution. We ask this in view of section 13(2)(a) of the Basic Rights and Duties Enforcement Act 1994. Subsection (2) and paragraph (a) of that section provides as follows:

> (2) Where an application alleges that any law made or action taken by the Government or other authority abolishes or abridges the basic rights, freedoms or duties conferred or imposed by sections 12 to 29 of the Constitution and the High Court is satisfied that the law or action concerned to the extent of the contravention is invalid or unconstitutional then
>
> (a) the High Court shall, instead of declaring the law or action to be invalid or unconstitutional, *have the power and discretion in appropriate case* to allow Parliament or other legislative authority concerned, as the case may be, to correct the defect in the impugned law or action within a specified period, subject to such conditions as may be specified by it, and the law or action impugned shall until the correction is made or the expiry of the limit set by the High Court which ever be shorter, be deemed to be valid [emphasi added].

The learned trial judges considered that section and had this to say in their judgment:

> Section 13(2)(a) is an extremely strange and curious provision, to put it mildly. It is certainly pregnant with problems, some of which are fundamental.... We consider that provision as an absurdity. It is impossible for the Court to apply it with any judicial candour. We have, therefore, to invoke the principle of harmonization, like the learned judge did in *Mtikila's case*. We also have to invoke the principle that fundamental rights provisions should be construed as to make them meaningful and effective, like it was done by the Supreme Court of Zimbabwe in *Salem v. Chief Immigration Officer and another* [1994] 1 LRC 343. With that we must proceed to declare that section 4(2), and not the whole Act, is unconstitutional, and nullify the same to the extent that it provides for unjust and unfavourable remuneration to the advocates who render services under the Act. We so do.

We have to reiterate what we have already said earlier that of the seven grounds of appeal by the appellants, and especially by the second appellant, the Attorney General, there is none seeking to fault their Lordships in making the above declaration. Was that an oversight? But could the Attorney General overlook such a stark declaration? Can we make an "adverse inference" of that omission, that is, silence signifies agreement with the declaration? However, Mr Kamba, in a by-the-way mood, when arguing ground three, that is, contesting that

section 4(2) of Act Number 21 of 1969 contravenes article 23(2), said "It was not proper for the learned judges to nullify that section 4(2) ... they should have given directions to appropriate authority ...". Since the declaration goes against the unambiguous provisions of 13(2) of Act Number 33 of 1994, we are duty bound to address it.

Our first observation is that that subsection gives the Court "power and discretion in appropriate case to allow" the relevant organ to correct the defect impugned. The provision does not oblige the Court to refer the matter to the relevant organ in all cases but leaves it with "discretion" and then only in "appropriate case". Now, in the case of section 4(2) of Act Number 21 of 1969, our opinion is that it was not an "appropriate case" to refer the matter to the Attorney General after the same had been referred to him in *Butambala's* case (7), though not expressly, thirty months ago and after the expiry of the three years' period of grace under the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984.

But is that subsection really necessary or is it "extremely strange and curious" or "absurd" as their Lordships found?

We have no doubt in our minds that that provision seeks to circumscribe the powers of the High Court in dealing with issues of fundamental rights. This was an overreaction on the part of the executive after the decision of the High Court in *Rev. Christopher Mtikila v. Attorney General* (11). But, with respect, the Courts have generally, and particularly in that case, demonstrated maturity in judicial restraint. So, we endorse what our brothers said about principles of harmonization and that of construing fundamental rights provisions so as to make them meaningful and effective. We would add two other reasons of departing from section 13(2) of Act Number 33 of 1994.

It was decided in *Smith v. East Elloe Rural District Council* (12), at pages 750-1, that Courts will not lean towards a construction which will oust their jurisdiction, though they must, of course, give effect to plain words. That was cited with approval in *DC Kiambuu v. Republic and others* (13) at 114:

> My Lords, I think that anyone bred in the tradition of the law is likely to regard with little sympathy legislative provisions for ousting the jurisdiction of the Court, whether in order that the subject may be deprived altogether of remedy or in order that the grievance may be remitted to some other tribunal. But it is our plain duty to give the words of an Act their proper meaning...

Those observations are backed by the Thirteenth Constitutional Amendment of February 2000, introducing article 107A(1) and (2)(a), which provide that:

> (1) Mamlaka ya utoaji haki katika Jamhuri ya Muungano itakuwa mikononi mwa Idara ya Mahakama na Idara ya Mahakama ya Zanzibar, na kwa hiyo *hakuna chombo cha Serikali wala cha Bunge au Baraza la Wawakilishi la Zanzibar kitakachokuwa na kauli ya mwisho katika utoaji haki.* [emphasis supplied]
>
> (2) [already cited at p...above]
>
> (a) ...
>
> (b) kutochelewesha haki bila sababu ya kimsingi;

That can be translated as follows:

> (1) The authority of administering justice in the United Republic is vested in the Judiciary and the Judiciary of Zanzibar, and, therefore, *no organ of the Government or of the Parliament or of the House of Representatives of Zanzibar shall have final say in the administration of justice.* [emphasis supplied]
>
> (2) [already cited at p...above]
>
> (a) ...
>
> (b) not to delay justice without a good reason;

So, when section 13(2) of Act Number 33 of 1994 requires the High Court to stop short of declaring that an enactment or an action is invalid or unconstitutional and demands the Court to refer the matter to Parliament or another relevant authority to remedy the wrong, it

is in our considered opinion, giving "the final say in the administration of justice" to that other organ. And that is contravening the express provision of the Constitution.

Of course, compliance with the provisions of Act 33 of 1994 would also cause delay in rendering justice and that is also contrary to the article quoted above. This is because time will elapse between the decision of the Court and the action by the relevant organ and also during all this time the offensive law or action is allowed to go on. We dare point out that justice would be delayed for no apparent good reason.

However, if we uphold the decision of our learned brothers to strike out section 4(2) of Act Number 21 of 1969, then we are going to seal the abolition of any sort of remuneration to advocates for Court briefs. We dare say that the High Court erred in making that decision. We agree with their lordships that the whole or Act Number 21 of 1962 cannot be declared unconstitutional. But on the same reasoning we disagree with them in declaring the whole of section 4(2) unconstitutional. What contravene the constitution are only the amounts stipulated. But let us see what exactly section 4(2) provides:

> 4(2) Remuneration payable under this section shall not be less than *one hundred and twenty* shillings nor more than *three hundred shillings in* respect of each proceeding, or in respect of each accused where the certifying authority certifies that accused persons jointly tried should be separately represented:
>
> Provided that in the case of a proceeding before the High Court the Judge hearing the proceeding and, in the case of a proceeding before any other Court, the Chief Justice may, for special reasons, regard being had to the complexity of the proceeding or the duration thereof, authorize the payment of a higher remuneration not exceeding *five hundred* shillings in respect of each proceeding, or in respect of each accused person, as the case may be. [emphasis supplied]

So, we strike out the amounts "one hundred and twenty", "three hundred" and "five hundred". However, since Court briefs will continue to be

assigned, we cannot leave a vacuum. We have to provide for remuneration for Court briefs to advocates at least until such time as the office of the Honourable Attorney General deems it fit to revisit that sub-section.

What criteria we use for fixing, at least the maximum amount of fees has exercised our minds a great deal. It is clear from section 4(2) quoted above that the fees payable for a dock brief is between TZS. 120 and TZS. 300. The payment of TZS. 500 is only for extraordinary cases. The fact that that amount is now the standard payment for Court briefs is a clear testimony, on the part of the Judiciary, that the stipulated fees are extremely low. So, to ameliorate the situation the Court administration has been giving the maximum amount under the current law, TZS. 500, which, too, we have already said is grossly inadequate and unconstitutional.

When the Act was enacted in 1969 TZS. 500 was a substantial amount. At that time that sum was equivalent to USD 69 989, according to the Bank of Tanzania exchange rate of TZS. 7 1439 for one dollar. We think that justice will be done if we stick to the payment of USD 69, 989, that is, approximately USD 70. That amount, in terms of Tanzanian shillings, is TZS.65 457-91 at the rate of TZS. 93 526 per dollar. So, we order that an advocate on Court brief be paid TZS. 65 500 in respect of each accused person. However, that is a substantial amount of money which has not been budgeted for. So, the new fees shall be payable from 1 July 2002. For the avoidance of doubt, the respondent was not seeking a relief on this issue because he had not taken up the Court briefs assigned to him, unlike in the *Butambala* case (7).

So, we dismiss all the grounds of appeal with costs. We allow one ground of cross-appeal regarding quantum of general damages, also with costs.

MOHSIN SOMJI *v.* COMMISSIONER FOR CUSTOMS AND EXCISE AND COMMISSIONER FOR TAX INVESTIGATIONS

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Nsekela, J.)

COMMERCIAL CASE No. 28 OF 2001

Courts – Jurisdiction – Jurisdiction of Courts to try suits of civil nature – Whether disputes arising from revenue laws administered by Tanzania Revenue Authority may be entertained by ordinary civil Courts – Section 7(1) of the Civil Procedure Code and sections 3 and 7 of the Tax Revenue Appeals Act 2000.

Civil Practice and Procedure – Tax Disputes – Whether disputes arising from revenue laws administered by the Tanzania Revenue Authority may be entertained by ordinary civil Courts – Sections 3 and 7 of the Tax Revenue Appeals Act 2000.

Tax law – Tax disputes – Whether disputes arising from revenue laws administered by the Tanzania Revenue Authority may be entertained by ordinary civil Courts – Sections 3 and 7 of the Tax Revenue Appeals Act 2000.

On a preliminary objection the High Court was asked to rule on whether ordinary civil Courts have power to entertain civil disputes arising from revenue laws administered by the Tanzania Revenue Authority

Held: By sections 3 and 7 of the Tax Revenue Appeals Act 2000, read together with section 7(1) of the Civil Procedure Code 1966, ordinary civil Courts are barred from entertaining tax disputes arising from revenue laws administered by the Tanzania Revenue Authority; the Tax Revenue Appeals Board has exclusive jurisdiction to handle such cases.

Order accordingly

Cases referred to:

(1) *Mukisa Biscuit Manufacturing Co. Ltd. v. West End Distributors Ltd* [1969] EA 696

(2) *Firm of Illuri Subbaye Chetty and Sons v. State of Andra Pradesh* AIR 1964 SC 322

(3) *Burka Coffee Estate and another v. Tanzania Revenue Authority* HC, civil Case Number 28 of 1998 (unreported)

(4) *Tanzania Breweries Company Limited v. Tanzania Revenue Authority* HC, Commercial Division, DSM, Commercial Case Number 266 of 2001 (unreported)

(5) *Attorney General v. Lohay Akonay and another* [1995] T.L.R. 80

Statutory provisions referred to:

(1) Civil Procedure Code 1966, sections 3, 7(i), 21 (i) and Order 8, rule 8

(2) Indian Civil Procedure Code 1908, section 9

(3) Revenue Appeals Act 2000, sections 12, 13, 14, 15 and 16 (3) and GN 126 of 2001

(4) Tanzania Revenue Authority Act 1995, sections 3, 5(1)(a), 7 and 15 (1) and (3)

Mr Kalolo for the Plaintiff

Mr Teemba for the Defendants

RULING

(Delivered 20 March 2002)

Nsekela, J.: The plaintiff, one Mr Mohsin Somji, filed this suit against the two defendants, Commissioner for Customs and Excise and the

Commissioner for Tax Investigations. The essence of the plaintiff's case is perhaps best captured in paragraphs 8, 9 and 10 of the plaint:

> 8. On or about 14 November 2001, the second defendant notified the plaintiff that there was short collection of tax amounting to TZS. 10 345 655 which sum the plaintiff disputes...
>
> 9. The plaintiff dispute the additional import tax, excise duty and VAT because the same is arbitrarily imposed and is not based on any known principles of assessment of the various taxes and it is not based on the law related to the determination, assessment and collection thereof hence it is unlawfully demanded.
>
> 10. The plaintiff's claim against the defendants jointly and severally is for declaration that the demanded additional tax is arbitrary, wrongful and unlawful as it is not based on any know principles of law governing imposition, determination, assessment and collection of taxes and for declaration that the second defendant's demand for the alleged tax is unlawful as the second defendant is not empowered under the law to demand, impose, assess and or collect taxes and for declaration that the continued impoundment of the vehicle is illegal as the plaintiff has fully paid duties as lawfully and properly assessed by the first defendant upon arrival of the vehicle at port, and for general damages for loss of use of the vehicle.

This suit was filed on 30 November 2001. On their part, the defendants filed a joint written statement of defend on 10 February 2002, in which there was Notice of Preliminary Objection in the following terms:

> 1. NOTICE IS HEREBY GIVEN THAT, on the first day of hearing this matter, the defendants shall raise a preliminary point of objection on points of law against the suit and shall pray that the whole suit be dismissed with costs on the following grounds:
>
> (a) That the suit is incompetent for failure to comply with the provisions of sections 12, 13, 14 and 15 of the Tax Revenue Appeals Act 2000.

> (b) The defendants have no '*locus standi*' to appear in Court as defendants in this matter.

The defendants have in my view correctly invoked Order VIII, rule 2 of the Civil Procedure Code 1966, by pleading in the written statement of defence that this suit is not maintainable in law. Their main objection is based on lack of jurisdiction by this Court to entertain the suit. Since the question of jurisdiction has been raised, it has to be dealt with now, for if it is found that this Court has in fact no jurisdiction to entertain the suit that will be the end of the matter in this Court. In *Mukisa Biscuit Manufacturing Co. Limited v. West End Distributors Ltd* (1) Law, JA, at page 700, stated the principle in the following words:

> So far as I am aware, a preliminary objection consists of a point of law which has been pleaded, or which arises by clear implication out of the pleadings, and which if argued as a preliminary point may dispose of the suit. Examples are an objection to the jurisdiction of the Court, or a plea of limitation, or a submission that the parties are bound by the contract giving rise to the suit to refer the dispute to arbitration.

The objection here is to the jurisdiction of the Court. In their written submissions the defendants have put reliance on sections 12, 13, 14 and 15 of the Tax Revenue Appeals Act 2000 and section 7(1) of the Civil Procedure Code 1966. The defendants have argued that the plaintiff has totally ignored the provisions of the law cited above as if they did not exist in the statute books. On the part of the plaintiff, it has been very forcefully argued that the provisions of Tax Revenue Appeals Act 2000 do not provide the only avenue for the resolution of revenue disputes, that is, the Tax Revenue Appeals Board does not enjoy exclusive jurisdiction in matters related to revenue laws. The plaintiff has submitted in part as under:

> In the case before your Lordship, we are arguing that the Tanzania Revenue Authority and all other Revenue laws do not recognize an institution known as Commissioner for Tax Investigations. He is not a statutory person and

> his role in administering revenue law is not recognized by law as the revenue laws, and in particular to this dispute, customs duties taxes are administered by the Commissioner for Customs under the East African Customs Management Act, hence it was unlawful for the second defendant to impound our client's vehicle as the Commissioner for Tax Investigation is not provided for or known in the East African Customs Management Act or any other revenue law...

What is the thrust of the preliminary objection? I have already referred to paragraphs 8, 9 and 10 of the plaint. The plaintiff is clearly disputing the determination, assessment and collection of import tax, excise duty and VAT imposed on him. These are taxes which are administered by the Tanzania Revenue Authority vide section 5(1)(a) of the Tanzania Revenue Authority Act 1995. The relevant authority imposed the taxes in question and notified the plaintiff to the effect (see paragraph 8 of the plaint). Apparently the plaintiff was dissatisfied with the decision and filed this suit. This brings me to section 5A of the Tanzania Revenue Authority Act 1995 as amended by the Tax Revenue Appeals Act 2000 (Act Number 15 of 2000) which provides as follows:

> (5A) Any person who is aggrieved by the decision of the Commissioner General in relation to any act or omission in the course of the discharge of any function conferred upon him under the law set out in the First Schedule to this Act, may appeal to the Board in accordance with the provisions of the Tax Revenue Appeals Act 2000.

A Commissioner General is appointed under section 15(1) of the Tanzania Revenue Authority Act 1995, and under section 15(3) the Commissioner General may delegate any or all of his functions in relation to a revenue law, to a revenue commissioner or any other commissioner or officer. The plaintiff is questioning the legal existence of the second defendant. Fair enough, but in terms of section 5A above, an aggrieved party is supposed to appeal to the Tax Revenue Appeals Board under Act Number 15 of 2000. It is the plaintiff's contention however that this Board does not have exclusive jurisdiction in revenue disputes. This takes me to section 7(1) of the Civil Procedure Code 1966. It provides as follows:

> 7(1) The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits which their cognizance is either expressly or impliedly barred.

Under this provision, the Court shall have jurisdiction to try all suits of a civil nature save those which are either expressly or impliedly barred. A statute can therefore expressly or by necessary implication bar the jurisdiction of civil Courts in respect of a particular matter. A statute may specifically provide for ousting the jurisdiction of the civil Courts. In the case of *Firm of Illuri Subbaya Chetty and Sons v. State of Andra Predesh* (2) the Court had occasion to construe section 9 of the Indian Civil Procedure Code (1908) which is in *pari materia* with section 7(1) above. The Court stated as follows, at page 324:

> In dealing with the question whether Civil Courts' jurisdiction to entertain a suit is barred or not, it is necessary to bear in mind the fact that there is a general presumption that there must be a remedy in the ordinary civil Courts to a citizen claiming that an amount has been recovered from him illegally and that such a remedy can be held to be barred only on very clear and unmistakable indications to the contrary. The exclusion of the jurisdiction of civil Courts to entertain civil causes will not be assumed unless the relevant statute contains an express provision to that effect or leads to a necessary and inevitable implication of that nature. The mere fact that a special statute provides for certain remedies may not by itself necessarily exclude the jurisdiction of the civil Courts to deal with a case brought before it in respect of some of the matters covered by the statute.

The question that I now pose is: is there a statute which either expressly or by necessary implication bars an aggrieved party such as the plaintiff in this suit to have recourse to the civil Courts? The answer to this will depend on a correct interpretation of section 7 of the Tax Revenue Appeals Act 2000 (the Act). It provides as follows:

> 7. The Board shall, subject to section 12, have sole original jurisdiction in all proceedings of a civil nature in respect of disputes arising from revenue laws administered by the Tanzania Revenue Authority.

Section 3 defines the Board as the Tax Revenue Appeals Board. It is clear on reading sections 3 and 7 together that the Board is a specific forum that has been designated by the Act for the vindication of civil disputes arising from revenue laws administered by the Tanzania Revenue Authority. The Board is a special forum established for that purpose. The language used in section 7 of the Act is very clear and unambiguous. The Board has "sole" original jurisdiction. The First Schedule to the Tanzania Revenue Authority Act 1995, contains the laws administered by the Tanzania Revenue Authority which include the Customs and Excise Management Act 1977 and the East African Excise Management Act 1970. Under section 3 of the Act "revenue" means taxes, duties, fees, levies, fines or other monies imposed by or collected under the law or the specified provisions of the laws set out in the First Schedule to the Tanzania Revenue Authority Act 1995. The gist of the plaintiff's case, as stated before, is in paragraphs 8, 9 and 10 of the plaint. The Customs and Excise Department in its letter to the plaintiff dated 14 November 2001 (see annexture E to the plaint) notified the plaintiff that there was a short collection of TZS. 10 345 655 and demanded from him to pay the additional import tax, excise duty and VAT. The plaintiff is disputing this, alleging that "the demand for the alleged tax is unlawful as the second defendant is not empowered under the law to demand, impose, assess and collect taxes...." The plaintiff is protesting the payment of the additional tax and in terms of section 5A of the Tanzania Revenue Authority Act 1995 as amended, such grievance should be placed before the Tax Revenue Appeals Board and not the ordinary Civil Court. I am of the settled view that the legislature in its wisdom intentionally used the word "sole" in section 7 of the Act before "original". This means that the Board has exclusive jurisdiction in disputes emanating from revenue laws administered by the Tanzania Revenue Authority.

On receiving the notification from the Customs and Excise Department on 14 November 2001, the plaintiff should have followed the prescribed procedure under the Act. (See: *Burka Coffee Estate and another v. Tanzania Revenue Authority* (3) and *Tanzania Breweries Company*

Ltd v. Tanzania Revenue Authority (4)). The plaint was filed on 30 November 2001 by which time the Tax Revenue Appeals Act 2000 had become operational since 1 July 2001, vide GN Number 126 of 2001, published on 29 June 2001. This Act provides for a special forum to litigate revenue disputes under laws administered by the Tanzania Revenue Authority. The procedures prescribed under the Act do provide an adequate remedy to the plaintiff (see: section 12, 13, 14 and 15). This is not all. Under section 16 (3) an aggrieved party can have recourse to the Tax Revenue Appeals Tribunal and then onto the Court of Appeal under section 25. It is my considered view that the provisions of the Tax Revenue Appeals Act do provide an adequate remedy when tax disputes are referred to the Tax Revenue Appeals Board which is a special forum for such matters. The Court of Appeal in the case of *Attorney General v. Lohay Akonaay and Joseph Lohay* (5), at page 96, made the following pertinent observations:

> ... Courts would not normally entertain a matter for which a special forum has been established, unless the aggrieved party can satisfy the Court that no appropriate remedy is available in the special forum.

Lastly, the plaintiff invited me to invoke sections 21(1) and 95 of the Civil Procedure Code 1966 and transfer the proceedings to the Tax Revenue Appeals Board. With all due respect, I decline the invitation. The Board is not a Court as defined in section 3 of the Civil Procedure Code 1966.

In the premises, I do hereby strike out with costs Commercial Case Number 287 of 2001. This Court has no jurisdiction to entertain this suit. It is accordingly ordered.

GHARIB ABDALLAH JUMA *v.* KAY MLINGA

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Makame, Ramadhani and Mroso, JJ.A.)

CIVIL APPEAL No. 10 OF 2001

(From the decision of the High Court of Zanzibar at Vuga, Lawan, J., dated 5 April 2000, in Civil Case No. 22 of 1999)

Contract – Validity and enforceability – Agreement entered into in a foreign jurisdiction – Whether the agreement is valid and enforceable in Zanzibar.

Family Law – Marriage Settlement agreement – Marriage settlement agreement executed in Denmark and not registered in Zanzibar but giving a spouse an interest in the other spouse's landed properties in Zanzibar – Whether the marriage settlement is valid and enforceable in Zanzibar.

Conflict of Laws – Right to property – Right to own land in Zanzibar – Whether a Tanzanian who is not a Zanzibari may own land in Zanzibar – Section 24 of the Constitution of the United Republic of Tanzania and section 8(1) of the [Zanzibar] Land Tenure Act 1992 Number 12 of 1992.

The appellant, a Tanzanian from Zanzibar, and the respondent, a Tanzanian from the Mainland, were married in Denmark. Their marriage was subject to a marriage settlement agreement executed on the eve of their marriage excluding the appellant's flat in Copenhagen from the operation of the system of community of property to married people; under Danish law and practice, that system gives the parties to a marriage a right to each other's properties. After 14 years the spouses obtained a judicial separation, and a formal divorce a year later, both occurring in Denmark. The respondent then brought a suit in the High Court of Zanzibar praying for division of matrimonial properties located in Zanzibar, including properties acquired before marriage. She based her claim on the marriage settlement agreement which, save for exclusion of the flat in Copenhagen, provided for a "complete community of property" between the parties. The appellant argued that the marriage settlement related only to property in Denmark and did not cover properties acquired before marriage, and further that the marriage settlement was a Danish contract that was not enforceable in Zanzibar. The High Court found the marriage settlement valid and enforceable in Zanzibar, and that it covered all properties owned by the parties before and after the marriage, be it in Denmark, Tanzania, or elsewhere. This was an appeal against that finding.

Held: (i) As there was no dispute that the marriage settlement was valid and enforceable in Denmark, and it was never argued that it was illegal in Zanzibar, the High Court rightly accepted it as a valid marriage settlement;

(ii) The wording in the marriage settlement agreement shows that the appellant did not intend to exclude his property, other than the flat in Copenhagen, from the community of property arrangement; therefore, all other properties acquired before or after marriage, in Denmark or elsewhere, were not excluded from the operation of the community of property system;

(iii) The marriage settlement created in favour of the respondent an interest in land in Zanzibar and if given effect in Zanzibar the respondent would thereby own land in Zanzibar;

(iv) Land and other immovable properties, as well as any interest therein are governed by the law of the place where the land is situated;

(v) The respondent's claims for a share in the appellant's immovable properties in Zanzibar are subject to the laws of Zanzibar relating to land;

(vi) section 24 of the Constitution of the United Republic of Tanzania does indeed confer a right to own property, movable and immovable, in Tanzania but the legal conditions for exercising that right in Zanzibar are contained in section 8(1) of the Land Tenure Act 1992 which provides that only a Zanzibari can own land in Zanzibar;

(vii) In the absence of evidence that the respondent became a Zanzibari, she cannot realize her rights under the marriage settlement to own her share of the immovable properties in Zanzibar; she can only get a monetary value of that share, which should be paid to her by the appellant.

Orders accordingly

Cases referred to:

(1) *Pulcheria Pundugu v. Samuel Huma Pundugu* [1985] T.LR. 7

(2) *Mariam Tumbo v. Harold Tumbo* [1983] T.L.R. 293

(3) *Bi Hawa Mohamed v. Ally Seif* [1983] T.L.R. 32

(4) *Rashid Abdulla Rashid El-Sinani and another v. Musa Haji Kombo and another* CAT – ZNZ – Civil Application Number 6 of 1998 (unreported)

Statutory provisions referred to:

(1) Constitution of the United Republic of Tanzania 1977, section 24

(2) Law of Contract Decree Chapter 149, section 25(1)

(3) Registration of Documents Decree Chapter 99, section 4(1)

(4) Land Tenure Act 1992 Number 12 of 1992, section 8(1)

Mr Mnkonje for the Appellant

Professor Shaidi, for the Respondent

JUDGMENT

(Dated 11 April 2002)

Mroso, JA: The appellant, a Tanzanian from Zanzibar, lived in Denmark. On 24 October 1984 he married the respondent, a Tanzanian from the Mainland, in Denmark. Apparently, Denmark was one of those countries in Europe which practiced (and perhaps still practices) the system of community of property to married people. So, in order to avoid the full effect of that system the appellant decided to enter into a marriage settlement with the respondent two days before marriage. At that time he owned a flat in Copenhagen and he wanted to exclude it from matrimonial property. A translation into English of the marriage settlement supplied by the Royal Danish Embassy in Dar es Salaam reads as under:

> We the undersigned, ABDULLA JUMA GHARIB, born 9 July 1936 and joint undersigned KAY MLINGA; born 11 June 1948, both living at Manstalsgade 20, mezz., tv., 2100 Copenhagen 0, hereby as consequence of our approaching marriage enter into the following.

MARRIAGE SETTLEMENT

> That flat Number 3 of Registration Number 3194 Udenbys Klaedebo Kvarter, situated at Manstalsgade 20, mezz., tv., 2100 Copenhagen, shall belong to me, Abdulla Juma Gharib, as separate property, which separate property shall furthermore include all proceeds from the flat and what may be gained from it.
>
> Besides that there shall be complete community of property between us.
>
> The present marriage settlement will be registered at my Abdulla Juma Gharib's venue in Copenhagen and at the flat Number 3 of Registration number 3194 Udenbys Klaedebo Kvarter. Copenhagen, the 22 October 1984.
>
> Signed Signed
>
> Abdulla Juma Gharib Kay Mlinga

According to the appellant, he had other properties before marriage (and the marriage settlement) but those properties were outside Denmark. Those were a house in Mwembeladu, Zanzibar which he said he inherited from his mother. He had another house at Mwanakwerekwe, also in Zanzibar, which he said he had bought and built to roof stage. Apparently, he had another house at Mfereji wa Maringo in Zanzibar, which he had built partially and modified.

It also appears that he had a house at Kwahajitumbo which needed repairs.

Sometime after marriage the respondent went to live in Zanzibar and supervised the construction of some houses there, including the one at Mwanakwerekwe. After construction was completed the respondent leased the Mwanakwerekwe house and it is know that she realised a total of USD. 14 000 from the rent.

The marriage lasted some 14 years when they obtained a judicial separation and, finally, on 14 April 1999 the couple were formally divorced. Both the judicial separation and the divorce occurred in Denmark. There was no order for division of matrimonial property.

After divorce the respondent brought a suit in the High Court in Zanzibar praying that matrimonial properties be divided amongst her and her former husband. She also prayed for costs. The properties which she wanted divided among themselves included those which the appellant owned before marrying her as well as properties acquired after marriage but before divorce. Such properties were:

(a) A house at plot Number 50A Mwanakwerekwe, Zanzibar.

(b) A house at Number 5/289 Mfereji wa Maringo, Mwembeladu, Zanzibar, together with various building materials stored therein and the plaintiff's personal effects.

(c) A house at Kwa Haji Tumbo, Mwembeladu.

(d) An unfinished house at Chukwani Juu, Zanzibar.

(e) A fenced shamba at Chukwani Chini divided into 8 plots, one with a house foundation and two of which belonged to children

(f) A plot at Tegeta, in Dar es Salaam.

(g) An unregistered motor vehicle, Toyota Pickup, 4WD.

(h) A Container at Zanzibar storing building materials, household goods and faming effects."

The respondent based her claim on the marriage settlement which, after excluding the flat in Copenhagen, provided for a "complete community of property" between the spouses.

In his defence the appellant said the respondent had attributed nothing to the acquisition of the properties of which she was claiming a share. Besides, he claimed, the marriage settlement related to properties in Denmark only and did not relate to properties which belonged to him before marriage and which he had inherited from his late mother. He further contended that the marriage settlement being "a Danish Contract" could not be "interpreted" *(sic)* (enforced?) in Zanzibar.

Even so, he conceded that the properties in items (d) (e) and (f) could be divided between the two. Those, of course, were the unfinished

house at Chukwani Juu, the fenced shamba at Chukwani Chini and the plot at Tegeta, Dar es Salaam.

He counter-claimed the USD. 14 000 which the respondent had realized from renting the house at Mwanakwerekwe. He had asked the respondent for the money but she declined to pay it over to him.

The High Court in its reasoned judgment of 5 April 2000 found the marriage settlement valid and enforceable in Zanzibar. It covered "all the properties owned by the parties before and after the marriage be in Denmark, Tanzania or anywhere." It also dismissed the appellant's counter-claim. It ordered that all the properties mentioned in the judgment be valued and distributed between the parties.

The appellant was aggrieved by that judgment and has appealed to this Court. In the Memorandum of Appeal he listed eleven grounds with an alternative ground that the learned judge of the High Court had erred in law and fact in including as matrimonial property liable for distribution the properties of which ownership had not been established. According to the appellant, only the properties which were acquired subsequent to marriage were matrimonial property which could be distributed according to contribution and that the marriage settlement was intended only for properties in Denmark and was void as regards properties in Zanzibar.

Before us, at the hearing of the appeal, Mr Mnkonje, learned advocate, appeared for the appellant who was still living in Denmark, and Professor Shaidi, learned advocate, appeared for the respondent. Mr Mnkonje argued only ten grounds, abandoning the seventh ground. He started by criticizing the trial judge for admitting into evidence the marriage settlement. Indeed, at the trial its admissibility was objected to but the trial judge admitted it on the basis that it was a fact in issue.

Apparently, there is no controversy that the marriage settlement was valid in Denmark. It was contracted there under Danish law – "*lex loci contractus*". Like any other contract, it was enforceable in Denmark. The respondent, however, did not seek to enforce it in

Denmark but in Zanzibar. No doubt, since the suit in Zanzibar was based on that contract, it was a crucial document. The absence of that document would make the suit hollow and un-maintainable. But the advocate for the appellant argued, both at the trial and before us, that the document was inadmissible in evidence because, it was contended, under the Zanzibar Law of Contract Decree Chapter 149 it lacked consideration. We think that once it is accepted that the validity of a contract depends on the law of the place where the contract was entered into – "*lex loci contractus*" -, and there was no evidence that the marriage settlement was illegal under Danish law, the High Court in Zanzibar had no option but to accept it in evidence for what it was, a marriage settlement.

The learned advocate for the appellant cited section 25(1) of the Zanzibar Contract Decree Chapter 149, to support his contention that the marriage settlement was invalid. The provision reads:

> 25(1) an agreement without consideration is void unless
>
> (a) It is expressed in writing and registered under the law for the time being in force for the registration of documents, and is made on account of natural love and affection between parties standing in near relation to each other; or unless.
>
> (b) It is a promise to compensate for something done.

The above provisions would be relevant in case of an agreement entered into in Zanzibar. Unless a marriage settlement as such is illegal in Zanzibar, and it was not so argued, it is enough if it conformed with the requirements of the law in Denmark where it was entered.

We agree, however, that the marriage settlement created in favour of the respondent an interest in land in Zanzibar. If the agreement is given effect in Zanzibar the respondent would thereby own land in Zanzibar. The general rule is that land and other immovable properties are governed by *"lex situs"*, that is the law of the place where the land is situated. (See Dicey and Morris – **The Conflict of Laws**, (12 ed), at page 934). But the question whether the respondent could

own land in Zanzibar is distinct from that of admissibility of the marriage settlement document in evidence. We uphold the decision of the trial judge in admitting into evidence the marriage settlement.

Before we can consider the effect of the marriage settlement on properties in Zanzibar we think it convenient at this state to discuss whether the decision of the trial judge that "the marriage settlement Exhibit C cover all the properties owned by the parties before and after the marriage be it in Denmark, Tanzania or anywhere", is sustainable.

In explaining the system of community of property among married people Dicey and Morris, **The Conflict of Laws,** (12 ed) at page 1067 writes.

> Under this system, marriage has the effect of vesting the property owned by either spouse at the time of the marriage or acquired during its subsistence in both of them jointly.

But in most systems of community of property the spouses can contract out of the system, if they so wish. This is what the appellant decided to do when he entered into the antenuptial settlement with the respondent.

In Court the appellant attempted to explain the agreement by saying he had meant to protect his flat in Copenhagen and that he intended the agreement to cover only his property in Denmark, then existing and subsequently acquired. But did he in fact say so in the settlement document?

For all that is known, the only immovable property in Denmark which the appellant owned at the time of the settlement was the flat and, quite deliberately, he decided to exclude it from the anticipated community of property at marriage. He said "... as (a) consequence of our approaching marriage" the flat was reserved as belonging to him exclusively and as for the rest of his property he declared that "there shall be complete community of property between us."

It seems plain to us that the use of the words "complete community of property between us" meant that no other property whenever or however acquired was excluded from the community of property. If

he had intended to exclude any other property from consequential joint ownership he would surely have said so.

Why would he specifically exclude the flat which he had acquired before marriage and fail to exclude any other property if he had the intention to exclude such other properties? With respect, we agree with the trial judge that the only property he intended to exclude from the community of ownership was the flat in Copenhagen, which means that all other properties whether acquired before or after marriage in Denmark or elsewhere, were subject to the community property arrangement as qualified by the marriage settlement.

The arguments made before the Trial Court and before us regarding whether or not the respondent contributed to the acquisition of the assets of which the respondent wants to have a half share are irrelevant. Thus, the various cases such as *Pulcheria Pundugu v. Samwel Huma Pundugu* (1); *Maria Tumbo v. Harold Tumbo* (2); *Bi Hawa Mohamed v. Ally Seif* (3), all of which discuss the right of a wife to share in the matrimonial assets on the basis of her contribution to the acquisition of those assets, are not of assistance in deciding this appeal, As already mentioned, the respondent essentially based her claim on the marriage settlement. Those cited authorities, which we have not found necessary to discuss, would be relevant and helpful only if we found the marriage settlement to be either illegal or inapplicable.

Having said all the above there is a nagging question whether the marriage settlement can be fully executed in Zanzibar as the respondent has been urging.

We said earlier in this judgment that the marriage settlement gave the respondent vested interest in appellant's properties in Zanzibar. Such properties were either houses or plots or a shamba. But, again as commented by Dicey and Morrison, usually "all questions that arise concerning rights over immovable, (land) are governed by the law of the place where the immovable property is situate (*lex situs*). The general principle is beyond dispute, and applies to rights of every description ... because in the last resort land can only be dealt with

in a manner which the *lex situs* allows." Which means that as regards the respondent's claims of a share on the immovable properties in Zanzibar, they are subject to the Laws in Zanzibar regarding land.

It has been urged rightly by the advocate for the appellant that section 4(1) of the Registration of Documents Decree Chapter 99 provides that no document executed after the first day of January 1920 purporting or operating to create, declare or assign any right, title or interest in or over immovable property in Zanzibar shall affect any immovable property unless it has been registered.

It seems to us that the provision referred to above relates to documents executed in Zanzibar after the 1 January 1920 and not to documents executed in a foreign jurisdiction, like the marriage settlement agreement which was executed in Denmark. So, although Samatta, J.A. (as he then was) was perfectly right when he said in *Rashid Abdulla Rashid El Sinani and another v. Musa Haji Kombo and another* (4), that section 4(1) of the Registration of Documents Decree Chapter 99, provides for compulsory registration of documents relating to immovable property, the marriage settlement document does no fall under that provision.

Section 8(1) of the Land Tenure Act Number 12 of 1992, however, is significant and relevant. It provides that only a Zanzibar can own land in Zanzibar. The respondent's contention that section 24 of the Constitution of the United Republic, 1977 confers on all Tanzanians a right to own property, including immovable property, cannot avail her. There must be a distinction between the right to own property and the legal conditions for exercising that right. Section 8(1) of Act Number 12 of 1992 provides the conditions for exercising the right to own land in Zanzibar.

She may have lived in Zanzibar for 10 years but that alone might not necessarily have made her a Zanzibari, as the trial judge assumed. Upon being married to the appellant the presumption was that she thereby acquired her husband's domicile, which was Denmark. (The appellant said in so many words that he was domiciled in Denmark).

At the time of filing the suit she was already divorced and may have lost the domicile of her erstwhile husband. But even if it were argued successfully that she still retained her former husband's domicile, that would not avail her because domicile is not always co-extensive with residence or citizenship. Whatever may be the constitutional anomaly, and ever danger, which is apparent in section 8 of the Land Tenure Act of 1992 (which we do not have to resolve in the present case and would have to wait for a more opportune occasion), the right to own property does not abrogate legal conditions regulating the exercise of the right. Which means that in the absence of proof that the respondent became a Zanzibari the Courts of law cannot help to realize her rights under the marriage settlement to own her share of immovable property in Zanzibar.

The circumstances discussed above make it necessary for the Court to quash and set aside the order of the Trial Court that all properties in the judgment be valued or estimated and distributed between the parties. However, the respondent can get the monetary value of her share of the immovable assets in Zanzibar after such value has been ascertained by a competent Government Valuer. As for the plot at Tegeta in Dar es Salaam the respondent can get it as part of her share in the matrimonial property. Similarly, the movable assets can be distributed to the parties in compliance with the marriage settlement. It is therefore ordered that the High Court should supervise the distribution of the assets which are owned jointly. The appellant should pay to the respondent the monetary value of her half share in the immovable properties. In the event the appellant fails to make such payment then the immovable assets should be sold and each party to get a half share of the total proceeds. The respondent is also to get half of the movable assets.

The Trial Court dismissed the appellant's counter-claim of USD 14 000. We uphold that decision. The respondent's explanation on how she spent the money was not effectively controverted by the appellant and the alleged misconduct of squandering the money was not proved. The appeal substantially fails and the respondent is to get her costs.

FREEMAN AIKAELI MBOWE AND THE ATTORNEY GENERAL v. ALEX O LEMA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Samatta, C.J., Kisanga, Lubuva, Lugakingira and Mroso, JJ.A.)

CIVIL APPEAL No. 84 OF 2001

(From the decision of the High Court of Tanzania at Moshi, Mandia, J., dated 20 September 2001, in Miscellaneous Civil Cause No. 1 of 2001)

Civil Practice and Procedure – Appeals – Leave to appeal – Leave to appeal refused by High Court – When leave to appeal is necessary.

Civil Practice and Procedure – Appeals – Appeals in election petitions – Appeal against interlocutory orders in an election petition – Whether permitted.

Court of Appeal – Full Bench – Reversal of Court's earlier decision by Full Bench of the Court – Articles 117(4) and 83(4) of the Constitution – Section 5(1) of the Appellate Jurisdiction Act 1979.

Statute – Interpretation of statutes – Interpretation of Article 83(4) of the Constitution – Whether the provision allows a party aggrieved by a decision of the High Court to appeal as of right to the Court of Appeal – Ngalai's case revisited.

The respondent had petitioned the High Court seeking, *inter alia,* avoidance of an election result and a declaration that the first appellant was duly elected a Member of Parliament for Hai Constituency in Kilimanjaro Region. In that petition, the respondent had alleged corruption against the first appellant. The first appellant had raised a preliminary objection to the effect that the allegations of corruption disclosed no cause

of action and so asked the High Court to strike out the petition. Instead of striking out the petition, the High Court ordered the respondent to supply to the first appellant better particulars thereof. Aggrieved by that order, the first appellant applied to the High Court for leave to appeal against it but the High Court rejected the application. Nevertheless the appellants filed the appeal in the Court of Appeal and when it came up for hearing the Court of Appeal sought an explanation on how the appeal was still instituted after leave to appeal had been refused. Counsel for the first appellant explained that he had relied on the decision of the Court in the case of *Leonsi Silayo Ngalai v. Justine Alfred Salakana and another* (1) and article 83(4) of the Constitution of Tanzania as granting the right to appeal as of right against any decision of the High Court in an election petition. The Court then referred the matter to the Full Bench of the Court to consider whether *Ngalai's* case correctly interpreted article 83(4) of the Constitution.

Held: (i) In *Ngalai*'s case the Court interpreted article 83(4) of the Constitution as providing for a right of appeal against any decision of the High Court in election petition cases, and that interpretation is sufficiently wide to cover appeals against interlocutory decisions or orders of the High Court in election petition cases such as the one at hand;

(ii) However, the right of appeal provided for in article 83(4) of the Constitution does not extend to every decision of the High Court in an election petition but only to those decisions in which the issue was the legality or otherwise of the election or nomination of any person as a Member of Parliament, or whether a Parliamentary seat has become vacant or not; and the case was first instituted and heard in the High Court, and the High Court finally determined the matter;

(iii) In the case at hand the second condition was not fully satisfied because although the matter was admittedly first instituted in the High Court, it was not heard and finally determined in that Court;

(iv) While it is conceivable that some interlocutory decisions are capable of disposing of the case finally, the interlocutory decision in the case at hand was not one such decision because after it was made the case was to proceed to hearing; the interlocutory decision in this case, therefore, did not come within the scope of article 83(4) of the Constitution which provides for appeal as of right to the Court but that such decision is appealable with leave;

(v) Although the Court made the observation in *Ngalai*'s case that "...the current and widespread practice of seeking leave to appeal in such cases is misconceived and unnecessary in law", the said case was not decided on the basis of the Court's interpretation of article 83(4) of the Constitution;

(vi) The interlocutory decision in the case at hand did not come within the scope of article 83(4) of the Constitution and therefore the appeal from it was governed entirely by the provisions of section 5(1) of the Appellate Jurisdiction Act 1979;

(vii) The matter should be sent back to the Full Court for the appeal to be dealt with in the usual manner.

Order accordingly

Case referred to:

(1) *Leonsi Silayo Ngalai v. Justine Alfred Salakana and another* Court of Appeal of Tanzania Civil Appeal Number 38 of 1996 (unreported).

Statutory provisions referred to:

(1) The Constitution of the United Republic of Tanzania 1977, art. 83(4); 117(4)

(2) Appellate Jurisdiction Act 1979, section 5(1)

Mr Bob Makani and *Mr CJ Maruma* for the first Appellant

Mrs Sumari, Principal State Attorney, for second Appellant

Dr Lamwai for the Respondent

RULING/ORDER

(Dated 19 April 2002)

Kisanga, JA: The respondent, Mr Alex O Lema, had filed in the High Court at Moshi an election petition against both appellants seeking, among other things, a declaration that the election of the first appellant, Mr Freeman Mbowe, as a Member of Parliament for the Hai Constituency in Kilimanjaro Region was null and void. In the said petition the respondent made allegations of corruption against

the first appellant. In the course of reply to the petition the first appellant raised a preliminary objection that the said allegations of corruption disclosed no cause of action; he accordingly urged the Court to strike them out. However, instead of striking them out as urged, the Trial Court (Mandia, J) ordered the respondent to supply to the first appellant further and better particulars thereof. The first appellant was thereby aggrieved and sought leave to appeal to this Court but the High Court refused to grant the same. Notwithstanding such refusal, however, the appellants proceeded to institute this appeal.

The appeal came before the Court on 6 December 2001, but before it could proceed to hearing, the Court sought an explanation on why the appeal was instituted, without further ado, after leave to appeal was refused by the High Court. Counsel for the first appellant informed the Court that he had adopted that course of action on the strength of the decision of the Court in the case of *Leonsi Silayo Ngalai v. Justine Alfred Salakana and another* (1) in which it was stated that article 83(4) of the Constitution of the United Republic of Tanzania (hereinafter referred to as the Constitution) provides for appeal as of right against any decision of the High Court in election petition cases. After a brief exchange with counsel for both sides, the Court decided that this was a fit vase to adjourn for consideration by Full Bench of the Court whether in *Ngalai's* case (1) the Court had interpreted article 83(4) too widely. The case was adjourned accordingly and it is now before us for that purpose. The first appellant is represented by Mr Bob Makani and Mr CJ Maruma, learned advocates; the second appellant has the services of Mrs Sumari, learned Principal State Attorney while Dr Lamwai and Mr Mdamu, learned advocates, appear for the respondent.

The issue before us is a narrow one and involves little or no controversy. As stated before, the High Court had made an interlocutory order refusing to strike out allegations of corruption contained in the respondent's petition, and ordering, instead, the supply of further and better particulars; and the question is whether that decision was appealable as of right or with leave. Counsel for both sides concurrently

submitted that such decision was appealable only with leave and that it is not within the scope of article 83(4) of the Constitution which provides for appeal as of right in election petition cases. For the better understanding of Sub-article (4) of article 83 of the Constitution, we think it is desirable to reproduce the whole of article 83. It says:

83(1) Every case concerning determination of the issue.

(a) whether the election or nomination of any person as a Member of Parliament was lawful or otherwise or

(b) whether a Member of Parliament has ceased to be such a member and his Parliamentary seat has consequently become vacant or not, shall be instituted and heard first in the High Court of the United Republic of Tanzania without prejudice to the provisions contained in Sub-article (2) of this article.

(2) Whenever the Electoral Commission, in the exercise of its responsibilities pursuant to the provisions of article 41(3) of this Constitution, declares any member of Parliament to be duly elected as President, then the issue of whether that person's Parliamentary seat has become vacant shall not be inquired into by any Court or other body.

(3) Parliament may enact a law providing for:

(a) the persons who may institute a case in the High Court for determination of any issue pursuant to the provisions of this Article;

(b) the grounds and time for instituting such a case, the procedure for instituting and the requirements that have to be fulfilled in such a case, and

(c) the powers of the High Court in such a case and the procedure for its hearing.

(4) *There shall be a right of appeal to the Court of Appeal of Tanzania against the decision of the High Court in respect of any case heard under the provisions of this article.* [Emphasis supplied]

In *Ngalai's* case (1) the Court in interpreting sub-article (4) said:

> It [sub-article (4)] provides clearly for a right of appeal against any decision of the High Court in election petition cases. This means that a party to such a case, aggrieved by a decision made by the High Court, may appeal as a matter of right to the Court of Appeal.

Quite clearly this statement is sufficiently wide to cover appeals against interlocutory decisions or orders of the High Court in election cases such as in the instant case. Counsel for both sides, however, submitted that such interpretation of the Sub-Article went beyond the scope of that sub-article. With respect to the learned counsel, we agree.

On a careful reading of this Sub-Article we think that the right of appeal provided therein does not extend to every decision of the High Court in an election petition. To hold otherwise would lead to undesirable consequences in that unscrupulous respondents would seek to appeal unnecessarily from interlocutory decisions or orders so as to ensure that they remain in Parliament for as long as possible before the petition itself is heard and determined. That, we think, cannot have been the intention of Parliament. Then the question is: To which decisions does sub-article (4) extend? We think that it extends only to those decisions where it is shown that the following conditions exist:

1. the case falls within one of the categories of cases specified in paragraphs (a) or (b) of sub-article (1), namely, whether the election or nomination of any person as a Member of Parliament has ceased to be such a member and his Parliamentary seat has consequently become vacant or not;
2. the case was first instituted and heard in the High Court's and
3. the High Court finally determined the matter.

Where these conditions do not exist a party cannot invoke the sub-article and seek to appeal as of right.

Now, relating this analysis to the facts of the present case, the first condition is satisfied because the case concerns the question whether the election of the first appellant was lawful or otherwise. Condition number two exists only partially. For, while admittedly the matter was first instituted in the High Court, it was not heard, i.e, the question whether the election of the first appellant was lawful or otherwise is yet to be tried. And lastly the High Court, by its interlocutory decision, did not finally determine the matter. It is conceivable that some interlocutory decisions are capable of disposing of the case finally, for instance, where a preliminary objection is sustained on the ground of the petition being time-barred or for non-disclosure of cause of action. However, the interlocutory decision in the instant case was not one such decision because after it was made the case was to proceed to hearing. We therefore uphold the concurrent submissions by counsel for both sides that the Court in *Ngalai's* case (1) interpreted article 83(4) too widely. We further hold that the interlocutory decision in the instant case does not come within the scope of article 83(4) which provides for appeal as of right to this Court that decision is appealable with leave.

Before we take leave of the matter we wish to make one or two observations. First, we need to point out that the view we have taken that the Court in *Ngalai's* case (1) interpreted article 83(4) of the Constitution too widely has no bearing whatsoever on the outcome of that case. Because in that case the Court found that leave to appeal from an interlocutory order of the High Court had been sought and granted, but the Court considered it desirable to state the law generally, for future guidance, governing appeals from the decisions of the High Court in election petition cases following its observation that "....the current and widespread practice of seeking leave to appeal in such cases is misconceived and unnecessary in law." So *Ngalai's* case (1) was not decided on the basis of the Court's interpretation if article 83(4), and, therefore, the fact that we have now interpreted that sub-article differently can have no bearing at all on the decision in that case.

Secondly, in dealing with this matter in *Ngalai's* case (1) the Court took the view that article 83(4) of the Constitution is applicable to election petition cases by virtue of section 5(1) of the Appellate Jurisdiction Act 1979. That provision says:

> 5(1) In civil proceedings, except where any other written law for the time being in force provides otherwise, an appeal shall lie to the Court of Appeal ...

The remaining part of the sub-section is not applicable. The Court construed article 83(4) of the Constitution as being one such written law referred to in this sub-section. The Court said:

> ... it is apparent that the provisions of section 5 of the Appellate Jurisdiction Act 1979 do not apply to all cases. Exceptions are recognized where there is a written law providing for a contrary position. *There is no doubt in our minds that sub-article (4) of article 83 of the Constitution is such a written law.* It provides clearly for a right of appeal against any decision of the High Court in election petition cases. [emphasis supplied]

This would appear to suggest that article 83(4) of the Constitution derives its authority from section 5(1) of the Appellate Jurisdiction Act. In other words, it means that one has to look to section 5(1) of the Act as the basis for applying article 83(4) of the Constitution. Counsel for both sides submitted, and rightly in our view, that this approach is wrong in as much as it tends to equate the Constitution with, or subordinate it to, ordinary legislation. The correct position is that the Constitution is the basic law from which section 5(1) of the Appellate Jurisdiction Act derives its existence. Article 117(4) of the Constitution says:

> (4) A law enacted in accordance with the provisions of this Constitution by Parliament ... may make provisions stipulating procedure for lodging appeals in the Court of Appeal, the time and grounds for lodging the appeals, and the manner in which such appeals shall be dealt with.

It is under this provision of the Constitution that section 5(1) of the Appellate Jurisdiction Act was enacted to make provision relating

to appeals to the Court of Appeal. We think that it would be wrong to construe that sub-section as the basis for invoking article 83(4), a provision of the very basic law which creates the sub-section. Thus we are of the view that where an appeal from the decision of the High Court lies to the Court of Appeal under article 83(4) of Constitution the appeal is to be filed solely in reliance of that provision and it would be unnecessary, indeed wrong, to make any reference to section 5(1) of the Appellate Jurisdiction Act. However, as we have made it abundantly clear, the interlocutory decision in the present case did not come within the scope of article 83(4) of the Constitution and therefore the appeal from it is governed by the provisions of section 5(1) of the Appellate Jurisdiction Act.

Having determined the question which was referred to the Full Bench we now send the matter back to the Full Court for the appeal to be dealt with in the usual manner.

ATTORNEY GENERAL v. DIOCESE OF NJOMBE

HIGH COURT OF TANZANIA
AT SONGEA
(Manento, J.)

CIVIL CASE No. 2 OF 1998

Courts – Jurisdiction – Jurisdiction of Courts in suits by the Government – Whether a suit by the Government may be instituted in a Court other than the High Court – Section 7A of the Government Proceedings Act 1967 and section 13 of the Civil Procedure Code 1966.

Government Proceedings – Suits by the Government – Government files a suit for recovery of TZS. 8 million in the High Court – Whether the suit is

properly before the High Court – Section 7A of the Government Proceedings Act 1967, section 13 of the Civil Procedure Code 1966.

This was a suit, by the Government, for recovery of TZS. 8 million from the defendant. A preliminary issue was raised as to whether the suit should not have been filed in a Subordinate Court where the limit of pecuniary jurisdiction was TZS. 10 million and section 13 of the Civil Procedure Code (1966) requires every suit to be instituted in the lowest Court having jurisdiction. For the Government, it was argued that the suit was properly filed because section 6 of the Government Proceedings Act requires all suits against the Government to be filed in the High Court.

Held: (i) Under section 6 of the Government Proceedings Act 1967 all *"suits against the government"* must be instituted in the High Court, not all *suit by* the Government; if Parliament wanted all suits in which the Government is a party to be filed in the High Court, it could expressly say so;

(ii) As the value of the subject matter in this suit is within the pecuniary limits of the jurisdiction of Subordinate Courts it is improperly before the High Court.

Suit is struck out

Statutory provisions referred to:

(1) Civil Procedure Code 1966, section 13

(2) Government Proceedings Act 1967 Number 16 of 1967, Sections 6 and 7A

(3) Government Proceedings (Amendment) Act 1994 Number 30 of 1994, section 2(4)

Mr Manyanda State Attorney, for the Plaintiff

Mr Mwingira for the Defendant

RULING

(Dated 23 April 2002)

Manento, J: The Attorney General has instituted civil proceedings against the respondent for the recovery of TZS. 8 million being a

fair and reasonable compensation for extensive damages done to a motor vehicle, registration STH. 5038 Toyota Land Cruiser VX, which arose out of the negligent conduct of a driver employed by the defendant. In their amended written statement of defence, the defendants raised a preliminary point of law, in that the High Court has no jurisdiction to hear this case as per section 13 of the Civil Procedure Code 1966, as the value of the claim is in the competence of the Subordinate Court as per the Magistrate's Courts Act 1984.

Mr Mwingira, learned counsel for the defendant, submitted in Court that under the Civil Procedure Code 1966, section 13, every suit must be instituted in the Court of the lowest grade competent to try it and on this case, it is the District Court whose pecuniary jurisdiction is provided as being ten million shillings by the Magistrate's Courts Act 1984. He submitted that the plaint should be struck out from this registry.

In reply to that submission, Mr Manyanda, learned State Attorney, submitted that under the Government Proceedings (Amendment) Act Number 30 of 1994, amending section 6 of the Principal Act, by its section 2(4), all suits against the Government must be instituted in the High Court. Alternatively, he submitted that though the learned state attorney is appearing, the interested party is the local government and not the Attorney General himself. Besides that, he had submitted earlier that the High Court has unlimited jurisdiction to try any civil case unless it is expressly barred, and section 13 of the Civil Procedure Code 1966 is not a bar to this Court to try this case. For the use of the words "suits against the Government" as seen in section 2(4) of Act 30 of 1994, the learned state attorney further said that even though the Parliament did not expressly say that all proceedings for and against the Government should be instituted in the High Court, yet it can legally be implied to mean so.

It is not in dispute that the Subordinate Court has jurisdiction to try cases whose estimated value is ten million shillings. The suit before this Court is for a claim of eight million shillings. Therefore,

according to Mr Mwingira, learned counsel, this suit should have been filed in the Subordinate Court, which is the District Court or Court of a Resident Magistrate. Secondly, that the use of the words "suits against the Government" means that suits in which the Government is the defendant. I think Mr Mwingira is right in this point. If the Parliament wanted all suits in which the Government is a party to be filed in the High Court, it could expressly state so.

Besides that general support to what Mr Mwingira learned counsel has submitted, yet the law itself, the Government Proceedings (Amendment) Act Number 40 of 1974 in its general section 7A provided that:

> Subject to section 6, section 7 and other provisions of this Act, all civil proceedings by or against the government shall be instituted and proceeded with in accordance with such procedure as would apply in like proceedings between private persons.

This section talks of both situations where the Government is the plaintiff, in which case the proceedings are "by" the Government, and when they are "against" the government. The procedure to be followed is like proceedings between private persons. When the Parliament talked about proceedings against the Government, as shown in the section 2(4) of Act Number 30 of 1994, it is because it has clearly stated that no civil suit should be instituted against the Government without the knowledge of the Attorney General. Thus a mandatory 90 days' notice was imposed instead of the previous consent of the Minister formerly needed by Act Number 16 of 1967. On the other hand, the Government did not want to tie itself with the requirement to give notice to the party it wanted to sue.

The limit of the pecuriary jurisdiction of the subordinate counts has since been enhanced to TZS. 100 000 000. See: section 40(2)(b) of the Magistrates' Courts Act 1984 as amended by the Written Laws Miscellaneous Amendments) (Number 3) Act 2002 Number 25 of 2002

Under section 7A of Act 40 of 1974, the procedure to be followed being that of private persons is that provided by section 13 of the Civil Procedure Code 1966, that all civil proceedings should be instituted in the Court of the lowest grade competent to try it. Thus the Court of the lowest grade for the government to institute this suit is the District Court or Court of a Resident Magistrate.

The learned State Attorney made a contradictory submission when he said that though they (State Attorney) instituted these proceedings, yet the beneficiaries are the local government. I say contradictory submission because the plaint speaks the opposite. The heading of the suit is titled *Attorney General v. Diocese of Njombe*. That the plaintiff is the Chief Legal Advisor to the Government of the United Republic of Tanzania who can sue and be sued on behalf of the latter under the provisions of the Government Proceedings Act 1967. Here it is the government which is suing and is capable of being sued and that is why it is stated in the Government Proceedings Act 1967, proceedings for or against the government. Therefore, the second limb of the submissions, like the first part of the submissions, has no base to enchor on.

Having said all that, I am of the considered opinion that when the proceedings are by the government, they are to be instituted in a Court of the lowest grade whereas where the proceedings are against the government, they must be instituted in the High Court. Thus the suit before this Court is improperly before it for lack of jurisdiction and it is struck out. The plaintiff may institute it in a Court of the lowest grade, that is to say the district/resident magistrate's Court. It is so ordered.

FAUSTINE MAGADULA *v.* REPUBLIC

COURT OF TANZANIA
AT MWANZA
(Mlay, J.)

CRIMINAL APPEAL No. 2 OF 2001

(From the decision of the District Court of Geita, Ngovongo, DM in Criminal Case No. 273 of 2000)

Criminal Practice and Procedure – Charges – Duplicity – Person charged with "Being in possession of property suspected of having been unlawfully acquired" in one count and "Retaining stolen property" in another count, both counts referring to the same property — Whether proper – Section 312(1)(b) and 311(4) of the Penal Code.

Criminal Practice and Procedure – Order of forfeiture – Whether Court can order distribution of forfeited property to beneficiaries.

The appellant and another person were charged before the District Court with two counts as follows: First, "Being in possession of property suspected of having been stolen or unlawfully acquired contrary to section 312(1)(b) of the Penal Code", and second; "Retaining stolen property contrary to section 311(1) of the Penal Code". The appellant was convicted under the first count and his co-accused was acquitted. Following the conviction the magistrate ordered that the 440 litres of diesel, the subject matter of the trial be distributed amongst the Police, Prisons and District Court in Geita.

Held: (i) Having charged the appellant under section 312 of the Penal Code it was improper to charge him with an offence under section 311 of the Penal Code; the offence under section 311 could only properly be charged in the alternative;

(ii) A proper forfeiture order should direct that property be forfeited to the Government; it is not for the Court to supervise how the forfeited property should be dealt with by the Government, and certainly not by ordering its distribution to the Court itself.

Appeal allowed

Mr Rwabuhanga for the Appellent

Mr Butambala for the Respondent

JUDGMENT

(Delivered 29 April 2002)

Mlay, J.: The appellant Faustine Magadula together with one Kulwa Joseph, were jointly charged before the District Court of Geita with two counts of offences under the Penal Code. The appellant was the second accused while Kulwa Joseph was the first accused.

In the first count both accused were charged with, "Being in possession of the property which suspected of having been stolen *(sic)* or unlawfully acquired contrary to section 312(I)(b) of the Penal Code Chapter 16," The particulars of the offence alleged that "on 5 December 1999 ... as a result of the powers conferred to him by section 24 of the CPA was searched by Police Officer DL Kato - ASP and found in suspected of having been stolen or unlawfully acquired", (quoting from the charge sheet).

In the second count, the two accused were charged with "Retaining stolen property contrary to section 311(1) of the Penal Code Chapter 16." The Particulars of the Offence alleged that both accused "On the 5 December 1999 ... did retain 440 litres of diesel knowing or having reason to believe the same to have been stolen."

The first accused Kulwa Joseph was acquitted of both counts while the appellant was convicted of the first count and sentenced to 5 years imprisonment. In an order made on 22 December 2000, the trial Senior District Magistrate ordered and I quote:

> The diesel 440 litres be distributed to Government Organisations thus Police 200 litres Magereza Geita be given a total of 100 litres and the District Court remain with 140 litres for use of transportation.

The judgment of the Senior District Magistrate shows that he did not make any finding on whether or not the appellant was guilty of the second count under section 311 of the Penal Code. This was highly irregular as the appellant stood charged with the offence and the prosecution led evidence and both accused put out their defence on both counts. However, since no sentence was passed on this count I will later show that the apparent irregularity produced a correct result.

Although it is not specifically a subject of this appeal, something needs to be said about the charges. An offence under section 312(1) of the Penal Code falls into either of the two limbs set out in paragraphs (a) or (b) of subsection (1), paragraph (a) deals with a situation where a person has been arrested and searched and the suspected property found on the person while paragraph (b) deals with a situation not involving prior arrest, but where a person is found in possession of suspected property.

The particulars of the first count place the offence of which the appellant was charged under paragraph (a) while in fact the statement of the offence and the facts clearly show that the offence falls under paragraph (b) as the diesel was not found upon search of the appellant being under arrest. However, I think that since the statement of the offence cites the correct provision the error in the particulars of the offence is curable and did not occasion failure of justice.

Another issue relates to the propriety of the second count of retaining stolen property while it is the same property for which the appellant and his co-accused were charged in the first count. I think having charged the appellant under section 312 of the Penal Code it was improper to charge him with an offence under section 311 of the Penal Code. The proviso to section 312 clearly prohibits this by providing that:

> ... Where an accused person is convicted of an offence under this section in respect of any property he shall not be charged with or be convicted of an offence of stealing or other like offence in respect of the same property.

The implication is that the offence under section 311 could only properly, have been charged in the alternative, if at all. However, as I observed earlier on there is nothing more to be said about the second count as the first accused was acquitted of it as well and no verdict was entered on it by the trial Magistrate in respect of the appellant. The District Magistrate unconsciously did the right thing by not entering a verdict in the second count, having convicted the appellant on the first count.

It will suffice to say that the appellant was aggrieved by the decision of the trial Senior District Magistrate and appealed to this Court against both conviction and sentence.

In the Memorandum of Appeal filed by his advocate Mr Butambala, the appellant put forward six grounds of appeal, as follows:

1. That the evidence by the prosecution did not establish the offence of which the accused was charged.
2. That the conviction was against the weight of evidence as the prosecution did not disclose *(sic)* its burden as required by law.
3. That it was hard in law to convict the appellant while the same Court had believed the same story of the accused and acquitted him.
4. The Defence of the accused was plausible and trial Magistrate failed to evaluate the same also did not give cogent reasons to disbelieve the same.
5. The trial Magistrate did misdirect himself in law in believing that the appellant had forged the purchase receipt Exhibit P1.
6. The sentence meted by the Trial Court was manifestly excessive.

At the hearing of this appeal, the appellant was represented by Mr Butambala the learned advocate and the Republic was represented by Mr Rwabuhanga, State Attorney.

Mr Butambala decided to drop ground numbers 1, 4 and 6 and offered to submit only on grounds 2, 3 and 5. In his submission Mr Butambala argued that the whole case revolved around the receipt

Exhibit P1, whether that receipt purporting to be the receipt issued to the appellant on the purchase of the diesel 440 litres, was forged or not.

Exhibit P1 was not called to give evidence. Mr Butambala further argued that although it was alleged that the maker of the receipt had been dismissed from his employment, the owner of the petrol station which issued the receipt was not also called to give evidence. On the photocopy of the receipt book from which Exhibit P1 is alleged to have been made, Mr Butambula submitted that it was improperly admitted in evidence as it had not been certified. Mr Butambala argued that if the photocopied receipts are excluded from evidence and considering that the maker of the original receipts Exhibit P1 was not called to give evidence, the allegation that the receipt was forged was not substantiated. Mr Butambala concluded that if the original receipt Exhibit P1 cannot be challenged, it follows that the diesel cannot be said to have been obtained unlawfully. Mr Butambala further argued that, since the prosecution evidence cannot stand, it follow that the appellant's defence that he bought the diesel, is sufficient to raise a reasonable doubt that he obtained the diesel lawfuly.

Mr Butambala went on to attack what he believed to have been an erroneous finding of the trial Magistrate at page 2 of his judgment that, the original receipt Exhibit P1 had been back-dated. Mr Butambala argued that this observation was improper because the maker of the receipt was not called to give evidence. He argued that the appellant was a mere receiver of the receipt.

This was not in fact a finding by the trial Magistrate but a narration of the evidence of the investigation officer PW2. As the result, Mr Butambala's attack stands only in so far as it relates to this fact as testified to by PW2. The finding of the trial Magistrate on the invalidity of the original receipt Exhibit P1 is based on the alleged admission by the appellant as contained in his cautioned statement, Exhibit P2. Unfortunately neither Mr Butambala nor the state attorney, who did not support conviction, addressed this Court on the cautioned statement of the appellant.

Be that as it may, Mr Butambala concluded that the prosecution evidence was insufficient to establish the charge against the appellant. Mr Butambala submitted that his arguments were therefore unnecessary.

Mr Rwabuhanga the learned State Attorney stated that he did not support the conviction and sentence on the same grounds advanced by Mr Butambala. Mr Rwabuhanga also submitted that the trial Magistrate had pre-conceived notion of the case because at page 2 paragraph 3 of his judgment, the Magistrate had stated that the maker of the original receipt Exhibit P1, had absconded from his job, while PW2 had stated that the maker of the receipt had been dismissed from his employment. Mr Rwabuhanga also pointed out that the prosecution failed to tender the diesel in Court as evidence.

Let me clarify the issues pointed out by Mr Rwabuhanga. These are the allegation that the trial Magistrate had a pre-conceived notion of the case by finding that the maker of the receipt had been dismissed from employment and the failure by the prosecution to offer the diesel as evidence. These two issues arose in the proceedings in Geita District Court Criminal Case Number 362 of 1999 in which the appellant had been charged on the same facts, with the offence of giving false information to a person employed in the Public Service, contrary to section 122 of the Penal Code. It was in that case that PW2 told the Court that the maker of the receipt had been dismissed and it was in that case that the diesel was not produced.

In the case under consideration number 27 of 2000 at page 6 of the proceedings, "two drums and two plastic containers containing diesel total of 440 litres were tendered and marked as "Exhibit P4" collectively."

The evidence on record shows that the facts which were not in dispute during the trial and which are not being disputed in this appeal, are that; on 5 December 1999, the police [PW1 and PW2] acting on information searched the house belonging to the first accused, in which the appellant was a tenant. In the rooms occupied by the first accused nothing was found but 440 litres of diesel were found and

seized from the rooms occupied by the appellant. The appellant claimed that the diesel belonged to him and that he had purchased it from Jamhuri BP Service Station. The appellant produced a receipt for the purchase numbered 59813 and dated 2 December 1999. The police did not believe the receipt to be genuine and charged both the first accused and the appellant in Court. The first accused was acquitted but the appellant was convicted of unlawful possession of the diesel 440 litres.

What is in dispute therefore is the genuiness of the receipt number 59813 dated 2 December 1999, which the appellant gave to the police to prove that he had purchased the diesel and which receipt the police and later the Trial Court, did not believe to be genuine.

It was the prosecutions case that the receipt was not genuine. PW2 D/Cpl Apolinary gave evidence that he went to Jamhuri BP Service Station to check the receipt book from which Exhibit P1 was issued.

On checking the receipt book, PW2 found that while receipt number 59813 was dated 2 December 1999, the receipts which were issued before that receipt were dated 6 December 1999, and other receipts issued after receipt. Number 59813 were also issued on 6 December 1999. PW2 therefore concluded that the receipt produced by the appellant number 59813 and dated 2 December 1999 was a forgery. He photocopied the relevant portion of the receipt book which together with the receipt in question, were collectively produced as Exhibit P1.

Let me at this juncture state that PW2 produced the original receipt number 59813 and two pages of the receipt book from which the Receipt number 59813 had been issued. The first page of the receipt book contained receipts number 59803 – 59809 and the other page contains receipts number 59809-59814. The trial Magistrate recorded only the receipts contained on this page i.e containing receipts 59809 – 59814. Adding to this confusion, the trial Magistrate received the original receipt number 59813 and the photocopied receipts collectively

as Exhibit P1, making it difficult to distinguish between the original receipt which is in dispute and the photocopies produced for comparison.

Be that as it may, the photocopies are not certified true copies of the original. It is also apparent that the receipt book from which they were copies could not have contained the original receipts as they had been issued to customers. It follows that what PW2 inspected and photocopied, were infact copies of the original receipts which had already been issued to customer, as indeed the original receipt number 59813 had been issued to the appellant. It is these photocopies which Mr Butambala advocate for the appellant submitted they were improperly admitted as they were not certified.

Section 64(4) of the Evidence Act 1967 provides that "copies of an original document are not primary evidence of the contents of the original." In other words, the receipt book which PW2 inspected and photocopied was not primary evidence of the original receipts issued from that book. The book was itself secondary evidence. Even assuming that the receipt book contained original receipts, the photocopy of the original receipt would be secondary evidence the admission of which would have to satisfy the conditions under section 67(1) of the Evidence Act 1967. Since the receipts were not certified to have been compared to the original and also that since the prosecution did not produce the receipt book from which they were photocopied, the photocopies were clearly inadmissible in evidence.

However, in convicting the appellant the trial Senior District Magistrate did not rely heavily on the photocopies as compared to the original receipt number 59813 dated 2 December 1999. The relevant portion of the judgment which contained the basis for finding appellant guilty is contained in paragraph 6 at page 3 of the typed copy of judgment in which the Magistrate wrote, and I quote:

> The question is whether the 440 litres of diesel was in possession of the second accused legally or not. According to the evidence the 440 litres of diesel were obtained unlawfully and this refers to receipt number 59813 of 2 December 1999 which was in actual fact obtained fraudulently. *This*

has been admitted by the accused himself in his cautioned statement tendered to Court as Exhibit P2. In his statement he said that he went to Mwanza Jamhuri BP Station and bought a receipt purporting to show that total of 440 litres of diesel was bought at Mwanza which in fact it was a fraudulent trick. The total of 440 litres of diesel was acquired unlawfully.

The trial Magistrate also considered that "the accused (appellant) had no filling station and had no licence of running a fuel business" and concluded that "the fuel was either stolen or unlawfully obtained."

As I observed earlier neither Mr Butambula nor Mr Rwabuhanga the learned State Attorney addressed his mind on the cautioned statement of the appellant.

Unless the cautioned statement was inadmissible or otherwise unsafe to rely upon to ground the conviction, the trial Magistrate stood on firm ground in convicting the appellant. However, the trial District Magistrate merely admitted and accepted the cautioned statement without addressing his mind on its admissibility or reliability. In the circumstances as the appellate Court this Court is entitled to review this piece of evidence and come to its own conclusion on it. The cautioned statement was recorded by PW2 number 04892 D/CPL Appolinary on 22 August 2000.

The evidence shows that the diesel was found on 5 December 1999 and according to the prosecution evidence, the appellant went to the police station two days later and produced the receipt in dispute. If this evidence is accepted then the appellant was arrested on 7 December 1999. How come that the cautioned statement was taken on 22 August 2000, nearly 9 months after his arrest. According to the appellant, he produced the receipt on 5 December 1999, the same day the diesel was found. Whatever the position may have been the cautioned statement was still taken nearly 9 months later.

The appellant in his defence stated that after his arrest he was charged in Criminal Case Number 362 of 1999 in respect of the same fuel and he was acquitted on 29 September 2000 and the Court

ordered the diesel handed back to him. Indeed in his judgment, the trial District Magistrate struggled with this evidence as a plea of *"autrefois acquit,"* and found that the plea was not available as the appellant had been charged with a different offence and that the plea had not been given at the very beginning when the appellant pleaded to the charge.

The trial District Magistrate erroneously considered this plea under section 280 of the Criminal Procedure Act 1985. Section 280 of the Act to trials before the High Court. The relevant provisions in relation to trials before Subordinate Courts are contained in section 228(5)(a) of the Act.

Coming back to the cautioned statement, after the appellant had been arrested either on 5 December 1999 or 7 December 1999, as the case may be, on 10 December 1999 he was charged in the District Court of Geita with the offence of "Giving false information to a person employed in the Public Service, contrary to section 122 of the Penal Code." In the particulars of the offence it was alleged that the appellant "on the seventh day of December 1999 at Geita police station ... did give false information to one Assistant Superintendent of Police DL Kato a person employed in the public service to wit that the 440 litres of diesel that had been seized by police were his, while he knew or believed that such information was false."

The proceedings were Criminal Case Number 362 of 1999 in the District Court of Geita. The appellant pleaded not guilty and the prosecution called two witnesses PW1 was no other than ASP Deusdedit Kato who later became also PW1 in the case which is the subject of the present appeal. PW2 was also number C4492 D/CPL Appolinary who became PW2 in the present case the subject of this appeal.

The receipt number 59813 dated 2 December 99 was produced by PW1 as Exhibit P2 and the photocopy of the receipts in two pages were also produced by D/CPL Appolinary who was recalled as PW3, and produced the photocopies as Exhibit P4. It was in these proceedings

that D/CPL Appolinary in cross examination by the appellant stated that he did not call the receipt maker because he was dismissed from his job.

It is important to note from page 8 of the proceedings in Criminal Case Number 362 of 1999, that on 22 August 2000, the same day that the cautioned statement on which the trial magistrate relied to convict the appellant in the case under consideration was taken, the proceedings in Criminal Case Number 362 of 1999 were still going on.

The two records of Criminal Case Number 362 of 1999 and Criminal Case Number 273 of 2000 which is the subject of this appeal, were being prosecuted together in the same Court, but before different Magistrates as from 23 August 2000, when Criminal Case Number 273 of 2000 was instituted, until 29 September 2000 when the proceedings in Criminal Case Number 362 of 1999 terminated in the acquittal of the appellant.

The Cautioned Statement was taken on 22 August 2000, the same day that the prosecution closed its case against the appellant in criminal case number 362 of 2000 which was based on the same facts, as the subsequent proceedings in Criminal Case Number 273 of 2000. In other words, between 23 August 2000 when the appellant was charged in Criminal Case Number 273 of 2000, and 29 September 2000 when he was acquitted of the charges in Criminal Case Number 362 of 1999, the appellant was being dragged from one magistrate to another in the same Court for different offences based on the same facts. The cautioned statement was taken almost at the end of the first case for the purpose of being used against the appellant in the second case. It is not apparent why the cautioned statement was not taken when the appellant was arrested either on 5 December 1999 or 7 December 1999.

The dragging of the appellant to Court on different occasions, and charging him with two different cases before two different magistrates on charges based on the same facts, is a matter which this Court must express its strong disapproval. The appellant was entitled to

have his one day in Court and not to be dragged in Court now and again for charges which could have been charged together from the very beginning. If on 22 August 2000 the prosecution felt that more charges were preferable, they should not have closed their case in Criminal Case Number 362 of 1999 and then arrest the appellant who was on bail and taken his Cautioned Statement for the purpose of charging him with the other offences in Criminal Case Number 273 of 2000. They could have applied to amend the charges or to substitute a fresh charge containing the additional charges or to withdraw the charge in Criminal Case Number 362 of 1999 and re-charge him with the charges which were later preferred in criminal Case Number 273 of 2000.

As one judge did observe, the Courts must frown as a person who takes two bites at a cherry. In the circumstances facing the appellant, the prosecution did take two bites at a cherry by instituting two separate criminal cases against the appellant based on the same facts when he could have been charged with all the offences in one case. This is highly undesirable and such practice must be discarded.

As for the Cautioned Statement it was taken nine months after the arrest of the appellant and after the institution of the proceedings in Criminal Case Number 326 of 1999. It can hardly be regarded as a voluntary statement or a statement which the Court of law can safely rely upon to ground a conviction.

If the trial magistrate had addressed his mind on the circumstances under which the cautioned statement was taken, he would undoubtedly have been more cautions before relying on it to convict the appellant.

If the photocopies of the receipts produced to show that the receipt number 59813 dated 2 December 1999 was not genuine are disregarded as they should have, and the cautioned statement being most likely involuntary and unreliable as evidence, it follows that the whole of the prosecutions case crumbles. In the circumstances I have no hesitations in finding that the trial Magistrate was wrong to admit the photocopy of the receipts and to rely on the cautioned statement of the appellant

to ground the conviction. The appeal is therefore allowed. Accordingly the conviction is quashed and the sentence is set aside. It is ordered that the appellant be released from prison with immediate effect, unless he is otherwise lawfully held.

As for the order made by the Senior District Magistrate to distribute the diesel to the police, prisons and District Court itself, it goes without saying that it was highly irregular. The proper order should have been to forfeit the diesel to the Government. It is not for the Court to supervise how the forfeited property should be dealt with by the Government and certainly, not by ordering its distribution to the Court itself. This is an order capable of bringing the Court into contempt before members of the public. However, as the diesel has already been distributed according to that order, it is futile for this Court to make a further order in relation to the diesel.

ALI VUAI ALI *v.* SUWEDI MZEE SUWEDI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Samatta, C.J., Makame, Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 72 OF 1998

(From the decision of the High Court of Zanzibar at Vuga, Dourado, J., dated 25 March 1997 in Civil Appeal No. 38 of 1996)

Civil Practice and Procedure – Courts – Hierarchy of the Courts in Mainland Tanzania and Tanzania Zanzibar – [Mainland] Magistrates' Courts Act 1984 and [Zanzibar] Magistrates' Courts Act 1985.

Civil Practice and Procedure – Appeals – Appeals from the High Court to the Court of Appeal – Certificate on a point of law – When a certificate on a point of law is necessary – Rule 89(2) of the Court of Appeal Rules 1979, section 5(2)(c) of the Appellate Jurisdiction Act 1979 and the Constitution (Consequential, Transitional and Temporary Provisions) Act Number 16 of 1984.

Court of Appeal – Appeals – Appeals from the High Court to the Court of Appeal – Certificate on a point of law – Purpose of requiring a certificate on a point of law – Conflicting decisions of the Court – Court of Appeal Rules 1979 – The People's Courts Decree 1969.

The appeal arose from proceedings commenced in a District Court in Zanzibar. Leave to appeal was duly granted in accordance with section 5(1)(c) of the Appellate Jurisdiction Act 1979. But the appellant contended that the appeal did not require a certificate of the High Court on a point of law in terms of section 5(2)(c) of the said Act, as held in the case of *Mohamed Idrissa Mohamed v. Hashim Ayoub Jaku* (1), while the respondent took a different view. The basis of the dispute was found in the conflicting decisions of the Court in *Mohamed Idrissa's* case (supra) and that of *Fatuma Idha Salim v. Khalifa Khamis Said* (2), in which the Court refused to entertain an appeal for lack of a certificate. So a Full Bench was convened in order to decide whether appeals in matters originating in District Courts in Zanzibar require certificates on points of law.

Held: (i) According to section 5(2)(c) of the Appellate Jurisdiction Act 1979, a certificate on a point of law is required in matters originating in Primary Courts; it is provided therein that an appeal against the decision or order of the High Court in matters originating in Primary Courts would not lie unless the High Court certifies that a point of law is involved in the decision or order;

(ii) In Mainland Tanzania the Magistrates' Courts Act 1984 sets up a three-tier system of Courts at the bottom of which is the Primary Court and appeals therefrom lie to the District Court, and thence directly to the High Court; the effect is that an appeal to the Court of Appeal in a matter originating in a Primary Court on the Mainland is a third appeal;

(iii) Rule 89(2) of the Court of Appeal Rules 1979 echoes the requirement of section 5(2)(c) but contemplates the system of Courts on the Mainland, in which the expression "third appeal" refers to a matter originating in a Primary Court;

(iv) The Appellate Jurisdiction Act 1979 was extended to Zanzibar by the Constitution (Consequential, Transitional and Temporary Provisions) Act 1984, Act Number 16 of 1984; this Act gave the Court of Appeal jurisdiction in Tanzania Zanzibar, facilitated by amendments made to the Appellate Jurisdiction Act 1979 to redefine the "High Court", in relation to Zanzibar, as the High Court of Zanzibar, with the power and responsibility to issue the certificate required under section 5(2)(c) of the Appellate Jurisdiction Act 1979;

(v) The Court system in Zanzibar is established under the Magistrates' Courts Act 1985 which sets up a four-tier hierarchy of the Courts with Primary Courts at the bottom, then District Courts, and regional Courts from which appeals lie to the High Court; the effect of it is that an appeal to the Court in a matter originating in a Primary Court is a fourth appeal while an appeal in a matter originating in a District Court is a third appeal;

(vi) The "third" appeal phenomenon is a creation of rule 89(2) the Court of Appeal Rules 1979 which made sense only in relation to the system of Courts in the Mainland before Zanzibar's four-tier system was brought on board and, apparently, it was due to a "religious commitment" to the e*xpression third appeal,* an aspect of the Rules but not the principal legislation, that *Fatuma's* case (supra) was erroneously rejected for being a third appeal without a certificate on a point of law;

(vii) Applying the "third" appeal rule to the system in Zanzibar would have the effect of making Rule 89(2) override section 5(2)(c) of the Appellate Jurisdiction Act 1979; that would be wrong and, in the circumstances, what is a third appeal on the Mainland is, for the purposes of the Appellate Jurisdiction Act 1979, a fourth appeal in Zanzibar;

(viii) The corresponding enactment of the House of Representatives applicable to Zanzibar is the Magistrates' Courts Act 1985; since provision is made for matters originating in Primary Courts in Part II of the [Zanzibar] Magistrates' Courts Act 1985, and since section 3(2) of Act Number 16 of 1984 which introduced the amendments and made provision for any procedural or substantive enactment applicable to Mainland Tanzania to be construed to include reference to a like or similar provision of a corresponding provision of an enactment applicable to Zanzibar, reference in section 5(2)(c) of the Appellate Jurisdiction Act 1979 to Head (c) of Part III of the [Mainland] Magistrates' Courts Act 1984 is to be construed to include reference to

Part II of the [Zanzibar] Magistrates Courts Act 1985 as held in *Mohamed Idrissa's* case (supra).

(ix) The purpose of the requirement of certification for the class of appeals originating in Primary Courts was to ensure that only deserving cases reach the Court of Appeal; it is a screening process to leave for the attention of the Court only matters of legal significance and public importance, and this objective would not be defeated by absence of certification from Zanzibar District Court proceedings;

(x) An appeal in proceedings originating in a District Court in Zanzibar does not require a certificate on a point of law; it only requires leave of the High Court in accordance with section 5(1)(c) of the Appellante Jurisdiction Act 1979 and, as with the Mainland, a certificate on a point of law is required only in a matter originating in a Primary Court: *Harban Haji Mosi v. Omar Hilal Seif and another* (4) affirmed;

(xi) ***Obiter:*** it might perhaps be desirable for the Legislature to recast section 5(2)(c) of the Appellate Jurisdiction Act 1979 and for the learned Chief Justice to revisit rule 89(2) in order to reflect the Court system in Zanzibar.

Appeal to proceed; order accordingly

Cases referred to:

(1) *Mohamed Idrissa Mohamed v. Hashim Ayub Jaku* [1993] T.L.R. 280

(2) *Fatuma Idha Salim v. Khalifa Khamis Said* CAT – Civil Appeal Number 71 of 1998 (unreported)

(3) *Yussuf Suleiman Taibu v. Juma Abdulla Juma* CAT – Civil Appeal Number 15 of 1987 (unreported)

(4) *Harban Haji Mosi and another v. Omar Hilal Seif and another*

Statutory provisions referred to:

(1) Zanzibar Magistrates Courts Act 1985

(2) [Mainland] Magistrates Courts Act 1984, section 3(2)

(3) Appellate Jurisdiction Act 1979, section 5(2)(c)

(4) Court of Appeal Rules 1979, rules 89(2) and 64(4)

(5) Constitution (Consequential, Transitional and Temporary Provisions) Act 1984

(6) Civil Procedure Decree Chapter 8 sections 76, 77

Mr Mbwezeleni for the Respondent

Dr Lamwai for the Appellant

RULING

(Dated 31 May 2002)

Lugakingira, J.A.: This appeal arose from proceedings commenced in a District Court in Zanzibar. Leave to appeal was duly granted in accordance with section 5(1)(c) of the Appellate Jurisdiction Act Number 15 of 1979, but it was contended for the appellant that the appeal did not require a certificate of the High Court on a point of law in terms of section 5(2)(c) of the said Act. The respondent's side takes a different view. In order for the appeal to proceed to hearing, a Full Bench of the Court was therefore convened to decide whether appeals in matters originating in the District Courts of Zanzibar require certification on points of law.

The basis of the dispute is to be found in the conflicting decisions of the Court on the subject. In *Mohamed Idrissa Mohamed v. Hashim Ayoub Jaku* (1), decided on November 25,1993, the Court stated that those appeals did not require the High Court's certificate on a point of law because they do not fall under part II of the Zanzibar Magistrates' Courts Act 1985. That Part provides for the establishment, setup, jurisdiction and powers of Primary Courts in Zanzibar. However, six years later, on December 3 1999, the Court, without reference to the above decision, refused to entertain an appeal in *Fatuma Idha Salim v. Khalifa Khamis Said*, (2) for lack of a certificate. The Court said:

> Rule 89(2) of the Court of Appeal Rules clearly makes it necessary for a third appeal to be accompanied by a certificate of the High Court, whether of Zanzibar or the Mainland, that a point of law exists for the determination of the Court of Appeal.

This divergence of positions, we think, may be explained on historical reasons but it seems difficult to justify on the present state of the law.

At its enactment, Act Number 15 of 1979 did not extend to Zanzibar and its creature, the Court of Appeal, did not exercise jurisdiction in Zanzibar. Section 5(2)(c) of the Act provides thus:

> (2) Notwithstanding the provisions of sub-section (1)
>
> (c) no appeal shall lie against any decision or order of the High Court in any proceedings under head (c) of Part III of the Magistrates' Courts Act 1963, unless the High Court certifies that a point of law is involved in the decision or order.

At that time and until 1984, the term High Court meant the High Court of the United Republic, and reference to the Magistrates' Courts Act 1963 (repealed and replaced by the Magistrates' Courts Act 1984), was reference to the Magistrates' Courts Act of Mainland Tanzania. Head (c) of Part III of the Magistrates' Courts Act provides for the appellate and revisional jurisdiction of the High Court in relation to matters originating in Primary Courts in the Mainland. Accordingly, it is common ground that according to section 5(2)(c), a certificate on a point of law is required in matters originating in Primary Courts in the Mainland.

The Mainland Magistrates' Court Act also set up a three-tier system of Courts. At the bottom is the Primary Court, established in every district and exercising jurisdiction in the district in which it is established. Appeals therefrom lie to the District Court, thence directly to the High Court. Alongside District Courts are Courts of Resident Magistrate from which appeals similarly lie to the High Court. The effect of this system is that an appeal to this Court in a matter originating in a Primary Court on the Mainland is a third appeal. It is for this reason that rule 89(2) of the Court of Appeal Rules 1979 (compare also rule 64(4) in criminal matters), in providing for the documents to be included in the Record of Appeal, adds:

and in the case of a third appeal, [the record] shall contain also corresponding documents in relation to the second appeal and th certificate of the High Court that a point of law is involved.

Rule 89(2), therefore, not only echoes the requirement of section 5(2)(c), but also has in contemplation the system of Courts on the Mainland. Hence, in so far as the Mainland is concerned, there is nothing ambiguous about the expression third appeal, but it is a correct description of an appeal in a matter originating in a Primary Court.

Act Number 15 of 1979 was extended to Zanzibar vide the Constitution (Consequential, Transitional and Temporary Provisions) Act Number 16 of 1984, with effect from 1 March 1985. With this enactment, the Court of Appeal gained jurisdiction in Zanzibar, the assumption of jurisdiction being facilitated by amendments to Act Number 15 of 1979. The term "High Court" was redefined in a reconstituted section 3(1) to mean the "the High Court of the United Republic of Tanzania or the High Court of Zanzibar, as the case may be. This is to say where reference is made in Act Number 15 of 1979 to the High Court, it means the High Court of Zanzibar in relation to matters from Zanzibar. Therefore, the certificate required under section 5(2)(c) is, in the case of Zanzibar, to be issued by the High Court of Zanzibar. The problem is which appeals from Zanzibar require that certificate.

Until 1985 the judicial set up in Zanzibar was dominated by a system of popular justice founded in the People's,Courts Decree Number 6 of 1969. People's Courts had full and exclusive jurisdiction in all criminal cases (except for the offences of murder, attempted murder and manslaughter which were triable by the High Court) and civil matters. Appeals therefrom lay to the High Court. The Decree was repealed by the Magistrates' Courts Act 1985, enacted by the Zanzibar House of Representatives. The Act set up a four-tier hierarchy of Courts with Primary Courts at the bottom, then District Courts, and regional Courts from which appeals lie to the High Court. While on the Mainland District Courts and Resident Magistrates' Courts are parallel, in Zanzibar appeals lie from District Courts to regional

Courts. The effect of this is that an appeal to this Court in a matter originating in a Primary Court in Zanzibar is a fourth appeal and an appeal in a matter originating in a District Court is a third appeal. It is apparently due to a religious commitment to numbers, an aspect of the Rules but not the principal legislation, that *Fatuma's* case was rejected because it was a third appeal without a certificate on a point of law.

Mr. Mbwezeleni who appeared for the respondent supported the decision in *Fatuma's* case (2) and argued that the appeal was rightly rejected for non compliance with rule 89(2). He sought to buttress his argument with reference to sections 76 and 77 of Zanzibar's Civil Procedure Decree (Chapter 8) and the decision of the High Court of Zanzibar in *Yussuf Suleiman Taibu v. Juma Abdulla Juma* (3). We will revert to these provisions and this decision later. It is only necessary to state here that counsel for the appellant, Dr Lamwai, disagreed and submitted that going by the amendments to Act Number 15 of 1979, a third appeal on the Mainland corresponds to a fourth appeal from Zanzibar, that District Courts in Zanzibar were for the purpose of the Act on the same level as regional Courts, and that section 5(2)(c) targets appeals in Primary Court proceedings only. If rule 89(2) were construed to apply to appeals in District Court proceedings on the Isles, that would result in a subsidiary legislation overriding the principal legislation.

There is merit in Dr Lamwai's arguments. It is at once clear that the position taken in *Fatuma's* case (2) and the position taken by Mr Mbwezeleni, overlook the extent and effect of the amendments to Act Number 15 of 1979. In fact Mr Mbwezeleni confessed to being unaware of Act Number 16 of 1984 which introduced these amendments. Apart from redefining certain terms, there was added to section 3 a subsection (2) in these terms.

(2) For the purposes of this Act, reference to any provision of any procedural or substantive enactment applicable to Mainland Tanzania shall be construed to include reference to a like or similar provision of a

corresponding procedural or substantive enactment of the House of Representatives applicable to Zanzibar in relation to the matter to which the former enactment relates.

Section 5(2)(c) of the Act makes reference to the provisions of the Mainland Magistrates Courts Act, that is, Head (c) of Part III thereof which provide for the appellate and revisional jurisdiction of the High Court in relation to matters originating in Primary Courts. The provision says that an appeal against the decision or order of the High Court in those matters would not lie unless the High Court certifies that a point of law is involved in the decision or order. The corresponding enactment of the House of Representatives applicable to Zanzibar is the Magistrates' Courts Act 1985. Admittedly there is no part or head of a part in that Act that comprehensively deal with the appellate and revisional jurisdiction of the High Court of Zanzibar in relation to matters originating in Primary Courts. A few provisions similar to those in Head (c), Part III of the Mainland Act, show up here and there in the Zanzibar Act. However, provision is made for matters originating in Primary Courts in part II thereof. We are of the view that in view of the provisions of section 3(2) cited above, reference in section 5(2)(c) to Head (c) of Part III of the Mainland Act is to be construed to include reference to Part II of the Zanzibar Act as held in *Mohamed Idrissa* (1).

As pointed out earlier the decision in *Fatuma's* case (2) was reached on the basis of numbers and without reference to *Mohamed Idrissa* (1). The argument went like this: rule 89 (2) requires a third appeal to be accompanied with a certificate on a point of law; an appeal from District Court proceedings in Zanzibar is a third appeal; therefore, an appeal from District Court proceedings in Zanzibar requires a certificate on a point of law. It is not a question of numbers, though, and Act Number 15 of 1979 does not refer to first, second or third appeal. The "third appeal" phenomenon is a creation of the Rules in relation to the system of Courts in the Mainland and made sense only before Zanzibar's four-tier system was brought on board. Were the Rules to be written today, rule 89(2) would appear in different

terms. It is therefore immaterial that an appeal from District Court proceedings in Zanzibar is a third appeal; the truth of the matter is that it does not correspond to an appeal from Primary Court proceedings in the Mainland. As counsel for the appellant also pointed out, were the third appeal rule to apply to the system in Zanzibar, rule 89(2) would override section 5(2)(c), but Mr Mbwezeleni was quick to concede that that would be wrong. In these circumstances, we see no difficulty in stating that for the purpose of Act Number 15 of 1979, what is a third appeal on the Mainland is a fourth appeal in Zanzibar.

There are a few related matters which may be disposed of at this stage. First, when counsel for the respondent became aware of Act Number 14 of 1984, he argued that since Act Number 15 of 1979 was extended to Zanzibar at a time the latter was still under the people's Courts system, the Act has no relevance to the system instituted subsequently by the Magistrate's Courts Act 1985. We are unable to agree and we think that is a strange way of interpreting statutes. The extension of Act Number 15 of 1979 to Zanzibar did not cease with the repeal of the People's Courts Decree but continued with the law that replaced it. The question to be asked consequent to the repeal of the Decree is whether there is now in Zanzibar a corresponding enactment for the purpose of section 3(2) and we say it is the Magistrates' Courts Act 1985.

Mr. Mbwezeleni also referred to sections 76 and 77 of the Civil Procedure Decree for yet another argument that appeals from Zanzibar have to be on points of law even without section 5(2)(c) and cited *Yussuf Suleiman Taib* (3) as confirmation of that argument. Indeed sections 76 and 77 provide that a "second appeal" to the Court has to be on a point of law. This reference to "second appeal" calls to mind yet an earlier period in Zanzibar's legal history when it had a two-tier system of Courts. That was a time it boasted of an array of Subordinate Courts from all of which appeals lay to the High Court and on to the Court of Appeal for East Africa. It is a matter for concern that the Decree does not appear to have been revisited for quite

some time and as sections 76 and 77 testify, it is unaware of the present four-tier system. Granted, however, that appeals from Zanzibar have by virtue of these provisions to be on matters of law, that does not answer the present problem. These provisions do not require the points of law to be certified by the High Court. We think on the other hand that the decision in *Yussuf Suleiman Taib* (3) had nothing to do with sections 76 and 77. That was an appeal in a matter originating in a Primary Court. Ramadhani, C.J. (as he then was) remarked that in a second and a third appeal to the High Court, the regional Court should certify a point of law. That was an appeal to the High Court, not to this Court, and sections 76 and 77 which relate to appeals to this Court do not provide for a certificate. Moreover, whether certification is required or not for certain appeals to the High Court of Zanzibar is not relevant to the problem at hand. A certificate of the regional Court to that end has no relevance to the requirements of sections 5(2)(c).

There was, finally, a general question raised by the Court as to the mischief the requirement of certification was intended to combat. Dr Lamwai responded, and correctly, that the purpose of a certificate for the class of appeals in matters originating in Primary Courts was to ensure that deserving cases only reached the Court of Appeal. The exercise is therefore a screening process which would leave for the attention of the Court only those matters of legal significance and public importance. Would this objective be defeated by absence of certification in appeals from District Court proceedings in Zanzibar. We do not think so, but, ironically, the Zanzibar Court system is better equipped to attain that objective. There is that extra appeal to the regional Court which does not obtain on the Mainland.

For the reasons we have set out, we hold that an appeal in proceedings originating in a District Court in Zanzibar does not require a certificate on a point of law; it only requires leave of the High Court in accordance with section 5(1)(c). As with the Mainland a certificate on a point of law is required only in a matter originating in a Primary Court. We note that a panel of the Court came to the same conclusion in the later case of *Harban Haji Mosi and Another v. Omar Hilal Seif and another* (4), also from Zanzibar, and we agree with the decision therein. Perhaps it might be desirable, in order to put the position beyond doubt, for the Legislature to recast section 5(2)(c) and for the learned Chief Justice to revisit rule 89(2) in order to reflect the Court system in Zanzibar. As leave to appeal was granted in this case, the appeal will proceed to hearing without more.

R v. R

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Luanda, J.)

MATRIMONIAL CASE No. 1 OF 2001

Family law – Divorce – Spouse being no longer in love – Whether a sufficient ground for the Court to grant divorce – Section 107(1) and (2) of the Law of Marriage Act 1971.

Family law – Divorce – Grant of divorce – Whether the Court may summarily grant divorce.

Family Law – Matrimonial causes – Party establishes that a matrimonial offence has been committed – Whether that fact entitles the party to an automatic right to a divorce decree.

Civil Practice and Procedure – Matrimonial causes – Parties not at issue on their marriage being broken down irreparably – Whether the Court may on that basis summarily pronounce judgment – Rule 29(2) of the Law of Marriage (Matrimonial Proceedings) Rules 1971, Order XV, rule 1 of the Civil Procedure Code 1966 and section 107 of the Law of Marriage Act 1971.

The petitioner filed a petition for divorce and and respondent cross petitioned for division of matrimonial property. The Petitioner requested the Court to issue divorce decree summarily as the spouses were no longer in love, and were not at issue regarding their marriage being broken down.

Held: (i) Applying Order XV, rule 1 of the Civil Procedure Code 1966 in matrimonial proceedings will defeat the whole concept of judicial care;

(ii) section 107(1) and (2) of Law of Marriage Act 1971 does not confer a party to a matrimonial proceeding an automatic right to a decree of divorce even where he establishes a matrimonial offence has been committed.

Petition dismissed

Case referred to:

(1) *Butiku v. Butiku* [1987] T.L.R 1

Statutory provisions referred to:

1. Law of Marriage Act 1971, section 107
2. Law of Marriage (Matrimonial Proceedings) Rules 1971, rule 29
3. Civil Procedure Code 1966,Order XV, rule. 1

Mr Mkatte for the Petitioner

Ms Rwebangira for the Respondent

RULING

(Delivered 7 June 2002)

Luanda, J.: The petitioner through the services of Mr Mkatte, learned counsel, has instituted a matrimonial cause in this Court against the respondent for the following prayers, quote:

1. That the marriage be dissolved.
2. That the parties bear their own costs.
3. That this Honourable Court grant any other relief deemed fit.

In answer to the petition, the respondent through her advocate Ms Rwebangira did not refute much about the breakage of the marriage. She did not only file the answer to the petition, but she also filed a cross-petition which she mentioned, *inter alia*, the properties and how they were acquired.

In brief she said some are her personal properties and some were acquired jointly. After receiving the answer and cross-petition, Mr Mkatte submitted that the marriage has broken down irreparably and asked the Court to grant divorce as per *Butiku v. Butiku* (1) Mr Mkatte contended that the issue remaining is division of matrimonial properties. As the Court was yet to hear the respondent, it fixed the matter for hearing so that parties to submit whether this Court can grant divorce summarily. It was agreed by both parties that the matter be-disposed of by way of written submissions. Both learned counsel filed their written submission, hence this ruling. So the question in this matter is whether this Court, under the aforesaid circumstances, can declare the marriage to have been broken down irreparable and grant divorce.

It is Mr Mkatte's submission that the parties to this matrimonial proceeding no longer love each other. And this, Mr Mkatte went on to say is contained in the proceeding. In view of that fact, he submitted that the marriage has broken down irreparably. He cited *Butiku case,* where Biron, J. held, I quote the relevant portion:

By rule 29(2) of the Law of Marriage (Matrimonial Proceedings) Rules 1971.

The Court shall propose to try a petition in the same manner as if it were a suit under the Civil Procedure Code 1966. And by Order XV, Part 1 of the Civil Procedure Code 1966:

> Where at the first hearing of the suit it is apparent that the parties are not at issue on sufficient questions of law or of fact, the Court may at once pronounce judgment.
>
> In this matrimonial suit, both parties have by their counsel agreed on more that sufficient issues of fact and of law raised in their pleadings.

> The petitioner in his petition, and the respondent in her answer, establish that the marriage has irreparably broken down, as both assert it has, and each spouse in praying for a divorce. Consequently I have not the slightest hesitation in formally finding that the marriage has and in law irreparably broken down. Accordingly it is hereby ordered that a decree absolute dissolving the marriage is to issue.

Ms Rwebangira in the first place submitted that love is not an issue. And it is no wonder that the word love is not mentioned in the Law of Marriage Act. 1971. She said what constitutes evidence of irreparable break down of marriage is provided for under section 107 of the said Act.

As to *Butiku case*; she said the facts are distinguishable with the present case. In that case she went on to say both parties were not at issue in any issues, the respondent was outside the country and it was by consent agreed that the division of matrimonial property was to be determined after the return of the respondent. In the instant case she submitted that both parties are present; on the part of matrimonial property no evaluation/assessment has been done to date to ascertain the value of the house at Tegeta and no agreement has been reached on all important issues of the case.

In short Ms Rwebangira objected the issuance of divorce summarily.

In reply Mr Mkatte reiterated that the parties are no longer in love. Mr Mkatte went on to say the respondent through her answer clearly shows that the marriage has broken down irreparably.

First and foremost, it should be made very clear from the outset that the case of *Butiku v. Butiku* (1) is not binding upon this Court. However, the facts of that case are both parties, agreed on more than sufficient issues of fact and of law raised in their pleadings. The pleadings establish that the marriage has broken down irreparably; hence the dissolution of the marriage.

In the instant case, parties are not at one on grounds of divorce. The petitioner said there is no love, whereas the respondent said it

is the petitioner who caused the situation to be thus. Obviously the parties are not dancing so to speak, to the same music. It follows therefore that the facts of this case and that of *Butiku case* (1)are distinguishable.

For the sake of argument, assuming the facts are the same is it proper for a Court of law to dissolve marriage and grant divorce. To put it differently does the Law of Marriage Act 1971 allow granting of divorce summarily? Section 107(1) and (2) of the Law of Marriage Act 1971 is relevant. The section provides:

> Section 107(1) In deciding whether or not a marriage has broken down, the Court shall have all relevant evidence regarding the conduct and circumstances of the parties and, in particular:
>
> (a) Shall, unless the Court for any special reason otherwise directs refuse to grant a decree a petition is founded exclusively on the petitioner's own wrong doing and
>
> (b) Shall have regard to the custom of the community to which the parties belong.
>
> (2) Without prejudice to the generality of subsection (1), the Court may accept any one or more of the following matters as evidence that a marriage has broken down but proof of such *matter shall not entitle a party as of right a decree:*
>
> (a) Adultery ... etc
>
> (b) Sexual ... etc
>
> (c) Cruelty ... etc
>
> (d) Willful neglect ... etc
>
> (e) Desertion ... etc
>
> (f) Voluntary separation ... etc
>
> (g) Imprisonment ... etc
>
> (h) Mental illness... etc

(i) Change of religion ... etc

[emphasis supplied]

My understanding of subsection 2 of section 107 of the above quoted law is that it does not confer a party to a matrimonial proceeding an automatic right to a decree of divorce if he/she has established a matrimonial offence has been committed. The Court may or may not grant divorce. The Court is required to go further and see, whether in the interest of the parties and family as a whole it is proper to dissolve the marriage and grant divorce. And it is no wonder that one of the usual issue which features in the matrimonial proceedings is whether the marriage has broken down irreparably. This in my view shows that Court ought to first resolve whether the marriage has broken down.

Thereafter the former issue of irreparability of the marriage follows. And this in my settled mind shows that the legislature has imposed a duty upon Courts of law to see to it that marriages should not be easily dissolved. The rationale is not far to seek families are foundation of a nation and it is truism that strong families breed strong nation. So Court of law should not be a place for rubber stamping, rather they are required to handle matrimonial dispute with judicial care. Of course this does not mean that Courts should go to the extent of forcing the parties to stay together; not at all. Courts of law have no such mandate. Having said thus, I am of the opinion that applying Order XV, rule l of the Civil Procedure Code 1966 in matrimonial proceeding will defeat the whole concept of judicial care. And as procedural rules are not supposed to override substantive law, I hold that order should not be applicable in matrimonial proceedings.

In the final analysis, therefore, I decline to dissolve the marriage summarily.

TANZANIA HABOURS AUTHORITY v. AFRICAN LINER AGENCIES CO. LTD

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Ihema, J.)

CIVIL REVISION No. 113 OF 2002

Admiralty – Matters constituting admiralty – Contract for rendering services to a ship – Whether an admiralty matter.

Admiralty – Jurisdiction – Matters presented before the District Court concerned contract to render services to a ship – Whether District Court has jurisdiction to try the case – East African Merchant Shipping (Consequential Provisions) Act 1966, second Schedule.

Admiralty matters – Pecuniary jurisdiction – Services rendered amounting to USD 273 355.43 – Whether District Court had jurisdiction to hear the case – Section 6 of the Civil Procedure Code Act 1966.

Civil Practice and Procedure – Ex parte order – Interim ex parte Order – Pleadings not showing sufficient grounds for dispensing with the law – Whether Order issued in abuse of process of the law – Order XXXVII, rule 3 of the Civil Procedure Code Act 1966.

Civil Practice and Procedure – Interim ex parte order – Order issued on 12 July 2002 but served on the Applicant on 21 August 2002 – Whether Order is compliant with the law – Order XXXVII, rule 3 of the Civil Procedure Code Act 1966.

Civil Practice and Procedure – Revisional proceedings – Whether High Court can revise an interlocutory ex-parte order granted by the District Court – Section 44(1)(a) of the Magistrates' Courts Act 1984.

On 21 August 2002 the Port Manager of the Tanzania Harbours Authority wrote a letter to the Judge in-charge of the High Court of Tanzania, Dar es Salaam Registry drawing attention to an interim *ex-parte* order by the Ilala District Court dated 12

July, 2002. The said order though issued on 12 July 2002 under a Certificate of Urgency was served upon the Port Manager on 21 August 2002 after a lapse of more than thirty eight days. The interim order intended to restrain the Port Manager from suspending the services of handling and clearing the vessel of respondent pending the hearing of the main application inter partes. It was the complaint of the Port Manager that the District Court had no jurisdiction to deal with admiralty matters and that the order was issued contrary to law. On appeal:

Held: (i) The matters presented before the Ilala District Court clearly relate to a contract of rendering services to a ship, which is within the ambit of admiralty, falling under the exclusive jurisdiction of the High Court in terms of the second Schedule of the East African Merchant Shipping (Consequential Provisions) Act 1966; the District Court, therefore, was not the appropriate Court to adjudicate on such matters;

(ii) The provisions of section 6 of the Civil Procedure Code are more relevant than the provisions of section 7 of the Code as the former provisions emphasize the need to observe the pecuniary jurisdiction of a Court in the filing of a suit on the matter;

(iii) The interim *ex parte* order was issued in contravention of Order XXXVII, rule 3 of the Civil Procedure Code as amended by GN 422 of 1994; it was issued in abuse of the process of law;

(iv) The provisions of section 44(1)(a) of the Magistrates' Courts Act 1984 clothe the High Court with sufficiently wide powers to make interventions and give directions necessary in the interests of justice.

District Court proceedings quashed and orders set aside

Statutory provisions referred to:

(1) East African Merchant Shipping (Consequential Provisions) Act 1966 second schedule

(2) Civil Procedure Code Act 1966, sections 6 and 7, and Order XXXVII, rule 3

(3) Magistrates' Courts Act 1984, section 44(1)(a)

Messrs Msuya and *Kalua* for the Applicant

Mr Nyangarika for the Respondent

RULING

(Dated 28 August 2002)

Ihema, J: On 21 August 2002 the Port Manager of the Tanzania Harbours Authority, an Authority established under the Tanzania Harbours Authority Act 1977, in his letter of even date to the Judge in charge of the Dar es Salaam District Registry, the High Court of Tanzania brought to light the existence of an interim exparte order by the Ilala District Court dated 12 July 2002. The said order though issued on 12 July 2002 under certificate of urgency was served upon the Port Manager of the Authority on 21 August 2002 at 14:55pm after a lapse of more than thirty eight days. The interim *ex parte* order is intended to restrain the Port Manager, his principal, agents, workmen and any other person or authority from suspending the service of handling, clearing the vessel of Africa Liner Agencies (T) Ltd as well as storage and other services to the vessel at the port of Dar es Salaam pending the hearing of the main application interpartes.

It is the complaint of the Port Manager of the Tanzania Harbours Authority that the *ex parte* interim order had been issued without any authority by the District Court as it lacked jurisdiction to deal with the matter before it in so far as the foresaid matters are admiralty matters and whose percuniary value exceed the percuniary jurisdiction of the District Court, and further that the interim, *ex parte* order has been issued contrary to law.

On the basis of the complaint filed I directed that revisional proceedings be opened and the record of the District Court be called so that the same could be inspected with a view to give directions as the interests of justice may require.

On 26 August 2002 both learned Counsel for the Port Manager and African Liner Agencies Co. (T) Ltd hereinafter to be referred to as applicant and respondent respectively submitted oral arguments for and against the complaint. Mr Msuya and Kulua advocated for the applicant while Mr Nyangarika represented the respondent.

Let me start with the important issue of jurisdiction. In his submissions for the applicant Mr Msuya learned counsel referring to the issue of jurisdiction contended that as the matters presented before the Ilala District Court concerned with the rendering of contract of services to a ship, such services are admiralty matters as defined in **the Black's Law Dictionary** and that only the High Court which is a Court of Admiralty has jurisdiction over such matters as provided for in the second schedule of the East Africa Merchant Shipping (Consequential Provisions) Act 1966. In addition Mr Msuya submitted that the issue before the District Court related to services rendered amounting to USD 27 3355-43 well above the pecuniary jurisdiction of the District Court. On his part Mr Nyangarika contended that the District Court of Ilala had jurisdiction to deal with the matters before it as such matters are not admiralty matters. Mr Nyangarika is of the further view that the respondent was inviting the District Court to make a declaratory order with regard to the interests of the parties in terms of section 7 of the Civil Procedure Code.

I accept the argument that the matters presented before the Ilala District Court on 12 July 2002 by African Lines Agencies Co. Ltd clearly relate to a contract of rendering services to a ship and to that extent they fall within the ambit of admiralty which fall under the exclusive jurisdiction of the High Court in terms of the second Schedule of the East Africa Merchant Shipping (Consequential Provisions) Act 1966. It would follow as submitted by Mr Msuya learned Advocate then the District Court of Ilala is not the appropriate Court to adjudicate on such matters. Mr Nyangarika has forcefully argued that to the extent that the respondent went to the Ilala District Court to seek for declaratory order, the court's jurisdiction is given in terms of section 7 of the Civil Procedure Code. On careful examination of the plaint filed in particular paragraphs 3, 4 and 5 one clearly notes the existence of disputed bills for shipping and storage service rendered by the Port Manager to the African Liner Agencies Co. Ltd. The disputed bills stand at USD 27 3355-43.

In the circumstances, at issue between the parties is a claim for services rendered by the applicant to the respondent and not a declaration of parties rights. In my considered view the provisions of section 6 of the Civil Procedure Code are more relevant than the provisions of section 7 of the Code as the former provisions emphasize the need to observe the pecuniary jurisdiction of a Court in filing of suit on the matter.

The next point for consideration is whether the *ex parte* injunctive order issued by the Ilala District Court complied with the law, i.e rule 3 of Order XXXVII of the Civil Procedure Code as amended by GN 42 of 1994 requiring the Court to direct notice of the application to the opposite party before granting the injunction. It is Mr Msuya's forceful submissions that the Ilala District Court acted without complying with the mandatory provisions of the law in that the respondent's pleadings did not show any sufficient grounds for dispensing with the law. I respectfully agree with Mr Msuya that the interim *ex parte* order was issued in contravention of rule 3 of Order XXXVII of the Civil Procedure Code as amended by GN 422 of 1994. In addition I think it is relevant to observe here that the *ex parte* interim order issued on 12 July 2002 and served on the applicant on 21 August 2002 was also issued in abuse of the process of the law. What was the urgency to issue an interim *ex parte* order to be served after thirty five days later? Was there a need to dispense with the notice to the opposite party in the circumstances? Clearly, the evidence on record militates against Mr Nyangarika's submissions which are rejected in their totality.

Mr Nyangarika has also argued that these revisional proceedings are unmentainable as this Court cannot revise the *ex parte* order the same being an interlocutory order only. It is Mr Nyangarika's view that only the Ilala District Court has the authority to do so, as such, he invited me to remit the matter to that Court for action. Mr Nyangarika cited a number of cases in support of his submission.

I find Mr Nyangarika's submissions quite attractive but I am satisfied that the provisions of section 44(1)(a) of the Magistrates' Courts Act 1984 has clothed the High Court with wide powers to make intervention and give directions necessary in the interests of justice. These powers in my view include the determination of whether or not a district or resident Magistrate Court acted without jurisdiction and or illegally in dealing with a matter before it.

As clearly shown in the complaint filed by the Port Manager of the Tanzania Harbours Authority the District Court of Ilala acted without jurisdiction in entertaining a matter falling beyond its scope of competence, i.e an admiralty matter. Equally, the Court acted illegally on issuing an exparte interim injunction without giving notice to the opposite party, a mandatory requirement under Order 37 of the Civil Procedure Code as amended.

In the final analysis I am satisfied that the complaint filed has merit and is sustained. The proceedings in Civil Case Number 122 of 2002 are quashed and the orders thereto are set aside. The applicant will have its costs in this cause. Order accordingly.

TANZANIA COTTON MARKETING BOARD *v.* COGECOT COTON COMPANY S.A.

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Lugakingira and Mroso, JJ.A.)

CIVIL APPEAL No. 60 OF 1998

(From the decision of the High Court of Tanzania at Dar es Salaam, Mapigano, J., dated 25 November 1997, in Miscellaneous Civil Cause No. 34 of 1998)

Limitation – Limitation of Time – Arbitration – Whether there is a period of limitation for a petition to set aside arbitration award – Section 21 of the Law of Limitation Act 1971, or Item 21 of Part III of the First Schedule thereto.

Arbitration – Awards – Petition to set aside an award – Whether such petition is a suit or an application – Section 15 of the Arbitration Ordinance Chapter 15, and rules 5 and 6 of the Arbitration Rules 1957.

Civil Practice and Procedure – Appeals – Matter not canvassed in the trial High Court – Whether competent to raise the matter on appeal.

The appellant appealed against the decision of the High Court dismissing its application to impeach an award on the ground that it was time barred. The appellant argued that the petition was a suit founded an a judgment and the limitation period was therefore twelve years reckoned from the date the notice of filing the award was served on the applicant. In the alternative the appellant argued that the period spent prosecuting a previous proceeding between the parties which was terminated on June 16, 1997 ought to have been excluded.

Held: (i) As the issue of whether the present matter is a suit or an application was not canvassed before the High Court it is therefore not competent to raise the same on appeal.

(ii) Section 21 of the Law of Limitation Act 1971, does not apply as the matter which terminated on 16 June 1997 was not prosecuted in a Court which was incompetent to entertain it for lack of jurisdiction.

(iii) Since the Act does not prescribe for the of the limitation for applications the present application fell under Item 21 of Part III of the First Schedule to the Act which prescribes the period as sixty days.

Appeal dismissed with costs

Statutory provisions referred to:

1. Arbitration Ordinance (Chapter 15) rules 5 and 6.
2. Law of Limitation Act 1971, section 21, First Schedule Part III item 21.

JUDGMENT

(Dated 2 September 2002)

Lugakingira, J.A.: The appellant Board's petition to impeach an award under section 15 of the Arbitration Ordinance (Chapter 15) and rules 5 and 6 of the Arbitration Rules 1957, was dismissed by the High Court on the ground that it was time-barred. This appeal is against that decision. Counsel for the appellant had two alternative arguments: First, that the High Court erred in holding that the time of limitation was 60 days. In his submission the petition was a suit founded on a judgment, namely the award, therefore the time of limitation is 12 years reckoned from the date the notice of filing the award was served on the appellant. In the alternative, that section 21 of the Limitation Act 1971, applied and that period spent prosecuting a previous proceeding between the same parties which terminated on 16 June 1997, ought to have been excluded.

There is no merit in either of these arguments. With the first argument, and as observed by counsel for the respondent, the issue about the petition being a suit was never canvassed before the high Court. That Court cannot be judged on an issue it never had an opportunity to consider and express an opinion. In fact the position taken then was the opposite. Counsel who appeared for the appellant before the High Court stated categorically: "This is not a suit." That was, indeed, correct and not a slip. A petition under rules 5 and 6 of the Arbitration Rules is an application rather than a suit. rule 5 states in part: "... all applications made under the ordinance shall be made by way of petition." A petition is therefore the prescribed mode of making an application under the Arbitration Ordinance, and it is common knowledge that other modes are prescribed under other laws.

Applications under the ordinance fall under Item 21 of Part III of the First Schedule to the Limitation Act, since the Ordinance itself does not provide for the period of limitation, and the period is 60 days. Although the period the High Court reckoned was the

period from 11 December 1996, the correct date was, in our vied, 11 March 1996, that being the date the appellant acknowledged receiving notice of the filing of the award. The petition, the subject of this appeal, was filed on 2 July 1997, well beyond the 60-day limit. The High Court was therefore correct in holding as it did even on the basis of the date it adopted.

The alternative argument is equally misconceived. In order for section 21 to apply, and for time spent in the prosecution of another proceeding to be excluded, it has to be shown, *inter alia*, that the other proceeding was prosecuted in a Court which, from defect of jurisdiction, was incompetent to entertain it. Counsel for the appellant was not heard to say that the proceeding which terminated on16 June 1997 [*Tanzania Cotton Marketing Board v. Cogecot Cotton Company SA* (1)] was prosecuted in a Court incompetent to entertain it. It is obvious to us that the whole of the instant proceeding is a bad tactic.

The appeal is dismissed with costs.

SGS SOCIETE GENERALE DE SURVEILLANCE S.A. *v.* VIP ENGINEERING AND MARKETING LTD

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPLICATION No. 84 OF 2000

(Application for Revision of an order of the High Court of Tanzania, Commercial Division, at Dar es Salaam, Nsekela, J., dated 28 September 2000 in Commercial Case No. 16 of 2000)

Civil Practice and Procedure – Revision – Application for revision – Competency of the Court to hear revision application – Section 5(2)(d) of the Appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993.

Civil Practice and Procedure – Revision – Basis upon which the Court could be moved to invoke its revisional jurisdiction.

Civil Practice and Procedure – Revision – Whether a matter that is not appellable becomes automatically revisable.

This was an application for revision of the decision of the High Court, Commercial Division, to ascertain its correctness, legality and/or propriety. Using its discretion the High Court dismissed the applicant's application seeking stay of proceedings pending reference of the dispute to arbitration. The Court of Appeal considered its competence to hear the application for revision and also grounds upon which it could be moved to invoke its revisional jurisdiction.

Held: (i) The appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993 vests the power of revision in the Court in that it is empowered to call for and examine the record of any proceedings before the High Court for purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings of the High Court;

(ii) Since the applicant is not challenging correctness, legality and regularity of the proceedings of the High Court, there is no basis upon which the Court could be moved to invoke its revisional jurisdiction;

(iii) The fact that a matter is not appellable by virtue of section 5(2)(d) does not automatically mean that it is revisable;

(iv) To accept on revision applications which are based on grounds that touch on the merits of the decision or the judge's discretion to stay or not to stay the proceedings, would amount to circumventing the very provisions of the law which prohibit appeals in interlocutory matters;

Application dismissed

Cases referred to:

(1) *Halais Pro-Chemie v. Wella* [1996] T.L.R. 269

(2) *Miroslav Katic Versa v. Ivan Makobrad*, [1999] T.L.R. 470

Statutory provisions referred to:

(1) The Appellate Jurisdiction Act 1979, sections 4(3), 5(2)(d)

(2) The Arbitration Ordinance Chapter 15, section 6

Mr M Chandoo, for the Applicant

Dr Tenga and *Mr Mbwambo,* for the Respondent

RULING

(Dated 30 October 2002)

Lubuva, J.A.: This is an Application for Revision. It is filed under section 4(3) of the Appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993. The applicant, Society General De Surveillance SA is moving to the Court for an order that:

> The High Court may be pleased to call for and examine the record of the proceedings in Commercial Case Number 16 of 2000 for the purpose of satisfying itself as to the correctness, legality and or propriety of the decision of the Court dated 28 September 2000, refusing to stay the suit pending reference of the dispute to arbitration and direct the Commercial Division of the High Court of Tanzania to stay the suit pending reference of the dispute to arbitration.

The background giving rise to the application may briefly be stated. On or about 1997, the applicant entered into a Pre-shipment Inspection Agreement (PSI) with the Tanzania Revenue Authority, the second defendant in the suit at the High Court. Under the Agreement, the applicant was appointed as agent for purpose of conducting pre-shipment inspection on goods destined for Tanzania. In 1998, the respondent, VIP Engineering and Marketing Limited, bought 3000 metric tons of rice from M/s Orco International Pte, Singapore. Pre-shipment inspection of the rice consignment was to be conducted by the applicant in terms of the agreement in order to ensure its quality and quantity before its shipment to the buyer, the respondent in Tanzania. Following a dispute which arose between the applicant and the respondent, on 15 May 2000, the respondent filed in the High Court, Commercial Division, Commercial Case Number 16 of 2000. On 6 June 2000, the applicant filed a Chamber Summons seeking stay of proceedings

pending reference of the dispute to arbitration as provided under the PSI Agreement.

The High Court (Nsekela, J) after careful analysis and consideration of the matter dismissed the application. It was held that in filing the Written Statement of Defence simultaneously with the filing of the Chamber Summons, the applicant abandoned its rights under the Arbitration Agreement. The Court further held that in doing so, the applicant subjected itself to the jurisdiction of the Court. From this decision, the applicant has lodged the application for revision.

In this application, the applicant was represented by Mr M. Chandoo, learned counsel and the respondent was represented by Dr Tenga, learned counsel, assisted by Mr Mbwambo. Apparently, both parties were also represented by the same counsel in the High Court.

Mr Chandoo, vehemently assailed the learned judge in dismissing the application for Stay of Proceedings under section 6 of the Arbitration Ordinance. He said that although the judge correctly set out the applicable principles of the law, he wrongly applied them to the circumstances of the instant case. Mr Chandoo went to great lengths in his submission on the issue that the respondent was privy to the PSI Agreement in which case it was bound by the provisions of the whole Agreement. The arbitration clause being part of the PSI Agreement, he contended that the applicant was bound to submit to arbitration while the proceedings were stayed. He also said that it was an error on the part of the judge to hold that the applicant had voluntarily submitted to the jurisdiction of the Court because the applicant filed Written Statement of Defence in compliance with the Court order.

Dr Tenga countered these submissions. Briefly stated, the essence of his submission was that the respondent was not a party to the PSI Agreement and therefore was not bound by the provisions of section 6 of the Arbitration Ordinance. Furthermore, he said that the applicant had abandoned its right to refer the matter to arbitration because it had voluntarily submitted to the jurisdiction of the Court.

On 26 June 2002, after hearing these submissions, ruling was reserved. On 29 July 2002, on reflection, the Court *suo motu* reopened the matter and ordered counsel for both parties to make written submissions on the competence of this application for revision. That is, considering the provisions of section 5(2)(d) of the Appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993, which prohibits appeals from interlocutory orders of the Commercial Division, was this a proper application for revision or a disguised appeal?

In his submission on this issue, Mr Chandoo was firmly of the view that this is a fit case for revision by the Court. He admitted that section 5(2)(d) of the Appellate Jurisdiction Act 1979 bars appeals against any preliminary or interlocutory decision or order of the Commercial Division of the High Court unless such decision or order has the effect of finally determining the suit. In this case, he conceded that the ruling of the High Court, (Nsekela, J) of 14 September 2001, did not finally determine the suit. The reason, he said was that the decision could not have the effect of finally determining the suit because the application merely prayed for stay of the proceedings. For this reason, he went on, no appeal could be preferred against that decision. So, he urged that the only way the applicant could obtain relief was to come to the Court by was of revision under legal proposition (iii) in *Halais Pro-Chemie v. Wella AG* (1) Mr Chandoo, also submitted that under legal proposition (ii) in *Halais,* the application was competent. In his view, even if there is a right of appeal in this case, under legal proposition (ii), the matter could be dealt with by the Court in exercise of its revisional jurisdiction because there is an exceptional circumstance in this case in that if the proceedings are not stayed, the parties would be put into enormous expenses of the full trial involving witnesses from abroad.

On the competence of the application for revision, Dr Tenga also made lengthy written submissions. Essentially, he said the application is incompetent because it deals with a decision of the High Court Commercial Division which is appellable. On the other hand, he maintained

that even if it is accepted that the matter is not appellate, the applicant has not shown under which category of the instances for revision the instant case fits in.

Before considering the submission of counsel on the substantial merit of the application, if at all, we think it is desirable first to consider the competence of the application for revision. It is common ground that the Court was vested with the powers of revision as a result of the amendment to the Appellate Jurisdiction Act 1979 effected by Act Number 17 of 1993. Under the law as amended, the Court is empowered to call for and examine the record of any proceedings before the High Court for purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings of the High Court. In this application, at some stage in the course of hearing this matter, Mr Chandoo had seriously complained that what he had submitted on 6 June 2000, at the trial in the High Court was not correctly recorded. As a result, the hearing of the application was adjourned in order to enable Mr Chandoo to apply to the High Court Commercial Division, to put the record right. The learned trial judge certified that the record as it is, reflects the correct position of what transpired in Court at the trial on 6 June 2000. However, at the resumed hearing of the application, Mr Chandoo, did not wish to pursue his protest against the correctness, legality and regularity of the proceedings of the High Court, Commercial Division of 6 June 2000, he accepted that the record as certified by the learned trial judge, correctly reflected what transpired in Court on 6 June 2000. In that situation, there is no basis upon which the Court could be moved to invoke its revisional jurisdiction. If the complaint of dissatisfaction related to the correctness or other irregularity on the record, it would be appropriate for the Court to proceed with the matter on revision.

The next issue is whether the matter involved in the application is appellable. As already observed, Mr Chandoo, while accepting that the decision refusing stay of proceedings did not finally determine the suit, and therefore not appellable by reason of section 5(d), insisted

that meant there was a right to revision. With all due respect to Mr Chandoo, we do not accept this contention. The fact that a matter is not appellable by virtue of section 5(2)(d) does not automatically mean that it is revisable. As indicated above, Mr Chandoo having conceded and we think correctly so, that there was no incorrectness impropriety in the proceedings on record, we wonder why he insists on the Court's exercise of its revisional jurisdiction. From our close examination of the lengthy written submission availed, we are unable to find any illegality, irregularity or impropriety in the decision or proceedings in respect of which the Court is called upon to deal with the matter on revision. It is increasingly apparent to us that Mr Chandoo is moving the Court to exercise its revisional jurisdiction on matters which fall within the purview of the appeal process. Here, it is patently clear that the applicant is dissatisfied with the discretionary decision of the learned judge in refusing to grant stay of proceedings pending reference to arbitration. For instance, he complains against the learned judge's holding that the applicant had abandoned the right to arbitration having subjected itself voluntarily to the Court's decision, are, as no doubt, Mr Chandoo is well aware, matters which could be brought to the Court by way of appeal and not on revision. To accept on revision applications which are based on such grounds which touch on the merits of the decision or the judge's discretion to stay or not to stay the proceedings, would amount to circumventing the very provisions of the law which prohibit appeals in interlocutory matters. Proposition (iii) in *Halais* does not countenance revisions where the conditions set out in section 4(3) are not satisfied.

Mr Chandoo has also urged us to accept the application because, he said there were exceptional circumstances which fit within legal proposition (ii) in *Halais*. As indicated earlier, in elaboration, he said that the exceptional circumstance is that if the proceedings are not stayed, the parties would be put into all the expenses of a full trial involving witnesses from abroad. In support of this proposition, he referred to the decision of the Court in *Miroslav Katic Versa v. Ivan Makobrad* (2). We wish to point out at once that the circumstances

of this case are easily distinguishable. In *Miroslav Katic Versa,* the error and impropriety was glaringly obvious. There, the order of the High Court, the subject of the application for revision was problematic for two reasons. First, it purported to nullify a previous High Court order and secondly, it also purported to overrule an order of a single judge of this Court staying execution. In view of this impropriety the Court stated *inter alia*:

> Such glaring type of error on the part of the High Court we think calls for urgent remedial action on the part of the Court. In order to achieve this it is our view that it is more appropriate and expeditious to invoke the revisional jurisdiction of the Court than the appeal process which would take time. In a situation such as this which, it appears to us borders closely on a travesty of justice, for prompt corrective action, the Court could appropriately invoke powers of revision.

From this, one important point emerges for emphasis. That is that, in order for the Court to invoke the discretional legal proposition (ii) in *Halais* it should first be shown that there is an illegality or impropriety calling for correction. Then the exceptional circumstances have to be looked at in that context. In the application before us, neither any illegality, impropriety nor any exceptional circumstances have been shown. There is therefore no basis upon which the Court could invoke its revisional jurisdiction on the ground of exceptional circumstance. With respect, we do not think that the alleged enormous expenses that would be involved on witnesses from abroad would amount to exceptional circumstance. Above all, proposition (ii) applies where there is a right of appeal which it is sought to dispense with, but there is no right of appeal in this case. The proposition is therefore irrelevant.

For the foregoing reasons, we are satisfied that the grounds and circumstances advanced in support of this application are matters which could be brought to the Court on appeal and not on revision. We accept Dr Tenga's submission that the application for revision is misconceived. It is therefore unnecessary for us to go into the merits.

Accordingly, the application is dismissed with costs.

JAMES KABALO MAPALALA *v.* BRITISH BROADCASTING CORPORATION

COURT OF APPEAL OF TANZANIA AT DODOMA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 43 OF 2001

(From the Judgment and Decree of the High Court of Tanzania at Dodoma, Kileo, J., dated 13 December 2000, in Civil Case No. 33 of 1994)

Civil Practice and Procedure – Review – Whether a trial judge can review and quash his own judgment and proceedings – Order XLII, rule 1 of the Civil Procedure Code 1966 .

Civil Practice and Procedure – Amendment of pleadings – Whether amendment can be allowed after delivery of judgment – Order VI, rule 17 of the Civil Procedure Code 1966.

The appellant obtained an *ex-parte* judgment and decree in the High Court against the respondent. On realizing that it was impossible to execute the decree in England where the respondent resided, he went back to the High Court and applied for review of the judgment and proceedings under Order XLII, rule 1. He prayed that the *ex-parte* judgment and proceedings be quashed, and that he be allowed to amend the plaint. The prayers were granted, the case heard afresh and judgment given in his favour. On appeal counsel were invited to make submissions on the legality or otherwise of the proceedings in the High Court.

Held: (i) The High Court judge had no lawful authority to quash his own judgment and proceedings as the essential element in Order XLII, rule 1 that only an aggrieved party may apply for review was not satisfied;

(ii) Where a judgment has been delivered in a case, pleadings cannot be amended.

Order accordingly

Cases referred to:

(1) *General Manager, EAR and H. v. Tuierstein,* [1968] EA 354

(2) *Lotf v. Czarhilov Ltd.* [1952] 2 A11 ER 823

(3) *Kamundi v. Republic* [1973] EA 540

Statutory provision referred to:

(1) Civil Procedure Code 1966, section 95, Orders 6, rules 17, Order 9, rule 13, and 42 rules 1,2,3 and 4

Mr Maira for the Appellant

Dr Kapinga and *Ms Karume* for the Respondent

RULING

(Dated 11 November 2002)

Lubuva, JA: By consent of counsel for both parties, Civil Appeal Number 49 of 2001 and Number 43 of 2001 were consolidated. For ease of reference, throughout this ruling, James Kabalo Mapalala and the British Broadcasting Corporation shall be referred to as the appellant and the respondent, respectively.

At the commencement of hearing of this appeal, the Court invited counsel for both parties to make submissions on the legality of the proceedings before the Court. The reason will be apparent from a brief outline of the background giving rise to the matter. In High Court Civil Case Number 33 of 1994, the appellant, on 13 April 1995, obtained an *ex parte* judgment and decree against the respondent for the sum of GBP 800 000 the equivalent of TZS. 688 million The appellant proceeded to execute the decree in England where it turned out that according to the applicable laws on the execution of foreign judgments, the Decree could not be executed. According to the law in England the decree could not be executed because the judgment debtor, the respondent, was neither carrying business nor was it ordinarily resident within the jurisdiction of the Trial Court in Tanzania, and did not voluntarily appear or submit or agree to submit to the jurisdiction of the Court.

The appellant took the matter back to the High Court at Dodoma praying for the Court to review its judgment. The application was

lodged under Order XLII, rules 1 and 3 and section 95 of the Civil Procedure Code 1966. From the Chamber Summons and the accompanying memorandum of review, the following prayers were sought: The *ex-parte* judgment and proceedings of 13 April 1995, to be quashed and the amendment of the plaint so as to join Mariam Shamte, the alleged correspondent of the respondent in Tanzania as a co-defendant. On 5 February 1998, the presiding judge (Msoffe, J) granted the application for review as prayed, and quashed the *ex-parte* judgment and proceedings. On the basis of the amended plaint, fresh hearing of the case commenced against Mariam Shamte as first defendant and the present respondent as the second defendant. Judgment and decree was given in favour of the appellant for the sum of 30 million Tanzania Shillings as damages for defamation. This is the decision which has given rise to the consolidated appeals in the Court.

The issue raised by the Court was whether the learned judge had lawful power to quash his own judgment and proceedings of 13 April 1995 and start hearing the case afresh. In response, Mr Maira, learned counsel for the appellant, conceded that legally, there was nothing wrong with the judgment and decree of 13 April 1995. However, he strongly maintained that it was necessary to review the judgment on account of the following: That according to the applicable law in England, the Decree in favour of the appellant could not be executed against the respondent in England. For this reason, the appellant was in a dilemma of having an unexecutable Decree. In order to make the Decree executable, the appellant sought remedy from the Court which was still vested with jurisdiction to deal with the matter. Prompted by the Court whether it was proper for the judge to order the amendment of the plaint long after delivery of the judgment, Mr Maira argued that hearing of the case and execution is part of the proceedings. In the circumstances of this case, Mr Maira concluded his submission, the learned judge was justified in reviewing his previous judgment so that the appellant could execute the decree and enjoy the fruits of the judgment and decree in his favour.

Dr Kapinga, learned counsel, assisted by Miss Karume represented the respondent in this Court. He submitted that Order XLII, rule 1 of the Civil Procedure Code sets out the circumstances in which the High Court is empowered to review its own judgment. First, it is necessary to show that there is a party which is aggrieved by the decision. Second, that there is a discovery of a new and important matter or evidence which, after due diligence, was not within the knowledge of the party at the time the judgment and decree was passed. Third, that there was an error apparent on the face of the record or any other sufficient reason.

We agree with Dr Kapinga that in this case there was no aggrieved party. Under the provisions of rule 1, Order XLII the appellant who sought review in the High Court was not an aggrieved party. He obtained judgment and decree in his favour according to the prayers sought in the plaint. In that situation, it is clear to us that in the application before the learned judge the essential element requiring an aggrieved party was not satisfied. That is, there was no aggrieved party. As submitted by Dr Kapinga it was therefore not a fit case to justify review of the judgment of 13 April 1995. With respect, we think that had the learned judge considered this aspect, he would not have entertained the application for review.

With regard to new and important matter which it was claimed had been discovered after the judgment and decree, Mr Maira kept on repeating that the decree could not be executed in England. This, in our view is untenable. It is common knowledge that a Court of law grants remedies to the parties according to the prayers sought in the plaint. For this reason, there is no legal basis for a successful party who obtains remedies in terms of the prayers in the plaint to turn back to the Court for review on the ground that the Decree cannot be executed. To allow such a party to start the case all over after encountering difficulties at the stage of execution process, is in our view, not only an abuse of the Court process, but it would also load to endless litigation after the case has been finally determined.

In the circumstances, we are unable to accept Mr Maira's claim that the appellant's failure to execute the Decree in England was a new and important matter discovered after the Judgment. Thus, the application for review also lacked this other important element.

Next, Mr Maira made submission on the issue whether it was proper for the learned judge to order the amendment of the plaint long after the matter had reached the stage of execution. According to him, it was proper for the judge to do so because the law under Order VI, rule 17 of the Civil Procedure Code allows the amendment of pleadings at any stage of the proceedings. In this case, he further stated, the amendment at the stage of execution process was justified because Mariam Shamte, a necessary party in the proceedings had not been joined. Above all, Mr Maira stressed, the amendment did not prejudice the respondent.

Countering these submissions, Dr Kapinga maintained that the learned judge had no power to order the amendment of the plaint at that stage because first, the application for the amendment was made after delivery of the judgment in which case the provisions of Order VI, rule 17 of the Civil Procedure Code did not apply. Second, as the case had come to a close, the amendment of the plaint at that stage amounted to a fresh start of a different case. Third, the judge in granting the application quashing the judgment of 13 April 1995, in affect sat on appeal in his own judgment. In support of this submission, he referred to the case of *General Manager, E*

AR and H A v. Tuierstein (1) and *Lotf v. Czarnilov Ltd.* (2).

We think there is merit in Dr Kapinga's submission. While it is not disputed that Order VI, rule 17 of the Civil Procedure Code allows a party to amend pleadings at any stage of the proceedings, the expression "at any stage of the proceeding" should not be extended to cover the time after delivery of judgment. Such a wide interpretation, in our view, would lead to an absurdity. In its plain and natural interpretation, the wording of rule 17 clearly shows that the law does not provide for the amendment of the pleadings after delivery of the judgment.

The rule provides that all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties. If the purpose of allowing the amendment to the pleadings is for the determination of the issues in controversy between the parties, it goes without saying that the provision does not apply at the stage after the delivery of the judgment. At that stage, the issues in controversy are already resolved in the judgment. It would therefore serve no useful purpose to amend the pleadings at that stage of the proceedings. So, it is our view that the legal position in our country is that amendment to the pleadings is not allowed after delivery of judgment. In this view, we are reinforced by case law as well. In the English case of *Loutf v. Czarnikow Ltd.* (2) the Court was reluctant to allow the amendment to the pleadings after the close of the defendant's case. However, because the case was still at the hearing stage and judgment had not been pronounced, the amendment was allowed. *Inter alia* the Court stated that:

> Unless there is good ground and strong justification for so doing, the Court should be reluctant to grant amendments of pleadings after the close of the case but before judgment ...

In the light of this settled principle of law, we are firmly of the view that it was highly improper for the learned judge to order the amendment of the plaint after the judgment had long been pronounced. He could not lawfully do so.

Dr Kapinga also raised the issue that the learned judge grossly erred in quashing his own judgment of 13 April 1995, when dealing with the application for review. He said that the learned judge's decision to quash his own previous judgment had serious legal implications. By granting the application for review in which one of the prayers was to have the judgment of 13 April 1995 quashed, it meant that the judge in effect, quashed and set aside his own judgment. In doing so, we think, the judge went beyond the purview and scope of the powers of review under Order XLII, rules 1, 2, and 4 if the Civil Procedure Code. Under the provisions of rule 4, in an application

for review, the judge who passed the judgment, if satisfied that there is sufficient ground for a review, shall either grant or reject the application. It is hardly necessary to point out that in an application for review, the judge is not sitting as an appellate Court. In that situation, if the judge is satisfied that the tests for review laid down under Order XLII, rule I are met, it is expected of him to grant the application by effecting the relevant and necessary rectification and corrections sought in the judgment which in warranting circumstances, may be varied as a result of the new and important matters discovered. Otherwise, the judgment is not quashed in a review application. On the other hand, if the judge is satisfied that there is no sufficient ground to justify a review, the application is rejected by dismissing it. In this case, by implication, what the learned judge did in this case, namely quashing his previous judgment and proceedings of 13 April 1995, meant in effect that he sat on appeal involving his own judgment. This, to say the least, is highly improper and irregular. Above all, when the judgment was pronounced on 13 April 1995, he became *functus officio*. The question when does a Court become *functus officio* was addressed by the Court of Appeal for Eastern Africa in the case of *Kamundi v. Republic* (3). The Court stated that:

> The Court becomes functus officio when it disposes of a case by a verdict of guilty *or by passing sentence or making some orders finally disposing of the case.* [emphasis supplied]

In this case, it is clear that the judgment of 13 April 1995 in favour of the appellant finally disposed of the case. The learned judge was therefore *functus officio*. In the circumstances, we are satisfied that it was improper for him to deal with the matter in the manner he did on 5 February 1998, by quashing the judgment and proceedings of 13 April 1995.

Finally, we wish to observe briefly on the provision of Order IX, rule 13 of the Civil Procedure Code relating to setting aside decrees and judgments *ex-parte*. Though the application for review before the learned judge arose from an *ex-parte* judgment, we do

not think that the course of action taken by the judge can be attributed to confusion in the application of the provisions of Order XLII, rule1 and Order IX, rule 13 of the Code. These provisions are distinctly different. rule 13(1) of Order IX provides that in a case where a decree is passed *ex-parte* against a defendant, he may apply to the Court by which the decree was passed for an order to set aside the decree. If the Court is satisfied that summons was not served on the defendant or that for sufficient cause the defendant was prevented from appearing in Court when the case was called on for hearing, the Court may set aside the decree or judgment. In this case, though the *ex-parte* judgment was passed against the defendant, it is the appellant and not the defendant who applied for review. In that situation, the circumstances in this case being different, we find no basis for confusing the powers of the Court for setting aside *ex-parte* judgments with those pertaining to review of judgment and decree.

In the upshot, for the foregoing reasons, we are satisfied that the learned judge wrongly exercised jurisdiction in dealing with the purported application for review. In view of such glaring and serious irregularity and impropriety involved in the proceedings before the learned judge in the application for review, the decision of 5 February 1998, granting the application for review and any subsequent proceedings were a complete nullity. In the event, by invoking revisional powers of the Court, we make an order quashing all the proceedings from the application for extension of time to apply for review on 30 May 1997, to the judgment of the High Court (Kileo, J) of 13 December 2000, the subject of this appeal. For the sake of clarity, the judgment of the High Court of 13 April 1995, for what it is worth, still remains valid.

ABDUL ATHUMANI *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT TANGA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 14 OF 2002

(From the Judgment of the High Court of Tanzania at Tanga, Mkwawa, J., dated 17 September 2001, in Criminal Appeal No. 51 of 2000)

Criminal Procedure and Practice – Appeal – Power of the Court of Appeal on a second appeal – Whether the Court of Appeal may decide a matter not raised in and decided by the High Court on first appeal – Section 4(2) of the Appellate Jurisdiction Act 1979.

Criminal Practice and Procedure – Rape – Appropriate sentence for the offence of rape – Age of the victim of rape is important in determining appropriate sentence – Section 131 of the Penal Code.

The appellant was convicted of raping a girl who was alleged to be below the age of ten years. There was no evidence tendered to prove the age during the trial and appeal to the High Court. At trial also the appellant did not argue the fact that on the fateful day he was intoxicated. This issue was then raised in the Court of Appeal following the appeal challenging the decision of the High Court, which did not decide the matter (issue).

Held: (i) The Court of Appeal has no jurisdiction to hear an appeal against the conviction by the District Court but the Court of Appeal may invoke its powers of revision in the course of hearing an appeal, given under section 4(2) of the Appellate Jurisdiction Act of 1979 and step into the shoes of the High Court in certain cases;

(ii) The age of the victim of rape is important to determine proper punishment (sentence) under section 131(3) of Penal Code as amended by the Sexual Offences (Special Provisions) Act of 1998;

Sentence substituted

Case referred to:

(1) *Simon s/o Musoke v. Republic* [1958] EA 715

Statutory provisions referred to:

(1) Appellate Jurisdiction Act of 1979, section 4

(2) Penal Code Chapter 16, section 131 as amended by the Sexual Offences (Special Provisions) Act of 1998;

JUDGMENT

(Dated 22 November 2002)

Ramadhani, J.A.: The appellant was convicted of raping the complainant, Zuhura (PW1), who was claimed to be a youth below the age of ten years, and was sentenced to life imprisonment by the District Court of Lushoto. His appeal to the High Court of Tanzania was dismissed by Mkwawa, J. This is his second appeal supported by a Memorandum of Appeal containing seven grounds.

The Resident Magistrate was satisfied with the prosecution evidence that the appellant was at one time married to one Daula, the elder sister of PW1 and that they had one daughter, Jasmin, who was residing with her maternal grandfather, Salehe Rashidi (PW2). On the fateful day the appellant went to the house of PW2 to see his daughter. After normal salutations, PW2 left the appellant at home and went away to attend to his business.

The appellant pretended to send PW1 to fetch him some lemons. As PW1 left the appellant followed her, took her to a bush and raped her. As PW1 raised an alarm some people saw what was going on and word reached PW2 who rushed to the scene in the company of one Yusuf Tengeza (PW4). They found the appellant with his trousers down, holding the hand of PW1, who was crying and was without her pants. The appellant was taken to the Police Station where he was found to have his pants in his trousers' pocket. PW1 was taken to a hospital where an examination disclosed that her hymen was ruptured and that she had some spermatozoa in her private parts.

The essence of the appellant's appeal boiled down to three grounds: One, the Lower Courts erred to believe the evidence of PW1, a girl of tender age. Two, PW2 could not corroborate the evidence of PW1 because of the filial relationship and so had an interest to serve. Three, it was not proved that PW1 was under the age of ten years.

For the respondent/Republic was Mrs Stephania Ntilatwa, learned state attorney. She pointed out that in the High Court the appellant in his Memorandum of Appeal conceded that he raped PW1 but contended that he was intoxicated at the time of committing the offence. The learned state attorney went on to say that the learned judge dealt only with that defence. We asked Mrs Ntilatwa what was the legal effect of that acceptance of conviction on the part of the appellant in the High Court. She said that she was unable to do any research due to lack of literature.

It is our considered opinion that the appellant is precluded from challenging his conviction at this stage. We say so because, as Mrs Ntilatwa pointed out, Mkwawa, J. disposed the appeal by dismissing the defence of intoxication. So, if the appellant is now challenging conviction then what is before us is not an appeal from the decision of the High Court but from the decision of the District Court. This Court has jurisdiction to entertain appeals only from the High Court and from Subordinate Courts with extended jurisdiction: section 4(1) of the Appellate Jurisdiction Act 1979. Obviously here there was no extended jurisdiction otherwise there would not have been an appeal to the High Court. So, we do not have jurisdiction to hear an appeal against the conviction by the District Court.

As for intoxication we are at one with the High Court but for a totally different reason. At the trial there was no evidence of intoxication at all. It was only D/Cpl Yussuf (PW3) who said: "I could not take the statement of the accused on that day because he looked drunk". That was not evidence that the appellant was intoxicated. There was no such issue before the District Court and so the Court did not make any finding one way or the other. We are a bit surprised that the learned judge took up that issue.

However, as for the conviction by the District Court we invoke our powers of revision in the course of hearing an appeal under section 4(2) of the Appellate Jurisdiction Act 1979 (as amended), step into the shoes of the High Court and do what it could have done had the issue of conviction been before it. We are of the decided opinion that there was sufficient evidence to secure the conviction of the appellant. Even if, for the sake of argument, we discard the evidence of PW1 as being a child of tender age, there is the evidence PW2 and PW4 who found the appellant holding the hand of PW1 after she had been ravished. The appellant did not offer any explanation at all as to how he came to be with her in that state. Moreover, he was seen with his trousers pulled down and his underpants were in his trousers' pocket.

It is abundantly certain that the inculpatory facts of that circumstantial evidence are incompatible with the innocence of the appellant and are incapable of explanation upon any other reasonable hypothesis than that of guilt: *Simon s/o Musoke v. Republic* (1). It could only have been the appellant who raped PW1.

We agree with the appellant that there was no proof that PW1 was under the age of ten years. The age of the victim of rape is important in sentencing. Under section 131(3) of the Penal Code as amended by the Sexual Offences Special Provisions Act 1998 (Act Number 4 of 1998), if the victim is under the age of ten years, the sentence is life imprisonment. If the victim is not under the age of ten, section 131(1) provides for life imprisonment or imprisonment for a period not less than thirty years with corporal punishment and an order to compensate the victim.

So, we set aside the sentence of life imprisonment and substitute therefor a sentence of imprisonment for thirty years. The appellant should also suffer corporal punishment of twelve strokes of the cane and should pay compensation of one hundred thousand shillings (TZS. 100 000) to the victim.

TANZANIA SARUJI CORPORATION *v.* AFRICAN MARBLE COMPANY LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lugakingira, Mroso and Munuo, JJ.A.)

CIVIL APPEAL No. 5 OF 1997

(From the Judgment and Decree of the High Court of Tanzania at Dar es Salaam, Kaji, J., dated 11 October 1996, in Civil Case No. 89 of 1987)

Torts – Damages – General and special damages distinguished.

This matter arose out of a direction of the Court of Appeal to the High Court to assess general damages arising from the appellant's act of detaining the respondent's machinery. The value of the machinery was assessed by a Government Chief Valuer whose report was acted upon by the High Court without its being admitted in evidence. The learned High Court judge in assessing general damages did not make a clear distinction between general damages and special damages and awarded damages comprising cost of interest on the basic cost of machinery, cost of interest on customs duty and prepaid training of staff abroad and in Tanzania. The Court of Appeal considered the distinction between general damages and special damages and whether the judge was correct in awarding damages for the mentioned heads of damage as general damages.

Held: (i) General damages are such as the law will presume to be the direct, natural or probable consequence of the act complained of; the defendant's wrongdoing must, therefore, have been a cause, if not the sole, or a particularly significant, cause of damage;

(ii) When the precise amount of a particular item has become clear before the trial, either because it has already occurred and so become crystallized or because it can be measured with complete accuracy, this exact loss must be pleaded as special damage;

(iii) Interest generally had at the institution of the suit become specific and could not be claimed as general damages;

(iv) Specific payments for training should have been pleaded as special damages.

Order accordingly

Case referred to:

(1) *Stroms Brucks Aktic Bolag v. John and Peter Hutchinson* [1905] AC 515

Dr Nguluma for Appellants

Mr Marando for Respondents

JUDGMENT

(Dated 28 January 2003)

Lugakingira, J.A.: In Civil Appeal Number 38 of 1993, this Court directed the High Court at Dar es Salaam to assess general damages arising from the appellants' act of detaining the respondents' machinery since 4 March 1987. The direction followed a successful appeal by the respondents against the decision of the High Court (Mkude, J.) as it related to damages. The High Court appointed the Government Chief Valuer who valued the machinery on 27 November 1995 and presented his report on 31 January 1996 which showed a depreciation of TZS. 6 770 988-75, being the difference between the machinery's current replacement cost and the depreciated replacement cost. The High Court (Kaji, J.) next directed the respondents to submit in writing on general damages, which they did and came up with a total claim of TZS. 150 760 260-20. The claim was resisted in part by the appellants in reply, but the learned judge approved it as presented and this appeal is against the award. It is contended generally that the judge was unable to distinguish between special and general damages and that the award consisted substantially of the former.

We will clear up one small matter before proceeding further. The valuer's report was acted upon without its being admitted in evidence. In his ruling titled Assessment of General Damages, Kaji,

J.stated that his task was to assess the damages but not to hear the suit *de novo*. That is true, but taking of additional evidence, which the valuer's report was, involves a trial. The judge should therefore have held a trial on the issue of general damages and formally received the valuer's report and any other evidence in that regard. We have pondered on the implications of the irregularity but we do not consider it of much, if any, moment. Counsel on both sides did not appear exercised by it, rightly, in our view, since neither the merits of the impugned decision nor the jurisdiction of the High Court was affected thereby. The case is covered by rule 108 of the Court of Appeal Rules and we will proceed to the merits of the appeal.

The question is whether Kaji, J.directed himself correctly in assessing general damages. His award comprised the following items as presented by the respondents:

4.1 Cost of interest on the basis cost of the machinery at 9% p.a from 4 March 1987 to 30 June 1996: TZS. 117 168 200;

4.2 Cost of interest on customs duty at 12% p.a for the same period: TZS. 670 224;

4.3 Prepaid training of staff in the US plus interest thereon at 9% p.a. for the same period: TZS. 12 858 395;

4.4 Prepaid training of staff in Tanzania plus interest thereon at 9% p.a. for the same period: TZS. 12 510 327;

4.5 Diminution in market value of machinery from 4 March 87 to 31 January 1996: TZS.6 770 988-75; and interest thereon at 9% p.a. from 1 February 1996 to 30 June 1996: TZS. 253 911 – total TZS. 7 024 988-75;

4.6 Valuer's fees: TZS. 528 440-20.

The appellants accept liability for items 4.5 and 4.6 but dispute the rest. The position is that general damages are such as the law will presume to be the direct, natural or probable consequence of the act complained of (see *Stroms Brucks Aktie Bolag v. John and Peter*

Hutchinson (1) the defendant's wrongdoing must, therefore, have been a cause, if not the sole, or a particularly significant, cause of the damage. In approving items 4.1 and 4.2, the judge merely observed that counsel for the judgment debtor had generally accepted those losses to have been caused by the detention of the machinery; as regards items 4.3 and 4.4, he said the detention of the machinery had prevented the realization of the factory project, rendering nugatory the payments for staff training.

Submitting on item 4.1, Dr Alex Nguluma for the appellants argued that interest on the cost of the machinery was not a direct, natural or probable consequence of the machinery's detention. His argument was three-fold: First, the interest was charged by the supplier because the respondents acquired the machinery on credit, the price being payable in nine six monthly instalments, the first instalment being due on 15 June 1983 and the last on 15 June 1987. The liability for interest thus arose independently of the detention of the machinery; indeed, before the detention. Second, or in the alternative, the detention of the machinery was not accountable for the failure to meet the instalments; at the date of the detention, 4 March 1987, all the instalments, except one of 15 June 1987, had already become due.

Finally, the detention of the machinery was not the cause for the failure of the factory project. The machinery arrived from the United States in November 1982 and, in the evidence for the respondents, the first year of operation would have been 1984 and full production should have been attained during 1986. The detention of the machinery came in March 1987. In totality, therefore, the liability for interest was not a result of the detention. Dr Nguluma also observed that even if any interest was paid beyond 15 June 1987, it was in the nature of specific damage. He concluded that the argument on item 4.1 applied to other items. Mr Mabere Marando appearing for the respondents did not seek to address Dr Nguluma's arguments but observed that the arguments were new and had not been put to Kaji, J. He also observed that counsel for the judgment-debtor had admitted the claims before Kaji, J.except for items 4.3 and 4.4. He concluded

that the machinery was still detained, as the appellants had obtained a stay of execution, and argued that this was a case for the award of exemplary damages.

The case presents no difficulty. As well demonstrated by counsel for the appellants, and not disputed, neither item 4.1 nor 4.2 was the direct, natural or probable consequence of the detention of the machinery. It is not necessary to repeat the argument on item 4.1. As regards item 4.2, the respondents were unable to pay customs duty of TZS. 547 683 when the machinery arrived at Dar es Salaam port. They were advanced that sum by the Treasury in November 1982, to be repaid within a period of twelve months after a grace period of three months with interest at 12% p.a. The liability for interest therefore had no connection with the detention of the machinery in 1987. We also agree with Dr Nguluma that interest generally, and not merely interest which might have been paid after 15 June 1987, had at the institution of the suit become specific and could not be claimed as general damages. We wish to adopt a statement to this effect in **McGregor on Damages,** (15 ed). Paragraph 1758A that:

> When the precise amount of a particular item has become clear before the trial, either because it has already occurred and so become crystallized or because it can be measured with complete accuracy, this exact loss must be pleaded as special damage.

It seems to us curious that Kaji, J.merely adopted the position of counsel for the respondents/decree-holders. The duty was on the learned judge to examine the evidence and the law and make a judicious decision. We believe he would not have fallen into the error he did had he done so. It is also no answer to the judge's apparent inattention to the evidence that he did not have the advantage of arguments as were addressed to us. All that was said are facts derived from the evidence adduced before Mkude, J.which the learned judge had an obligation to read. Finally, with due respect to the learned judge, items 4.3 and 4.4 were specific payments for training which should have been pleaded as special damages. Moreover, it is not the detention

of the machinery which caused the respondents to incur the liability so as to be its consequence.

As stated earlier, the appellants are not at issue with items 4.5 and 4.6, the depreciation and the valuer's fee respectively. Indeed in the tort of trespass to goods the measure of damages is the extent of the depreciatlion where the goods still exist and have been restored to the plaintiff. Mr Marando pointed out that the machinery remains detained, as the appellants obtained a stay of execution, and prayed for exemplary damages. We consulted the records and satisfied ourselves that the stay granted by Ramadhani, J.A. on 23 May 1997 related solely to the pecuniary award; it did not touch on the restoration of the machinery ordered by Kaji, J. It is somewhat surprising that the respondents have never sought to execute the order at the appellants' expense but have been waiting for the appellants to deliver the machinery.

In the premises, the appeal is allowed and the award is set aside as it relates to items 4.1 to 4.4. It is also proposed to make some orders on item 4.5. The depreciation covered the period 1982 to 1995, a period of 13 years, but the detention accounted for nine (9) years of this (rounding up the years). Therefore the appellants are equitably liable for nine-thirteenth (9/13) of TZS. 6 770 988-75. Moreover, the records before us indicate that the appellants had already paid nominal damages of TZS. 10 000 as ordered by Mkude, J.and interest thereon of TZS. 2 100 before that order was set aside by this Court. The two sums should be set off from the amount payable to the respondents. The appellants will have the costs of the appeal.

JAMES FUNKE NGWAGILO *v.* ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 67 OF 2001

(From the judgment of the High Court of Tanzania at Dar es Salaam, Kyando, J., dated 25 April 2000 in Civil Case No. 307 of 1999)

Civil Practice and Procedure – Pleadings – Principles of pleadings.

Civil Practice and Procedure – Pleadings – Pleaded case was on wrongful retirement while appellant was under interdiction – Appellant gave evidence without amending pleadings and issues drawn by Trial Court – Whether departure from the pleaded case and drawn issues was proper – Whether departure is curable by Article 107(A)(2) of the Constitution of the United Republic of Tanzania, 1977.

Tort – Malicious prosecution – Tort based on a distinct cause of action which arose on a different date and place – Whether tort can be joined with a case of premature retirement.

Tort – Malicious prosecution – Meaning of – Proof of – Whether necessary to identify the primary tortfeasor for the purpose of proving malice – Section 3 of the Government Proceedings Act 1967.

Tort – Malicious prosecution – Meaning of reasonable and probable cause.

The appellant, a one-time Principal Secretary and also Regional Development Director was retired by the President in the public interest with effect from 15 May 1990. At the time of his retirement he was under interdiction from service, facing criminal charges before the High Court at Tabora. He was acquitted on the charges in August 1991. In July, 1993 he brought action against the Government alleging unlawful retirement and malicious prosecution. The appellant was claiming in all TZS. 211 916 485-38 made up of various items of entitlements and damages. The action was dismissed in its entirety, hence, this appeal.

Held: (i) The function of pleadings is to give notice of the case which has to be met. A party must therefore so state his case that his opponent will not be taken by surprise.

It is also to define with precision the matters on which the parties differ and the points on which they agree, thereby to identify with clarity the issues on which the Court will be called upon to adjudicate to determine the matters in dispute.

(ii) If a party wishes to plead inconsistent facts, the practice is to allege them in the alternative and he is entitled to amend his pleadings for that purpose.

(iii) In order for an issue to be decided it ought to be brought on record and appear from the conduct of the suit to have been left to the Court for decision.

(iv) The respondent was taken by surprise by the new grounds and this can be seen in the failure to call evidence on those grounds and the clumsy attempt to prove an irrelevance. In such a situation the justice of the case demands that the unpleaded grounds should be ignored and that is not subordinating justice to technicalities.

(v) The appellant's retirement had absolutely no connection with his arrest, detention and prosecution which ought to have been the basis of a separate suit.

(vi) In order to maintain an action for malicious prosecution a plaintiff has to prove, among other things, that the prosecution was undertaken without reasonable and probable cause and was actuated by malice.

The guilt of the accused, but current thinking is that it is enough if the defendant believes there is reasonable and probable cause for prosecution.

(viii) On the facts available at the laying of the criminal information it was not unreasonable to believe that the appellant and Dr Limbu had permitted the use of the Landrover in the robbery.

(ix) Malice in the context of malicious prosecution is an intent to use the legal process for some other than its legally appointed and appropriate purpose. However, malice is in general never evidence of want of reasonable and probable cause, for a prosecutor may be inspired by malice and yet have a genuine and reasonable belief in the truth of his accusation.

(x) It was not necessary to identify the primary tortfeasor for the purpose of proving malice. By virtue of section 3(1) of the Government Proceedings Act 1967 the Government is subject to all those liabilities in tort to which it would be subject if it were a private person of full age and capacity, and this liability is not conditioned upon the identification of the primary tortfeasor.

Appeal dismissed with costs

Cases referred to:

(1) *Blay v. Polland and Morris* [1930] 1 KB 628

(2) *Gandy v. Caspar Air Charters Ltd.* (1956) 23 E.A.C.A. 139

(3) *Hicks v. Fanlkner* (1878) 8 QBD 167

(4) *Tempest v. Snowden* [1952] 1 KB 130

(5) *Glinski v. Mclver* [1962] AC 726

Statutory provisions referred to:

(1) Civil Service Act 1989 sections 19(3) and 23(2)(a)

(2) Civil Service Regulations 1970, Regulation 46(1)(a)

(3) The Constitution of the United Republic of Tanzania 1977 Art. 107 A (2)

(4) Government Proceedings Act 1967, section 3(1)

(5) Criminal Procedure Act 1985, section 225(4)

Mr. Njulumi for the Appellant

Mr. Chidowu for the Respondent

JUDGMENT

(Dated 4 February 2003)

Lugakingira, J.A.: The appellant, a one-time Principal Secretary and also Regional Development Director for Tabora Region during the 1980s, was retired by the President in the public interest with effect from 15 May 1990 by a letter dated 29 December 90. At the time of his retirement he was under interdiction from service, facing criminal charges in Economic Crimes Case Number 3 of 1989 before the High Court at Tabora. He was acquitted on the charges in August 1991. In July 1993, he brought action against the Government alleging unlawful retirement and malicious prosecution. The retirement was

alleged to be unlawful for being effected during the interdiction and was said to be in contravention of Regulation 46(1)(a) of the Civil Service Regulations, 1970, and the prosecution was said to be malicious on account of the acquittal. The appellant was claiming in all TZS. 211 916 485-38 made up of various items of entitlements and damages. The action was dismissed in its entirety, hence this appeal.

The major dispute in the appeal is in connection with the retirement and it may be traced to the fact that the trial was handled by two judges. We will dispose of this first. The suit first came before Mwalusanya J.who steered it through the pleadings, disposed of a preliminary objection, framed the issues and heard evidence from the appellant/ plaintiff, the only witness on his side as well as evidence of the first witness for the defence. The judge then went into premature retirement on personal grounds. The trial was continued before the late Kyando J. who heard evidence from two more defence witnesses, received counsel's final submissions and wrote and delivered the judgment now appealed against. The dispute may further be traced to the fact that after the decision in the preliminary objection, the case put forward by the appellant in his evidence was a radical departure from his pleadings. The pleaded case was that his retirement was wrongful for being effected while he was under interdiction, and the written statement of defence addressed that issue.

A preliminary objection was taken by the defence to the effect that the Trial Court had no jurisdiction to inquire into the exercise of presidential powers under section 19(3) of the Civil Service Act read with section 23(2)(a) thereof. Mwalusanya J. overruled the objection but in doing so he went on a fishing expedition and decided on what other irregularities would render the exercise of presidential power unlawful, citing failure to give reasons and failure to give a hearing. That gave an idea to the appellant's side. When the appellant gave evidence, and without amending the pleadings and issues, he charged that his retirement was wrongful because it was retrospective, because he was given no reasons, and because he was not given a hearing;

only lastly did he mention the interdiction, but even this was not pursued by his counsel in his final submissions.

In his judgment, Kyando, J. considered the departure from the pleadings and refused to consider the new grounds, stating thus:

> What do the rules of pleading say in relation to the situation revealed here? The general rule is that a party is bound by his pleadings and should not be allowed to succeed on a case not made out in his pleadings .... In *Hemchand v. Peareylal*, A. 1942 PC 64 an Indian case, the Privy Council characterized as irregular the procedure of the Trial Court in allowing evidence to be adduced on points not raised in the pleadings or issues and held that this should not have been allowed without amendment of the pleadings and issues. I see no grounds in the instant case for departing from these general rules of pleading. This is because the parties had an opportunity to amend their respective pleadings and include the points that were later raised but did not utilize that opportunity. They are now therefore bound by their pleadings and additional grounds or points raised are hereby rejected for having not been pleaded.

The judge proceeded to dispose of the matter on the ground of retirement during interdiction which he decided against the appellant. The appeal as it relates to retirement does not challenge that decision but is confined to the unpleaded case.

Learned counsel for the appellant Mr ZE Njulumi, who also partly appeared for the appellant at the trial, argued three grounds of appeal in relation to the retirement. They all revolve around failure to give reasons and failure to give a hearing and will be taken together. Mr Njulumi's central argument is that since Mwalusanya J. had in the preliminary objection decided that those failures rendered the exercise of presidential powers wrongful, Kyando J. had simply to follow suit and enter judgment for the appellant. He further argued that although the two grounds were not pleaded, evidence was adduced on them by both sides and ought therefore to have been considered. He cited article 107A(2)(e) of the Constitution for the argument that technicalities should not be allowed to defeat substantive justice. State attorney

Donald Chidowu submitted that the matters raised by Mwalusanya J. were not necessary for the determination of the preliminary objection but were obiter. He said a judge cannot create pleadings for the parties.

It seems necessary to restate certain principles regarding pleadings. The function of pleadings is to give notice of the case which has to be met. A party must therefore so state his case that his opponent will not be taken by surprise.

It is also to define with precision the matters on which the parties differ and the points on which they agree, thereby identify with clarity the issues on which the Court will be called upon to adjudicate to determine the matters in dispute. If a party wishes to plead inconsistent facts, the practice is to allege them in the alternative and he is entitled to amend his pleadings for that purpose. The need to do so may arise at any stage in the trial and if the amendment is one the Court can lawfully and conveniently accommodate, it would be obliged to consider the same even though not initially pleaded. In other words, in order for an issue to be decided it ought to be brought on record and appear from the conduct of the suit to have been left to the Court for decision. In *Blay v. Pollard and Morris* (1939) 1 KB 628, 634, Scrutton LJ said:

> Cases must be decided on the issue on record; and if it is desired to raise other issues they must be placed on the record by amendment. In the present case the issue on which the judge decided the case was raised by himself without amending the pleadings, and in my opinion he was not entitled to make such a course.

This decision was applied by the Court of Appeal for Eastern Africa in *Gandy v. Caspar Air Charters Ltd* (1956) 23 E.A.C.A. 139:

> It is worth repeating that in the case before us the unpleaded issues were raised by the first judge; it should also go on record that he achieved this by giving a new face to the preliminary objection. Whereas the preliminary objection stated that "the Courts have no jurisdiction to inquire into the exercise of presidential powers under section 19(3) of the Civil Service Act" the judge rendered it as "The question is does the President have the authority to remove someone in the public service in public interest without disclosing what that public interest is" Even when he felt like paying attention to the substance of the objection, he treated it as subsidiary and could not face up to its true terms. He said: "There is another question as to whether this Court has jurisdiction to inquire whether the President complied with section 23(2)(a) of the Civil Service Act Number 16 of 1989." By these tactics, albeit with some assistance from the appellant's first counsel, he was able to create for himself the desired opportunity to embark on a long and combative essay on public law which was largely irrelevant to the subject at hand.

The dangers of departing from the pleaded case were manifest in this instance; the respondent's side virtually failed to marshal evidence in defence. DW1 testified on whether the appellant was entitled to the various heads of ministerial claims; DW2 tried to introduce the appellant's Personal Particulars Form completed on first appointment in order to show that he had reached retirement age when he was retired. This was in an endeavour to prove that there were reasons for the appellant's retirement while the issue was whether any reasons had been given for the retirement. The Court refused to admit the form since the defence was being raised for the first time and would, if accepted, throw the trial into confusion as the appellant had denied its authorship. But the Court went on to waste valuable time hearing oral evidence from DW2 on what was essentially the content of the rejected document for that was hearsay. Finally, DW3's evidence was about the criminal prosecution. A careful examination of the record thus establishes that the defence adduced no evidence on the retrospective nature of the retirement, the failure to give reasons or the failure to give a hearing to the appellant. Careful examination again establishes that learned counsel for the appellant never submitted at the trial on any of those grounds because, according to him, they had already been decided by Mwalusanya J. in the appellant's favour. He merely invited the Court to declare the appellant an employee of the Government still and as entitled to the various claims. We think, with respect, the approach taken at the trial does not support

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the argument that the new grounds were left to the Court for decision. There was a great deal of presumption on the subject which, unfortunately, was encouraged by the gratuitous posturing in the first judge.

In *Nkulabo v. Kibirige* [1973] EA 102, Spry VP observed that while the general rule is that a relief not founded on pleadings will not be given, a Court may allow evidence to be called, and may base its decision on an unpleaded issue if it appears from the course followed at the trial that the unpleaded issue has in fact been left to the Court for decision. He then added:

> I accept that as a general statement but I do not think it can be invoked to allow the introduction of what amounts to a new cause of action ... If, (in a defamation case), a suit were founded on the allegation that certain words were used and then, without any amendment of the pleadings, the plaintiff was awarded damages on evidence that substantially different words were used, no defendant would know how to prepare his case and injustice rather than justice would result.

We agree and find the instant case a typical example of what the learned Vice-President had in mind. The respondent was taken by surprise by the new grounds and this can be seen in the failure to call evidence on those grounds and the clumsy attempt to prove an irrelevance. We think in such a situation the justice of the case demands that the unpleaded grounds should be ignored and that is not subordinating justice to technicalities. Kyando J. also need not have made further reference, as he did, to the attempt to prove the appellant's age for, as already observed, the evidence on that score was hearsay following the rejection of the Personal Particulars Form.

We pass on to malicious prosecution. It should be first observed that this tort was based on a distinct cause of action which arose on a different date and at a different place. The Written Statement of Defence gave notice of a preliminary objection to the misjoinder but it was not pursued. The appellant's retirement had absolutely no connection with his arrest, detention and prosecution which ought to have been the basis of a separate suit. The procedure permitted at

the commencement of the suit was overly ambitious and a strain on the rules which we are unable to approve.

The appellant's prosecution arose this way: On the night of 23 May 1988, he and one Dr Limbu of Kitete Government Hospital at Tabora, reported at the Tabora police station that they had been robbed of a landrover they had been using visiting villages during the day. The following morning the same landrover was used in a bank robbery at Sikonge. Investigations established that some of the robbers had during the previous day been moving around with the appellant and Dr Limbu in that vehicle. In fact one of those subsequently convicted, a Capt. Limbu, was a relative of Dr Limbu. It was surmised that the appellant and Dr Limbu may have had a hand in the bank robbery and that their report was faked as a cover up. They were therefore arrested and prosecuted for conspiracy, giving false information and robbery with violence, but were acquitted.

As rightly observed by Kyando J. in order to maintain an action for malicious prosecution a plaintiff has to prove, among other things, that the prosecution was undertaken without reasonable and probable cause and was actuated by malice. The judge held that the appellant had failed to prove these elements having regard to the facts giving rise to the prosecution and the failure to identify the police officer with whom to impute malice. The three grounds of appeal devoted to this subject contend in their totality that the judge erred in holding as he did. Mr Njulumi submitted that the prosecution was without reasonable and probable cause because when the robbery was taking place at Sikonge the appellant was at Tabora; that it was not necessary to point out individual tort-feasors for the purpose of proving malice; and that malice was proved by the fact that the appellant and previously been cleared on a disciplinary charge and a criminal charge based on the same facts.

The burden was on the appellant to prove absence of a reasonable and probable cause for the prosecution, a difficult task as he had to prove a negative. In *Hicks v. Faulkner* (1878) 8 QBD 167, cited by

Kyando J., reasonable and probable cause was defined as an honest belief in the guilt of the accused, but current thinking is that it is enough if the defendant believes there is reasonable and probable cause for the prosecution: See *Tempest v. Snowden* (1952) 1 KB 130. Considering the established association between the appellant and the actual robbers so shortly before the robbery and the appellant's apparent faking of robbery of the landrover used in that episode, any reasonable and objective man could be excused for thinking that there was reasonable and probable cause for prosecuting. It matters not, really, that the appellant was at the material time not at the scene of crime; there are principles of aiding and abetting in the criminal law which would constitute one a principal offender along with the actual perpetrators of the crime without being at the scene. On the facts available at the laying of the criminal information it was not unreasonable to believe that the appellant and Dr Limbu had permitted the use of the landrover in the robbery. We are satisfied that the appellant was unable to discharge the burden cast upon him by the law.

We agree with Mr Njulumi, however, that it was not necessary to identify the primary tortfeasor for the purpose of proving malice. By virtue of section 3(1) of the Government Proceedings Act 1967, the Government is subject to all those liabilities in tort to which it would be subject if it were a private person of full age and capacity, and this liability is not conditioned upon the identification of the primary tortfeasor. In a case like the present where the state was both complainant and prosecutor many players must have been involved in the making of the prosecution. It is sufficient in such a difficult situation to sue the Attorney General as the appellant did. And even without identifying the primary tortfeasor it is still possible to prove malice. Malice in the context of malicious prosecution is an intent to use the legal process for some other than its legally appointed and appropriate purpose. The appellant could prove malice by showing, for instance, that the prosecution did not honestly believe in the case which they were making, that there was no evidence at all upon

which a reasonable tribunal could convict, that the prosecution was mounted for a wrong motive and show that motive, etc. It was contended for the appellant that malice was manifest in the fact that the appellant had previously been cleared of similar allegations and we desire to look at this briefly.

First, it is true that during 1987/1988 the appellant had faced a disciplinary charge on which he was upon inquiry cleared by Mwaikasu J. That charge, however, alleged, *inter alia*, that the appellant had scandalized Government by borrowing money from a businessman at Ngeza knowing that he would have official dealings with the businessman. It is plainly clear that the charge had no relationship whatsoever with the subsequent prosecution. It is also true that before being prosecuted for the economic offence, the appellant was initially charged on the same facts before the District Court in Criminal case Number 265 of 1988. However, he was discharged therefrom under section 225(4) of the Criminal Procedure Act 1985 for the failure of the prosecution to file a certificate asking for further adjournment after the expiration of 60 days. As learned counsel for the appellant well knows, the discharge was not a bar to further proceedings being instituted on the same facts. The two events cannot, therefore, be evidence of malice. There were claims at the trial of the appellant being loathed by the senior leadership in Government at Tabora and it may well be that he had, indeed, become unlikable and an embarrassment and any opportunity to be rid of him was considered godsend.

However, malice is in general never evidence of want of reasonable and probable cause, for a prosecutor may be inspired by malice and yet have a genuine and reasonable belief in the truth of his accusation: *Glinski v. Mclver* (1962) AC 726 at 782. In the instant case the High Court found that the police acted honestly and on reasonable ground to prosecute the appellant and in the circumstances set out before, we have no cause to differ. In the final analysis, the entire appeal is destitute of merits and stands dismissed with costs.

REV. CHRISTOPHER MTIKILA v. ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Mroso and Munuo, JJ.A.)

CIVIL APPEAL No. 27 OF 2000

(From the judgment of the High Court of Tanzania at Dar es Salaam, Kalegeya, J., dated 25 February 2000, in Civil Case No. 44 of 1994)

Torts – False imprisonment – Definition of false imprisonment.

Torts – Damages – Exemplary or punitive damages – When such damages may be awarded – Restriction of award.

Civil Practice and Procedure – Interest – Award of interest at commercial and Court rates – When such interest rates may be awarded.

At noon on Friday, armed policemen with warrants arrested the appellant and searched his residence. Thereafter, he was kept in police custody over the weekend up to Monday, allegedly on suspicion of possession of seditious materials. No charges were made against him. The appellant then filed a suit in the High Court against the respondent for false imprisonment, claiming both general and exemplary damages, and interest at both commercial and Court rates, and costs. The High Court found as a fact that the appellant's detention for more than 24 hours allowed by the law without lawful excuse amounted to false imprisonment and awarded him TZS. 200 000 as general and exemplary damages; but it refused to award interest at commercial rate and costs. The appellant appealed to the Court asking for enhancement of damages and award of interest at commercial rate and costs.

Held: (i) The learned trial judge's assessment of the general and exemplary damages was ambiguous and manifestly low;

(ii) The learned judge ought to have specified the quantum of general damages separately from the quantum of exemplary damages; the omission is nonetheless minor and curable as it did not occasion a miscarriage of justice to the parties;

(iii) The respondent's defence that the appellant had to stay in custody at the police station because the Courts do not work on weekends was flimsy since the police could have given him police bail.

(iv) Considering the gravity of arbitrarily depriving civilians of their liberty by locking them up without a reasonable or probable cause, the awarded damages of only TZS. 200 000 were manifestly inadequate and low in quantum;

(v) The circumstances of the appellant's unlawful confinement justify awarding him exemplary damages as, for no reasonable cause, the police kept him in custody for three days. The police ought to have set him at liberty or, alternatively, granted him police bail pending their further investigations;

(vi) In modern times, the trend is to limit the extent and scope of exemplary damages: In any case in which damages cannot be precisely calculated in money terms, the Court may take into account the motives and conduct of the defendant, and where these aggravate the plaintiff's injury, the damages will correspondingly be increased; these "aggravated damages" are truly compensatory, but exemplary damages, on the other hand, are awarded to punish the defendant and to deter him from similar behaviour in future;

(vii) Exemplary damages are allowed only in rare cases: they are awarded (a) for oppressive, arbitrary or unconstitutional action by servants of the Government; and (b) in cases where the defendant's conduct has been calculated by him to make a profit for himself;

(viii) Since exemplary damages focus on oppression and arbitrariness or unconstitutional acts by public officers, the award of exemplary damages in this case was warranted and justified;

(ix) Since damages have to restore an injured party, as far as possible, to the position prior to the injury, it is correct in law to include interest in the award of damages as an element calculated to offset the effect of inflation and devaluation.

(x) It is apparent from the provisions of section 29 of the Civil Procedure Code read together with rule 23 of Order XX of the same Code that interest is payable on a judgment debt from the date of delivery of the judgment until the same shall be satisfied, at the rate of 7% per annum or not exceeding 12%.

(xi) The appellant was entitled to interest at the commercial rate from the date of filing the suit to the date of delivery of judgment.

(xii) Under the provisions of section 29 of the Civil Procedure Code 1966, the appellant is entitled to the court's interest rate of 7 % per annum from the date of

judgment to final settlement. The commercial rate of 31 % interest per annum is to be paid on the decretal amount from the date of filing the suit to the date of judgment.

Appeal allowed

Cases referred to:

(1) *Walter v. Alltools Ltd.* 1944 Volume 61 LTR 39

(2) *Dumbell v. Roberts and others* [1944] 1 All ER 326

(3) *Rookes v. Barnand,* [1964] AC 1229

(4) *Njoro Furniture Mart Ltd. v. Tanzania Electric Supply Company Ltd.* [1995] T.L.R. 205

Mr Maira for appellant

Mr. Ngwembe State Attorney for respondent

JUDGMENT

(Dated 28 February 2003)

Munuo, J.A.: In Civil Case Number 44 of 1994 in the High Court of Tanzania at Dar es Salaam, the plaintiff, Revered Christopher Mtikila, brought an action against the Attorney General claiming damages for false imprisonment, namely:

(1) Damages including exemplary damages not less than TZS. 500 million;

(2) Interest on the principle amount at 31% interest per annum from the 11 February, 1994 till the date of judgment.

(3) Interest on (a), (b) at Court rate from the date of judgment till full and final settlement.

(4) Costs.

(5) Any other relief deemed fit by the Court.

On 11 February 1994, a Friday, armed policemen with the necessary warrants, arrested the plaintiff and searched his residence at midday.

The plaintiff was thereafter kept in the police lock up over the weekend and released on Monday morning on the 14 February 1994. The cause of the arrest and search of the plaintiff was suspicion on the part of the police, that the plaintiff had seditious materials. From the evidence on record, the plaintiff had, at the material time, four sedition cases in the Subordinate Court. Although the plaintiff was not charged with any offence during the three days he was in police lock up at the Central Police Station at Dar es Salaam, the Register at the said station indicated that the plaintiff had been found in possession of seditious materials. At the trial the plaintiff insisted that his arrest was actuated by malice on the part of the police because no charges were preferred against him. He claimed that he was arbitrarily, oppressively and unconstitutionally kept in the filthy police cells. Hence the action for damages for false imprisonment.

The defendant admitted that the plaintiff was arrested and searched on suspicion that he has seditious materials so the arrest and search were justified, and thence the same were lawfully carried out. The defendant denied the claim and prayed that the suit be dismissed with costs.

The learned trial judge found that the police had locked up the plaintiff beyond the 24 hours allowed by the law without any lawful excuse so the plaintiff suffered false imprisonment. The trial judge awarded TZS. 200 000 general and exemplary damages to the plaintiff. The decree holder was dissatisfied with the quantum of damages. He complained that the awarded damages are inadequate. The decree holder also challenged the trial judge's refusal to award commercial rate interest of 31% per annum, which reigned at the material time. Hence the present appeal in which the plaintiff seeks enhancement of the awarded damages, costs of the appeal and the commercial rate interest withheld by the Trial Court. As there is no cross-appeal by the respondent, the present appeal is confined to the issues of assessment of damages, and the contested commercial rate of interest of 31% per annum during the material period.

Mr Maira, learned advocate represented the appellant. The Attorney General was represented by Mr Ngwembe, learned State Attorney.

The appellant filed three grounds of appeal faulting the learned trial judge for erroneously assessing the claimed damages, to wit:

Ground 1: That the learned trial judge erred in law and in fact in awarding only TZS. 200 000 as both general and exemplary damages.

Ground 2: That the learned trial judge erred in law in not awarding commercial rate interest of 31% per annum from the date of the cause of action to that of judgment.

Ground 3: That the learned trial judge erred in law in admitting documents which had not been pleaded in the Written Statement of Defence.

At the hearing of the appeal, Mr Maira, learned advocate for the appellant, dropped ground 3 and only argued grounds 1 and 2 of the Memo of Appeal. He faulted the learned trial judge for awarding inadequate general and exemplary damages without specifically quantifying the general and exemplary damages. He contended that the awarded damages should be increased to reflect the serious violation of the appellant's liberty, freedom of movement and the humiliation he suffered in the police cells during the weekend when the police could have, but did not avail to him, police bail. Counsel observed that even though the appellant had pending seditious charges in Subordinate Court, on the 11 February 1994 the police who searched the appellant's residence for two hours, found nothing incriminating in his possession which was why no charges were drawn against him. Mr Maira castigated the police for wantonly breaching the human rights of the appellant, and called upon the Court to award punitive damages against the respondent in order to deter law enforcers from abusing human rights as was the case here.

The advocate of the appellant cited the case of *Walter v. Alltools Ltd.* (1) in which Mr Justice Lawrence observed:

> ... A false imprisonment does not merely affect a man's liberty, it also affects his reputation. The damage continues until it is caused to cease by an avowal that the imprisonment was false ...

In the above case the Court stated:

> ... in an action for damages for false imprisonment, the trial judge is entitled, in assessing the damages, to take into consideration as aggravating the damages any evidence showing or tending to show that the defendant was persevering in the charge which he originally made in bringing about imprisonment, and similarly, in reduction of damages, to consider any evidence given by the defendant showing or tending to show that he had withdrawn or had apologized for the charge in which the false imprisonment proceeded.

In this case no charges were leveled against the appellant and yet he was incarcerated in the police cells for three days from midday, Friday, 11 February, to Monday morning, the 14 February 1994 when he was set at liberty. Mr Maira called on the Court to enhance the damages awarded by the Trial Court to reflect seriousness in deterring the police from violating individual liberty and freedom.

The Court was also referred to the case of *Dumbell v. Roberts and others* (2) in which the plaintiff claimed damages for false imprisonment after being arrested without a warrant and detained for some hours by three constables from the Liverpool City Police Force. The plaintiff was charged with the offence of unlawfully possessing soap flakes suspected to have been stolen or unlawfully obtained. He was acquitted. He subsequently sued for damages for false imprisonment. The constables put up a defence of justification saying that they had reasonably suspected the plaintiff of possessing soap flakes so the arrest without a warrant was justified. *Dumbell's* case (2) in our view, is distinguishable from the present case where the appellant was arrested and searched in accordance with the law but was not charged with any offence during the three days he languished in the police lock up over the weekend. From the evidence on record, the appellant claimed that because of being locked up at the police station, he missed the Kigoma Parliamentary Election Campaign where he had been enlisted to campaign for the Opposition.

With regard to commercial rate interest, Mr Maira submitted that in view of inflation and, or, devaluation, the Trial Court should

have allowed the claimed interest of 31% per annum from the time the cause of action arose to the date of judgment. He prayed for enhancement of the damages awarded by the High Court, interest at the commercial (bank) rate at that time plus costs.

Mr Ngwembe, learned state attorney, urged the Court not to interfere with the damages awarded by the Trial Court for the judge duly exercised his discretion and awarded adequate general and exemplary damages at TZS. 200 000. The learned State Attorney stated that although the appellant had been lawfully arrested and searched, he was not charged with any offence because he had four different cases of sedition pending in the District Court which the Director of Public Prosecutions intended to consolidate. Mr Ngwembe maintained that exemplary damages, even if awarded by the Court, would not in any way deter the police whose responsibility is to arrest suspects in accordance with the law.

As for the commercial rate interest of 31% per annum. Mr Ngwembe found no ground for allowing the same saying the Trial Court awarded sufficient interest to the appellant.

The issue in this appeal is whether the trial judge assessed the damages on the correct principles of law.

We are in agreement with counsel for the appellant, that the learned trial judge's assessment of the general and exemplary damages was ambiguous and manifestly low. The learned trial judge ought to have specified the quantum of general damages separately from the quantum of exemplary damages. The omission is nonetheless minor and curable for it did not occasion miscarriage of justice to the parties.

We dismiss the flimsy defence that the appellant had to stay in custody at the police station because the Courts do not work on holidays and on weekends. That is indeed the position. But it is all the more reasonable, and expected of the police, to give suspects police bail where the suspects, like the appellant, had not been charged with any offence at all. Considering the gravity of arbitrarily depriving

civilians of their liberty by locking them up without a reasonable or probable cause, the awarded damages of only TZS. 200 000 were manifestly inadequate and on the low side.

We wish to point out that the circumstances of the appellant's unlawful confinement fall within the ambit of exemplary damages in **Black's Law Dictionary**, to wit:

> damages on an increased scale, awarded to the plaintiff over and above what will barely compensate him for his property, loss, where the wrong done to him was aggravated by circumstances of violence, oppression, malice, fraud, or wanton and wicked conduct on the part of the defendant, and are intended to solace the plaintiff for mental anguish, laceration of his feelings, shame, degradation, or other aggravation of the original wrong, or else to punish the defendant for his evil behavior or to make an example of him, for which reason they are also called "punitive" or "punitory" damages or "vindictive damages.

The elements of "oppression" and "malice" in the above definition of exemplary damages exist in the present case where, for no reasonable or probable cause, the police kept the appellant in the lock up for three days. In the circumstances of the case, the police ought to have set at liberty, or, alternatively, grant him police bail pending further investigations.

In modern times the trend is to limit the extent and scope of exemplary damages. This view is demonstrated in the text book, Winfield and Jolowicz on **Tort**, (11 ed) by WVH Rogers, Sweet and Maxwell pages 592 – 596 where the learned authors discuss exemplary damages at page 593 by stating:

> In any case in which damages are at large, that is, where they cannot be precisely calculated in money terms, the Court may take into account the motives and conduct of the defendant, and where these aggravate the plaintiff's injury the damages will be correspondingly increased.
>
> These "aggravated damages" are truly compensatory, being for the injury to the plaintiff's proper feelings of dignity and pride. Exemplary damages,

on the other hand, are not compensatory but are awarded to punish the defendant and to deter him from similar behavior in the future ...

The above learned authors note that in *Rookes v. Barnand* (3), the House of Lords through Lord Devlin, restated the law on exemplary damages and has severely limited their scope and it is only in rare cases that exemplary damages are allowed, stressing that any award of exemplary damages must be strictly justifiable as compensation for the injury sustained:

> In Lord Devlin's view exemplary damages are in principle objectionable because they confuse the civil and the criminal functions of the law and, apart from cases where they are allowed by statute, exemplary damages can now be awarded in only two classes of cases:
>
> (a) oppressive, arbitrary or unconstitutional action by servants of the Government ...
>
> (b) cases where the defendant's conduct has been calculated by him to make a profit for himself ...

From the above extracts it is apparent that exemplary damages focus on oppression and arbitrariness or unconstitutionality by public officers. In this case, we are satisfied that the award of exemplary damages was warranted and justified.

On ground two of appeal, the issue of the then bank rate of 31% per annum, finds support in the case of *Njoro Furniture Mart Ltd. v. Tanzania Electric Supply Company Ltd* (4) which Mr Maira listed, but did not refer to in his submission. On the question of commercial and Court rate interest, the Court of Appeal, in the *Njoro Furniture Mart Ltd* (4) case held:

> 1. Since in principle the quantum of damages has to be such as to restore an injured party, as far as possible, to the position prior to the injury, it is correct in law to include in the award of damages an element calculated to offset the effect of inflation and devaluation.
>
> 2. It is apparent from the provisions of section 29 of the Civil Procedure Code read together with rule 23 of Order 20 of the same code that interest is payable on a judgment debt from the date of delivery of the judgment until the same shall be satisfied, at the rate of seven percentum per annum or not exceeding twelve percentum.
>
> 3. The plaintiff is entitled to interest at the commercial rate from the date of filing the suit to the date of delivery of judgment.

Likewise, in the circumstances of this case, we find no difficulty in awarding the appellant the claimed commercial rate interest. Furthermore under the provisions of section 29 of the Civil Procedure Code 1966 the appellant is entitled to the court's interest rate of 7% per annum from the date of judgment to final settlement. The commercial rate of 31% interest per annum is to be paid on the decrial amount from the date of filing the suit till the date of judgment.

For the reasons stated above, the appeal is allowed. The awarded damages of TZS. 200 000 are enhanced to TZS. 2 million inclusive of exemplary damages. Costs to the appellant.

HAMISI RAJABU DIBAGULA v. REPUBLIC

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Samatta, C.J., Mroso and Munuo, JJ.A.)

CRIMINAL APPEAL No. 53 OF 2001

(From the decision of the High Court of Tanzania at Dar es Salaam, Chipeta, J., dated 24 August 2001 in Criminal Revision Cause No. 19 of 2001)

Criminal Law – Uttering words with intent to wound religious feelings – whether uttering words "Yesu si Mwana wa Mungu, ni jina la mtu kama mtu mwingine tu" constitute a criminal offence – Section 129 Penal Code and Article 19 Constitution of the United Republic of Tanzania, 1977.

Criminal Practice and Procedure – Judgments – Need to evaluate evidence laid in the scales at the trial and assigning reasons for decisions made.

Criminal Practice and Procedure –Revisional proceedings –Right of convict to be heard –Article 13(6)(a) Constitution, and section 373(2) of the Criminal Procedure Act.

The accused, a member of an Islamic organization, was charged and convicted of uttering words with intent to wound religious feelings contrary to section 129 of the Penal Code in the District Court. It was alleged that during a religious meeting which he was addressing he uttered the words *'Yesu si Mwana wa Mungu, ni jina la mtu kama mtu mwingine tu."* He was sentenced to 18 months of imprisonment. The High Court, upon becoming aware of the decision called the record, and conducted revisional proceedings during which only the Director of Public Prosecutions was given an opportunity to be heard. While agreeing with the conviction, he set aside the sentence and substituted it so as to result in the convict's immediate release from custody. Dissatisfied with the conviction, the appellant appealed to the Court of Appeal on the grounds, amongst others, that the prosecution in the Lower Court did not prove its case beyond reasonable doubt; and that the revisional proceedings were conducted in his absence, but in the presence of the Republic.

Held: (i) The provisions of section 129 of the Penal Code were not intended to, and do not, frown upon sober or temperate criticisms of other peoples' religions even if those criticisms are made in a strong or powerful language; to constitute a violation of section 129, there must be a deliberate intention (*mens rea*) of the speaker to wound the religious feeling of those hearing him;

(ii) The necessity for the Courts to give reasons for their decisions exists for many reasons, including the need for the Courts to demonstrate their recognition of the fact that litigants and accused persons are rational beings and have the right to be aggrieved;

(iii) The omission to provide opportunity for the appellant to be heard during revisional proceedings was a serious error which offended section 373(2) of the Criminal Procedure Act;

(iv) ***Obiter:*** Revisional powers should not be exercised before inquiry has been made whether an appeal has been or is likely to be lodged

Appeal allowed

Cases referred to:

(1) *The Chairman, Railway Board and others v. Mrs Chandriama Das and others* 1 SCR 480

(2) *Rupan Deol Bajaj and another v. Kanwar Pal Singh Gill and another* [1995] Supp. 4 SCR 237

(3) *Republic v. University of Cambridge* (1723) 1 Stra. 557

(4) *John v. Ress and others* [1969] 2 All ER 274

(5) *Lutter Symphorian Nelson v. The Hon. Attorney General and Ibrahim Said Msabaha* CAT – Civ. App. Number 24 of 1999 (unreported)

(6) *Amirali Ismail v. Regina* 1 T.L.R. 370

(7) *Wily John v. R.* (1956) 23 E.A.C.A. 509

(8) *Lobozi s/o Katabaro v. R.* (1956) 23 E.A.C.A. 583

Statutory provisions referred to:

(1) The Penal Code Chapter 16, section 129

(2) The Criminal Procedure Act 1985, sections 373(1), (2); 312(1)

(3) The Constitution of the United Republic of Tanzania, 1977, articels 19; 18(1); 30(1); 13((6)(a)

Mr. Taslima and *Prof. Saffari* for the Appellant

Mr. Mlipano for the Republic

JUDGMENT

(Dated 14 March 2003)

Samatta, C.J.: This is an appeal from a decision of the High Court (Chipeta, J.) affirming, while exercising revisional jurisdiction, a conviction for uttering words with the intent to wound religious feelings. The appellant, Hamisi Rajabu Dibagula, had been convicted of that offence by the District Court of Morogoro, which sentenced him

to 18 months' imprisonment. The learned Judge set aside that sentence and substituted therefore such sentence as was to result in the immediate release of the appellant from custody. The appeal raises one or two questions of considerable public importance concerning the limits, if any, of the right to freedom of religion, guaranteed under article 19 of the Constitution of the United Republic of Tanzania 1977, hereinafter referred to as "the Constitution."

It is necessary, before we embark upon the task of examining the merits or otherwise of the appeal, to state the facts of the case. They are, happily, uncomplicated. They may, we think, be outlined as follows. In the afternoon of 16 March 2000, the appellant, a member of an Islamic organization known as Almallid, and some of his colleagues organized a religious public meeting at Chamwino in Morogoro town. They had secured a "permit", issued by the Police Officer Commanding District, to organize the meeting. Acting on some information he had received from a member of the public, the Regional CID Officer of Morogoro Region proceeded to the place where the meeting was taking place. He found the appellant addressing the meeting. At that point in time the appellant was saying "*Yesu si Mwana wa Mungu, ni jina la mtu kama mtu mwingine tu.*"

The CID Officer had no doubt that the utterance constituted a criminal offence under section 129 of the Penal Code. He proceeded to arrest the appellant (his colleagues took to their heels and vanished into thin air) and took him to a police station. Four days later the appellant was taken before the District Court where a charge under the aforementioned section was laid at his door. It was alleged in the particulars of offence that the appellant:

> on the 16 day of March 2000 at about 18.00 hrs at Chamwino area within the Municipality, District and Region of Morogoro, with deliberate intention did utter words to wit YESU si mwana wa MUNGU bali *ni jina la mtu kama mwingine tu*, words which are wounding *(sic)* the religious feelings of Christian worshippers.

Section 129 of the Penal Code provides:

> 129. Any person who with the deliberate intention of wounding the religious feelings of any person, utters any word, or makes any sound in the hearing of that person, or makes any gesture in the sight of that person, or place any object in the sight of that person, is guilty of a misdemeanour, and is liable to imprisonment for one year.

The appellant protested his innocence. He denied to have preached "against the Christian religion." One Athuman Abdallah, his only witness, told the trial magistrate that the appellant had urged non-Muslims to embrace Islamic faith and pronounce that Jesus Christ is not the Son of God. At the end of the trial the learned magistrate entertained no doubt of reasonable kind that the evidence laid before her proved the appellant's alleged guilt. After entering a conviction, as already pointed out, she sentenced the appellant to 18 months' imprisonment. The High Court, upon becoming aware of the decision, and in exercise of its powers under section 372 of the Criminal Procedure Act 1985, hereinafter referred to as "the Act", called for the record of the case for the purpose of satisfying itself as to the correctness of the decision. The Court later proceeded to conduct a revisional proceeding in respect of the case. Only the Director of Public Prosecutions was given opportunity to be heard at that proceeding. At the end of it the learned Judge was satisfied that the appellant has been rightly convicted. He was, however, of the opinion, a correct one in our view that the sentence of eighteen months' imprisonment was illegal because it exceeded the maximum sentence of twelve months' imprisonment fixed by law for the offence. He set it aside and, as already stated, substituted therefor such sentence as was to result in the appellant's immediate release from custody. Consequently, the appellant regained his personal liberty. He believed, however, that the learned Judge's decision did not constitute a complete triumph for justice. Hence the instant appeal. The learned Judge's decision is impugned on the following five grounds:

> 1. The revising judge erred in law and in fact by holding that the prosecution in [the] Lower Court did prove its case beyond reasonable doubt.

2. The revising judge erred in law by agreeing with the submission of the state attorney that the Prosecution in the trial Court proved the case beyond reasonable doubt without valuating the evidence tendered in the Lower Court and assigning reasons therefor.

3. The revising judge erred in law by not considering the fact that the nature of the offence the appellant was convicted of presupposes the existence of a person who was directly wounded by the words uttered by the appellant or that the prosecution should be able to prove who and how a person would have his feelings injured.

4. The revising judge erred in law in embarking on revisional proceedings in the presence of the Republic but in the absence of the accused person whose legal interests were being looked into by the Court.

5. The Court erred in law by holding that there was a judgment of the trial Court while in fact the so-called judgment was in law not judgment.

Speaking through his advocate, Mr Taslima, who was assisted by Professor Safari, the appellant has strongly urged us to quash his conviction. Mr Mlipano, state attorney, declined to support it.

Is Jesus Christ the Son of God? Millions of persons would sharply disagree as to the correct answer to this question. Some would entertain no doubt whatsoever that an answer in the affirmative is the correct one; to others, "No" would, without the slightest doubt, be the correct answer. Whichever is the correct answer, the question is a purely religious one and, therefore, cannot fall for determination by a Court of law. It is not, therefore, one of the questions which the instant appeal can possibly answer. The pivotal issue before us is whether merely making an utterance in the hearing of another person that Jesus Christ is not the Son of God constitutes a criminal offence under section 129 of the Penal Code.

Before we proceed to examine the merits or otherwise of the arguments addressed to us by the learned advocates, we deem it useful to state some of the general principles governing the enjoyment of

the freedom of religion in this country. The right to that freedom is guaranteed under article 19 of the Constitution, which reads:

19(1) Every person has the right to the freedom of thought or conscience, belief or faith, and choice in matters of religion, including the freedom to change his religion or faith.

(2) Without prejudice to the relevant laws of the United Republic the profession of religion, worship and propagation of religion shall be free and a private affair of an individual; and the affairs and management of religious bodies shall not be part of the activities of the state authority.

(3) In this Article reference to the word "religion" shall be construed as including reference to religious denominations, and cognate expressions shall be construed accordingly.

The freedom enshrined in this article includes the right to profess, practice and propagate religion. Since profession, practice or propagation of religious faith, belief or worship is also a form or manifestation of a person's expression, it must be correct to say, as we do, that freedom of religion is also impliedly guaranteed under article 18(1) of the Constitution. That freedom, like other freedoms, is not an absolute right. The exercise of it, just as the exercise of other freedoms, is subject to the requirements of public peace, morality and good order, which are requisites of the common good of society. As was pointed out by the Supreme Court of India in *The Chairman, Railway Board and others v. Mrs Chandrima Das and others* (1) at pages 501 - 502, primacy of the interest of the nation and security of State must be read into every provision dealing with fundamental rights. The freedom to transmit or spread one's religion or to proselytize has to be exercised reasonably, that is to say, in a manner which recognises the rights, including religious rights, of other persons. It must be exercised in a manner which demonstrates respect for the freedoms of persons belonging to other religions, atheists and agnostics. In a human society, rights may be in conflict; they must,

therefore, be subject to law. As far as human rights and freedoms are concerned, this legal position is succinctly stated in article 30(1) of the Constitution, which provides:

> 30(1) The human rights and freedoms, the principles of which are set out in this Constitution, shall not be exercised by a person in a manner that causes interference with or curtailment of the rights and freedoms of other persons or of the public interest.

Having stated these principles, we propose now to deal with the arguments addressed to us. But before we do so, we desire to observe that the charge which was laid at the door of the appellant in this case was not a model of accuracy or elegance in charge drafting. Some vital words of section 129 of the Penal Code concerning *mens rea* were omitted from the particulars of offence. It leaps to the eye that the words "of wounding the religious feelings of any person" are missing there. Did this omission occasion any miscarriage of justice? We think not. First, the wording of the statement of offence, section and law in the charge reasonably informed the appellant of the requisite *mens rea* of the offence he was charged with. Secondly, judging from the tenor of his defence during cross-examination of the Regional CID Officer and PW4, D/Cpl. Zeno, and his own testimony, it is patently clear that the appellant was aware that it was the case against him that, in uttering the alleged words, his intention, a deliberate one, was to wound the religious feelings of those hearing him. Rightly, his counsel before this Court did not appear to think that any arguable point arose from the omission.

Having made that observation, we proceed to deal with the first ground of appeal. It was forcefully contended by Mr Taslima that the learned Judge erred in law because, as the learned advocate put it, he did not direct himself on the vital question of *mens rea* in the case. The learned advocate went on to submit that even the learned trial magistrate did not address her mind to that issue. Mr Taslima drew our attention to *Surah* 19: 88 - 91 of the *Qur'an* and then proceeded to submit that when he told his audience that Jesus Christ

is not the Son of God the appellant was doing no more than preaching his religion. The four verses read as follows:

> 88. They say: The Most Gracious
> Has betaken a son!
> 89. Indeed ye have put forth
> A thing monstrous!
> 90. At it the skies are about
> To burst, the earth
> To split asunder, and
> The mountains to fall down
> In utter ruin,
> 91. That they attributed
> A son to The Most Gracious.

With respect to the learned Judge, we are clearly of the opinion that Mr Taslima's criticisms are unanswerable. No offence is committed under section 129 of the Penal Code where the deliberate intention of the perpetrator of the alleged misconduct was other than wounding the religious feelings of those on the scene. Neither the learned trial magistrate nor the learned Judge appears to have addressed her/his mind to the question of *mens rea* in this case. In the course of her judgment the learned trial magistrate said:

> In this case [there is] no dispute that the accused person was at Chamwino preaching Islamic religion.
>
> The questions in this case are:
>
> 1. Whether the accused got a permit to preach.
> 2. Whether the accused used abusive words to abuse *(sic)* another religion.

Nowhere in the judgment is there evidence which shows that the learned trial magistrate was aware that the prosecution had the *onus* to prove that the appellant had the *deliberate* intention to wound the religious feelings of those within the hearing range. The issues she posed were clearly irrelevant. She made no attempt to consider, among other things, whether, in making the utterance complained against, the appellant did more than exercise his constitutional right to freedom of religion. The learned Judge, on his part, discussed the validity or otherwise of the conviction only in three sentences, two of which are fairly short, when he said:

> I now turn to the case at hand. I respectfully agree with the learned state attorney that the prosecution's evidence proved the offence against the accused beyond reasonable doubt. The conviction therefore, was justified.

The learned Judge's attention was apparently not drawn to the need for him to be satisfied that the requisite *mens rea* was proved in the case. We have examined the record of the case with great care and have found neither direct nor circumstantial evidence to justify the conclusion or inference that the deliberate intention of the appellant when he uttered the words in question was to wound the religious feelings of those who were to hear him. On the contrary, the evidence clearly demonstrates, in our opinion, that the appellant was, at the material time, on a mission to propagate his religion, Islam. At the time the Regional CID Officer arrived at the public meeting the appellant was merely repeating what the *Qur'an* unequivocally states in several *surahs,* including *Surah 19,* which we have already quoted from, and *Surah 5*, which, again, Mr Taslima drew our attention to verse 75 of that *Surah* reads:

> 75 Christ the son of Mary
> Was no more than
> A Messenger: many were
> The Messengers that passed away
> Before him ...

It is neither possible nor desirable to list all situations which may manifest the deliberate intention of wounding religious feelings. That intention may be manifested by the speaker declaring it in so many words, or by the circumstances surrounding the making of the utterance, sound or gesture. If, for example, a non-Christian were to preach in church grounds that Jesus Christ is not the Son of God or if he were to interrupt a christian ceremony, function or meeting by making such a declaration, it could be inferred that his deliberate intention in so doing was to wound the religious feelings of those christians hearing him. In the instant case the place where, and circumstances under which, the appellant made the utterance, and the nature of the meeting, had, among other things, to be taken into account in determining what the appellant's deliberate intention was.

The provisions of section 129 of the Penal Code were not intended to, and do not, frown upon sober or temperate criticisms of other persons' religions even if those criticisms are made in a strong or powerful language. It should always be remembered that what is regarded as truth in one religion may not be so regarded in another. Even if some sections of society consider the spreading of certain religious messages, in an area where those messages are taken to be unwanted, as being an irresponsible, insensitive or provocative action it would not constitute a violation of section 129 of the Penal Code to spread those messages there if the deliberate intention of the speaker was to propagate his religion or religious views, and not to wound the religious feelings of those hearing him. The enactment of the provision was not intended to license an unreasonable abridgment or restriction of the right to propagate one's religion or religious views. It was primarily intended to safeguard public order. Freedom of religion is not so wide as to authorise the outrage of religious feelings of others, with a deliberate intention.

For the reasons we have given, we agree with Mr Taslima that in this case the prosecution failed to prove the requisite *mens rea.* Consequently, we find merit in the first ground of appeal. These

findings are sufficient to dispose of the appeal, but, bearing in mind the novelty and importance of the case, we deem it useful to deal with the other grounds of appeal, albeit briefly in each case.

We proceed, therefore, to examine the merits or otherwise of the second ground of appeal. It was the contention of Mr Taslima here that the learned Judge erred in law in not evaluating the evidence laid in the scales at the trial and assigning reasons for agreeing with the findings arrived at by the learned trial magistrate. We have no doubt that this complaint has merit. We have already pointed out, when dealing with the first ground of appeal, that the learned Judge, when he turned to a consideration of the validity or otherwise of the appellant's conviction, merely said that he agreed with the learned state attorney's submission that the prosecution had proved their case beyond reasonable doubt. He made no attempt to consider how the evidence proved each ingredient of the offence the appellant was convicted of and he gave no reasons for holding that the learned state attorney's submission was well-founded. The necessity for Courts to give reasons cannot be over-emphasized. It exists for many reasons, including the need for the Courts to demonstrate their recognition of the fact that litigants and accused persons are rational beings and have the right to be aggrieved. And as was pointed out by M K Mukherjee, J. in *Rupan Deol Bajaj and another v Kanwar Pal Singh Gill and another* (2) at page 258:

> Reasons introduce clarity and minimise chances of arbitrariness.

Nowhere in his judgment in the instant case does the learned Judge appear to have noted that not only did the learned trial magistrate frame irrelevant issues but she also made no attempt to discuss those issues. Bearing in mind what we have said, we are driven to the conclusion that the complaint in the second ground of appeal has merit. That conclusion brings us face to face with the third ground of appeal.

This ground of appeal can, we hasten to think, be dealt with very briefly. It was Mr Taslima's submission that to prove a charge under section 129 of the Penal Code the prosecution must adduce evidence

from someone whose religious feelings were wounded by the alleged utterance, sound or gesture, to the effect that his said feelings were wounded. We can find no warrant for thinking that there is merit in this contention. It would be doing great violence to the language of the section to hold that such proof is required. It is enough if it is proved that the accused's deliberate intention was to wound someone's religious feelings. Of course, if a witness testifies that his religious feelings were wounded, and eventually the charge is proved beyond a reasonable doubt, the proof of wounding may be relevant in the assessment of sentence to be imposed on the accused. The offence is complete once the utterance is made. It follows that, in our opinion, Mr Taslima's argument is misconceived in law.

We turn now to the fourth ground of appeal. As will be recalled, the criticism here is that the learned judge denied the appellant the opportunity to be heard when the revisional proceeding was conducted. It was contended by Professor Safari, on behalf of the appellant, that the omission to give him that opportunity violated the provisions of article 13(6)(a) of the Constitution and section 373(2) of the Criminal Procedure Act 1985. The constitutional provision reads as follows:

> (6) To ensure equality before the law, the state authority shall make procedures which are appropriate or which take into account the following principles:
>
> (a) when the rights and duties of any person are being determined by the Court or any other agency, that person shall be entitled to a fair hearing and to the right of appeal or other legal remedy against the decision of the Court or of the other agency concerned;
>
> (b) ...
>
> (c) ...
>
> (d) ...
>
> (e) ...

In order to grasp fully what is prohibited by subsection (2) of section 373 of the Act, it is necessary, we think, to quote the preceding subsection of the section also. This is how the two subsections read:

> 373(1) In the case of any proceeding in a Subordinate Court the record of which has been called for or which has been reported for orders, or which otherwise comes to its knowledge, the High Court may:
>
> (a) in the case of conviction, exercise any of the powers conferred on it as a Court of appeal by sections 366, 368 and 369 and may enhance the sentence;
>
> (b) in the case of any other order other than an order of acquittal, alter or reverse such order, save that for the purposes of this paragraph a special finding under sub-section (1) of section 219 of this Act shall be deemed not to be an order of acquittal.
>
> (2) No order under this section shall be made to the prejudice of an accused person unless he has had an opportunity of being heard either personally or by an advocate in his own defence; save that an order reversing an order of a magistrate made under section 129 shall be deemed not to have been made to the prejudice of an accused person within the meaning of this sub-section.

In the instant case it is not in dispute that the learned Judge conducted the revisional proceeding in the absence of the appellant, who was given no opportunity to be heard in his own defence. There can be no doubt whatsoever that the omission to provide that opportunity to the appellant was a very serious error. It offended the provisions of sub-section (2) of section 373 of the Act we have quoted a short while ago. The decision of the learned Judge affirming the conviction did in the circumstances prejudice the appellant. Very rightly, Mr Mlipano, the learned State Attorney, conceded before us that the learned Judge's error is fatal to his decision. The importance of the right to be heard has been commented upon by many eminent judges over the centuries. Nearly three centuries ago, in *Republic v. University of Cambridge* (3) cited with approval by Megarry, J. in *John v Rees and others* (4) Vortescue, J. used the following celebrated words to emphasize the importance:

> The laws of God and man both give the party an opportunity to make his defence, if he has any. I remember to have heard it observed by a very learned man upon such an occasion that even God himself did not pass sentence upon Adam before he was called upon to make his defence. Adam (says God) where art thou? Hast thou not eaten of the tree whereof I commanded thee that thou shouldst not eat? And the same question was put to Eve also.

We are satisfied, for the reasons we have given, that there is merit in the complaint in the fourth ground of appeal. Finally, we proceed to deal with the fifth ground of appeal. It was submitted on behalf of the appellant that no judgment was in *law* delivered by the learned magistrate in this case. It is common ground that although she framed two issues in the case, she dealt with only one of them, and the one which was considered was dealt with perfunctorily. Another criticism leveled at the learned trial magistrate's judgment is that it scarcely contained any reasons justifying the final conclusions arrived at on the case. We have already discussed the importance of giving reasons in decision making. We will not revert to that point. We will confine ourselves at this stage to determining whether the learned trial magistrate fully complied with the requirements of section 312(1) of the Act, which reads:

> 312(1) Every judgment under the provisions of section 311 shall, except as otherwise expressly provided by this Act, be written by, or reduced to writing under the personal direction and superintendence of the presiding judge or magistrate in the language of the Court, and shall contain the point or points for determination, the decision thereon and the reasons for the decision, and shall be dated and signed by such presiding officer as of the date on which it is pronounced in open Court.

While we are hesitant to travel the whole distance with counsel for the appellant and say that the judgment delivered by the Trial Court

in this case is no judgment in *law,* we have no hesitation in holding as we do, that the said judgment did not sufficiently meet the requirements of the subsection we have just quoted. We wish to draw attention to what this Court said in *Lutter Symphorian Nelson v.* (1) *The Honourable Attorney General* (2) *Ibrahim Said Msabaha* (5) on what a judgment should contain:

> ... A judgment must convey some indication that the judge or magistrate has applied his mind to the evidence on the record. Though it may be reduced to a minimum, it must show that no material portion of the evidence laid before the Court has been ignored. In *Amirali Ismail v. Regina* (6) Abernethy, J. made some observations on the requirements of judgment. He said:
>
> A good judgment is clear, systematic and straightforward. Every judgment should state the facts of the case, establishing each fact by reference to the particular evidence by which it is supported; and it should give sufficiently and plainly the reasons which justify the finding. It should state sufficient particulars to enable a Court of Appeal to know what facts are found and how.

The failure to comply with the relevant statutory provisions as to the preparation of a judgment will be fatal to a conviction where there is insufficient material on the record to enable the appeal Court to consider the appeal on its merits: see *Wily John v. Republic* (7). In the instant case the learned Judge erred, in our opinion, in not holding that the learned trial magistrate's judgment fell short of meeting the requirements of section 312(1) of the Act.

We have clearly demonstrated, we think, that the learned Judge should not have affirmed the appellant's conviction and that, therefore, this appeal must succeed. We desire, before we make resultant orders, to make two observations.

The first one concerns revisional powers. No one can doubt the usefulness of these powers, but they should be exercised in appropriate cases. Save in cases where justice requires an obviously improper

conviction or illegal sentence to be at once quashed or rectified, revisional powers should not be exercised before inquiry has been made whether an appeal has been or is likely to be lodged: see (T) *Lobozi s/o Katabaro v. Republic* (8). In the instant case the revisional proceeding was conducted before the expiry of the period within which an appeal against the district court's decision could be lodged. On 6 August 2001, the appellant had, through the Officer-in-Charge of Morogoro Prison, given a Notice of Appeal. No inquiry appears to have been made as to whether an appeal was likely to be lodged. This should have been done.

The second matter we desire to comment upon is *religious intolerance.* Religions can, and should, be a solid foundation of peace. In countries where they have not been given a chance to play that vital role, they have launched many wars, caused endless streams of blood and rolling of thousands of heads. Religious intolerance is a vice which must not be permitted to find a place in the hearts of our people. It must be repressed by every lawful method. When a person embracing a religious faith or view is told by another person, whose religious faith or view is different, something concerning religion which he considers to be untrue, he should be able to answer him by echoing the wise words of Voltaire, the 18th century French philosopher:

> I disagree profoundly with every word that you say but 1 shall defend unto the death your right to say it.

In the holy books of almost all major religions in the world one finds passages directly or indirectly exhorting people to religious tolerance. In the *Qur'an,* for example, there are the following verses, in *Surah* 109:

> 1. Say (O Muhamad to these Mushrikun and Kafirun): 'O AI-Kafirun (disbelievers in Allah, in His Oneness, in His Angels, in His Books, in His Messengers, in the Day of Resurrection, and in AI-Qadar)!
> 2. I worship not that which you worship,
> 3. Nor will you worship that which I worship.

4. And I shall not worship that which you are worshipping.

5. Nor will you worship that which I worship.

6. To you be your religion, and to me my religion.

The Constitution of the United Republic of Tanzania and other relevant laws oblige the people of this country to live together with mutual respect and tolerance. It is one of the principal obligations of good citizenship.

For the reasons we have given, we allow the appeal, quash the conviction and set aside the sentence imposed thereon.

P R MUGANGA HENRY *v.* SAID BORAMUNGU

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Luanda, J.)

CIVIL REVISION No. 59 OF 2000

Courts – Jurisdiction – Case instituted in a Court of Resident Magistrate but heard by a District Magistrate – Whether the Court had jurisdiction – Section 6(1)(c) of the Magistrates' Courts Act 1984.

The applicant filed a case in the Resident Magistrate's Court of Dar es Salaam but the case was heard by a Senior District Magistrate who overruled a preliminary objection against the case. That decision was subsequently revised by the High Court and the present applicant sought leave to appeal against the revisional order of the High Court.

Held: The Senior District Magistrate had no jurisdiction to handle the case which was filed in the resident magistrate's Court; the proceedings before the Senior District Magistrate were a nullity and are quashed and expunged from the record.

Order accordingly

Case referred to:

(1) *Michael Leseni Kweka v. John Elifa*, CAT, Civil Appeal Number 51 of 1997 (unreported)

Statutory provision referred to:

(1) The Magistrates Courts Act 1984, section 6(1)(c)

RULING

(Delivered 28 March 2003)

Luanda, J.: In the Resident Magistrate's Court of Dar es Salaam sitting at Kisutu, Said Boramungu (hereinafter referred to as the Applicant) filed a suit against P R Muganga (hereinafter referred to as the respondent) for damages arising out of defamation. According to the plaint the applicant is claiming TZS. 10 million as damages. Over and above that amount the Applicant is also claiming an unspecified amount being general and punitive damages.

A preliminary objection was raised as to whether the Trial Court had jurisdiction to entertain the suit as the amount of TZS. 10 million added with that of unspecified amount is over and above the precuniary jurisdiction of the Trial Court of TZS. 10 million. The Trial Court (Mwankenja, SDM) overruled that objection. He ordered the Applicant to amend the plaint so as to specify the amount he is claiming in respect of general and punitive damages. The respondent was not satisfied with that finding. Through his advocate, one Mr Rutabingwa, he filed a revisional proceeding in this Court. This Court (Bubeshi, J.) revised the decision of the Trial Court and held that the amount as presented is over and above the pecuniary jurisdiction of the Trial Court. The Applicant is dissatisfied, hence this application for leave to appeal to the Court of Appeal of Tanzania.

Upon going through the record, I discovered one fundamental error. It is lack of jurisdiction on the part of the presiding Senior

Magistrate. Issue of jurisdiction may be raised at any stage as it goes to the root of justice; see: *Michael Leseni Kweka v. John Elifa* (1). And as Bubeshi, J., did not make a decision on the matter, I am of the settled mind that this Court is competent to make a finding on it. In my opening sentence I stated categorically that this case was instituted in the Court of a Resident Magistrate. But the one who handled it was a Senior District Magistrate. Obviously by virtue of section 6(1)(c) of the Magistrates' Courts Act 1984 the senior District Magistrate had no jurisdiction to adjudicate the case. Section 6(1)(c) of the Act reads:

> 6(1) Subject to the provision of section 7, a Magistrate's Court shall be duly constituted when held by a single Magistrate, being- (c) in the case of Court a Resident Magistrate, a Resident Magistrate.

In view of the foregoing therefore, the proceedings are a nullity. They are quashed and expunged from the record. I order the case to be tried by a resident magistrate as mandated by law. Order accordingly.

EDMUND MJENGWA AND SIX OTHERS *v.* JOHN MGAYA AND FOUR OTHERS

COURT OF APPEAL OF TANZANIA AT MBEYA

(Lubuva, Mroso and Munuo, JJ.A.)

CRIMINAL APPEAL No. 18 OF 1999

(From the Judgment of the High Court of Tanzania at Mbeya, Kileo, J., dated 18 January 1999, in Criminal Appeal No. 127 of 1996)

Criminal Practice and Procedure – Prosecutions – Private prosecutions – Principles governing private prosecutions.

In a Miscellaneous Criminal Application the respondents sought, under the provisions of section 99(1) and (3) of the Criminal Procedure Act 1985, the court's leave for private prosecution against the appellants. The application was opposed by the appellants essentially on the ground that the application could not be maintained because it was not preceded by a formal charge or complaint. The learned senior resident magistrate granted leave as prayed whereupon the appellants unsuccessfully appealed to the High Court. In dismissing the appeal the judge held (a) that to conduct private prosecution is not limited to carrying on proceedings already instituted but includes both the institution and carrying on of private prosecution; and that to grant an application for private prosecution prior to the formal filing of a charge or complaint in Court does not offend the provisions of the Act; (b) that the filing of affidavits containing allegations of offences committed was sufficient ground for granting the application sought under the provisions of section 99(1) of the Act; and (c) that having regard to the circumstances of the case in which the police were not taking action to institute criminal proceedings against the appellants, the matter called for action on the part of the respondents by private prosecution. The appellants appealed further to the Court of Appeal of Tanzania, attacking the holdings of the learned High Court judge. The Court considered the principles governing private prosecutions.

Held: (i) Upon a close reading of section 99(1) of the Criminal Procedure Act 1985, there is no requirement of a prior formal charge or complaint in order for a magistrate to grant leave for private prosecution;

(ii) While private prosecution does not usurp the powers of the Director of Public Prosecutions, the individual's right to prosecute remains a valuable constitutional safeguard against inertia or partiality on the part of authority;

(iii) In this case, from the affidavital depositions in support of the application, it can hardly be said that the authorities concerned with prosecution were free from inertia in mounting prosecution against the appellants and, therefore, the appellants had cause to resort to private prosecution;

(iv) In applications for leave for private prosecution, unless the magistrate judicially applies his mind to all the circumstances in which to grant leave for private prosecution, the danger of victimization and abuse of process is imminent; the essential ingredients of the offence is one such factor that should not be overlooked;

(v) Both the magistrate and the learned judge on first appeal had not addressed and satisfied themselves that there was reasonable and probable cause that an offence had been committed to warrant private prosecution.

Appeal allowed

Cases referred to:

(1) *Gourie v. Union of Post Office Workers* [1978] AC 435

(2) *R. v. Tower Metropolitan Bridge Stipendiary Magistrate, ex parte Chaundry (DC)*, referred to in the report of the Law Commission of England and Wales, Criminal Law, September 22, 2001, Part V Appendix C page 340

(3) *R. v. West London Metropolitan Stipendiary Magistrate, ex parte Klahn* [1979] 1 W.L.R. 933

Statutory provisions referred to:

(1) Criminal Procedure Act 1985, sections 99(1) and (3); 128(1) and (2)

Mr. Rweyongeza and *Mr Mkumbe* for the Appellants

Professor Saffari and Mr Jundu, for the Respondents

JUDGMENT

(Dated 9 April 2003)

Lubuva, J.A.: This appeal arises from the decision of the High Court (Kileo, J.) in Criminal Appeal Number 127 of 1996. The appellants, Edmund Mjengwa, Lawrent Mwang'ombe, Raphael Simwita, Stephen Ndenya, Saidi Kimata, Mhando Mkatasi and Gaspal Mlwilo, were aggrieved by the decision and hence have appealed.

The hearing of Criminal Appeal Number 127 of 1996 in the High Court was preceded by a protracted and chequered history. This matter was first heard by this Court in Criminal Appeal Number 8(A) of 1997 in which the appellants had appealed against the High Court (Mwipopo, J.) order of 4 March 1997 which was based on the court's ruling of 24 January 1997. On 12 December 1997, this Court set aside the High Court order of 4 March 1997. Again in connection with the same High Court Criminal Appeal Number 127 of 1997,

the respondents, John Mgaya, Napolioni Mwakamyanda, Tela Kurubai, Yasini Kabelege and Philipo Chiniko filed in this Court Criminal Appeal Number 5 of 1997 against another order by Mwipopo, J. dismissing a preliminary objection they had raised in Criminal Appeal Number 127 of 1997. On 16 March 1998, the appeal was dismissed. Thereafter, the matter was taken back to the High Court for hearing whose decision as indicated earlier, has given rise to this appeal. Before the hearing of the appeal, there were several adjournments for various reasons.

The genesis of the matter is Mbeya Miscellaneous Criminal Application Number 6 of 1996. In that application, the respondents sought under the provisions of section 99(1) and (3) of the Criminal Procedure Act 1985 (the Act) the court's leave for private prosecution against the appellants. The application was opposed by the appellants essentially on the ground that the application could not be maintained because it was not preceded by a formal charge or complaint. The learned Senior Resident Magistrate granted leave as prayed. The appellants were aggrieved and so, they appealed to the High Court.

In the High Court, the case for the appellants was briefly to the following effect. The learned trial magistrate erred in granting leave because the pre-requisite conditions under the provisions of section 99(1) of the Act had not been fulfilled. In the first place, the application for leave is sought for conducting an existing case and not for the institution of a case. In this case it was argued that there was no case already instituted against the appellants in respect of which leave was sought. Secondly, the application for private prosecution under this section of the Act could only be granted if the application was preceded by a formal institution of a criminal charge before the magistrate. Thirdly, it was also strongly contended that the circumstances under which leave was sought were not such as to warrant the exercise of the court's power to grant leave. It was further contended that the affidavits in support of the application disclosed no sufficient reason for mounting private prosecution.

The learned judge, after what appears to us a detailed analysis of the rival submissions, dismissed the appeal on the following grounds.

First, the judge held that to conduct private prosecution is not limited to carrying on proceedings already instituted but includes both the institution and carrying on of private prosecution. The judge further held that to grant an application for private prosecution prior to the formal filing of a charge or complaint in Court does not offend the provisions of the Act. Second, that the filing of affidavits containing allegations of offences committed was sufficient ground for granting the application sought under the provisions of section 99(1) of the Act. Thirdly, having regard to the circumstances of the case in which the police were not taking action to institute criminal proceedings against the appellants, the matter called for action on the part of the respondents, by private prosecution. The appellants were still dissatisfied and hence this appeal.

In this appeal, Mr Rweyongeza and Mr Mkumbe, learned counsel, appeared for the appellants. For the respondents, Professor Safari and Mr Jandu, learned counsel, appeared. The following grounds of appeal were filed:

> That, the appellate Judge, having found that the field of private prosecution in this country is not much developed, misdirected herself in law in failing to address herself under what circumstances should private prosecution be permitted.
>
> That, the learned appellate Judge misdirected herself in law in failing to find that there are conditions precedent before the Court can be seized with jurisdiction to entertain an application for private prosecution.
>
> That, the appellant having denied by way of Counter-affidavits that there was a report made to the police, the learned appellate Judge misdirected herself in law in failing to analyse the totality of the evidence on record.
>
> That, having regard to the interests of the respondents, as stated in their joint Reply to the appellants' Counter-affidavits, the learned appellate Judge misdirected herself in law in finding that the respondents could conduct private prosecution on the charges preferred against the appellants.

Mr Rweyongeza's submission may be summarized in three categories. First, that it was an error in law for the learned judge on first appeal, and the trial magistrate to hold that it was not necessary to have a formal charge or complaint before leave for private prosecution was granted. Mr Rweyongeza forcefully submitted that in order for the Court to invoke the provisions of section 99(1) of the Act, in granting leave to institute private prosecution, certain pre-requisite conditions have to be fulfilled. He said that in establishing such conditions, the judge was handicapped because private prosecution is not a field which is much developed in our legal system. As a result, in arriving at the decision the judge did not have the benefit of previous decided cases on the application of section 99(1) of the Act. One of the conditions, Mr Rweyongeza stated, is that there should be a formal complaint or charge prior to the filing of the application for leave. In this case, as there was no formal complaint or charge, the trial magistrate granted leave for private prosecution contrary to the requirement of the law under section 99(1) of the Act. Similarly, the learned judge on first appeal fell into the same error in holding that a formal charge or complaint was not necessary, he added. According to Mr Rweyongeza, the logic behind the requirement for formal charge or complaint prior to the application for leave is to ensure that the individual seeking leave is genuinely interested in the prosecution of the case and not for malicious or frivolous purpose.

Professor Saffari, learned counsel, countered the submission by Mr Rweyongeza. He submitted that the law as provided under sections 99(1) and 128(1) of the Act was complied with when the respondents filed the application before the magistrate supported by affidavits to which the charge to be preferred against the appellants was annexed. He further stated that by filing the application, the respondents had made a complaint in terms of section 128(1) of the Act and thereby instituting the proceedings. Professor Safari also contended that the affidavits in support of the application sworn by the respondents was sufficient indication of the applicants' genuine interest in the case and not otherwise.

We wish to point out at once that it is not because the field of private prosecution in this country is not much developed that the misdirection on the part of the judge, if any, can be attributed to as alleged in ground one. With due respect, we think the learned judge was merely expressing a factual situation. If there was any misdirection, that we think would be attributed to the application of the law as provided under the Act. For our part, there is no denying the fact that private prosecution in this country is provided for under section 99(1) of the Act. Upon a close reading of this section, we are unable to find any requirement of a prior formal charge or complaint in order for a magistrate to grant leave for private prosecution. The wording of the section reads:

> 99(1) Any magistrate inquiring into or trying any case may permit the prosecution to be conducted by any person, but no person other than a public prosecutor or other officer generally or specially authorized by the President in this behalf shall be entitled to conduct the prosecution without such permission.

In our view, the operative words are any magistrate inquiring into or trying any case may permit the prosecution to be conducted by any person. It is therefore not possible for the magistrate to inquire into or try any case which is not brought before him. It follows therefore that it is until proceedings have been instituted in terms of section 128(1) of the Act that the matter is properly before the magistrate for inquiry or trial. In this case, when the respondents filed the application by the requisite affidavits and the charge sheet, proceedings were duly instituted in terms of section 128(1) of the Act. Therefore, at that stage section 99(1) of the Act can be invoked without any further as happened in this case. In the circumstances, we do not agree with Mr Rweyongeza that there was a misdirection on the part of the learned judge in holding that no formal prior charge or complaint was required prior to the application.

While accepting that an individual has a right to institute private prosecution, Mr Rweyongeza contended that this right is not unlimited.

He said that only in exceptional and deserving circumstances an individual would be permitted to conduct private prosecution, a function which is otherwise discharged by the Director of Public Prosecution. For instance, he said in the case of the police or Director of Public Prosecutions refusing or being indifferent to mount prosecution, then subject to the fulfillment of other conditions, an individual may be granted leave to institute private prosecution. In this case, he urged, the respondents have not shown that they reported the matter to the police who have refused to take action against the appellants.

Professor Saffari took a different view on this point. He said private prosecution does not usurp the powers of the Director of Public Prosecutions. According to him, the right to private prosecution under the provisions of section 99(1) of the Act, is in accordance with the individual's constitutional right. On this, Professor Saffari was supported by Mr Mbago, learned principal state attorney, who appeared as *amicus curiae*. However, Professor Saffari went further to say that in this case private prosecution was warranted. He stated that from the affidavits filed in support of the application and the reports from the various committees formed to look into the matter, there was inertia on the part of the authorities responsible for instituting prosecution.

It is common ground that private prosecution does not usurp the powers of the Director of Public Prosecutions. Under the provisions of section 90(1)(b) and (c) of the Act, the Director of Public Prosecutions is empowered to take over and continue or discontinue any such criminal proceedings that have been instituted. As stated by Lord Wilberforce in the case of *Gourie v. Union of Post Office Workers* (1), "the individual's right to prosecute remains a valuable constitutional safeguard against inertia or partiality on the part of authority." In this case and as Professor Saffari submitted, from the affidavital depositions in support of the application, it can hardly be said that the authorities concerned with prosecution were free from inertia in mounting prosecution against the appellants. Apparently, the matter has for long gone the rounds in Mbarali District and the Regional

level without any action to institute prosecution. This is borne out from the affidavit of Francis Merere who deponed that he reported the matter to the Regional Police Commander Mbeya to no avail. For this reason, we agree with Professor Saffari that the respondents had cause to resort to private prosecution.

In grounds 3 and 4, Mr Rweyongeza's complaint was that had the learned judge considered the totality of the evidence in the application laid before the magistrate, she would have found that no sufficient ground had been shown for private prosecution. He urged that it was a misdirection on the part of the judge in considering the counter-affidavits of the appellants in which they had denied that a report had been made to the police.

As Professor Saffari submitted, there was no misdirection on the part of the learned judge. We have already held that as a matter of law a formal charge or complaint is not necessary prior to the application for leave. The affidavits and counter-affidavits referred to in grounds 3 and 4 relate to a formal report to the police. From the record, we are satisfied that the learned judge considered the whole evidence that was laid before the magistrate and came to the conclusion that the magistrate judicially exercised his discretion to grant leave.

On the third category of the grounds of appeal, Mr Rweyongeza urged that the learned judge erred in failing to address herself on the circumstances justifying private prosecution. He submitted that without examining closely the circumstances on which the application was based, there was the danger of granting leave for private prosecution on vexatious and frivolous charges. The danger is even greater in Tanzania where, unlike England, public interest is not defined in the Criminal Procedure Act 1985 Mr Rweyongeza stressed. He said that it was not enough to make generalized accusations against the appellants without indicating how the appellants are linked with the proposed offences in the charge. In this case, he further stated, it is not shown in the charge sheet or affidavits who, among the appellants received the money or that the money was handed over to the appellants.

Mr Rweyongeza contended that before granting leave, the magistrate should at the very least, ascertain whether the alleged offence is known to the law and if so whether essential ingredients of the offence are *prima facie* present. For this proposition, Mr Rweyongeza referred to the case of *Reg. v. Tower Metropolitan Bridge Stipendiary Magistrate, Ex parte Chaudhry* (2).

Responding to these submissions, Professor Saffari maintained that the offences proposed in the charge sheet annexed to the affidavits in support of the application are known to the law, namely stealing by agent and cheating. Furthermore, he submitted that although it is not necessary at the stage of the application to give detailed particulars of the offence, nonetheless, the essential ingredients of the proposed offences had been shown. On the whole, he said that the magistrate had judicially exercised his discretion to invoke the provisions of section 99(1) of the Act which are only permissible. Mr Mbago, learned Principal State Attorney was also of the view that section 99(1) of the Act is not couched in mandatory terms, it is for the magistrate to exercise his discretion to allow or refuse leave.

From the submissions by learned counsel for both parties on this ground, we think the central issue is whether the magistrate in dealing with the application for leave addressed and satisfied himself that there were reasonable and probable cause for mounting private prosecution. Mr Rweyongeza firmly maintained that the magistrate did not. It is to be observed that section 128(1) and (2) of the Criminal Procedure Act 1985 provides for the institution of criminal proceedings. Sub-section (2) of this section also provides for the parameters in which an individual may make complaint to a magistrate of competent jurisdiction. According to this sub-section, in order for any person to make a complaint to the magistrate with a view to institute proceedings, it is necessary to show that such a person believes from a reasonable and probable cause that an offence has been committed.

With regard to this requirement, we think, with respect, that the case of *Reg. v. Tower Bridge* cited and extracted in the Report of the Law Commission of England and Wales to which Mr Rweyongeza

called our attention, provides helpful guidance on this point. In this case, a judicial review was sought in connection with the decision of the Tower Bridge Metropolitan Stipendiary Magistrate refusing to issue a summons, the equivalent of the application for leave in this appeal. Lord Justice Kennedy read the judgment of the *Divisional Court of the House of Lords* [1994] QB 340. In that case, Lord Widgery C.J. at pages 935 – 936 *inter alia*, said:

> A summons is the result of a judicial act. It is the outcome of a complaint which has been made to the magistrate and upon which he must bring his judicial mind to bear and decide whether or not on the material before him he is justified in issuing a summons. It would appear that he should at the very least ascertain: (i) whether the allegation is of an offence known to the law and if so whether the essential ingredients of the offence are prima facie present: (ii) that the offence alleged is not out of time; (iii) that the Court has jurisdiction; (iv) whether the informant has the necessary authority to prosecute. In addition to the specific matters it is clear that he may and indeed should consider the allegation is vexatious.

Then the Court further stated:

> The magistrate must be able to satisfy himself that it is a proper case in which to issue a summons.

These principles are, as urged by Mr Rweyongeza relevant and applicable in our country. The provisions of section 99(1) of the Criminal Procedure Act relating to permission to conduct private prosecutions are almost similar to the equivalent provisions in England and Wales as shown in the Law Commission Report. It was imperative therefore for the magistrate to satisfy himself that the essential ingredients of the offence to be preferred against the appellants *prima facie* were present. Upon a perusal of the record, it is doubtful that the magistrate brought his judicial mind to bear on this aspect before deciding to grant leave. This is evident from the record in which the affidavits and the charge in support of the application which do not show who, among the appellants, received the money contributed, how much of it was spent on the school project, who was responsible for its custody and how much of it was unaccounted for.

In the charge, the particulars of offence in the various counts of stealing by agent, in general terms state that the appellants, jointly and together, stole specified sums which had been received by them, for and on account of Mbarali Education Trust. From such generalized allegations it can hardly be said that the essential ingredients of the offences were *prima facie* shown. The magistrate, understandably, and as he stated in his ruling was dealing for the first time with a case of this nature. So, as can be seen from the ruling he did not address the basic essential ingredients of the offences. Rather, he was more concerned with the fact that the Court had jurisdiction to try the offence and that it was a deserving case in which to grant leave for private prosecution. This, we think was not enough to warrant the magistrate to grant leave for private criminal prosecution.

Unfortunately, an appeal to the High Court, the learned judge, with respect, did not also address this aspect. As a result, she reached the same conclusion as the magistrate that this was a fit case for granting leave. It is our view that in all applications of this kind, unless the magistrate judicially applies his mind to all the circumstances in which to grant leave for private prosecution, the danger of victimization and abuse of process is imminent. The essential ingredients of the offence is one such factor that should not be overlooked.

Of course, it goes without saying that the respondent as well as the members of the public in Mbarali, may well have a genuine concern for the proper utilization of money and other resources mobilized for the purpose of constructing schools. However, in ensuring accountability, when criminal proceedings are resorted to as was the case here, the basic essential ingredients of the offence should, *prima facie* be shown. This was not the case here.

In the circumstances, we are satisfied that both the magistrate and the learned judge on first appeal had not addressed and satisfied themselves that there was reasonable and probable cause that an offence had been committed to warrant private prosecution. Had this been done, we think the application would not have been granted. In the

event, and for the foregoing reasons, we allow the appeal, quash and set aside the decision of the High Court.

ALEX MAGANGA *v.* DIRECTOR MSIMBAZI CENTRE

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mroso, J.A)

CIVIL APPLICATION No. 81 OF 2001

(From the decision of the Resident Magistrate's Court of Dar es Salaam, Extended Jurisdiction, Manento, PRM, dated 2 June 1998, in Civil Appeal No. 76 of 1997)

Civil Practice and Procedure – Appeals – Leave to appeal to the Court of Appeal – Application for leave to appeal – Formal application for leave to appeal made to the High Court – Whether it is necessary to attach copy of judgment and decree of the High Court against which it is intended to appeal – Rule 43(a) of the Court of Appeal Rules 1979.

The Applicant made a formal application to the High Court for leave to appeal to the Court of Appeal under rule 43(a) of the Tanzania Court of Appeal Rules 1979. The application was dismissed on the ground that the decision or order of the High Court against which he intended to appeal was not attached to the chamber summons. The applicant then went to a single judge of the Court of Appeal to apply for leave under rule 43(b) of the said Rules.

Held: (i) Where an application for leave is made formally under rule 43(a) it is not necessary to attach copy of judgment, decree or order of the High Court against which it is intended to appeal;

(ii) It is exactly the opposite where an application for leave is made to a single judge of the Court of Appeal; it is then necessary to attach copies of the judgment and decree of the High Court.

Order accordingly

Cases referred to:

(1) *Edmund Aaron Mwasaga and Four others v. Senate of the University of Dar es Salaam,* HC-DSM, Miscellaneous Civil Cause Number 59 of 1998 (unreported)

(2) *Phil M. Temu v. National Housing Corporation,* HC, Miscellaneous Civil Cause Number 29 of 1996 (unreported)

(3) *Phoenix Bureau de Change Ltd. v. Bank of Tanzania,* [1998] T.L.R. 240

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, rules 2, 3(2)(b), 43(a) and (b), 46(3) and 92 (3)

(2) Civil Procedure Code 1966, Order 43, rule 2.

Mr. Mbuya for the Respondent

RULING

(Dated 25 April 2003)

Mroso, J.A.: The applicant lost in the High Court an application for leave to appeal to this Court. He has now made an application to a single judge of this Court for such leave under rule 43(b) of the Court Rules. Before me the applicant appeared in person as he also did in the High Court and the respondent was represented by Mr E Mbuya, learned advocate, both in the High Court and before me.

It appears that the applicant lost his application before the High Court ostensibly because he did not annex to his application a copy of the judgment and the decree against which he intended to appeal to the Court of Appeal. Mr Mbuya told the High Court, Chipeta, J. that it was mandatory under rule 43 of the Court Rules for the applicant to attach those documents to the application or it would be rendered incompetent. The High Court agreed with Mr Mbuya and the applicant's application was dismissed with costs for being incompetent. The merits of the application were not considered.

Rule 43(a) of the Court Rules which has the relevant provisions for an application for leave which is made to the High Court reads as follows:

> 43. In Civil matters:
>
> (a) Where an appeal lies with the leave of the High Court, application for leave may be made informally, when the decision against which it is desired to appeal is given, or by chamber summons according to the practice of the High Court, within fourteen days of the decision;

It is apparent that the applicant did not make an informal application for leave at the time the decision against which he desired to appeal was given. So, he resorted to the second option of filing his application for leave in the High Court within fourteen days. He filed a chamber summons and supported it with an affidavit. As mentioned earlier, he did not also annex to his application a copy of the High Court judgment and the decree, which was said to be mandatory.

The applicant appears to agree with Mr Mbuya that, indeed, he ought to have annexed to his application a copy of the judgment and a copy of the decree which he seeks to challenge by way of an appeal before the Court of Appeal. He explains, however, that at the time his application was before Chipeta, J. the High Court judgment was still in stencil form and that the stencils were in fact on Chipeta, J's table. It was for that reason that the applicant did not have a copy of the judgment or the decree to attach to his application to the High Court.

Mr Mbuya has reiterated before me that it was mandatory for the applicant to annex to his application for leave before the High Court a copy of the judgment of the High Court and a copy of the decree. He said there were Court judgments which pronounced that those documents were necessary. He promised to sent to Court copies of such decisions. True to his word, he sent copies of three rulings of the High Court.

One was *Edmund Aaron Mwasaga and Four others v. Senate of the University of Dar es Salaam* (1). In that matter the respondent's preliminary objection was overruled and they intended to appeal against the ruling. To do so, after filing Notice of Appeal, they applied to the High Court for leave to appeal. Their application was made by a chamber summons which was supported by an affidavit. During the hearing of the application it was contented by the applicant that the application was incompetent because a copy of the ruling and of the order against which the appeal was intended had not been attached to the application. Katiti, J. upheld the contention and declared the application incompetent.

Similarly, in *Phil M Temu v. National Housing Corporation* (2) the High Court said in a ruling in an application to the High Court for leave to appeal to the Court of Appeal:

> ...a formal order or decree ... must be extracted and be attached to an application for leave to appeal to the Court of Appeal and this is not a mere formality

He ruled that the Court had no jurisdiction to entertain an application which was not accompanied by an extracted decree or order, like the one which was before him, and struck it out as incompetent.

In both rulings of the High Court reference was made to rule 46(a) of the Court Rules in which it is provided that every application for leave to appeal shall be accompanied by a copy of the decision against which it is desired to appeal and a copy of the order of the High Court. In Miscellaneous Civil Case Number 59 of 1998 for example, the High Court specifically said that since the applicant did not comply with rule 46(3) of the Court Rules "... the said application would for this reason be incompetent:.

With respect, the High Court misunderstood rule 46(3) of the Court Rules. The rule is like rule 43(b); both relate to applications for leave to appeal which are made to the Court of Appeal, not to the High Court. The word "Court" (with a capital 'C') in rules 43(b)

and 46(3) refers to the Court of Appeal. This is clear from rule 2 of the Court Rules where the word is defined.

One of the three decisions of the High Court which were supplied to me by Mr Mbuya, *Phoenix (sic) Bureau De Change Ltd. v. Bank of Tanzania*, unreported, Manento, J. correctly understood the word "Court" as used in rule 46(3) of the Court Rules to mean the Court of Appeal. He said "under the Court of Appeal Rules the word "Court" *(sic)* has the meaning of the Court of Appeal only and not any other subordinate *(sic)* Court to it". Maneto, J. further said:

> If I have held that ignorance of the law is no defence, and that there was no requirement under rule 43(a) of the Court of Appeal Rules to attach a copy of the decision appealed against when the application is made to the High Court ... then there is no justifiable cause to extend the time of limitation...

Manento, J.dismissed an application for extension of time to apply for leave to appeal because a copy of the judgment against which it was intended to appeal had not been typed and supplied in order to attach it to the application for leave.

With respect, Manento, J. was right in holding that in an application for leave to appeal which is made to the High Court under rule 43(a) of the Court Rules a copy of the judgment of the High Court need not be attached to the application. The usual practice in the High Court is to be found in Order 43, rule 2 of the Civil Procedure Code. Under that rule, all that is required is for the applicant, in a formal application, to file a Chamber Summons supported by affidavit, provided the application is made within 14 days of the decision against which the appeal is intended. Since the record of the High Court will still be with the High Court at the time the application is heard, the Court will easily be in a position to read it in the record.

It should be obvious that there was no valid reason for the High Court, Chipeta, J. to declare as incompetent the present applicant's application for leave to appeal. The Court should have considered the application on its merits and decide it as appropriate.

Mr Mbuya has questioned the competence of the application now before me, submitting that, first, all the relevant documents under rule 46(3) had not been filed and, second, that considering that the application to this Court was made on 28 June 2001, there should have been filed an affidavit to explain why a copy of the judgment of the High Court dated 2 June 1998 (by Manento, then Principal Resident Magistrate with Extended Jurisdiction) was not filed along with the notice of motion until on 25 February 2003, which was barely a day before the application was brought up for hearing.

The applicant has explained that a copy of the decision of the High Court was not made available to him at the time he filed the present application to this Court and it was only shortly before the application came for hearing that he was able to get a copy which he purported to file under rule 92(3) of the Court Rules. Even so, the application did not file an affidavit containing that explanation and rule 92(3) relates to appeals, not applications. Apart from the fact that a copy of the decision was not filed along with the notice of motion, the order of the High Court was also not filed. What was filed was a copy of the proceedings in the High Court during the hearing of the application for leave. It was in those proceedings that it was ordered that the application be dismissed for being incompetent. A copy of those proceedings does not satisfy the requirements of rule 46(3) of the Court Rules, as amended by GN Number 157 of 1984. The words "order of the High Court" in the sub-rule mean an extracted order of the High Court, which was not filed. It is apparent, therefore, that the applicant did not comply with rule 46(3) at all and the application before me would be incompetent.

Although, as I have said, the application before me would be incompetent and could be struck out, yet, from what I said earlier in this ruling, the applicant did not have to come to this Court to seek leave had the High Court properly directed itself regarding rules 43 and 46(3). Had the High Court appreciated that there was no requirement under rule 43(a) for the applicant to annex to his application for leave to appeal a copy of the decision and an extracted decree or

order, the application would have been considered on its merits. Unfortunately, since I am not sitting either on appeal or on revision regarding the High Court order, I cannot order the High Court to hear the application on merit. Yet it is important, in my view, that the applicant be heard on the merits or otherwise of his application.

In the circumstances I will resort to the provisions of rule 3(2)(b) of the Court Rules to direct the applicant to file in this Court within 24 days the copy of the decision of the High Court and an extracted order of the High Court when it dismissed his application. Thereafter, this application will be heard and decided as appropriate.

CHANDRAKANT JOSHUBHAI PATEL *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Lugakigira and Munuo, JJ.A.)

CRIMINAL APPLICATION No. 8 OF 2002

Application for Review from the Judgment of the Court of Appeal of Tanzania at Dar es Salaam, Makame, Lubuva and Lugakingira JJ. A., dated 20 May, 2002 in Criminal Appeal No. 13 of 1998.

Criminal Practice and Procedure – Review – Exercise of Review Powers by the Court of Appeal – Circumstances under which the powers may be invoked.

The applicant was convicted of murder by the High Court, at Mwanza and sentenced to suffer death. The conviction and sentence were upheld by the Court of Appeal. It was generally contended in this application that the Court misdirected itself in its approach to the additional evidence and was asked to re-evaluate the evidence and give the applicant the benefit of doubt.

Held: (i) The Court of Appeal has inherent jurisdiction to review its decision and it will do so in any of the following circumstances (which are not necessarily exhaustive):

(a) where the decision was obtained by fraud;

(b) where a party was wrongly deprived of the opportunity to be heard; and

(c) where there is a manifest error on the record, which must be obvious and self evident, and which resulted in a miscarriage of justice;

(ii) Consideration of additional evidence by the Court of Appeal in a manner contrary to established principles does not, even if correct, constitute an error which will ground an application for review.

(iii) Failure or omission by an appellate Court to draw an adverse inference or any inference from non-disclosure of evidence at the trial is a non-direction which may be a good ground for appeal, where further appeal lies, but cannot be a good ground for review.

Application dismissed

Cases referred to:

(1) *Felix Bwogi v. Registrar of Buildings*, Civil Appeal Number 26 of 1989, Court of Appeal (unreported)

(2) *Transport Equipment Ltd. v. Devram P Valambhia*, [1998] T.L.R. 89

(3) *Tanzania Transcontinental Co. Ltd v. Design Partnership Ltd.* [1999] T.L.R. 258

(4) *Thungabhadra Industries Ltd v. State of Andra Pradesh* [1964] SC 1372

(5) *Balinda v. Kangwamu* [1963] EA 557

(6) *Attilio v. Mbowe* [1970] HCD n. 3

(7) *Kheshodass v. Murtaza Ali Khan* [1952] AA 318

(8) *Awete v. Fernandes* [1959] Bom. 334

(9) *Pandya v. Republic* [1957] EA 336

(10) *Msambya v. Attorney General* Civil Appeal Number 2 of 2002, Court of Appeal. (unreported)

(11) *Mapunda v. Republic* [1992] T.L.R 200

(12) *Republic v. Pendleton* [2002] 1 All ER 524

(13) *James Jordan Clinton v. Republic* (1956) 40 Cr App. R. 152

(14) *Republic v. Ward* [1993] 2 All ER 577

(15) *Republic v. Maguire* 94 Cr. App. R. 133

(16) *Meek v. Leming* [1961] 3 All ER 148

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, rule 40(1)

(2) Code of Civil Procedure 1966, Order 47, rule 1

Professor Shivji and *Professor Shaidi* for the Applicant

RULING

(Dated 29 April 2003)

Lugakingira, J.A.: In this application the Court is being asked to review its decision in Criminal Appeal Number 13 of 1998 dated 20 May 2002. The applicant, Chandrakant Joshubhai Patel, was before the High Court sitting at Mwanza convicted for the murder of one Jagdish Sodha and sentenced to suffer death. The conviction and sentence were upheld by this Court in the decision it is sought to review. Since the application turns on the cause of death and the murderer, it seems desirable to revisit the facts in some detail.

The deceased and his family occupied a flat in a storeyed building on Nyerere/Temple Road in Mwanza. There was a single ingress into the flat through an enclosed verandah and one had to press a bell next to the door in order to be let in. The family had two housemaids, PW1 and PW2, who reported for duty each morning and knocked off in the evening. On the morning of 24 February 1995, the deceased's wife, PW4, left to attend to the family shop on Nkrumah Road, leaving the deceased already up but before the arrival of the housemaids. PW1 was first to arrive around 9:00am. She pressed the bell and the deceased came over and opened for her. Upon entering she saw the applicant settled in the sitting room. The deceased then took a telephone call from his wife which he passed on to PW1 and proceeded to the bathroom. PW2 arrived while the deceased was still in the bathroom. Thereafter the deceased joined the applicant and there

was a chat before the two withdrew into the guest-cum-children's play room in which there was a bed.

The deceased had a history of shoulder pains and the applicant was a reputed massagist. He had massaged the deceased even the previous day. When later PW1 wanted to sweep the guest room she had a glimpse of the deceased flat on the bed, the applicant massaging him, and withdrew. On four occasions the applicant would pop out, look around and draw back. On the second such occasion he did so to forestall interruption when he overheard a conversation between PW2 and an electrician, PW3, who was fixing a bulb in the sitting room. The electrician asked for a key to the main switch which was encased but PW2 told him that the key was with the deceased. The applicant sprang out and told them not to disturb the deceased. He finally emerged around 11:30am and warned the housemaids not to disturb the deceased, telling them that he had massaged him with a strong medicine which had rendered him limp and senseless. He assured them that the deceased would wake up on his own.

The deceased never woke up. Around 1:30pm. his wife returned home. She had already gathered on the phone that her husband was resting following treatment. She proceeded to the guest room and saw the deceased on the bed covered with a blanket from foot to neck. There was clotted blood about the neck. When she removed the blanket, the whole body and bed were bathed in blood. The deceased was taken to Bugando Medical Centre where he was pronounced dead. According to the post-mortem report death was due to acute haemorrhage from a cut wound 10 cm long on the neck, involving the common carotid artery and external jugular vein, among other parts. The post-mortem report also indicated that sections of the deceased's internal organs, blood and stomach contents were taken for scientific analysis.

At the trial the prosecution led no evidence on the results of the scientific investigations. The prosecuting attorney was in fact unaware of any report on the matter and there was no mention of one at the committal stage. At some stage after the conclusion of the trial and while the applicant's appeal was pending hearing, it came to light

that analyses had been carried out at the Government Chief Chemist's department and a report of the results had been forwarded to the Mwanza district crime office as early as 3 May 1995, that is three years before the trial got underway. The report was admitted as additional evidence at the hearing of the appeal upon application by Professor Shivji and Professor Shaidi, the applicant's counsel since the appeal stage.

The Court also called Mr Andrew Magembe, the chemist who carried out the analyses, to clarify some areas. According to the report, no known poison was detected in any of the deceased's organs or stomach contents, but tests on the blood revealed the presence of 486.84mg of alcohol per 100mL of blood, the equivalent of 9.65 litres of beer of 3% alcohol or 0.32 litres of 70% proof spirits. The report states that an amount of 450-550-mg of alcohol per 100ml of blood may be fatal to an average 70kg - person. Mr Magembe explained that such person would in fact be in a coma. In view of this evidence it was submitted that the cause of death had not been conclusively established. The Court considered the additional evidence and, having formed the view that alcohol was not a causative factor, it concurred with the High Court that the deceased died of acute haemorrhage as stated in the postmortem report. It is generally contented in this application that the Court misdirected itself in its approach to the additional evidence and it is asked in the accompanying affidavit sworn by Professor Shaidi to re-evaluate the evidence and give the applicant the benefit of the doubt.

The exercise of review powers by this Court is fairly recent. As far as it could be ascertained, the Court for the first time stumbled on review in the case of *Felix Bwogi v. Registrar of Buildings,* (1), an application to rectify a judgment of the Court which had been based on a wrong record. A document withdrawn at the trial before the High Court had somehow found its way into the Record of Appeal and judgment had proceeded on the basis of that document. The Court granted the application and reversed its earlier decision. In doing so, however, the Court considered itself to be acting pursuant to rule 40(1) of the Court of Appeal Rules which provides for the correction

of clerical or arithmetical mistakes in judgments or errors arising therein from accidental slips or omissions. It was not realized that the exercise amounted to a review of the court's decision.

The misconception was realized and the court's inherent powers of review were concretized in *Transport Equipment Ltd v. Devram P. Valambhia*, (2), where a Full Bench consisting of seven justices ostensibly sat to consider whether the Court had inherent power to review its decisions. It was observed that the court's powers derived from statute but inherent jurisdiction was by its nature not a creature of statute although it may sometimes be embodied in a statute. It is power which is necessary for the proper and complete administration of justice and one which is resident in all Courts of superior jurisdiction and essential to their existence. After making reference to various authorities in and outside East Africa, the Full Bench held that the Court had the inherent jurisdiction to review its decisions and that it will do so in any of the following circumstances. Where resulted in miscarriage of justice; where the decision was obtained by fraud; or where a party was wrongly deprived of the opportunity to be heard. In subsequent decision on the subject, e.g. *Tanzania Transcontinental Co. Ltd v. Design Partnership Ltd*, (3), the Court has made it clear that this list is not exhaustive.

We asked Professor Shivji to state specifically in which of the above criteria was this application grounded. He cited the first and contended that there were three manifest errors on the face of the record which he listed as: (i) failure to consider the additional evidence in accordance with established principles; (ii) failure to draw any conclusion on the non-disclosure of the chemist's report; (iii) failure to revert to the evidence relating to the arrival at the deceased's home of one Abbakar between the applicant's departure and the arrival of the deceased's wife Learned counsel argued that these errors cumulatively resulted in miscarriage of justice. Principal State Attorney, Mr Mkamanga, who appeared for the respondent Republic, took the view that the application did not meet any of the conditions for review but was an appeal in disguise. He stated briefly that the Court gave

consideration to the additional evidence, that the chemist's report supplied no alternative cause for the deceased's death, and that no one else entered the guest room between the applicant's departure and the arrival of the deceased's wife.

It is, we think, apparent that there is a conflict of opinion as to what amounts to an error manifest on the face of the record and it is important to be clear of this lest disguised appeals pass off for applications for review. We say so for the well known reason that no judgment can attain perfection but the most that Courts aspire to is substantial justice. There will be errors of sorts here and there, inadequacies of this or that kind, and generally no judgment can be beyond criticism. Yet while an appeal may be attempted on the pretext of any error, not every error will justify a review. As held by the Supreme Court of India in *Thungabhadra Industries Ltd v. State of Andhra Pradesh,* (4), a review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected, but lies only for patent error.

The High Court of Uganda likewise held in *Balinda v. Kangwamu* (5), that a point which may be a good ground of appeal may not be a good ground for review although it may be a good ground for an application for review and an erroneous view of evidence or of law is not a ground for an appeal. In *Transport Equipment* (2) the Full Bench was preoccupied with formulating broad principles without the necessity of going into theoretical definitions. We would say, in the light of the authorities at hand, that an error which will ground a review, whether it be one of fact or one of law, will be an error over which there should be no dispute and which results in a judgment which ought to be corrected as a matter of justice. As stated by the High Court in *Attilio v. Mbowe* (6):

> The principle underlying a review is that the Court would not have acted as it had if all the circumstances had been known.

The Courts in India have for many years had to consider what is constituted by "an error apparent on the face of the record" in the context of Order 47, rule 1 of the Code of Civil Procedure and we

think their opinions are of immense relevant. We treat for this purpose as synonymous the expressions "manifest" and "apparent". The various opinions are conveniently brought together in **Mulla,** (14 ed), pages 2335-36 from which we desire to adopt the following.

> An error apparent on the face of the record must be such as can be seen by one who runs and reads, that is, an obvious and patent mistake and not something which can be established by a long drawn process of reasoning on points on which there may conceivably be two opinions *State of Gujarat v. Consumer Education and Research Centre* (1981) AIR Guj 223] ... Where the judgment did not effectively deal with or determine an important issue in the case, it can be reviewed on the ground of error apparent on the face of the record [*Basselios v. Athanasius* (1955) 1 SCR 520]... But it is no ground for review that the judgment proceeds on an incorrect exposition of the law [*Chhajju Ram v. Neki* (1922) 3 Lah. 127] ... A mere error of law is not a ground for review under this rule. That a decision is erroneous in law is no ground for ordering review: *Utsaba v. Kandhuni* (1973) AIR Ori. 94. It must further be an error apparent on the face of the record. The line of demarcation between an error simpliciter, and an error on the face of the record may sometimes be thin. It can be said of an error that it is apparent on the face of the record when it is obvious and self-evident and does not require an elaborate argument to be established [*Thungabhadra Industries Ltd v. State of Andhra Pradesh* (1964) SC 1372].

In the same vein are the decisions in *Kheshodass v. Murtaza Ali Khan* (7) and *Awate v. Fernandes* (8). We think this sufficiently articulates what constitutes an error manifest on the face of the record and it seems the best example at hand is the case of *Felix Bwogi* (1) where judgment proceeded on the basis of a document which ought not to have been on record. The Court would not have decided as it did were that document not on record. We will now test the errors listed for the applicant against these principles.

Professor Shivji's argument on the first alleged error, that the evidence was approached contrary to established principles, was two-fold: that the Court failed to consider the evidence as one whole but dealt with the additional evidence in isolation, secondly, that the Court

did not apply the proper (if any) test in its assessment of the additional evidence. We start with the first leg. Leaned counsel contended in this respect that the Court made up its mind on the guilt of the applicant before turning to the additional evidence. We were referred to, among others, *Pandya v. Republic* (9) on the need to integrate evidence. We have no quarrel with that but our first observation is that the observation is that the contention generally that the Court considered the additional evidence in a manner contrary to established principles does not, even if correct, constitute an error which will ground an application for review; it may probably be a ground for appeal. If it were claimed, which it is not, that the additional evidence was not considered at all, rather than that it was improperly considered, that would be a different matter; errors in the approach to the evidence as such and even erroneous conclusions therefrom cannot be grounds for review.

Secondly, it is arguable whether, in fact, the additional evidence was considered in isolation. It is for the avoidance of doubt only that we need go into this. The organization of a judgment is dictated by many factors, including the complexity of the issues involved. While an attempt is always made to consider and determine the essential issues, the exercise has to reflect also some rational arrangement. Consideration of any piece of evidence is certainly appropriate in the context of the issue to which it is relevant. When evidence is considered, in its proper context along with other evidence in that context, it cannot be properly said to have been considered in isolation. In this case the additional evidence was relevant only to the issue of cause of death and it was in that context that it came up for consideration along with the other evidence on the issue, namely the post-mortem report. A careful examination of the judgment will also reveal that the position of that issue was consciously decided upon but was not an oversight or disregard for established principles. The Court said:

> We deliberately decided to deal last with the first ground in the appeal, that the cause of death had not been established.

Having said so the Court set out in detail the chemist's report to which reference had previously been made on at least two occasions,

next it referred to the post-mortem repot, and upon weighing the two pieces of evidence the Court concurred with the trial judge that cause of death was acute haemorrhage from a cut wound. It is not necessary to make this ruling longer by demonstrating this with the relevant passage from the judgment. The additional evidence was thus considered where and when it was appropriate to do so and this was done in conjunction with the other evidence on the same issue. At that stage the Court had not affirmed the applicant's guilt for the murder but had reviewed the circumstantial evidence which left him exposed to the affirmation. The case of *Msambya v. Attorney General,* (10) cited as an instance of evidence considered in isolation, has no parallel in the instant case. In that case, an election petition, there was no attempt by the trial judge to integrate the evidence from the opposing sides, but only after condemning the petitioner's witnesses as untruthful did he turn to consider the evidence for the defence. It is therefore debatable in the instant case whether there was failure to integrate the evidence, in which case it cannot be said that there was an error manifest on the face of the record.

Turning to the applicable test, Professor Shivji submitted that the post-mortem report was merely prima facie evidence of the cause of death, that having admitted additional evidence the Court should have considered whether it was safe to sustain the conviction, and that in resolving this question the Court should have considered what impact the additional evidence would have had on the Trial Court had it been adduced before it. He cited for these propositions *Mapunda v. Republic* (11), *Republic v. Pendleton* (12) and *James Jordan Clinton v. Republic* (13) respectively. We think, with respect, these arguments would have been properly advanced at the hearing of the appeal; to advance them in this application is to misconceive seriously the purpose of review and to have a second bite at the appeal. As seen earlier in this ruling, it is no ground for review that judgment proceeds on an incorrect exposition of the law. And while the impugned judgment admits of no patent incorrectness in the exposition of the law, we wish to caution only that *Pendleton* and *Clinton* have to be

approached with care since this Court, when hearing appeals from the High Court in its original jurisdiction, proceeds by way of retrial.

The second listed error turned on non-disclosure the failure by the prosecution to produce the chemist's report at the trial. This is undoubtedly disturbing for the omission seems to have been deliberate. The report was apparently received at Mwanza for it was subsequently obtained from the Regional Crime Officer when its existence became known. Although prosecuting counsel had no hand in this, the malfeasance ought to be deplored as no explanation was forthcoming. It was now argued for the applicant that the court's failure to dwell on the non-disclosure and to draw any conclusions therefrom was an error manifest on the face of the record. The Court was referred to *Republic v. Ward* (14), where conviction was quashed on account of non-disclosure of scientific tests that cast doubt on the prosecution case and non-disclosure of statements taken by the police of interviews with the defendant which had a bearing on the question of her proclivity to make untrue confessions.

The Court was also referred to Archbold (1993), section 4-274, which cites *Republic v. Maguire* (15) for the proposition that failure by a prosecution expert witness to disclose the results of tests carried out by him was capable of constituting a material irregularity in the trial, even though the prosecuting counsel was unaware of the existence of those tests. Reference was finally made to *Meek v. Fleming* (16), where it was held that where a party deliberately misled the Court on a material, eg, by the concealment of a matter of vital significance, a judgment obtained or probably obtained by the deception should not be allowed to stand. In the light of these decisions it was submitted that the Court ought to have drawn an adverse inference from the prosecution's failure to disclose the chemist's report in as much as it suggested the presence of a potentially fatal dose of alcohol in the deceased's system.

We again wish to state generally that failure or omission by an appellate Court to draw an adverse or any inference from non-disclosure of evidence at the trial is a non-direction which may be a good ground

for appeal, where further appeal lies, but cannot be a ground for review. There is no guarantee that the Court would necessarily have drawn an adverse inference had it addressed the non-disclosure because it is not the law that an adverse inference has to be drawn every time there is non-disclosure. We will again be indulgent and show that the non-disclosure in this case did not in fact qualify for an adverse inference. It is necessary for this purpose to revert to the ingredients of an operative error. First, there ought to be an error, next the error has to be manifest on the face of the record, finally the error must have resulted in miscarriage of justice. The three ingredients have to co-exist in order for the error to be capable of grounding a review. In our view the Court would be under no obligation to drawn an adverse inference from non-disclosure of evidence unless its disclosure would probably have affected the outcome of the trial, for that is when non-disclosure can be said to have occasioned miscarriage of justice. The three English decisions cited to us were instances of that kind. In *Ward's* case (14), for instance, the undisclosed scientific test cast doubt on the prosecution case and rendered it insupportable.

It was not suggested in the instant case that the chemist's report cast doubt on the post-mortem report. As the Court said in its judgment, the former merely threw up a touch of mystery in the case. Moreover, unlike in the *Mapunda* case (11) where the post-mortem report merely suggested a "possible" cause of death, in the instant case the report was positive. Assuming for argument's sake that the deceased had consumed alcohol a few hours before he met his death as theorized by Professor Shivji, it is apparent that he was not the type to be dispatched by 9.5 litres of beer or 0.32 litres of spirits. He was not, by his actions, in any coma as apprehended by Mr Magembe but he was alert, active and rational at the arrival of the applicant. If ever he ingested any alcohol while closeted with the applicant, that would be within the applicant's special knowledge and for the applicant to have explained.

By no stretch of imagination, however, could it be said that the deceased first expired from alcohol, then a butcher came around to

slash his neck, and we do not understand learned counsel to suggest such an absurdity. The chemist's report was thus not a matter of vital significance and its non-disclosure was not a material irregularity against which an adverse inference ought to have been drawn. The second so-called error is therefore unsustainable.

In the and last of the alleged errors it was claimed that the Court gave no consideration to the evidence relating to Abbakar's calling at the deceased's home after the applicant's departure but before the return of the deceased's wife. It had been argued at the hearing of the appeal that Abbakar might have been the murderer and it was now submitted that the omission to address this possibility was a fatal error. There is no substance in this. Admittedly, Abbakar was not expressly mentioned in the judgment of the Court but an objective assessment of the judgment will reveal that his arrival at the scene was considered and dismissed by application. Abbakar was the deceased's shop assistant. Around midday on the material day he was sent by the deceased's wife to the flat to fetch drinking water. He met PW2 who gave him the water and left.

According to PW2 he was around for just about three minutes and never went past the door. She added that no one entered to guest room before the deceased's wife arrived. It may be noted that the hearing of the appeal, Professor Shivji cast suspicion not only on Abakar but on everyone who was or came at the scene, including the deceased's wife and some imaginary intruder whom he figured climbing into the flat through the window. There was so much labouring over nothings that the Court had occasion to remark:

> Some of the arguments by Professor Shivji we can, with respect, say outright, that they were picking on small details, of no consequence in the context of the totality of the evidence, and nibbling at them.

The Court specifically addressed the possibility of any other person being responsible for the killing and emphatically ruled it out. It observed that no one else could have gained ingress into the guest room without the knowledge of PW2 and that the established geography

and details of the flat made it fanciful to assert that an intruder could have come in undetected. The Court then held:

> It is not the law, and it would be unreasonable, and ridiculous, to hold that every time a person is at a scene of crime, or close to it, he becomes a suspect...

We think, with respect, the totality of this excluded Abbakar from suspicion even though he was not expressly mentioned. If this view is disputed, that would take us back to what constitutes a manifest error. It must be obvious, self-evident, etc., but not something that can be established by a long drawn process of learned argument.

Having thus considered the three errors as claimed, we do not find any which would warrant the exercise of review powers. The application therefore fails and is accordingly dismissed.

ZAMDA SALUM BOZEEN (MP) *v.* REGISTERED TRUSTEES OF THE CIVIL UNITED FRONT AND TWO OTHERS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Ihema, J.)

CIVIL CASE No. 3 OF 2001

Natural justice – Right to be heard – Plaintiff expelled from her political party without a hearing or notice – Breach of natural justice.

Natural justice – Likelihood of bias – Madaraka branch of the CUF Party interested in depriving plaintiff of her party membership – CUF Headquarters had made up its mind as to the guilt of the plaintiff – Breach of the rule against bias.

Constitutional law – Right to attend Parliamentary sessions – Party directs its members who are members of Parliament not to attend Parliamentary sessions – Legality of such directive – Section 71(1)(c) of the Constitution of the United Republic of Tanzania.

The plaintiff was expelled from the CUF political party because she did not comply with a directive of the party not to attend Parliamentary sessions. At the instance of the Party Headquarters the Madaraka party branch in Tabora, to which the plaintiff belonged, expelled her at a meeting which she did not attend as she was not invited, and she was not given any opportunity to be heard. Subsequently the decision of the party branch to expel the plaintiff was confirmed by the party headquarters. The plaintiff filed a suit challenging the decision to expel her from the party on mainly two grounds. First, that the decision to expel her was unconstitutional in that the party directive went against the express provisions of the Constitution of the United Republic of Tanzania. Secondly, that there was breach of the principles of natural justice in that she was condemned unheard and that there was bias in reaching the decision to expel her from the party.

Held: (i) In expelling the plaintiff from the CUF Party *in absentia* and without notice, the defendants were in flagrant breach of the cardinal principle of the right to be heard which is enshrined in Article 13(6)(a) of the Constitution of the United Republic of Tanzania and also article 10(5) of the constitution of the CUF Party itself;

(ii) The circumstances that prevailed in the CUF Party at the time clearly showed a substantial possibility of bias;

(iii) Since the Party directives not to attend lawful Parliamentary sessions were illegal, non compliance or disobedience of such illegal directives cannot constitute an offence leading to deprivation of party membership;

(iv) The plaintiff's purported dismissal by the Madaraka Branch of the CUF Party at Tabora and its subsequent confirmation by the Special Annual General Meeting of the CUF Party is void for being illegal and unconstitutional;

(v) The plaintiff is still a *bona fide* and lawful member of the Civil United Front Party and a Member of Parliament.

Order accordingly

Cases Referred to:

1. *DPP v. Tesha and Tesha* [1993] T.L.R. 237
2. *Glynn v. University of Kettle* [1971] 1 W.L.R. 487

Statutory Provisions referred to:

1. The Constitution of the United Republic of Tanzania, Article 13(6)(a)
2. CUF Party Constitution Article 10(5)

Marando, Mnyele and Co. Advocates, for the Plaintiff

Mr. Taslima, for the Defendants

JUDGMENT

(Dated 23 May 2003)

Ihema, J.: The plaintiff, Honourable Zamda Salum Bozeen, a member of the Civil United Front Party (CUF), a political party since August 1992, was nominated to Parliament on special women's seats on the CUF ticket following the country's General Elections of 2000. She was introduced to the Clerk of the National Assembly on 29 November 2000 vide letter CUF/OK/AKM/7H/ 2000/55 by Wilfred M Lwakatare, Deputy Secretary General of CUF and was duly sworn in as Member of Parliament on 30 January 2001.

Following post election misunderstandings between CUF and the ruling Chama cha Mapinduzi in Zanzibar CUF directed that all those who had been elected or nominated to Parliament and the House of Representatives on its ticket should not take up their seats. The Plaintiff decided not to obey the directive on the ground, according to her, that the directive was illegal, unconstitutional and contrary to the Standing Orders and Parliamentary Proceedings Rules of the National Assembly. Furthermore, in the Plaintiff's view the directives were made through radio broadcasts and not communicated to her in writing.

Subsequently on 7 February 2001 the Plaintiff, who was in Dodoma attending Parliamentary Session, heard a news bulletin on Radio Free Africa that she had been stripped of her party membership *in absentia* by the Madaraka CUF Branch in Tabora which met on 5 February 2001 on the grounds of betrayal and disloyalty. In addition the Plaintiff learnt from the print and electronic media of the confirmation of her dismissal from membership of CUF at a Special Annual General Meeting of CUF.

Following the dismissal, the Plaintiff has filed a suit in this honourable Court praying for judgment and decree against the Registered Trustees of the Civil United Front Party the first defendant, the Civic United Front Party, second defendant and Maalim Seif Sharif Hamad, the CUF Secretary General, third defendant, jointly and severally. The plaintiff prays that:

(1) She is still a *bonafide* and lawful member of the second defendant;

(2) Her purported dismissal and or confirmation thereof is illegal, void and contrary to the National Constitution and CUF's Constitution.

(3) Costs of the suit and

(4) Any other relief that this honourable Court may deem fit to grant.

It is to be noted further that the plaintiff has given the following particulars in support of her claims:

(1) The Madaraka Branch has never had any meeting or gathering that dismissed her from the membership as per the directive and the Constitution of CUF Party.

(2) Assuming that the Madaraka Branch held the said meeting and dismissed her without her knowledge, the said dismissal is illegal and unconstitutional as there was no ground for dismissal and that she was not afforded an opportunity to be heard before the said meeting took a decision against her.

(3) The plaintiff was not afforded an opportunity to be heard before the Special Annual General Meeting.

(4) The decision of second defendant, CUF that aims at removing the plaintiff from (her) position as a Member of Parliament is null and void as it contravenes article 83 of the Constitution.

(5) There was no ground at all to dismiss the plaintiff from second defendant as what she did was in accordance with the law and Constitution of the land.

(6) The purported illegal removal of the plaintiff from second defendant shall, if effected, have the effect of depriving her a right to participate in the political life of the nation and representing women constituency in the National Assembly.

In their joint written statement of defence the Defendants have denied the truth of the contents of the Plaintiff's claim and state that the dismissal of the Plaintiff from CUF was legal and constitutional, validly and properly carried out. The defendants have stated further that the Madaraka CUF Branch sat and deliberated on the dismissal of the plaintiff as per Annexture "A", copy of the minutes of the deliberations and that the Special Annual General Meeting was properly held following the plaintiff's dismissal by the Madaraka Branch. The Defendants have prayed for the dismissal of the suit with costs.

In her right of reply to the joint written statement of defence the plaintiff has averred to the effect that any decision made by any such meetings cannot stand for being in violation of the plaintiff's inherent right of a hearing and for being tainted with bias.

On 12 December 2000 when the trial commenced two issues were framed and agreed to by the parties namely:

Whether the plaintiff was lawfully expelled from the Civic United Front Party and

To what reliefs are the parties entitled to.

It is on record that the plaintiff gave her sole testimony in support of her claims, while the defendants listed the following five witnesses, namely: Richard Tambwe, Shabani Kasuwi, Halifa Mtoro, Dr Aziz

Kassim and Halima Rajabu but as the record will show only Halima Mtoro (DW1) testified for the defendants.

Marando, Mnyele and Co. Advocates represented the plaintiff while Mr Taslima of Taslima Law Chambers Advocates advocated for the defendants but withdrew from representation on 23 January 2003 after the testimony of Halifa Mtoro (DW1) for what he termed "his clients' distrust in him in representing them in the instant case." The Court, consequently, granted leave to Mr Taslima to withdraw from representing the defendants.

In addition, for record purposes, I have considered it pertinent to put on record what I consider to be salient points which characterized the trial, in particular, the conduct portrayed by the defendants which necessitated to close hearing of the defence case with the testimony of the single defence witness – Halifa Mtoro – DW1.

On 27 December 2002 when DW1 closed his testimony, Mr Taslima learned Advocate informed the Court that his second witness Mr Shaban Juma Kasui who was in Court was not feeling well and that his other witnesses were not present as such he prayed for adjournment. By consent, hearing was adjourned to 22, 23 and 24 January 2003. However the case could not proceed for hearing on the respective dates for some reasons advanced by the defence counsel including the prayer for his withdrawal on 23 October 2003.

By consent, hearing was adjourned to 20 and 21 February 2003 to allow the defendants time to obtain services of another advocate. The Court ordered the defendants to present their witnesses on the respective dates, but for reasons beyond control, the case could not proceed for hearing and instead summons were issued to all the parties to the effect that hearing of the suit was fixed for 28 April 2003.

It is on record that on 28 April 2003 there was no new advocate in the place of Mr Taslima, instead a letter from Taslima Chambers Advocates was presented to the Court requesting for adjournment due to Mr Taslima's absence from Dar es Salaam and further that Mr Taslima was now in conduct of the suit. None of the defendants

were present on that day. At the intervention of Mr Mnyele learned advocate for the plaintiff the Court rejected the letter under reference and instead directed one Abubakar Rakhesh, who had introduced himself to have come from the offices of the defendants, to notify the defendants and their advocates that hearing was to proceed as scheduled. A brief adjournment was granted to allow Mr Abubakar Bakhesh to communicate the directive to the defendants. On resumption of the hearing neither the defendants nor their advocates and witnesses appeared. Whereat the Court in terms of the provisions of Orders IX, rule 12, XVII, rule 3 of the Civil Procedure Code ordered to proceed to determine the suit on the evidence on record. The Court, ordered the plaintiff to file written submissions to argue the suit.

Needless to say it is clear from the conduct of the defendants and their advocate that they (defendants) failed and were not interested in defending the suit and instead they resorted to delaying tactics. It is quite unfortunate that Mr Taslima learned advocate and an officer to the Court sided and abetted the defendants in their delaying tactics. But litigation had to come to an end, as such, the law and the rules of procedure had to be invoked in the interests of justice.

All said let me now proceed to consider the issues in the suit on evidence on record. I will start with the first issue, namely – whether the Plaintiff was lawfully expelled from the Civil United Front Party.

In her evidence in Court the Plaintiff informed the Court that she was not invited to and was not present at the Madaraka Party Branch meeting in Tabora on 5 February 2003 which expelled her from CUF Party as she was in Dodoma attending Parliamentary Session. In addition, it has not been disputed that the plaintiff was not invited to attend the Special Annual General Meeting of CUF Party in Zanzibar in April 2001 whereat the sacking of the plaintiff from CUF was confirmed. Although the defendants in their joint statement of defence stated that the Madaraka CUF Branch set and deliberated on the dismissal of the plaintiff, an action which was found proper by the Special Annual General Meeting, there is, indeed, no evidence to controvert

the Plaintiff's assertion that she was accorded the right of hearing. The minutes of the Madaraka Branch Party meeting P4 annexed to the joint written statement of defence as well as the evidence of Halifa Mtoro (DW1) the only defence witness do confirm that the plaintiff did not attend the meeting convened as a matter of urgency to deliberate on the Plaintiff. In DW1's own admission while giving his evidence in Court, the meeting of 5 February 2001 expelled the Plaintiff in absentia.

On the evidence on record was the Plaintiff lawfully expelled from the Civil United Front Party? The answer is clearly in the negative. The evidence is clear that the Plaintiff was expelled from the party without notice and without being heard. As restated by the Court of Appeal of Tanzania in the case of *DPP v. Tesha and Tesha* (1993) T.L.R. 237" it is a cardinal principle of natural justice that a party should not be condemned unheard." Furthermore, the principle of natural justice on the right to be heard is a constitutional right entrenched in article 13(6)(a) of the Constitution of the United Republic of Tanzania, while article 10(5) of CUF Party Constitution also restates the cardinal principle of the right to be heard. Article 10 of CUF Constitution states and I quote:

> Kila mwanachama atakuwa na haki zifuatazo:
>
> (5) kujitetea mbele ya chombo chochote cha Chama yake *(sic)* chake kinachotaka kumchukulia hatua za nidhamu dhidi yake na kuomba kukata rufaa hadi kufikia ngazi ya mwisho ikiwa hataridhishwa na uamuzi uliokwishatolewa ...

It is therefore quite evident that in expelling the Plaintiff from CUF Party *in absentia* and without notice the defendants were in flagrant breach of the cardinal principle of the right to be heard which is enshrined in the country's basic law ie the Constitution as well as their very constitution. It needs no emphasis that the right to be heard is a basic fundamental human right which ought to be respected and protected at all cost.

It is idle to argue as Mr Rakkesh a styled principal officer of the defendants has argued in the defendants' joint written submission filed on 20 May 2003 that since the plaintiff was aware of the stand taken by CUF Party toward the result of the General Election of 2000 and she did not deny to go against the said stand, what else did she expect other than having a disciplinary action taken against her by the party." I find Mr Rakkesh's argument to be misconceived and irrelevant to the issue under consideration. The answer to Mr Rakkesh's argument lies in article 10(5) of CUF Party Constitution entered above to the effect that the plaintiff had to be given an opportunity for a fair hearing before disciplinary action is taken against her. That treatment was not accorded to her despite the clear provisions of the Party Constitution.

My attention has also been drawn to yet another constitutional issue relating to discrimination in that only women Members of Parliament from Tanzania Mainland were expelled from the Party leaving their male counter-parts to continue as Parliamentarians. The Plaintiff, a female Member of Parliament, received such a discriminatory treatment. I make a firm finding that this decision by CUF Party is, indeed, discriminatory, hence, unconstitutional and illegal.

There is yet another aspect on whether or not the Plaintiff was lawfully dismissed from CUF Party. On 9 June 2001 the Madaraka Branch Party held another meeting at the instance of the Party Headquarters in Dar es Salaam to deliberate on the plaintiff's issue, in her absence. During cross examination DW1 is recorded to have said and I quote: I did not query or inquire as to the relevance of this meeting despite my knowledge that the plaintiff had been expelled at the meeting held on 5 February 2001." Exhibit P4 is a letter written from CUF Party Headquarters to the Madaraka Branch at Tabora with the following key words and phrases clearly manifesting bias against the plaintiff who commented in her testimony receipt of the same.

"Usaliti mkubwa." Kinyume na maagizo, "tawi lichukue hatua za kinidhamu dhidi yake."

As correctly submitted by Marando, Mnyele and Co. Advocates, it is clear that the Branch was ordered to take disciplinary action to the extent that the branch even if it could have called a proper meeting it could not have given justice to the plaintiff. In their further submissions the learned advocate for the Plaintiff have reiterated the rule against bias (*nemo judex in causa sua*) with emphasis to the present case that an adjudicator must not be reasonably suspected or show a real likelihood of bias. I agree and held that the circumstances that prevailed in the CUF Party at the time clearly showed substantial possibility of bias, as such neither the two meeting on 5 February 2001 and 9 June 2001 would hardly dispense any justice to the plaintiff.

The learned advocates for the plaintiff have further made reference to a quotation by PP Craig in his book titled" **Administrative Law**, (2 ed) at page 232 to underscore the point that bias is yet another fundamental breach of natural justice. The learned author states and I quote "the second limb of natural justice is that decisions should be made free from bias or impartiality. These are problems where the decision maker is interested in the result of an inquiry or investigation, not in any personal sense, but because the institution which he represents is desirous of attaining a certain objective."

On the evidence on record it cannot be denied that the above proposition of the law is relevant to the present case as the Madaraka Branch of CUF was clearly interested in depriving the plaintiff of her party membership, while the party headquarters had made its mind as to the guilt of the plaintiff despite the clear provisions of article 71(1)(c) of the Constitution of the United Republic of Tanzania to the effect that she could only fail to attend Parliament with the express leave of the Speaker. It would therefore follow, as correctly argued by the learned advocates for the plaintiff, that the Party directives not to attend lawful Parliamentary sessions were illegal as such non compliance or disobedience of illegal directives cannot constitute

an offence leading to deprivation of party membership. I accordingly so hold.

With regard to the second issue, that is to what reliefs are the parties entitled, I note that both parties have submitted interesting proposition in law. Mr Rakkesh for the defendants has contended that even if it may be argued successfully that principles of natural justice were not complied with before expelling the plaintiff, Courts should be very careful in granting remedies for breaches of natural justice to the extent that not every prayer on an alleged breach will be granted. The English case of *Glynn v. University of Kettle* (1971) I W.L.R. 487 as well as the book on **Constitutional and Administrative Law** by De Smith – New Edition at page 588 were quoted in support. For record purposes and easy of reference the respective authorities are reproduced:

> Courts may refuse a remedy despite a breach of natural justice where in the circumstances it is felt that there is no merit in the applicant's case or it is clear that even if natural justice was scrupulously observed the applicant would still have met the same fate.

Where the conduct of the person claiming to be affected by the denial of hearing was such that he could have no legitimate expectation of a hearing.

The above quotations have to be considered and weighed against the express and clear provisions of well established fundamental principles of natural justice which for avoidance of any doubt are entrenched in the basic law of the land and the CUF Party – i.e the Constitutions. These principles of law have a binding effect to all concerned and are paramount in safeguarding the basic right of an individual. As I have stated earlier on these principles should not only be obeyed but also protected. For the reasons I have given judgment is granted to the plaintiff as prayed and on the following terms, namely:

(1) that the plaintiff's purported dismissal by the Madaraka Branch CUF Party at Tabora and the confirmation thereto by the Special Annual

General Meeting of CUF Party is void for being illegal and unconstitutional. The same is quashed and set aside.

(2) that the plaintiff is still a bonafide and lawful member of the Civil United Front Party and a Member of Parliament of the United Republic of Tanzania.

(3) that costs of the suit be awarded to the plaintiff againstthe defendants.

JOSEPH M. MUTASHOBYA v. M/S KIBO MATCH GROUP LIMITED

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Lugakingira, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 53 OF 2001

(From the Judgment and Decree of the High Court of Tanzania at Moshi, Mushi, J.) dated 30 December 1998, in Civil Cause Number 9 of 1996)

Labour Law – Contract of Employment – Termination of contract of employment – Termination of employment contract entered into for specified period – Whether Employer may terminate it before expiry of the specified period.

Labour Law – Contract of Employment – Termination of contract of employment – Whether employer may decide to terminate it without giving reasons – Article 13(6) of the Constitution.

Basic Rights – Right to Work – Whether termination of employment by employer is violative of the employee's constitutional right to work – Article 22(1) of the Constitution.

The appellant was employed by the respondent for a specific period of three years, subject to renewal upon mutual agreement. This was made in writing, which had

clause 13(b) of the contract provided for early termination of the employment. The respondent unilaterally terminated the employment without assigning any reasons. Aggrieved, the appellant instituted a suit in the High Court, claiming TZS.38 703 862 for wrongful termination of the agreement by the respondent. The High Court dismissed the suit, hence this appeal.

Held: (i) The open words of clause 13 of the Employment Agreement clearly gave right to the respondent to prematurely terminate the agreement without giving reasons for the decision;

(ii) Judicial observation that reasons must be given whenever anybody acts or decides any matter is not of general application but is limited to public authorities.

Appeal dismissed

Cases referred to:

(1) *Mohamed Jawaf Mrouch v. Minister for Home Affairs* [1996] T.L.R. 142

(2) *Tanzania Air Services v. Minister for Labour and A.G.* [1996] T.L.R. 217

(3) *Twiaksegye Mwaigombe v. Mbeya Regional Trading Co Ltd* [1988] T.L.R. 237

Statutory provision referred to:

(1) Constitution of the United Republic of Tanzania1977, articles 13(6)(a), 22(1)

Mr Kimomogoro, for the Appellant

Mr Chadha, for the Respondent

JUDGMENT

(Dated 11 June 2003)

Nsekela, J.A.: The appellant, Joseph M Mutashobya, who had been employed as a Sales/Marketing Manager by the respondent, Kibo Match Group Limited, instituted as suit in the High Court claiming a declaration that the termination of his employment was wrongful and void and also claimed certain "entitlements" amounting to TZS.38 703 862. The facts are straight forward. The appellant was employed by the respondent for a period of three years with effect from 6

August 1995 subject to renewal after mutual agreement. It is not in dispute that the respondent terminated the agreement before the expiry of the prescribed period. The High Court (Mushi, J.) dismissed the suit with costs, hence the appeal to this Court. At the hearing of the appeal, Mr Kimomogoro, learned advocate, represented the appellant and Mr Chadha, learned advocate, represented the respondent. The appellant advanced three grounds of appeal, namely

1. That the Honourable trial judge erred in holding that the "agreement had been fulfilled" when the same was terminated unilaterally and prematurely by the respondent.

2. That the Honourable trial judge erred in holding that to read in the agreement a requirement of giving reasons before termination of the employees services would "certainly alter the terms of the agreement" signed by the appellant and the respondent.

3. That the Honourable trial judge erred in failing to invoke Tanzania laws in his interpretation of the agreement.

Mr Kimomogoro consolidated grounds one and two in arguing the appeal. The basic complaint by the appellant is that the agreement that governed their relationship provided for a fixed term of three years. The respondent however, unilaterally terminated the agreement without assigning any reasons whatsoever for the course of action he had taken. This was unlawful. The appellant had been denied of his livelihood, he added and this was in breach of clauses 12 and 13 of the agreement. In the words of the learned advocate, "the appellant had a legitimate expectation that he would be employed for three years", and cited the cases of *Mohamed Jawaf Mrouch v. Minister for Home Affairs* (1), *Tanzania Air Services v. Minister for Labour; Attorney General* (2) and *Twikasyege Mwaigombe v. Mbeya Regional Trading Company Ltd* (3). The second ground of appeal revolved around clause 20 which reads

> This agreement shall be governed by and construed in accordance with the laws of Tanzania.

The learned advocate submitted that the right to work is a constitutional right and cannot be taken away without being heard. To bolster his argument, he cited articles 13 (6)(a) and 22(1) of the Constitution of the United Republic. On his part Mr Chadha, learned advocate for the respondent, submitted that the agreement that the parties had entered into provided under clause 13(b) for early termination of the appellant's employment with the respondent. He added that in the said agreement, there is no provision for giving of reasons in order to terminate the agreement.

Having heard the rival contentions of the learned advocates, we are of the settled view that the answer to Mr Kimomogoro's spirited submissions lie in a proper construction of clauses 13 and 14 which provide as follows:

13. *Termination of contract*

KMGL may terminate the contract prior to the end of the period by:

(a) Summary dismissal for breach of contract or if the employee is guilty of serious misconduct.

(b) By giving at least three months notice in writing or payment of three months salary in lieu. [emphasis supplied]

(c) As in clause12(h) above.

14. The employee may terminate the contract prior to the end of the contract by giving three months *(sic)* in writing.

We have omitted clause 12(h) because it is not relevant for our purposes. Clauses 13 and 14 above are in very plain language and we are enjoined to give effect to those plain words. Clause 13 gives to the respondent an esChaptere route to disentangle from the contractual obligations under the agreement. In similar vein, the appellant could do the same by invoking clause 14 if he so desired.

We do not read anything in clause 13(b) which dictates that the respondent must give reasons for invoking it in order to pre-maturely terminate the employment of the appellant with the respondent. The

opening words of clause 13 clearly anticipated the possibility of the respondent terminating the agreement before the expiry of three years. It was not a hidden agenda. It would appear to us that the anchor of Mr Kimomogoro's submissions is that the respondent did not give any reasons for invoking clause 13(b). He referred us to a couple of cases which are irrelevant including *Tanzania Air Services Limited v. Minister for Labour* (2). In this case, the applicant was seeking for an order of certiorari to quash a decision of a Minister because of his failure to give reasons. His Lordship, Samatta, J.K. (as he then was) made the following important observations at page 222 D-F. He stated thus:

> It seems to me that the interests of justice call for the existence, in common law, of a general rule making it mandatory in matters of importance *for public authorities, a term I use to include statutory and domestic bodies, to give reasons for their decisions*. But what are matters of importance? It is neither desirable nor possible to define that term, but certainly it should be taken to include all matters in which liberty livelihood or reputation of the individual is concerned or in which proprietary or pecuniary rights or interests are at stake. In any other situation the decision-maker should be bound to give reasons only if he is requested by a party to do so [emphasis added].

And at page 224, His Lordship continued:

> In my considered opinion, a duty to give reasons and a right to them should be recognized by our law and *treated as being of decisive importance in administrative justice* [emphasis supplied].

It will be noted that His Lordship's observations were not meant to be of general application. They were limited to public authorities which included statutory and domestic bodies. This is in the field of administrative law. The issue here is the construction of an agreement made between the appellant and the respondent (not being a public authority). Such concepts as the duty to give reasons for decisions made by public authorities are not applicable to contractual relationships in the field of private law unless of course they are embodied in the

agreement itself. As regards the second ground of appeal, Mr Kimomogoro sought to invoke articles 13(6)(a) and 22(1) of the Constitution of the United Republic of Tanzania. The learned advocate complained that the appellant was denied the right to work. Our brief response to this is that the violation of these provisions of the Constitution was not one of the two issues framed by the Trial Court on the 20.3.1998. Understandably, - the Trial Court did not discuss the alleged violation of the Constitution and make a decision upon it. The issue is not properly before us.

In the result, we are of the settled view that the respondent validly exercised his rights to terminate the appellant's employment under clause 13(b) of the agreement by payment of three months' salary in lieu of notice. There was no breach of the contract of employment and the appellant is not entitled to any damages.

We accordingly dismiss the appeal in its entirety with costs.

IN RE: M (AN INFANT)

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Massati, J.)

MISCELLANEOUS CIVIL CASE No. 138 OF 2003

Adoption – Adoption order – Effect of the adoption order on the relationship between infant and parent.

Adoption – Purpose of adoption – Purpose of adoption must be to promote the welfare of the child better than the existing arrangement.

The applicant who was a maternal aunt applied to adopt M, an infant, in order to assist the family to bring up and educate the said infant. The guardian of the infant

and his mother gave their consent as did the guardian *ad litem* of the infant. The applicant, an employee of UNICEF, deposed that if the adoption was successful they would benefit from facilities provided by UNICEF. She added that she had agreed with the mother of the infant that the mother and the infant would be free to visit each other after the adoption. The mother stated she understood the full effects of an adoption order. On being examined by the Court she said she expected to visit her son from time to time and expected her son to assist her in her old age. The guardian *ad litem* also said the main aim of the petition for adoption of the infant was to assist him and that there was no intention of depriving the mother from her parental rights. The infant who was in standard five at a reputable school said he had been staying with her maternal aunt who was also his guardian *ad liten*. He had said he paid periodic visits to the applicant the last being in the previous year when she stayed one week with her.

Held: (i) Before making an adoption order of an infant the Court must be satisfied that the infant had been in the care and possession of the applicant continuously for at least three consecutive months immediately preceding the date of the order.

(ii) The effect of an adoption order is to extinguish the emotional attachment and relationship between the parents and the child.

(iii) The purpose of an adoption order is that it will safeguard and promote the welfare of the child better than the existing arrangement throughout his childhood.

(iv) Although the application is well intentioned the statutory requirements of the child to have lived with the applicant continuously for three consecutive months immediately preceding been met considering.

(v) In view of the emotional attachment of the mother and vice versa an order of adoption would not be in the best interests of the infant in view of its far reaching irrevocable consequences.

Order for adoption postponed

Cases refered to:

(1) In re S (Infant) [19] 2 W.L.R. 919

(2) In re D (Infant) [19] 2 W.L.R. 79

(3) In re B [1975] Fam. 127

Statutory provision referred to:

(1) The Adoption Ordinance (Chapter 335), sections 4, 7

Mr Mgongolwa, for the Applicant

RULING

(Dated 23 June 2003)

Massati, J.: Ms Colleta Kibassa, who is the paternal aunt of Mlekwa Deogratias Kibassa, has petitioned in this Court for the adoption of the said Mlekwa Deogratias Kibassa under the Adoption Ordinance Chapter 335. Her petition is supported by her affidavit verifying the petition and consent to the adoption by Grace Kibassa Galinoma, the infant's guardian, and Rugina Myovela, the infant's natural mother. There is also a report recommending adoption by Grace Kibassa Galinoma, who was appointed the guardian *ad litem* of the said infant prior to the hearing of the petition. The petitioner is represented by Mr Mngogolwa, learned Counsel.

The Court had the opportunity to examine the applicant, the Guardian and litem, the mother and the infant himself. The applicant and the Guardian said the petition was intended to assist their late brother's son in terms of education, health and other amenities. The applicant deposed that she is now employed by UNICEF, and if the adoption order is issued, infant will be well placed as the UNICEF takes care of education by 80%, medical and life insurance. Finally she said they had agreed with the infant's mother that she will enjoy visiting rights to the infant and *vice versa.*

Rugina Myovela is the mother of the infant. She said she understood the full effects of the adoption order. When examined by the Court, she said she expected to visit her son from time to time and expects her son to assist her in her old age. Like the petitioner or she said that the major aim was to assist in the welfare of the child.

Grace Kibassa Galinoma said she was the elder sister of the applicant and the guardian ad litem of Mlekwa, the infant. She said, the major aim of the petition for adoption is to assist the child since the applicant has the means to do so. Significantly, she said the intention was not to deprive the mother of her parental rights over the infant, but to assist the infant by according to him legal rights which he could not have if not adopted. Lastly, Mlekwa Kibassa, the infant himself who said he was in standard V at Mwalimu J.K. Nyerere School and appeared possessed of sufficient intelligence, said in Court that he knew and loved his mother, and would like her to pay frequent visits to him if he stays with the applicant. The infant also said he was now staying with Grace Kibassa Galinoma, and he had been paying periodic visits to the applicant, the last one was sometime last year when be stayed for one week.

After examination of the witnesses, Mr Mgongolwa then made a brief submission. He submitted that the evidence tendered in Court was sufficient to enable the Court grant the adoption order with or without conditions. He said under rule 13(e) of the Adoption Rules, this Court could impose conditions such as visitation rights or require the petitioner make provisions for the infant as it deem fit. In deciding whether or not to grant an adoption order, the Court is guided by the provisions of the Adoption Ordinance Chapter 335. Section 4 and 7, list down the conditions which the Court is called upon to see that they are satisfied before proceeding to grant an adoption order. I will only quote those provisions which I think are relevant in the present case. Section 4(6) of Ordinance reads:

> An adoption order shall not be made in respect of any infant unless the infant has been continuously in the care and possession or of the applicant for at least three consecutive months immediately proceeding the date of the order.

The evidence on record shows that at the date of hearing of the petition, the infant was living with the third witness for the applicant, Grace Kibassa Galinoma, and the forth witness for the applicant, Mlekwa the infant himself said, the last time he visited the petitioner was

sometime last year and stayed for only one week. On the premises I would not hesitate to hold as I hereby do, that this mandatory condition has been fulfilled. Section 7 of the Ordinance reads:

> 7(1) The Court before making an adoption order shall be satisfied:
>
> (a) that every person whose consent is necessary under this Ordinance and where consent is not dispensed with, has consented to and understands the nature and effect of the adoption order for which application is made and in particular in the case of any parent understands that the effect of the adoption order will be to permanently deprive him or her of his or her parental rights;
>
> (b) that the order made will be for the welfare of the infant due considerations being for this purpose given to the wishes of the infant having regard to age and understanding of the infant; and
>
> (c) that the applicant has not received or agreed to receive and that no person has made or given or agreed to make or give to the applicant any payment or reward in consideration of the adoption except such as the Court may sanction.

In the present case it is crystal clear from the evidence that the intention of this application for adoption is not to deprive the second witness for the applicant, Rugina Myovela of her parental rights over the infant, but to assist the said infant in his welfare. Rugina Myovela maintained in Court that she expected to visit her son from time to time and his son to visit her. She also claimed that she expected her son to assist her in her old age. To me this means although she signed the consent order, she did not understand the full effect of the adoption order which is to permanently deprive her of her parental rights over the infant. The condition is section 7(1)(a) of the Ordinance is not therefore satisfied. Another factor which the Court has to consider is the welfare of the infant. It is true PW1 the petitioner and her kinsfolk have very good intentions towards the infant's future welfare. As Ormrod L.J. observed in *In Re S (Infants)* (1):

> It is a condition precedent to an adoption order that the making of it will 'safeguard and promote the welfare of the child through out his childhood.' ... So, in all cases the Court must consider whether and to what extent an adoption order will achieve those objectives; this means comparing the position of the child assuming an adoption order is made ... The question, in other words is 'Will adoption safeguard and promote the welfare of the child better than the existing arrangements?'

And Lord Dilhowne in his speech in *In Re D (An Infant)* (2) said:

> Welfare does not mean just material welfare. It extends ... to all factors which will affect the future of the child.

In the same case above cited, the House of Lords through the words of Lord Kilbrandon observed at page 102:

> Any assessment of the child's welfare must therefore pay full regard to the gravity of the complete extinguishment of the natural parent's rights which ... follows upon the making of an adoption order. So fundamental and widespread is that extinguishment that no order should be made, unless it is decisively established by the applicants that on the balancing of competing considerations it would be likely to advance the infant's welfare.

I have taken the liberty of quoting from these English decisions at length because though not binding, they are of high persuasive value in the interpretation of our Adoption Ordinance, which has its origins is that country. These cases show that the Court is that country have given a very strict interpretation of that statute. In the words of Cunning Bruce, J. in *Re: B* (3), at 143, the adoption law is compared to a statutory guillotine:

> It is quite wrong to use the adoption law to extinguish the relationship between the protesting father and the child unless there is some really serious factor which justifies the use of the statutory guillotine.

Applying those principles, I will now consider the present application in the light of the evidence presented before me. As I said above there is no doubt that the applicant is well intentioned. Her intention

is to make sure that the infant is well catered in terms of education, health, accommodation and course, food. I have observed the infant to each other was undoubtedly discernible the infant attends a reputable school and seems to be of good intelligence.

He also appeared to be of good health. The Guardian *ad litem*, has not disclosed the source of what I dare to describe as a successful upbringing. The applicant has not shown what additional advantages might accrue to the infant by adoption, apart from the UNICEF package. Both the mother and the infant have expressed their wishes to continue with the present arrangements. The law requires me to take this into consideration. I have also considered the psychological and sociological effects of the order of adoption on the mother and the infant, and have come to the conclusion that for the time being, an adoption on the mother and the infant, and have come to the conclusion that for the time being, an adoption order would not be in the best interest of the infant, in view of its far reaching, irrevocable consequences.

For the foregoing reason I will therefore postpone the determination of the application for an adoption order and instead I will make an interim order under section 8 of the Adoption Ordinance. The applicant is to have custody of the infant for a period of 2 years from the date of this ruling by way of a probationary period. In this period the Petitioner shall maintain the infant and provide for his education, and medical and such other amenities as her son. The mother of the infant and vice versa shall have visitation and other parental rights. A copy of this order shall be supplied to the Regional Social Welfare Officer, Dar es Salaam, who is required to file periodic reports on the welfare of the infant in this Court every 6 months up to the end of the probationary period. The petitioner shall bear the costs of the petition.

SHIJA LUYEKO v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Lubuva, Munuo and Nsekela, JJ.A.)

CRIMINAL APPEAL No. 43 OF 1999

(From the decision of the High Court of Tanzania at Tabora, Masanche, J. dated 8 April 2003, in Criminal Sessions Case Number 101 of 1995)

Criminal Practice and Procedure – Cautioned statement – Admissibility in evidence – May be admitted in evidence when voluntarily made.

Criminal Practice and Procedure – Summing up to assessors – Trial judge disclosing his views to the assessors – Whether the assessors are thereby influenced.

Criminal Law – Common intention – Hiring or procuring another person to commit an offence – Whether a common intention is thereby formed – Common interest and counseling or procuring distinguished – Sections 22 and 23 of the Penal Code.

The appellant was convicted of the murder of his mother and sentenced to death. The appellant suspected that she had bewitched his son who died while in Primary School standard three; so he hired someone to kill her. During the night of 27 to 28 June 1993, he found the bloodstained body of his dead mother and notified his aged father and children. Two days after her burial the appellant went to Kahama where he was arrested on 27 March 1994. In his defence, on affirmation, he said that he found the body of his mother in the morning of 28 December 1993 but did not know the cause of her death. The cautioned statement the appellant made was tendered without objection. In his evidence he claimed that he did not know the person named in the cautioned statement adding that he had been beaten up by police and had made the statement under threats. The conviction was solely on the strength of the cautioned statement. On appeal it was argued, first, that the conviction was bad because it was based on a cautioned statement without any cogent corroborative evidence. Secondly,

it was argued that in his summing up to the assessors the trial judge had revealed his views before they expressed their opinion and thus influenced their opinions. In giving his opinion after summing up the first assessor said he believed the evidence of the police officer who recorded the statement that it was voluntarily made, that the whole story was told and was detailed. He added that the issue of beating was an afterthought. The second assessor said he did not believe that the appellant was forced to make the cautioned statement. When asked by the assessors why he had not said he had been tortured from the beginning the appellant said that it was because he had not been asked.

Held: (i) A cautioned statement is admissible in evidence if it is proved that it was voluntarily made;

(ii) The Trial Court considered and accepted the truthfulness and the voluntariness of the cautioned statement and therefore was entitled to convict without corroboration;

(iii) Although the trial judge wrongly disclosed his views when summing up to the assessors they were not thereby influenced but reached their own independent conclusions based on their own evaluation of the evidence before them;

(iv) For common intention to be established two or more persons must form a common intention to commit an unlawful act together but when one hires another to commit an unlawful act on his behalf he does not form a common intention with that other person but procures such person to commit the offence on his behalf.

(v) The appellant did not form a common intention with Lifa by hiring the latter; the appellant procured Lifa to commit the murder of the deceased.

Appeal dismissed

Cases referred to:

(1) *Athumani Rashid v. Republic* CAT – Criminal Appeal Number 138 of 1994 (unreported)

(2) *Richard Lubilo and Mohamed Seleman v. Republic* CAT – Criminal Appeal Number 10 of 1995 (unreported)

(3) *Morris Agunga and Two others v. Republic* CAT – Criminal Appeal Number 100 of ....?

(4) *Tuwamoi v. Uganda* [1961] EA 84

(5) *George Michael Rajabu and another v. Republic* CAT – Criminal Case number 18 of 1994 (unreported)

(6) *Ally Juma Mawepa v. R.* [1993] T.L.R. 231

Statutory provision referred to:

(1) Penal Code Chapter 16, sections 22 and 23

Mr Nasimire, for the Appellant

Mr Mlipano, for the Respondent

JUDGMENT

(Dated 23 June 2003)

Nsekela, J.A.: The appellant was convicted of murder and sentenced to death by the High Court (Masanche, J.) sitting at Tabora. He is now appealing against both conviction and sentence.

The background to the case may be stated as follows. The deceased, Ngwashi Nhyama, was an old lady and the mother of the appellant. The appellant had a son who died while in Standard III and the appellant believed that the deceased had bewitched her grandson. He then contrived the idea of hiring one Lifa Nkinga (now deceased) to kill the deceased. He approached the said Lifa Nkinga who agreed to do the assignment at an agreed amount of TZS. 20 000 and two cows. The appellant made a down payment of TZS. 10 000 but the hired killer did not inform him when the assignment would be accomplished.

During the night of 27-28 December 1993 the appellant went to his mother's house, which was in the same compound, and found his mother dead. He notified his aged father and children. They noticed blood on the head and on the deceased's clothes. The deceased was subsequently buried and after two days the appellant went to Kahama where he stayed until his arrest on the 28 March 1994.

The appellant was convicted solely on the strength of a Cautioned Statement (Exhibit P3) which was recorded by PW4, B.6204 Staff Sgt. Castory. This cautioned statement was admitted in evidence without any objection from the defence counsel, one Mr Kaunda. The appellant gave evidence on affirmation and did not call any witness. His side of the story was to the effect that on the morning of the 28 December 1993 when he went to his mother's house, he found her dead. He consulted with his father and then buried the deceased. He testified that he did not know what was the cause of his mother's death and that two days after her burial he went to Kahama. In the course of examination in chief, the appellant stated:

> I told him I did not know who killed my mother. I did not tell him that I had hired Lifa Nkinga to kill my mother. I did not write so. The statement read here has been written by the Police after they beat me up. Yes, I wrote so, but it was under threat. I was forced to say so. There were only the two of us. When he came to take me, he greeted me with a slap. I do not know Lifa Nkinga mentioned in the statement.

The statement being referred to is Exhibit 3. We shall revert to this issue later on in the course of this judgment. The trial judge's decision in convicting the appellant is challenged on two grounds, namely:

2. that the trial judge erred in convicting the appellant on the basis of the cautioned statement without any cogent supporting corroborative evidence; and

3. that the learned trial judge was not justified in biasing the gentlemen assessors when he was summing up the case to them.

At the hearing of the appeal, Mr Nasimire, learned counsel, represented the appellant and Mr Mlipano, learned State Attorney, represented the respondent Republic. Mr Nasimire strongly attacked the manner in which the trial judge summed up the case to the assessors. The learned counsel singled out the following instances where the trial judge had this to say to the assessors:

> Now, if I send you back to the cautioned statement. Do you believe the story as told in there? I find the story to be so telling and detailed. It is so detailed that Castory could not, surely, have fabricated it.

And later on he said:

> The defence case, you will have noticed, was a blank denial of the whole writing of the cautioned statement. This could not be so especially as you saw here, that the statement was tendered in as an exhibit without a challenge. Challenging it after it was admitted as exhibit was purely showing an afterthought.

The complaint by Mr Nasimire was to the effect that the summing up and the trial judge's remarks influenced the opinion of the assessors. He had disclosed his own views beforehand to the assessors and this was not proper. The assessors had to give their independent unbiased opinions to the Court. This was the gist of the second ground of appeal.

On the first ground of appeal, the learned counsel faulted the trial judge for convicting the appellant solely on the strength of the cautioned statement (Exhibit P3) which was subsequently retracted or repudiated in the course of the trial. At that point in time, Mr Nasimire added, the trial judge should have inquired as to whether or not the cautioned statement had been made voluntarily. He also complained that the procedure or recording the statement had not been complied with. These matters, submitted, had not been considered by the trial judge.

On his part, Mr Mlipano, learned State Attorney, submitted that the trial judge was explaining to the assessors what was contained in Exhibit P3, the cautioned statement. There was no misdirection in law or in fact and that the assessors could not have come to a different conclusion on the facts as they stood. The learned State Attorney further submitted that a Court can convict solely on the basis of a cautioned statement after warning itself of the dangers of convicting on the basis of such evidence without corroboration. In

his view, there were other factors which corroborated the appellant's cautioned statement such as the alleged hurried burial of the deceased and the appellant's moving to Kahama two days after the burial.

We propose to deal with the first ground of appeal. The complaint was the absence of corroborative evidence to support the cautioned statement. It is trite law that for a cautioned statement to be admitted in evidence, it must be proved affirmatively by the prosecution that it was voluntarily made. If the Court is satisfied that the statement was made voluntarily and was recorded correctly then it should proceed to admit it in evidence, but if it is not so satisfied, then it should accordingly hold it inadmissible. See: *Athuman Rashid v. Republic* (1) and *Richard Lubilo and Mohamed Seleman v. Republic* (2). The appellant's cautioned statement was admitted in evidence without any objection from Mr Kaunda, who was the defence counsel on 30 March 1999 when PW4 tendered it in evidence. He is the one who recorded the statement and was cross-examined on it. Admittedly, there was no question asked on the voluntary nature of the statement. The appellant, however, in the course of his examination in chief purported to retract or repudiate the statement alleging that he was under threat and that he was beaten. But when examined by the second assessor, the appellant said

> I did not tell my advocate that I was slapped and that is why he did not ask, I think.

Here was an appellant who alleges that he was subjected to beatings but yet could not share such vital information with his counsel on a life or death matter. The trial judge, however, in his judgment considered the question of the voluntariness of the statement in these words:

> That statement, true was tendered in Court without challenge, if I may say so. It is when the accused was testifying that it appeared the accused was retracting it. But substantially this statement was not denied. In fact both gentlemen assessors are of the view that the statement is correct and a true version of what the accused told the Police. Both wondered why, if the statement was procured by torture, the accused should not

have told his advocate for him to challenge it and let a trial within a trial be conducted to ascertain the voluntariness of the statement.

It is obvious from the above passage in the judgment of the Trial Court that the voluntariness of the cautioned statement was considered by both the assessors and the trial judge; we are satisfied that the cautioned statement was made voluntarily. This is unlike what had happened in the case of *Morris Agunga and Two others v. Republic* (3) in which the trial judge did not examine the question of the voluntariness of the confession against the reasons given by the appellant in his defence at the trial for retracting or repudiating that confession. In that case, this Court undertook to do what the Trial Court should have done, that is, to decide whether or not the alleged confession was voluntary. As stated before, in this case, the trial judge and the gentlemen assessors duly considered the issue and was of the view that the statement was indeed a voluntary one. The trial judge did not stop there and stated, after quoting the case of *Tuwamoi v. Uganda* (4) EA 84, that:

> Such Court of law can convict on such statements without corroboration, provided the Court warns itself of convicting without there being corroboration.

The trial judge then was satisfied that the caution statement was voluntary and true and this was enough to found a conviction. In the circumstances as the statement was found to be voluntary and true the Trial Court was entitled to convict the appellant without corroborative evidence; see also: *Richard Lubilo's* case, (2) (2) and *George Michael Rajabu and Samwel Yasin Mwafute v. Republic* (5). On our part, we would go a step further. It will be recalled that after the appellant had found that his mother was dead and saw blood on her head and clothes, his conduct thereafter did not show that he was in any way shocked at all by what he saw before his own eyes. The blood on the head corroborates the post-mortem examination report, Exhibit P2, that the death was not a natural one but was due to head injury and this hold fact that he had hired a killer to end the life of his mother shows that it was a relief to him to see the old lady out of the planet. Here is thus no merit in this ground of appeal.

The second complaint by Mr Nasimire was essentially to the effect that the trial judge misdirected the assessors in his summing-up in the sense of influencing his views upon them.. The trial judge, he added, had disclosed this own views before the assessors had expressed their views on the matter, In the case of *Ally Juma Mawepa v. Republic* (6) this Court made the following observation at page 236G – 237B:

> Our observation relates to the aspect where the Judge expresses or arises *(sic)* his own views when summing up to the assessors. Where this happens, as indeed, in the present case, we think that it can influence the assessors in making up their own minds on the issue, or issues being left with them for consideration. For in practice assessors have high regard and respect for the judge and his opinion because the judge is a learned and experienced man in legal matters and also in human affairs. As such one would rarely expect assessors to come up with an opinion different from that expressed by the judge on a particular matter. On that account it is considered appropriate that when summing up to assessors the trial judge should as far as possible desist from disclosing his own views or making remarks or comments which might influence the assessors one way or the other in making up their own minds about the issue or issues being left with them for consideration. The summing up should be unbiased and impartial such that it leaves the assessors to make up their own minds independently.

We wish to re-affirm the stand taken by this Court on this aspect. It hardly needs to be overemphasized that while summing up to assessor's trial judges would be well advised to withhold their respective views on the evidence close to their respective chests. Time will come soon thereafter to disclose their views while composing and delivering their considered judgments. In this, it is clear from the record after the trial judge had summed-up to the assessors, he asked them to state their respective opinions. The first assessor Abbas stated in part as follows:

> The detective told us that he recorded the statement voluntarily. The whole story was told. It was quite detailed. The beating issue is an afterthought. I entirely agree with the caution statement.

And the second assessor, Fransis stated:

> My Lord, I will give my opinion. I have heard all the witnesses. I have listened to the accused himself quite carefully. He was not, I must say, forced to write. We asked him why he did not tell us at the beginning that he had been tortured into writing the statement, and he said he was asked why he had to wait to be asked if the matter vexed him, he did not replied *(sic)* reply.

The opinions of both the assessors are clearly based on the cautioned statement that was tendered in evidence by PW4. The assessors had put questions to the appellant and were not satisfied with his answers. We entertain no doubt at all that the assessors were not influenced in any manner by the summing up of the trial judge. It was their own evaluation of the evidence that was before them, and reached independent conclusions. This ground of appeal collapses as well.

The next matter that falls for consideration is whether or not the appellant and Lifa Nkinga (deceased) had formed a common intention to commit murder, that is to kill the deceased. The trial judge was of the view that there was common intention established between the appellant and the late Lifa Nkinga. With all due respect to the learned trial judge, we do not agree. Section 23 of the Penal Code Chapter 16 provides as follows:

> 23. When two or more persons form a common intention to prosecute an unlawful purpose in conjunction with one another, and in the prosecution of such purpose an offence is committed of such a nature that its commission was a probable consequence of them is deemed to have committed the offence.

In order to bring the appellant within this section, the following facts must have been proved:

(1) That two or more persons, of whom the appellant was one, each formed an intention to prosecute a common purpose in conjunction with the other or others;

(2) That the common purpose was unlawful;

(3) That the parties, or some of them, including the appellant, commenced or joined in the prosecution of the common purpose;

(4) That, in the course of prosecuting the common purpose, one or more of the participants murdered the deceased;

(5) That the commission of the murder was probable consequence.

As can be seen from the cautioned statement and the law extracted above, the appellants intention was to kill the deceased. So Lifa Nkinga killed the deceased for payment as agreed. In that situation we are unable to see any common intention, in which case section 23 was in-applicable on the facts of the case. We are however of the settled view that the appellant falls within the ambit of section 22(d) of the Penal Code which reads:

> 22. When an offence is committed each of the following persons is deemed to have taken part in committing the offence and to be guilty of the offence, and may be charged with actually committing it, that is to say:
>
> (a) ... (n.a)
>
> (b) ... (n.a)
>
> (c) ... (n.a)
>
> (d) any person who counsels or procures any other person to commit the offence.
>
> In the last mentioned case he may be charged either with committing the offence or with counseling or procuring the commission.
>
> A conviction of counseling or procuring the commission of an offence entails the same consequences in all respects as a conviction of committing the offence. Any person who procures another to do or omit to do any act of such a nature that, if he had himself done the act or made the omission, would have constituted an offence on his part, is guilty of an offence of the same kind, and is liable to the same punishment, as if he had himself done the act or made the omission, and he may be charged with the act or making omission.

The appellant's cautioned statement to PW4 reads in part as follows:

> ... tulipofika huko tulimkuta ametoka na baadaye alikuja na hapo nilimwambia shida zangu kuwa AMUUE MAMA YANGU, kwa vile yeye anafahamu vizuri kazi hiyo na hapo tulikubaliana na Lifa s/o Nkinga na nilienda mwezi wa Desemba 1993 tarehe sikumbuki na tulipatana kwamba mimi nitampa ng'ombe mbili na TZS.. 20 000 (siku hiyo nilitoa TZS. 10 000)

And he continued:

> niliyejua kuwa alimuua ni Lifa s/o Nkinga kutokana na makubaliano yangu na yeye sijui alikuwa na watu wangapi siku hiyo ya mauaji hayo.

It is our considered view that the appellant falls within the ambit of section 22(d) of the Penal Code. The appellant procured Lifa Nkinga to murder the deceased and was properly charged with actually committing it. For the reasons we have hopefully amply given, we find no merit in the appeal. It is accordingly dismissed.

REGISTERED TRUSTEES OF SOCIAL ACTION TRUST FUND AND ANOTHER *v.* HAPPY SAUSAGES LTD AND OTHERS

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Lubuva, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 70 OF 2002

(From the ruling and order of the High Court of Tanzania at Arusha, Mushi, J. dated 12 April 2002, in Miscellaneous Civil Application Number 10 of 2001)

Civil Practice and Procedure – Bias – Test to be applied where there is allegation of bias.

Civil Practice and Procedure – Disqualification of a Judge from hearing a case —Grounds for invoking such a step.

Civil Practice and Procedure – Injunction – Distinction between an injunction "ad interim" and a temporary injunction.

This is an appeal from a ruling of the High Court rejecting with costs an application filed by the appellants which sought the following order that the trial judge disqualify himself from the conduct of the suit or from the conduct of any application, petition or motion pertaining to the suit whether directly or indirectly. The central complaint of the appellants against the Judge was that he was biased against them and conducted the proceeding in a biased way.

Held: (i) The mere fact that a point made or an authority mentioned by an advocate is not specifically referred to in a ruling or judgment is not indicative of bias on the part of the learned trial judge;

(ii) It would be an abdication of judicial function and an encouragement of spurious applications for a judicial officer to adopt the approach that he/she should disqualify himself/herself whenever requested to do so on application of one of the parties on the grounds of possible appearance of bias;.

(iii) The test for apparent bias is whether the alleged circumstances would lead a fair minded and informed observer to conclude that there was a real possibility that the Court was biased.

(iv) A temporary injunction may, as it very often does consist of two stages, one granted without finally disposing of the application for injunction to operate immediately till the disposal of the said application and the other granted while finally disposing of the main application to endure generally till the disposal of the suit; and while the former is generally classed as ad interim injunction, the latter is generally called temporary injunction.

Appeal dismissed

Cases referred to:

(1) *Jagjit Singh Khama v. Dr Rhakhal Das* [1988] AIR Calcutta 95

(2) *Laurean G. Rugaimukamu v. Inspector General of Police and Attorney General,* Court of Appeal, Civil Appeal Number 13 of 1999 (unreported)

(3) *Metropolitan Properties Co. (FGC) Ltd.v. Lannon* [1966] 1 QB 577

(4) *R. v. Gough* [1993] AC 646

(5) *Porter and another v. Magill* [1902] 1 All ER 465

Mr Mwandambo, for the Appellants

Mr De Souza and *Mr Merinyo,* for the Respondents

JUDGMENT

(29 July 2003)

Nsekela, J.A.: This is an appeal from a ruling of the High Court at Arusha (Mushi, J.) dated the 12 April 2002 in Miscellanoeus Civil Application Number 10 of 2001 rejecting with costs an application filed by the appellants against the respondents which sought, *inter alia*, the following order:

> That the Hon. Judge be pleased to disqualify himself from the conduct of the above suit or from the conduct of any application petition or motion pertaining to the suit whether directly or indirectly.

The appellants were aggrieved by the ruling of the High Court and lodged this appeal. A nine-point memorandum of appeal was filed. At the hearing of the appeal, the appellants were represented by Mr Mwandambo, learned advocate, and the respondents were represented by Mr De Souza assisted by Mr Merinyo, learned advocates. At the outset, Mr Mwandambo abandoned the second ground of appeal and pressed on with the remaining eight grounds. As far as we are concerned, the central issue before us is whether or not the trial judge who adjudicated upon Miscellaneous Civil Application Number 10 of 2001 should disqualify himself from the conduct of Civil Case Number 27 of 2000 as well as Miscellaneous Civil Application Number 73 of 2000 both of which are still pending in the High Court and are

between the same parties. The first ground of appeal is in the following terms:

> Appellants having stated on oath that the Honourable High Court Judge had not recorded the proceedings of 24 November 2001, the same Honourable Judge should have had the application heard by another Judge in keeping with the principle that no person may be a Judge in his/her own cause.

Mr Mwandambo referred us to paragraphs 7 and 8 of Mr Colman Mark Ngalo's affidavit apparently as evidence of this allegation.

These two paragraphs read as under:

> 7. That the suit was indeed mentioned on the 24 November 2000 and my handwritten notes of the proceedings are annexed hereto and marked "CMNI."
>
> 8. That on third January 2001 I perused the Court file and found that the record as on 24 November 2000 is completely at variance with annexure "CMNI"

Mr De Souza responded by stating that this was the first time that the appellants have questioned the accuracy of the Court record and that on this ground, the learned trial judge should have disqualified himself. He added that there was no material difference between the Court record and "CMNI." The Court record as it now stands is the one to be looked at. If there were errors, omissions and the like, an aggrieved party should have taken appropriate measures to rectify the Court record or should have made an application before this Court to remit the proceedings to the High Court for rectification of errors, if any, before the hearing of the appeal.

The third ground of appeal provides as follows:

> The Honourable Trial Judge having accepted that he had already made *(sic)* an *ex-parte* order against the appellant just a day before the appellants were due to file their counter-affidavits as ordered by the same Judge, it was not open for him to defend himself or justify his decision to issue the said *ex-parte*.

On this ground, Mr Mwandambo submitted that there was no need for the learned trial judge to justify the decision he had made to grant the *ex-parte* interim order on the 27 June 2000. He added that Mr Ngalo had not filed a counter-affidavit and an adjournment had been refused thus depriving Mr Ngalo of the right to be heard. In the result, the appellants had lost confidence in the trial judge. On his part, Mr De Souza submitted that the appellants had been duly served with notice and entered appearance through Mr Umbulla, learned advocate, who prayed for an adjournment because of the nature and urgency of the application.

We are surprised that Mr Mwandambo, learned advocate, should fault the learned trial judge for giving reasons for the decision he had made. Order XX, rule 4 of the Civil Procedure Code 1966 provides:

> Judgments shall contain a concise statement of the case, the points for determination, the decision thereon and the reasons for such decision.

It is our considered view that the learned trial judge was simply discharging his judicial duties by giving his reasons for granting the interim *ex-parte* injunction order. As a judicial officer he was bound to give reasons for his decision. The learned trial judge was not in any way defending himself as Mr Mwandambo would like us to believe. Therefore, we find no merit in this complaint.

The next set of complaint is to be found in ground five in which it is alleged that the learned trial judge had "demonstrated consistent and manifest bias" by not making any reference to the authorities cited by the appellants in support of their case and by making derogatory remarks against them. Five instances were particularly singled out in support of this "consistent and manifest bias". Responding to this submission Mr De Souza, however, was of the view that no bias could be attributed to the allegation that cases cited by the appellants were not considered, if at all that was true. As regards the alleged derogatory remarks, the learned advocate submitted that the appellants should have made an application to have those remarks expunged from the record.

There is no doubt that relevant authorities will be considered and either followed, distinguished, rejected or simply ignored as irrelevant. The point we would like to underscore here is that the mere fact that a point made or an authority mentioned by an advocate is not specifically referred to in a ruling/judgment is not a circumstance indicative of bias on the part of the learned trial judge. Mr Mwandambo has also complained that the language used by the learned trial judge was immoderate. He used the word "derogatory", but we return to the basic issue, did the use of such language show an element of bias on the part of the learned trial judge? In our view after judiciously considering and evaluating the material before him the learned trial judge robustly expressed his viewpoint and reached certain conclusions, right or wrong. It is common knowledge that judicial officers should not be unduly constrained to express their views freely in their judgments because of the fear that we would be asked to disqualify ourselves. It would be wrong in principle if that were to be the case. Mr De Souza mooted the idea that the alleged derogatory remarks could be expunged from the record. That is an attractive idea, but if the appellants were so minded, such an application could have been made at the appropriate time and to the trial Court. It may well be that the learned trial judge made some uncalled for remarks, nonetheless in the circumstances of the case there was no basis for any trial-minded and informed person entertaining the idea that "the learned trial judge was biased". We shall revert to this general complaint of bias later on in the course of this judgment. We now turn our attention to the sixth ground of appeal which reads as under:

> The Honourable Trial judge erred in law and in fact in falling *(sic)* to appreciate that the issue of the *ex parte* order of second July 2001 was not only evidence of manifest bias but was both a travesty of justice and an abuse of judicial process.

This ground of appeal revolves around an interim *ex-parte* order that the Trial Court made on the 27 June 2000. It is important to re-trace the sequence of events that led to this Order. The respondents on the 14 June 2000 filed in the High Court Civil Case Number 27 of

2000 wherein the appointment of the appellants Colman Mark Ngalo and Michael JT Ngalo as Receiver/Managers of the first respondent (Messrs Happy Sausages) is being challenged as of no legal effect. Simultaneously, they filed a chamber summons, Miscellaneous Civil Application Number 73 of 2000 under Order XXXVII, rule 1(a) and Order XLIII, rule 2 of the Civil Procedure Code seeking certain injunctive orders. On the 20 June 2000 Mr De Souza made an application in the presence of Mr Ngalo in order to file an amended chamber summons and supplementary affidavit. The prayer was granted without objection from Mr Ngalo and the Court made the following order:

> *Order:* The applicant is granted leave to file an amended chamber summons and supplementary affidavit. The same to be filed by 22 June 2000. Counter-affidavit to be filed by 28 June 2000. Hearing on 6 July 2000.

As stated above, this Order was made on the 20 June 2000. However, on the 26 June 2000 Mr De Souza wrote a letter to the Court seeking audience to be heard in respect of Miscellaneous Civil Application Number 73 of 2000 "so as to make an application for an interim injunction order." On the same day, in the absence of both parties, the Court ordered that the Court would hear the applicant for interim orders on the 27 June 2000 and that the respondents be served with notice. On the said date, Mr Umbulla, learned advocate, entered appearance on behalf of Mr Ngalo. He made an application that hearing of the application be adjourned to the 29 June 2000 to enable Mr Ngalo to be personally present as he was then in Dar es Salaam and that he had to file a counter-affidavit on the 28 June 2000. On his part, Mr De Souza submitted that certain intervening circumstances prompted him to make the application.

The new pressing circumstances were contained in affidavits deposed to by Andrew George Mollel and Charles Hotay. It was alleged that the property, the subject matter of the contested receivership had been advertised and was up for grabs; employees were facing imminent dismissal; bank accounts had been blocked and that stocks were being

sold at 30% discount. It was under these circumstances that the learned trial judge made the interim *ex-parte* order on the 27 June 2000.

Mr Mwandambo forcefully submitted that there was no legal justification for the learned trial judge to depart from the orders made on the 20 June 2000; that Mr Ngalo was not afforded an opportunity to be heard on the interim orders and that Mr Ngalo had not filed the counter-affidavit whose deadline was the 28 June 2000. Mr De Souza countered by stating that the circumstances that were then unfolding demanded prompt remedial action from the Court.

We have given deep and anxious consideration to these complaints. From the affidavit evidence before him the learned trial judge was satisfied that there were changed circumstances that warranted the issuance of an interim order to last "until the final disposal of Arusha Civil Application Number 73 of 2000." It is our considered view that such a course of action is permitted under Order XXXVII, rules 1 and 2 of the Civil Procedure Code. To this end, we have had occasion to glance through the Indian case of *Jagjit Singh Khama v. Dr Rhakhal Das* (1) wherein the Court was construing Order XXXIX, rules 1 and 2 and section 94(c) of the Code of Civil Procedure which is identical to our Order XXXVII, rules 1 and 2 and section 68(c) of the Civil Procedure Code 1966.

The Court had this to say at page 97:

> A temporary injunction may, as it very often does consist of two stages, one granted without finally disposing of the application for injunction to operate immediately till the disposal of the said application and the other granted while finally disposing of the main application to enure generally till the disposal of the suit and while the former is generally classed as *ad interim* injunction, the latter is generally called temporary injunction. *Neither on principle nor on authority we find any bar to the Courts granting ad interim injunction* if *subsequent developments or altered* circumstances warrant such grant [emphasis supplied]. We respectfully wish to associate ourselves with these views.

The learned trial judge was of the opinion that there existed altered circumstances which warranted granting the injunction order on the 27 June 2000. Contrary to Mr Mwandambo's assertions, there was neither a travesty of justice nor an abuse of the legal process. The eighth ground of appeal seems to us to be based on an apparent distortion of the import of the following passage in the ruling of the learned trial judge. It reads as under:

> Out of the four acts of the presiding judge which are alleged to be biased against the applicants only two of such acts are established. These are the issuing of the ex parte injunction order on 27 June 2000 and serving the ex parte interim order to Mr Ngalo's agents stationed at the respondents company by their names: As it has already been stated, such acts of the presiding judge were done within the ambit of the law. The applicants may challenge the legality of the orders on appeal which opportunity they still have. For the applicants to say that the acts were purposely done with a bias intention that would be reading beyond what human eyes can read in the record.

Mr Mwandambo submitted on this point that since the learned trial judge held that two acts of bias had been established, that was enough to disqualify himself. Mr De Souza, however responded by submitting that the learned trial judge accepted that he had made the impugned orders but without any bias. There is no shadow of doubt in our minds that the learned trial judge was not in any way admitting that he was indeed biased in making the said Orders. We have already explained elsewhere in this judgment that the learned trial judge properly exercised his discretion in granting the *ex-parte* injunction order.

This takes us to grounds four, seven and nine which will be considered together. It is the general complaint that the appellants' affidavits disclosed and established elements of bias in the manner the learned trial judge handled the matter and that the appellants' had discharged the *onus* required to establish the existence of bias. Mr Mwandambo complained that the learned trial judge had departed from orders previously made without good cause. The learned advocate was of

the opinion that the appellants had established that there was a real likelihood of bias. He added that the mere fact that some portions of what was stated by counsel in the address to the Court were not recorded in the proceedings had created a suspicion that the learned trial judge was biased and that there was a total breakdown of confidence. Mr De Souza countered by submitting that the affidavits of Mr Ngalo and Mr Rweyemamu showed that the appellants had full confidence in the learned trial judge. He added that the mere fact that there is a complaint against a judge, that should not amount to automatic disqualification of such a judge from adjudicating upon a case.

We have carefully examined the allegations of bias advanced by the appellants in the memorandum of appeal and the erudite submissions by the learned advocates for the parties. It is our considered view that it would be an abdication of judicial function and an encouragement of spurious applications for a judicial officer to adopt the approach that he/she should disqualify himself/herself whenever requested to do so on application of one of the parties on the grounds of possible appearance of bias. A judicial officer should not automatically stand aside whenever requested to do so. (See: *Laurean G. Rugaimukamu v.* (1) *Inspector General of Police* (2) The *Attorney General* (2). Mr Mwandambo referred us to the case of *Metropolitan Properties Co. (FGC) Ltd. v. Lannon* (3) wherein Denning M.R. formulated the prevailing test for "bias". Even at that time, some cases preferred the "reasonable suspicion or apprehension of bias" test. Other cases had found favour with the test in terms of a "real danger or likelihood of bias". *Lannon's* case (3), is an example of the reasonable suspicion test though Denning MR also spoke of a real likelihood of bias. He stated thus at page 599:

> In considering whether there was a real likelihood of bias the Court does not look at the mind of the justice himself or at the mind of the chairman of the tribunal, or whoever it may be, who sits in a judicial capacity. It does not look to see if there was a real likelihood that he would, or did, in fact favour one side at the expense of the other. The Court looks at the impression which would be given to other people. Even if he was as impartial

> as could be, nevertheless if right -minded persons would think that, in the circumstances, there was a real likelihood of bias on his part, then he should not sit. And if he does sit, his decision cannot stand.

The essence of the argument for the appellants was that once a reasonable man would suspect bias from outward appearance that would be enough to vitiate the proceedings. Mr Mwandambo seemed to use the words "real likelihood of bias" and "reasonable apprehension/suspicion of bias" interchangeably, but the thrust of his argument was really to invoke the "reasonable suspicion of bias" test. We should perhaps point out at this juncture that there is no complaint against the learned trial judge that he had a direct interest in the subject-matter of the proceedings as may lead to an appearance or likelihood of bias. Nor is it alleged that he had any pecuniary interest in the matter. The complaints of bias against him revolve around the manner in which the judicial proceedings were conducted. In the case of *Republic v. Gough* (4), the House of Lords held, *inter alia*, that in all cases of apparent bias concerning justices, members of inferior tribunals, jurors or arbitrators, the same test was applicable, namely that on ascertainment of facts pointing towards bias, whether there was a "real danger" of bias concerning the relevant member of the tribunal. So there was only one test, and that is "real danger" of bias and it was for the Court in possession of all the relevant facts to apply the test and not from the point of view of the reasonable man. Underscoring this point, the House of Lords speaking through Lord Goff of Chievely stated as follows at page 670 D:

> Furthermore, I think it unnecessary, in formulating the appropriate test, to require that the Court should look at the matter through the eyes of a reasonable man, because the Court in cases such as these personifies the reasonable man; and in any event the Court has first to ascertain the relevant circumstances from the available evidence, knowledge of which would not necessarily be available to an observer in Court at the relevant time. Finally, for the avoidance of doubt, I prefer to state the test in terms of real danger rather than real likelihood to ensure that the Court is thinking in terms of possibility rather than probability of bias.

However, in the case of *Porter and another v. Magill* (5) 1 All ER 465, the House of Lords modified the formulation of the test of bias as enunciated in *Gough's* case, (4). In so doing the House took into consideration recent developments in the law in some Commonwealth countries, notably Australia and Canada and adopted the following formulation of the test in paragraphs 103 and 104:

> The Court must first ascertain all the circumstances which have a bearing on the suggestion that the judge was biased. It must then ask whether those circumstances would lead *a fair-minded and informed observer to conclude that there was a real possibility that the tribunal was biased* [emphasis added].

On our part, we would with the greatest respect, adopt the current formulation of the test for apparent bias as stated by the House of Lords in *Magill's* case, (5). Our country is a member of the Commonwealth with a common law tradition. A decision of the House of Lords under appropriate circumstances would be of persuasive value in moulding our decisions. In the instant case, the alleged bias pertains to the learned trial judge who conducted Miscellaneous Civil Application Number 10 of 2001 in the High Court, Arusha. We have already examined at length the circumstances which led the appellants to suggest that the learned trial judge was biased against them. The next question to ask then is whether or not those circumstances would lead a fair-minded and informed person/observer to conclude that there was a real possibility that the learned trial judge was biased. It is important to bear in mind that this observer has to be fair-minded and informed. In our context such an observer should be aware of our Court procedures; the role and function of a trial judge in adjudicating cases. He should be aware of interlocutory proceedings during a trial and that an aggrieved party can always appeal to the higher echelons in the Court hierarchy. Moreover, such an informed observer would be aware that there is no proforma ruling or judgment. They differ in substance and linguistic style. In this case, it is our settled view that looking at the complaints of bias from the standpoint of the fair minded and informed observer, such an observer will not find anything tending to show bias in the

manner the learned trial judge conducted the proceedings in the application.

In the event and for the foregoing reasons, we find no merit in the appeal which is dismissed with costs. However in the interests of justice, even though we have found no bias established against the learned trial judge conducting the proceedings, it is ordered that hearing of the main suit and other pending applications be proceeded with before another judge.

M/S LAW ASSOCIATES, ADVOCATES *v.* M/S INDEPENDENT POWER (T) LIMITED

IN THE MATTER OF TAXATION OF THE BILL OF COSTS

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Massati, J.)

TAXATION CASE IN CIVIL CASE No. 336 OF 2002

Civil Practice and Procedure – Jurisdiction – Jurisdiction of the High Court – Notice of Appeal to the Court of Appeal – Effect of the notice of appeal on the jurisdiction of the High Court.

Upon an application to enforce an agreement for instruction fees between M/s Law Associates, applicants, and M/s Independent Power (T) Limited, respondents, leave was given to the respondent to file a third party notice against one Lugemalira. When a ruling that the third party had nothing to answer, the respondent was dissatisfied and filed a notice of appeal against such ruling to the Court of Appeal and also filed a chamber summons for leave to appeal. After delivery of ruling on third party notice a question arose as to whether the Court could still proceed with the hearing of the matter.

Held: Once there is a notice of appeal the proceedings cease to be before the High Court and the Civil Procedure Code ceases to apply to the proceedings.

Order accordingly

Cases referred to:

(1) *Afro Helicopter (T) Ltd v. Jensen* [1990] T.L.R. 142

(2) *Kombo Mkabara v. Maria Luis Frisch,* CAT - Civil Application Number 3 of 2000 (unreported)

(3) *Matsushita Electric Co. Ltd. v. Charles George t/a CG Travers,* Civil Application Number 71 of 2001 (unreported)

Mr Mnyele for the Applicant

Mr Kesaria for the Respondent

RULING

(Delivered 15 September 2003)

Massati, J.: In this application, M/s Law Associates have filed an application under the Advocates Ordinance Chapter 341 to enforce an agreement for instruction fees between them and M/s Independent Power (T) Ltd. In the course of the proceedings I gave leave to the respondent to file a third party notice against one James Buchard Rugemalira. The third party successfully opposed the notice. On 22 July 2003 I gave ruling that the third party had nothing to answer. Accordingly I discharged him with costs.

The respondent was not satisfied with the ruling and promptly gave notice of appeal to the Court of Appeal on 25 July 2003 and also filed a chamber summons for leave to appeal. However immediately after delivery of my ruling parties exchanged arguments as to whether this Court could still proceed with the hearing of the matter. Full arguments were however reserved and the same were heard on 3 September 2003.

In his submission Mr Kesaria submitted that since there is a notice of appeal the Court ceased to have jurisdiction in the matter as the proceedings are seized of the Court of Appeal. He cited and relied on the decision of the Court of Appeal in *Afro Helicopter (T) Ltd v. Jensen* (1) and that of *Kombo Mkabara v. Maria Luis Frisch* (2). Mr Mnyele learned counsel for the Applicant submitted that Mr Kessaria's submission was not correct law. He said there were two sets of proceedings, one between the applicant and the respondent and another between the respondent and the third party. He submitted that for purposes of appeal these proceeding could be split so that the respondent could go on with her appeal against the third party, while the applicant's application against the respondent could also go on in the High Court. He also submitted that the two decisions of the Court of Appeal were distinguishable as in both cases no third party proceedings were involved. Finally Mr Mnyele submitted that this was a fit case in which this Court could exercise its inherent powers under section 95 of the Civil Procedure Act and split the two proceeding so that the applicant could not be prejudiced by the pending appeal. Mr Mnyele, did not however cite any authority to support his arguments.

In his brief reply Mr Kesaria submitted that the third party proceedings were part of the proceedings now before the Court of Appeal and cannot be separated Mr Kesaria also submitted that once a notice of appeal is filed, section 95 of the Civil Procedure Code Act was not applicable. He again cited the Afro Helicopter case to buttress his argument.

I have carefully studied arguments by counsel and the authorities cited in support thereof. There is no dispute that a notice of appeal was filed in this Court on 25 July 2003. Mr Mnyele learned counsel did not seriously dispute that once a notice of appeal is filed its effect would be to remove the proceedings of the High Court to the Court of Appeal. Indeed these are the *ratio decidendi* in the Court of Appeal decisions in *Afro Helicopter (T) Ltd v. Jensen* (1), *Kombo Mkabara v. Maria Luis Frisch* (2) cited by Mr Kesaria. The Court

of Appeal reiterated its position in *Matsushita Electric Co Ltd. v. Charles George t/a CG Travers* (3) where it said at page 4):

> Once a notice of appeal is filed under rule 76 then this Court is seized of the matter in exclusion of the High Court except for applications specifically provided for, such as leave to appeal, provision of a certificate of a point of law or execution where there is no order of stay of execution from this Court.

Mr Mnyele has, however, contended that those cases were distinguishable from the present one because those were not third party proceedings. In those cases Mr Mnyele stretched his argument and urged me to invoke my powers under section 95 of the Civil Procedure Code Act and separate the proceedings so that the present application could proceed with the hearing not with standing the existence of the notice of appeal. But unfortunately as I observed above, Mr Mnyele did not cite to me any authority to justify that course of action.

I am aware that this application is brought not only under the Advocates Ordinance (Chapter 341) but also under section 95 of the Civil Procedure Code Act. Now whether this Court is still seized of jurisdiction under section 95 of the Civil Procedure Code Act, I cannot do better than quote Kisanga J.A. in the *Afro Helicopter Ltd* case cited above at page 145:

> I think that the High Court has such Jurisdiction only so long as proceedings of appeal to this Court have not been commenced. Once such proceedings have been commenced the inherent jurisdiction of the High Court ceases.

I am bound by that decision. I would therefore hold that once there is a notice of appeal the proceedings cease to be before the High Court and the Civil Procedure Code Act ceases to apply. I would not therefore have jurisdiction under section 95 or any other provision of the Civil Procedure Code Act to split the proceedings as Mr Mnyele would want me to do.

In the result, I would uphold Mr Kesaria's objection that this Court has ceased to have jurisdiction to proceed with this application.

Accordingly, I will order that these proceedings be stayed pending the disposal of the intended appeal. I will however, make no order as to costs in the present matter.

GAUTAM JAYRAM CHAVDA *v.* COVELL MATTHEWS PARTNERSHIP LTD

IN THE COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Mroso and Nsekela, JJ.A.)

CIVIL APPEAL No. 106 OF 2002

(From the decision of the High Court of Tanzania at Dar es Salaam, Chipeta, J. dated 18 October 2001, in Miscellaneous Civil Appeal Number 62 of 2000)

Company Law – Winding Up – Company's inability to pay its debts – Repeated demands made in vain to the respondent to pay the appellant TZS. 240.5 million – Whether the respondent was unable to pay its debts – Section 167(e) of the Companies Ordinance Chapter 212.

Company Law – Winding Up – Petition for winding up – Appellant filed a verifying affidavit together with the petition on 29 March 2000 and the respondent filed an answer to the petition on 30 May 2000 – Whether the respondent legally filed a proper reply to the petition – Rule 35(1) of the Companies (Winding-up) Rules 1929.

Company Law – Winding Up – Petition for winding up – Locus standi of the petitioner – Petitioner not being a shareholder of the company – Whether may have locus standi to petition.

This is an appeal against the ruling of the High Court. The appellant petitioned for winding up of the respondent company. When the petition was called for hearing,

counsel for the respondent raised a preliminary objection that the petitioner, the appellant, had no *locus standi* to file the petition. Sustaining the preliminary objection, the learned judge struck out the petition on the ground that the appellant was neither a shareholder nor a creditor in terms of the provisions of section 167 of the Company's Ordinance *Chapter* 212. The appellant was aggrieved by the decision, hence, appealed to this Court.

Held: (i) Where it is shown that the respondent company was unable to pay its debts, then one of the circumstances warranting the winding up of the company would be available;

(ii) Once a petition for winding up of a company is filed, under the provisions of rule 35(1) of the Companies (Wind-up) Rules 1929 it is mandatory for the respondent to file an affidavit in opposition within seven days of filing the petition and the verifying affidavit;

(iii) Where the law clearly provides for an affidavit in opposition to be filed, a reply to the petition cannot be a substitute for the affidavit;

(iv) As in this case the issue raised in the petition for winding up has not been controverted in the pleadings because no affidavit in opposition was filed in terms of rule 35(1) of the Companies (Winding Up) Rules 1929, it follows that the appellant had *locus standi* to present the petition;

(v) If the debt had been disputed, the position would be different because a disputed debt cannot be used as a basis in a winding up proceedings.

Appeal allowed

Cases referred to:

(1) *Mann and another v. Goldstein and another* [1968] All ER 769

(2) *Re Tanganyika Produce Agency Limited* [1957] E.A. 241

(3) *Re Lympare Investments Ltd.* [1972] 2 All ER 385

Statutory Provisions referred to:

(1) Companies Ordinance Chapter 212 section 167(e)

(2) Companies (Winding-up) Rules 1929 rule 29 and 35(1)

Mr Marando for the Appellant

Miss Sheikh for the Respondent

JUDGMENT

(Dated 7 October 2003)

Lubuva, J.A.: This is an appeal against the ruling of the High Court (Chipeta, J.). The facts giving rise to this appeal are simple and short, they may be stated as follows: The appellant, Gautama Jayram Chavda petitioned for the winding up of the respondent company.

When the petition was called on for hearing, counsel for the respondent raised a preliminary objection that the petitioner, the appellant, had no *locus standi* to file the petition. Sustaining the preliminary objection, the learned judge struck out the petition on the ground that the appellant was neither a shareholder nor a creditor in terms of the provisions of section 167 of the Company's Ordinance Chapter 212 of the Laws. As already observed the appellant, aggrieved by the decision, has appealed to this Court.

The three grounds of appeal complained that:

(a) The learned judge erred in dismissing the appeal.

(b) The learned judge erred in considering and relying on annexure/ documents attached to the answer which was filed out of time.

(c) The learned judge erred in making findings of facts without evidence having been given.

Mr Marando, learned counsel for the appellant, faulted the learned trial judge for finding that the appellant was neither a share holder nor a creditor. He argued as his first ground that the trial judge did not set out fully the provisions of section 167 of the Companies Ordinance which relate to the circumstances in which a company may be would up by the Court. Paragraph (e) of section 167 which is relevant to the case was not reproduced.

Had the learned trial judge considered the provisions of this paragraph together with the fact that the petition revealed, among other things, that the appellant had a claim against the respondent and that the respondent was unable to pay its debts, he would have found that one of the circumstances for winding up of the respondent company under section 167 had been established. In support of this submission, Mr Marando called the attention of the Court to the book by the learned author, DJ Bakibinga **Company Law in Uganda,** pages 263 – 264. Once it is accepted and found that the circumstance under paragraph (e) of section 167 had been established in this case, it followed that grounds for winding up by the appellant had been established.

Responding to this submission, Miss Sheikh, learned counsel for the respondent, was firmly of the view that the provisions of paragraph (e) of section 167 of the Companies Ordinance was not in issue in this case. This is so, she said, because the appellant had not established his status as a creditor or as share holder. Not being a creditor, the appellant had no legal basis upon which to file the petition for winding up under the provisions of section 169 of the Companies Ordinance. Furthermore, she said that even if the trial judge had considered the provisions of paragraph (e) of section 167 of the Companies Ordinance as contended by the appellant, still it would not make any difference in the case. She contended that the learned trial judge would have come to the same decision because the respondent company was not unable to pay its debts. After all, she further stated, the appellant was claiming only 25% of the respondent's credit worth.

The issue is straightforward; namely whether the circumstance set out under paragraph (e) of section 167 of the Ordinance were considered. On this we need not be detained. From the ruling of the learned trial judge, it is clear that he did not consider the fact that the respondent was unable to pay its debts as alleged by the appellant. It was perhaps for this reason that in reproducing the provisions of section 167, paragraphs (e) was omitted. Paragraph (e) of section 167 provides:

(e) the company is unable to pay its debts.

So, the pertinent question is whether it had been established that the respondent was unable to pay its debts in terms of the provisions of paragraph (e).

It is common knowledge that where it is shown that the respondent company was unable to pay its debts, then one of the circumstances warranting the winding up of the company would be available. We are reinforced in this view by the learned author DJ Bakibinga in his views expressed in the book **Company Law in Uganda** at page 264. In part, it is stated that: "once the Court is satisfied that the company is insolvent, it would grant a winding up to a petitioner who is owed money by the apparent that repeated demands were made to the respondent to pay the appellant TZS. 240.5 million to no avail. The appellant alleges that the respondent was insolvent. It is important and relevant at this juncture to examine how the respondent addressed the allegation raised in the petition. To this, we will shortly advert to.

In that regard, Mr Marando took up the second limb of his ground of appeal. It was his contention that from the pleadings and the annexures thereto, the respondent did not have lawful pleadings in the Court record. In elaboration, he said in terms of rule 29 of the Companies (Winding-up) Rules 1929, the appellant as petitioner filed a verifying affidavit of the petition on 29 March 2000 together with the petition. This, Mr Marando urged, in terms of rule 29, was sufficient *prima facie* evidence of the statements in the petition. He went on to submit that under rule 35(1), the respondent did not file an affidavit in opposition to the petition within seven (7) days from 29 March 2000 when the petition and the verifying affidavit were filed.

Furthermore, Mr Marando submitted that according to this rule 35(1), a notice of the filing of the affidavit in opposition shall be served on the petitioner. In this case he maintained that neither the affidavit in opposition to the petition nor the notice were filed and served on the appellant. In the circumstances, because of failure on

the part of the respondent to comply with the mandatory requirement of rule 35(1) to file the affidavit in opposition and serve the notice of the filing on the appellant, the respondent did not have proper pleadings in the Court record.

According to Mr Marando, from the record, the respondent instead of filing an affidavit in opposition, filed an answer to the petition on 30 May 2000. This, he maintained, is not an affidavit in opposition in terms of rule 35(1), it should not therefore have been looked at or considered. On the other hand, he argued that even if it is taken that the answer to the petition was a substitute to the affidavit in opposition, it was not filled within seven days of the date when the affidavit verifying the petition was filed, namely 29 March 2000. This is so, Mr Marando emphasized, because the answer to the petition was filed on 30 May 2000 a period long after the statutory period of seven days.

In summary, Mr Marando submitted that in the absence of an affidavit in opposition to the petition, there was no credible evidence to controvert the appellant's statements in the affidavit in support of the petition. He added that in that situation there was sufficient material evidence on record to show that the appellant was a creditor of the respondent company which was unable to pay its debts. Had the learned judge addressed the matter in this light, he would have come to the conclusion that circumstances under section 167 of the Companies Ordinance had been established, Mr Marando contended. Consequently, Mr Marando concluded, the learned judge would have found that the appellant had *locus standi* in this matter.

With regard to the filing of affidavit in opposition to the petition, Miss Sheikh conceded that no such affidavit was filed. She said the circumstances of the case were such that there was no chance for filing the affidavit. However, even though the respondent did not have the chance of filing a proper affidavit in opposition, an answer to the petition was filed by the respondent on 30 May 2000. In spite of that however, Miss Sheikh claimed that there was sufficient material

based on the pleadings upon which the learned trial judge correctly came to the conclusion that the appellant was neither a share holder nor a creditor and thus had no *locus standi* in the matter.

Earlier in this judgment, we had indicated that we shall advert to the response of the respondent to the petition filed by the appellant. There is no gainsaying that once a petition for winding up of a company is filed, under the provisions of rule 35(1) of the Companies (Winding-up) Rules, it is mandatory for the respondent to file an affidavit in opposition within seven days of filing the petition and the verifying affidavit. In this case, the petition was filed on 29 March 2000 and the record shows that no affidavit in opposition was filed.

On this, Miss Sheikh, learned counsel for the respondent concedes that in the circumstances of the case, the respondent had no chance of filing the affidavit. So, it is accepted that the mandatory requirement of rule 35(1) was not satisfied, for whatever reasons aforementioned by Miss Sheikh. What is the effect of failing to file the affidavit in opposition to the petition for winding up in the matter before us. In an attempt to respond to this question Miss Sheikh was quick to point out that an answer to the petition was filed on 30 May 2000. With respect, Miss Sheikh, is not correct on this point. Where the law clearly provides for an affidavit in opposition to be filed, a reply to the petition cannot in anyway be a substitute for the affidavit in opposition, it was filed long after the expiry of seven days from 30 March 2000 when it was filed. It should not be looked at and considered at all, as urged by Mr Marando. We are therefore in agreement with Mr Marando that no proper legal reply was furnished to the petition by the appellant. The averment in the pleadings by the appellant remained, as it were, uncontroverted.

As observed earlier, circumstance (e) of section 167 of the Ordinance had not been addressed by the learned trial judge. In this paragraph, the circumstance is that the respondent was indebted and unable to pay the appellant. Whether this was so or not, it was an aspect which could be explained or controverted by the respondent in the pleadings.

As happened in this case, the issue raised in the petition for winding up has not been controverted in the pleadings as no affidavit in opposition was filed in terms of rule 35(1). The answer in reply to the petition filed on 30 May 2000 does not satisfy the requirement of the law either. In the circumstances, the appellant's assertion in the petition that the respondent was indebted to him and that the respondent company was unable to pay the debt stands uncontroverted. In that case, the debt claimed by the appellant at least until the time the matter was before the trial judge, was not disputed in the pleadings. It is our view in that situation, unlike the case of in *Mann and another v. Goldstein and another* (1), where the winding up petition was based on a disputed debt, the existence of the debt has not legally been disputed. It follows therefore, that the appellant had *locus standi* to present the petition. If the debt had been disputed, the position would be different because it is trite principle that a disputed debt cannot be used in a winding up proceeding – see for instance, *Re Tanganyika Produce Agency Limited* (2) and *Re Lympare Investments Ltd.* (3).

In recapteritulation, having regard to the circumstances of the case, we are satisfied that the learned trial judge erred in not addressing and finding that the circumstance under paragraph (e) of section 167 of the Ordinance had been shown. Had the learned trial judge done so, we think he would have found that the appellant was a creditor. Furthermore, we are also of the settled view that had the trial judge properly directed himself to the facts and circumstances of the case as well as the applicable law, he would have found that the appellant's petition had not been replied by way of an affidavit in opposition. For these reasons, the learned trial judge should have come to the conclusion that the appellant had *locus standi* to present the petition of winding up of the respondent company. It was an error to hold otherwise.

In the upshot, we allow the appeal and set aside the order of the High Court of 18 October 2002 sustaining the preliminary objection. It is further ordered that the case is to be remitted to the High Court with direction to proceed with the hearing on merit before another

judge from the stage reached before the preliminary objection was raised. Costs to the appellant.

PAUL SOLOMON MWAIPYANA *v.* NBC HOLDING CORPORATION

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Nsekela, JJ.A.)

CIVIL APPEAL No. 68 OF 2001

(From the decision of the Resident Magistrate's Court of Dar es Salaam, at Kisutu, Luguru, PRM, Extended Jurisdiction, dated 3 February 2000 in Civil Appeal Number 72 of 1999)

Labour Law – Summary dismissal – Labour Conciliation Board orders reinstatement of dismissed employee – Whether employer has option to pay statutory compensation or other benefit in lieu of reinstatement – Sections 24(1)(b) and 25(1)(a) of the Security of Employment Act 1964.

Labour Law – Summary dismissal — Order of the Labour Conciliation Board reinstating employee pursuant to section 24(1)(b)of the Security of Employment Act 1964 – Board's decision brought to Court for enforcement – Whether the Court may review the decision – Section 25(1)(a) of the Security of Employment Act 1964.

Finding that the respondent was not justified to summarily dismiss its employee, the appellant, the Conciliation Board ordered his reinstatement pursuant to section 24(1)(b) of the Security of Employment Act 1964, and no appeal was preferred against the decision. Instead of complying with the order, however, the respondent terminated the appellant's service on payment of statutory compensation. The appellant then made an application to the District Court seeking enforcement of the Board's decision.

Rather than implementing the decision, the District Court substituted payment of terminal benefits for reinstatement. In the High Court, on appeal, the respondent challenged the decision of the District Court successfully, the judge holding, in effect, that where the Board has ordered reinstatement pursuant to section 24(1)(b), the employer can opt to terminate the employee's service on payment of statutory compensation. The appellant was dissatisfied, hence this further appeal.

Held: (i) Where a decision of the Conciliation Board is made pursuant to section 24(1)(b) Security of Employment Act 1964 the decision can only be enforced in the manner laid down in section 25(1)(a) of the Act;

(ii) section 25(1)(a) of the Security of Employment Act 1964 affords the employer no option to pay statutory compensation or other benefit in lieu of reinstatement;

(iii) Where the Board's decision pursuant to section 24(1)(b) of the Act is referred to Court for enforcement the Court has no power to revien. the decision

Appeal allowed

Cases referred to:

(1) *SM Msisi v. Tanzania Railways Corporation,* CAT – Civil Appeal Number 39 of 1995 (unreported)

(2) *D.A.N. Kavishe v. Arusha International Conference Centre,* CAT – Civil Application Number 1 of 1987 (unreported)

(3) *Mwanza Textile Ltd v. A. Masatu,* CAT – Civil Appeal Number 8 of 1998 (unreported)

Statutory provisions referred to:

(1) The Employment Act Chapter 366, section 132

(2) The Security of Employment Act Chapter 386 RE 2002, sections 5A(5), 24(a) and (b), 25(a) and 40A (5)(a) and (b)

Mr Ndolezi, for the Appellant

Mrs Kashonda, for the Respondent

JUDGEMENT

(Dated 7 October 2003)

Lubuva, J.A.: The appellant, Paul Solomon Mwaipyana, was dissatisfied with the decision of Principal Resident Magistrate (Luguru, PRM) exercising extended jurisdiction, hence, this appeal has been preferred.

For an ease appreciation of the sequence of events giving rise to the appeal, we think it is desirable to preface the judgment with a brief outline of the background. The appellant was an employee of then National Bank of Commerce (NBC) from 13 August 1981 as a clerk. It is however, to be observed that with the dissolution of the NBC on 30 September 1997, the respondent, NBC, Holding Corporation, was joined as a party to the proceedings. On 28 May 1996, the appellant was summarily dismissed. He took up the matter with the Dar es Salaam Regional Conciliation Board. Acting under the provisions of section 24(1)(b) of the Security of Employment Act 1964, (hereinafter referred to as the Act) on 20 August 1997 the Board ordered the appellant to be reinstated. However, under the provisions of section 40A(5) of the Act, the respondent opted to pay the appellant statutory compensation amounting to a total of TZS. 61 240. The appellant was dissatisfied, so, after unsuccessful negotiations for a settlement out of Court, the matter was referred to the District Court under section 132 of the Employment Ordinance Chapter 366 seeking the enforcement of the decision of the Conciliation Board as a decree. The application was granted on 23 October 1998.

On the other hand, the respondent, was still not prepared to implement the decision of the Conciliation Board as ordered by the District Court. An appeal was preferred against the decision of the District Court. The Principal Resident Magistrate (PRM Ext. Jurisdiction) allowed the appeal, and set aside the decision of the District Court with the result that the decision of the Conciliation Board was restored. The learned Principal Resident Magistrate further held that the appellant

was not entitled to any other payments claimed in addition to what the respondent had already paid. This appeal is against this decision.

Mr Ndolezi, learned counsel, advocated for the appellant and the respondent was represented by Mrs Kashonda, learned counsel. A three point-memorandum of appeal was filed. In essence, these grounds are to the following effect: that the Principal Resident Magistrate Extended Jurisdiction, erred first, in reviewing the decision of the Conciliation Board. Second, that the Principal Resident Magistrate (Ext. Jurisdiction) erred in holding that the appellant had been paid all his claims and third, that the Principal Resident Magistrate (Ext Jurisdiction) erred in not holding that as a matter of law, as long as the Conciliation Board had not been challenged, the respondent was bound to implement the decision as ordered by the Board.

Mr Ndolezi, forcefully argued these grounds. He submitted that it was erroneous on the part of the Principal Resident Magistrate, Extended Jurisdiction, to interpret and give effect to the decision of the Conciliation Board contrary to the law. According to him, after the decision of the Conciliation Board ordering the reinstatement of the respondent in terms of the provisions of section 24(1)(b) of the Act, the matter was proceeded under an inapplicable provision of the law. He maintained that instead of reinstating the appellant as ordered by the Conciliation Board, the respondent opted to terminate the service of the appellant with payment of terminal benefits. This, Mr Ndolezi insisted, was contrary to the law. He said once the Conciliation Board had ordered the reinstatement of the appellant and no appeal had been preffered to the Minister, there was no option for the appellant but to implement the decision of the Board.

Furthermore, Mr Ndolezi said that the decision of the Board to reinstate the appellant had to be implemented by invoking the provisions of section 25 of the Act and not section 40A(5) as happened in this case. He also contended that the Conciliation Board's decision having been dealt with in the District Court and on appeal before the Principal Resident Magistrate Extended Jurisdiction by invoking an inapplicable

provision of the law was improper. Worse still, he went on, the Principal Resident Magistrate purported to review the decision of the Conciliation Board contrary to the law as well. In view of what he referred to as inconsistent decisions in the High Court and this Court regarding the application of sections 40A(5) and 24(1)(b) of the Act, he urged the Court to clarify the position regarding the import and application of these sections. He prayed for the reinstatement of the appellant as ordered by the Conciliation Board or payment of the appellant's dues in view of the dissolution of the National Bank of Commerce.

Mrs Kashonda, learned counsel, for the respondent responded to these submissions: First, that the appellant had absented himself from his employment for about seven years after taking leave without payment. For this reason the appellant was not entitled to any payment for the period he was away from his work. Second, the Principal Resident Magistrate, (Ext Jurisdiction) was entitled to interpret the decision of the Conciliation Board in order to satisfy himself that the decision was properly implemented. Third, in lieu of reinstatement, the appellant had been fully paid his dues in accordance with the provisions of section 5A(5) of the Act. In support of this submission, she referred the Court to its decisions *SM Msisi v. Tanzania Railways Corporation,* (1) and *DAN Kavishe v. Arusha International Conference Centre,* (2).

We think the determination of this appeal hinges on the interpretation and application of sections 40A(5), 24 and 25 of the Act. From the submissions by counsel for both parties, it is apparent that the application of these provisions of the law have at times not been free from difficulty. It seems to us therefore that there is merit in the submission of Mr Ndolezi, that the import of section 40A(5) of the Act is perceived differently. This is evident from some of the decisions of the High Court to which our attention was called by learned counsel.

In this case, it is to be observed at once that the Conciliation Board's order for the reinstatement of the appellant made pursuant to the provisions of section 24(1)(b) of the Act, was not appealed against to the Minister. In that situation, we agree with Mr Ndolezi that its implementation is provided for under section 25(1)(a) and not section 40A(5) of the

Act as happened in this case. Section 25(1)(a) provides for the implementation of the orders of the Board. It provides that:

> 25. Where, in the exercise of its powers under this Part, a Board orders:
>
> (a) the re-engagement or re-instatement of an employee, *the employer shall* (unless such employee refuses to be re-engaged or re-instated, as the case may be) *re-engage or re-instate the employee in his former employment, from the date of the employee's summary dismissal* ... [emphasis supplied]

From the provisions of this section, we think it is unambiguously clear, that the order of the Conciliation Board had to be implemented by the respondent. There is no option for payment of statutory compensation or other benefit provided in lieu of reinstatement. In this case, instead of implementing the Board's decision by invoking the provisions of section 25(1)(a) of the Act, section 40A(5) was instead applied.

When the matter was referred to the District Court and then on appeal, both the District Magistrate and the Principal Resident Magistrate (Ext Jurisdiction) did not address this issue. Worse still, both the Courts below, in their endeavour to interpret the Board's decision, unfortunately went beyond the scope and purview of the decision of the Conciliation Board. For instance, in the District Court where, all that was sought was the enforcement of the Conciliation Board as a decree, the magistrate awarded claims pertaining to terminal benefits and the Principal Resident Magistrate (Ext Jurisdiction) also fell into the same error of reviewing the Conciliation Board's decision.

In fine, we agree with Mr Ndolezi, that in the circumstances of the case, in the absence of an appeal to the Minister, in terms of the provisions of section 25(1)(a) of the Act, nothing less than the reinstatement of the appellant as ordered by the Board was required. To deal with the matter under section 40A(5) of the Act as the Courts below did, was clearly improper. The facts that the respondent was paid statutory compensation as urged by Mrs Kashonda, did not cure the impropriety.

On the other hand, as a result of the amendment to the Act, brought about by the Labour Laws (Miscellaneous Amendments) Act Number 1 of 1975, the Conciliation Board may also order the reinstatement of an employee under section 40A(5) of the Act, which, in part, provides that:

> 40A (1) Notwithstanding any other provision of this Act or of any other written law, where an employer terminates the employment of any employee or summarily dismisses any employee and the employee is aggrieved by such termination or dismissal, the employee may at any time before the expiration of fourteen days from the date on which such termination or dismissal takes effect, refer such termination or dismissal to the Board and the Board may, if it is satisfied:
>
> 1.- (f)————
>
> (5) Where a re-instatement or re-engagement has been ordered under this section and the employer refuses or fails to comply with the order:
>
> a. in the case of an order made by a Board against which no reference has been made to the Minister, within twenty-eight days of the order being made; or
>
> b. in the case of an order made by the Minister on further reference to him, within fourteen days of the order being made by the Minister.
>
> The employer shall be liable to pay the employee compensation of an amount equal to the aggregate of:
>
> 1. the statutory compensation computed in accordance with section 35; and
>
> 2. a sum equal to twelve months' wages at the rate of wages to which the employee was entitled immediately before the termination of his employment or, as the case may be, his dismissal,
>
> order the employer to re-instate or re-engage the employee.

Upon a close reading of this section, it is plain that under the provisions of sub section (5)(a) and (b) where the employer refuses or fails to comply with the decision of the Board against which no reference has been made to the Minister or where, reference has been made, the order of the Minister, he shall be liable to pay statutory compensation and twelve months' wages. So, the import and effect of the two sections are distinctly different. That is, in applying section 24(1)(b) of the Act, the employer who terminates the services of an employee has no option but to implement the Board's decision to reinstate the employee. On the other hand if section 40A(5) is applied, the employer who refuses to comply with the order would be held liable to pay statutory compensation and twelve months' wages. This, it is to be observed, is described in general terms as an alternative or option to reinstatement, an aspect which is not available under section 24(1)(b). In the instant case, had the matter been dealt with properly by invoking section 25(1)(a) of the Act, the question of paying the statutory compensation as an alternative would not arise, it was not available.

Finally, we wish to observe briefly on Mr Ndolezi's claim that there is need for clarifying the import and application of section 40A(5) of the Act in order to avoid conflicting and inconsistent decisions by the Courts. From the foregoing analysis of sections 24(1)(b), 25(1)(a) and 40A(5), we can see no reason for conflict or inconsistency. On a proper construction and application of these sections, the legal position is crystal clear. That is, as observed earlier, once section 24(1)(b) is invoked, there is no option available to the employer except to reinstate the employee as ordered by the Conciliation Board. On the other hand if the reinstatement is ordered under section 40A(5) the employer who refuses to comply with the order, is liable to pay statutory compensation and twelve months' salaries as set out under paragraph (b)(i) and of section 40A(5). This is as it were, the alternative open for the employer if he fails to effect the order for reinstatement. The Court reiterated this legal position in *DAN Kavishe v. Arusha International Conference Centre, (2)*. With respect to counsel, the other cases cited, namely, *Mwanza Textile Ltd. v. A.*

Masatu (3) and *SM Msisi v. Tanzania Railways Corporation* (1) do not deal specifically with the import of section 40A (5). Rather, they deal first with the fact that section 28 of the Act, ousts the jurisdiction of the Court and second, the issue whether the Minister can qualify the order for reinstatement.

For the foregoing reasons, we are satisfied that the decision of the Conciliation Board was proceeded in the District Court and on appeal before the Principal Resident Magistrate (Ext Jurisdiction) on the basis of an inapplicable section of the law. The proceedings in the Courts below were therefore improper. Accordingly, the appeal is allowed, the decision of the Principal Resident Magistrate (Ext Jurisdiction) and the District Court is set aside.

Consequent upon this decision, there remains the decision of the Conciliation Board to reinstate the appellant to be implemented. However, we are aware of the fact that with the dissolution of the National Bank of Commerce Limited with effect 30 September 1997, it is not feasible to effect physical reinstatement of the appellant at this time. It would be a futile exercise to make an order to that effect. In the event, it is ordered that the appellant is to be paid his entitlements applicable under the terms of employment from 28 May 1996, when he was dismissed, to 30 September 1997, when the National Bank of Commerce Limited was dissolved. It is so ordered. Costs to the appellant.

EDWIN ISDORI ELIAS *v.* SERIKALI YA MAPINDUZI ZANZIBAR

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Munuo and Nsekela, JJ.A.)

CRIMINAL APPEAL No. 145 OF 2002

(From the Judgment of the High Court of Zanzibar at Vuga, Dourado, J. dated 29 May 2000 in Criminal Appeal Number 9 of 2000)

Criminal Practice and Procedure – Appeals – Second appeal – Duty of an appellate Court on a second appeal – Section 276(1) of the Criminal Procedure Decree of Zanzibar.

Evidence – Misdirection or non-direction on the evidence – Duty of appellate Court when there have been mis-directions or non-directions by the Court(s) below.

Criminal Practice and Procedure – Judgment – What a judgment should contain – Section 276(1) of the Criminal Procedure Decree Zanzibar.

Appellant was convicted of robbery with violence and was sentenced to three years' imprisonment by the Regional Magistrate's Court. His appeal against conviction was dismissed by the High Court and the sentence was enhanced to ten years' imprisonment. In his judgment, the High Court judge did not analyse or evaluate the evidence, stating simply that the trial court's finding was on adequate facts. On the enhancement of sentence, the judge said that the Court had to take judicial notice of the prevalence of the offence in Zanzibar and that such bandits like the appellant "turn tourists away". There was no evidence on the record to that effect.

Held: (i) The judgment of the High Court contained no point or points for determination, and no reasons for the decision itself; it did not constitute a judgment under the provisions of section 276(1) of the Criminal Procedure Decree (of Zanzibar) as it simply supported the judgment of the Trial Court without analysing and evaluating the evidence adduced at the trial;

(ii) On a second appeal, the Court is only supposed to deal with questions of law, where the findings of fact are based on a correct appreciation of the evidence; if both Courts below completely misapprehend the substance, nature and quality of the evidence, resulting in an unfair trial, the Court must, in the interests of justice, intervene.

(iii) The principle that the Court on a second appeal is only concerned with points of law presupposes that there are no misdirections or non-directions on the evidence; where there are such misdirections or non-directions on the evidence, the Court is entitled to look at the relevant evidence and make its own findings of fact;

(iv) The general description of the suspects as given by the two eye-witnesses as being tall, fat , black or short and slim could fit many young boys and did not establish the identity of the appellant without doubt, considering that the golden chain robbed was snatched when the complainant was busy taking pictures;

(v) Judicial notice is the notice and acceptance by a Court, for the purpose of a case, of the truth of certain notorious facts without requiring proof; in this case there was nothing on the record to indicate that the offence of robbery with violence was rampant or interfered with tourism in Zanzibar, and the learned High Court judge wrongly took judicial notice of an alleged prevalence of the offence.

Appeal allowed

Cases referred to:

(1) *Salum Mhando v. R.* [1993] T.L.R. 170

(2) *Hassan Mzee Mfaume v. Republic* [1981] T.L.R. 167

(3) *DPP v. Jaffari Mfaume Kawawa* [1981] T.L.R. 148

Mr Mbwezeleni for the Appellant

Mr Abdulhakim Ameir State Attorney for the Respondent

JUDGMENT

(Dated 31 October 2003)

Munuo, J.A.: In Criminal Case Number 212 of 1998 in the Regional Court at Vuga within Zanzibar, the present appellant, Edwin Isidor Elias, was charged with the offence of robbery with violence contrary

to sections 258 and 259(1) of the Penal Decree of Zanzibar Chapter 13 as amended by section 2 Schedules 1 and 2 of Act Number 2 of 1991. It was alleged that on the 11 August, 1998 at about 12:10pm at Kilimani area in Urban District within Zanzibar, the appellant, Edwin Isidor Elias, threatened one Arafe Saleh Hemed with a knife thereby seizing her gold necklace valued at TZS. 100 000. He was convicted and sentenced to three years imprisonment.

Subsequently the appellant unsuccessfully lodged Criminal Appeal Number 9 of 2000 in the High Court of Zanzibar, before Dourado, J. who enhanced the three years imprisonment sentence to ten years imprisonment giving rise to this second appeal against the conviction and sentence.

The complainant, Arafa saleh Hemed, testified as PW1. She stated that on the material afternoon she took her six visitors from Arabia to the Kizingo beach at Kilimani area for recreation. Her sister in law, PW2 Zena Salum Jaffar, accompanied the visitors. While taking pictures, two suspects stormed into the group. The appellant allegedly threatened PW1 with a knife whereupon he seized a golden chain from the neck of the complainant and ran away with it. PW2 Zena Salum Jaffar, deposed that she could not hear the words the appellant uttered to PW1 but she saw him snatch the necklace and speedly esChaptere with it. Both eye witnesses visually identified the appellant because they used to see him around the area. After the robbery, PW1 reported the matter at Madema Police Station. With the assistance of PW3 Mbarak Salum, PW1 was able to trace and arrest the appellant whereafter he was charged with the offence of robbery with violence.

In this appeal, Mr Mbwezeleni, learned advocate, represented the appellant. The respondent, the Revolution Government of Zanzibar, was represented by Mr Abdulhakim Ameir, learned State Attorney. The learned advocate for the appellant filed four grounds of appeal namely that:

i. The learned judge erred in law in deciding the appeal without making his own evaluation of the facts of the case against the grounds raised in the appeal before him.

ii. The learned judge erred in law in determining the appeal based on the findings of the RM's Court while the same was reached on contradictory and weak evidence on the part of the prosecution witnesses.

iii. The learned judge erred in law in dismissing the appeal basing on the RM's findings while the same was reached contrary to the normal procedure as the RM's findings were reached without analyzing the so called evidence before the Court.

iv. That the learned judge erred in law in enhancing the punishment on the appellant without a proper legal base for the same.

Mr Mbwezeleni faulted the judgment of the learned judge in that it does not qualify to be called a judgment because it lacks analysis and evaluation of the evidence adduced at the trial which evidence was also not analyzed or evaluated by the learned trial Regional Magistrate. The learned judge failed to comply with the provisions of section 276(1) of the Criminal Procedure Decree of Zanzibar, the learned advocate for the appellant contended, because the said judgment does not contain a point or points for determination, reasons for the decision and the decision itself. He criticized the learned judge and the trial magistrate for failing to address and resolve contradictions relating the time, the date of the commission of the robbery and the date of the arrest of the appellant which were inconsistently deposed upon by the two eye witnesses namely PW1 Arafa Salehe Hemed and PW2 Zena Salum Jaffar. Mr Mbwezeleni further contended that the identification of the suspect who seized the complainant's necklace was doubtful for want of specification. He cited the case of *Salum Mhando v. Republic* (1) and *Hassan Mzee Mfaume v. Republic* (2) in which the Court upset convictions because the identification of the suspects was weak coupled with the fact that the Trial Court and the appellate Judge had neither evaluated the evidence nor resolved contradiction in the prosecution evidence.

On the propriety of the sentence, the learned advocate for the appellant criticized the learned judge for unilaterally enhancing the

three year sentence imposed on the appellant by the Trial Court to ten years on the wrong premise of taking judicial notice of the prevalence of the crime of robbery with violence, which, Mr Mbwezeleni asserted, is rarely committed in Zanzibar.

The learned State Attorney, Mr Abdulhakim Ameir, supported the conviction but not the enhancement of the sentence. He conceded that the judgment of the learned judge contravened the provisions of section 276 (1) of the Criminal Procedure Decree which is why this Court has to step into the shoes of the Courts below, evaluate the evidence and determine the case on merit. The learned State Attorney dismissed the minor discrepancies relating to time and dates because they do not go to the root of the case and are thence not of any materiality. He pointed out that in his sworn defence, the appellant admitted that he was at the Kizingo beach around 1:00pm which means that he had the opportunity to commit the robbery and did indeed rob the complaint's golden chain as alleged by the two eye witnesses, PW1 Arafa Saleh Hemed and PW2 Zena Salum Jaffar. As for the sentence, the learned State Attorney found no aggravating factors or justification for enhancing the sentence to ten years imprisonment considering the low rate of robbery with violence in Zanzibar.

Tackling grounds 1, 2 and 3 together, we are in agreement with both learned counsel that the judgment of the learned judge contravened the provisions of section 276(1) of the Criminal Procedure Decree Chapter 14 which states.

> 276(1) Every such judgment shall, except as otherwise expressly provided by this Decree, be written by the presiding officer of the Court in the language of the Court, and shall contain the point or points for determination, the reasons for the decision, and shall be dated and signed by the presiding officer in open Court at the time of pronouncing it.

In the present case, the learned judge determined the appeal vaguely and generally as follows:

JUDGMENT

The learned RM based his finding on adequate facts. I am not prepared to upset his finding. The conviction will stand. As regard sentence, the Court must take judicial notice of prevalence of such offences.

Zanzibar relies on tourism and bandits like Edwin Isidore turn tourists away. The Court will not allow this. I am therefore increasing *(sic)* from three years to a sentence to one of 10 years.

Let this be a lesson to others who may be tempted to enrich themselves.

Dated this 29 August 2000.

W. Dourado, J.

As illustrated by the above general judgment, the same contains, as submitted by the appellant's advocate, no point or points for determination, the reasons for decision and the decision itself. In other words the above sentences do not constitute a judgment under the provisions of section 276(1) of the Criminal Procedure Decree of Zanzibar, Chapter 14 for it simply supported the judgment of the Trial Court instead of analyzing and evaluating the evidence adduced at the trial.

Faced with a similar situation, the Court, in the case of *Salum Mhando v.* R (1) at page 174 interfered with the findings of the Trial Court and observed:

> ... As it will be noticed, we have taken the unusual step in this appeal of interfering with the concurrent findings of fact made by the two Courts below. On a second appeal to this Court, we are only supposed to deal with questions of law. But this approach rests on the premise that the findings of fact are based on a correct appreciation of the evidence. If as in this case both Courts completely misapprehend the substance, nature and quality of the evidence, resulting in an unfair conviction this Court must in the interest of justice intervene. In the High Court the learned judge approached the case globally forgetting that the appellant was charged with two counts which had to be considered separately. The consequence

> of this approach was that the learned judge failed to analyze the evidence touching on each count; this led him to make general statements which cannot be supported by the evidence in support of each count. In a case in which a similar problem arose, *DPP v. Jaffari Mfaume Kawawa* (3) this Court held at page 153:
>
> The next important point for consideration and decision in this case is whether it is proper for the Court to evaluate the evidence afresh and come to its own conclusion in matters of fact. This is a second appeal brought under the provisions of section 5(7) of the Appellate Jurisdiction Act 1979. The appeal therefore lies in this Court only on a point or points of law. Obviously this position applies only where there are no misdirections or non-directions on the evidence, a Court of second appeal is entitled to look at the relevant evidence and make its own findings of fact.

Like in *Salum Mhando's* case, in this case the Courts below did not analyze or evaluate the evidence which is why we have to interfere with findings of the Trial Court. We think the learned State Attorney rightly submitted that the minor inconsistencies relating to dates and time of the commission of the robbery and the arrest of the appellant are not of any substance because the complainant's golden necklace was snatched by a suspect at the Kizingo beach at Kilimani area on the 11 August 1998 in the afternoon which incident the complainant reported at Madema Police Station on the same day.

The issue for determination in this appeal is whether the two eye witnesses, PW1 and PW2, properly identified the appellant as the person who committed the suspected robbery.

We are of the view that the identification of the appellant was doubtful. One, when the complainant testified on the aspect of identification she stated:

> ... we were invaded by some young persons. These people were not new to us as sometimes I was seeing them. I know them by their face, and in this Court there is only one who is in the dock.

Then in cross-examination by the appellant, PW1 stated:

> I know you just on the street, —— it is you who took my neck chain.

During re-examination, PW1 stated:

> —— I was living at Kilimani and I was seeing the accused person.

On her part, PW2 Zena Salum Jaffar had the following to say on the identification of the suspect who robbed the golden necklace of the complainant:

> ... Later came two young boys, who passed through *(sic)* us three times, later those people came and grabbed the neck chain of my sister in-law when she was taking pictures, then these people went in speed, ... we shouted and then we returned home and my sister in-law went to the police station. I know those boys one is fat, tall and black, and one was short and slim. Among the two, one is present, he is in the dock...

When cross-examined by the appellant PW2 stated:

> I do see you on several parts around the Urban town. I do not know where you are living. I have no special job in town ... I was not very near but I managed to see what you were doing. We were six.

From the above extracts from the testimonies of the two eye witnesses, we are of the settled view that the general description of the suspects being tall, fat and black or short and slim, could fit many other young boys. We observed the appellant at the hearing and found it difficult to fit him in the category of tall, fat and black or short and slim, could fit many other young boys. We observed the appellant at the hearing and found it difficult to fit him in the category of tall, fat and black or short and slim persons. In that regard, we find that the evidence of the two eye witnesses did not establish the identity of the appellant without doubt considering that the golden necklace was snatched when the complainant was busy taking pictures and as PW2 Zena Salum Jaffar, the other eye witness stated, she was not within a close range:

> —— I was not very near but I managed to see what you were doing-

In the light of the above, we allow grounds 1, 2 and 3 of the appeal.

With regard to ground four of the appeal, there is no material on the record to indicate that the offence of robbery with violence is rampant or that it has interfered with tourism in Zanzibar. On the contrary, the learned State Attorney conceded to the contention of the learned advocate for the appellant, that the learned judge wrongly took judicial notice of an alleged prevalence of the crime of robbery with violence because such offences are rarely committed on this Island. On judicial notice, we find it pertinent to refer to **Law Lexicon, The Encyclopedia Law Dictionary**, 1997 Edition at page 1015 which defines:

> Judicial notice is the notice which a judge will take of a fact without proof. Acceptance by Court for the purpose of a case, of the truth of certain notorious facts without requiring proof.

The record shows that the prosecutor indicated that the appellant was a first offender and prayed that the appellant be given a sentence:

> Which will deter and reform the accused not to repeat the same.

The learned trial magistrate sentenced the appellant;

> — to go into an Education Centre for a period of three years without corporal punishment.

As it is, the prosecutor wanted the appellant to get a punishment which would facilitate his reform. As the learned State Attorney conceded that the offence of robbery with violence is rarely committed, the learned judge's reliance on judicial notice based on the prevalence of the said crime, was, to put it mildly, a false alarm at the moment. We have no facts to enable us to take judicial notice of the prevalence of the crime of robbery with violence in Zanzibar. Nor do we have facts to enable us to say that the said crime has interfered with tourism. Hence we allow ground four of the appeal.

For the reasons stated above, we quash the conviction and set aside the sentence. The appellant should be released forthwith unless detained for lawful cause. We accordingly allow the appeal.

JUMA ALI ABDALLA AND OTHERS *v.* SERIKALI YA MAPINDUZI ZANZIBAR (SMZ)

COURT OF APPEAL OF TANZANIA
AT ZANZIBAR

(Mroso, Munuo and Nsekela, JJ.A.)

CRIMINAL APPEAL No. 45 OF 2003

(From the judgment of the High Court of Zanzibar at Chakechake, Dahoma, J. dated 27 December 2002)

Administrative Law – Delegation of Powers – Power to issue clove export permit – Power vested in a Sheha – Whether that power may be exercised by a shehia councillor – Regional Administration Authority Act Number 1 of 1998, Interpretation of Laws and General Provisions Act 1984, and the Cloves Act 1985.

The appellants were convicted of exporting dry cloves without a permit under the Cloves Act 1985. They were each sentenced to 12 years in the Education Centre and ordered to plant 200 seedlings of clove trees each. Their appeal to the High Court against conviction and sentence was dismissed hence this appeal to the Court of Appeal. Their central contention was that they had an export permit issued by a *Shehia* councillor.

Held: Under section 18 of the Regional Administration Authority Act 1998, the functions of the *Shehia* Advisory Council are purely advisory in nature and not executive or administrative which are vested in the Sheha under section 17(1) of the Act

Appeal dismissed

Mr Ussi K. Haji, for the Appellants

Mr Hassani, for the Respondent (SMZ)

JUDGMENT

(Dated 31 October 2003)

Nsekela, J.A.: The appellants, Juma Ali Abadalla, Juma Suleiman Ali, Issa Massoud Abdalla, Haji Makame, Ali Adam Hamza, Said Ali Khamis, Suleiman Habib Suleiman, Waziri Mwalimu Shinondo, Salum Mohamed Seif and Omari Issa Nassor were convicted of the offence of exporting dry cloves without a permit contrary to section 3(1), (2) and (3) of the Cloves Act 1985 (Act Number 11 of 1985). The learned trial Regional Magistrate (Abraham, MRM 11) sentenced each of the appellants to a custodial sentence of twelve (12) years in the Educational Centre and that each appellant would plant two hundred seedlings of clove trees on an area to be specified by the Minister. Furthermore, the Court ordered that TZS. 4 924 800 being proceeds from the cloves in question and the dhow with Reg. Number WMKP 491 "Ngangari Kinomanoma" Exhibit P2 be confiscated and forfeited to the Government. They appealed to the High Court against both conviction and sentence but the appellate judge (Dahoma, J.) dismissed the appeal, hence this appeal to the Court.

The background to the case may be briefly stated as follows: On the 22 August 2001 at about 7:00pm, officers belonging to Kikosi Maalum cha Kuzuia Magendo (KMKM) went out to the ocean on their normal patrol duties. While on patrol, these officers, PW1 Lieutenant Iddi Juma Haji; PW2 Amme Mohamed Ussi; and PW3 Johari Mmanga Khamis encountered the appellants who were in a dhow and arrested them. The dhow had a cargo of cloves. When searched in the morning, the appellants were found with thirty three bags of dry cloves and seven "*vipeto*", the subject matter of this appeal.

PW4, Shadhir Othman Shaame, the *Shehia* of Chumbageni, testified that he did not issue on the 22 August 2001 a permit to any of the appellants to sell cloves outside his *Shehia*.

Mr Ussi K Haji, learned counsel appearing for the appellants, filed a total of six grounds of appeal, namely:

(1) That the High Court had erred in upholding the decision of the Regional Court which convicted and sentenced the appellants on the basis of weak evidence of the prosecution witnesses;

(2) That the High Court had erred in law and facts in failing to consider that the Regional Court's decision to convict the appellants based on the fact that the appellants should have produced the permit, exhibit D1 at early stage when the case for the prosecution had not started was wrong.

(3) That the High Court had erred in law and fact in upholding the conviction and saying that the appellants did not in the first instance put forward the permit as an answer to the charge and that when it was produced it did not appear to be genuine as it was written in an ordinary piece of paper.

(4) That the High Court erred in law and should have considered and accepted the reasons put by the appellants for their decision not to produce the permit until their defence comes and that there is no format for the issue of permits under section 3(2) of the Cloves Act 1985.

(5) That the High Court had erred in failing to consider that the Regional Court was wrong to nullify exh. D1 on the reasons that it was issued by DW8 *(sic)* (DW9), Assistant to Sheha the defects found in it and contradictions in the defence case regarding the issue of Exhibit D1.

(6) The High Court had erred in failing to peruse the evidence of both the prosecution and defence which in all respects led to the acquittal of the appellants.

The appellants gave evidence on oath. They did not deny that they were arrested on the 22 August 2001 by PW1; PW2 and PW3 while in a dhow which was loaded with thirty eight (38) bags of dry cloves and seven (7) "*vipeto*" while transporting them from Kwamwinyikazi to Mkoani. The thrust of their defence as testified by DW1, Juma Ali Abdalla, DW7 Salum Mohamed Seif and DW8, Suleiman Habibu Suleiman was to the effect that they had a valid permit that had been issued to the three appellants by DW9, Ms. Mwajuma Saidi Mzee. DW9 admitted in her evidence that she issued a permit in the names of DW7 and DW8 to transport their cloves to Mkoani and further testified that she assisted the Sheha in the discharge of his statutory functions including the issuance of permits for the transportation of cloves from one place to another.

Mr Ussi K. Haji, learned counsel, relied on the evidence of DW9, Ms. Mwajuma Said Mzee, who issued exhibit D1 to the appellants. He submitted that she was an Assistant Sheha in that Shehia who had issued such permits before. He further submitted that there is no prescribed format of such permits and that the Minister responsible for the clove industry had not so far made any rules under section 11 of Act 11 of 1985. He conceded however that Exhibit D1 did not contain reasons as required by law, but the appellants were not to blame and should not bear the consequences for the defect in Exhibit D1 which was not of their making.

For the respondent, the learned State Attorney supported both the conviction and sentence. He submitted that under the Regional Administration Authority Act 1 of 1998 there is no office of Assistant Sheha, but an Advisory Committee under section 18. The learned State Attorney was however unsure as to whether or not a Sheha could delegate his duties. Mr Hassani was however of the view that when cloves were being transported to Mkoani, the appellants had no valid permit since the purpose and reasons were not stated in Exhibit D1. He added that the appellants had an obligation to verify the validity of the permit issued to them. He concluded by submitting

that even the dhow in which the cloves were being transported had no valid permit in terms of section 6 of the Cloves Act 1985.

It is our considered view that the central issue in this appeal is the validity or otherwise of Exhibit D1. The issue has been hotly contested by Mr Ussi K. Haji, learned counsel and Mr Hassani, learned State Attorney. There is no dispute on the evidence that the appellants were arrested in a dhow containing, among other items, thirty eight bags of dry cloves and seven *vipeto*. The appellants claim that Exhibit D1 was a valid permit which was issued by DW9, purportedly an Assistant Sheha. In order to understand the responsibilities of a Sheha, we quote hereunder some sections of the Regional Administration Authority Act 1998 (Act 1 of 1998). They provide as under:

2. 'Sheha' means an officer appointed as such under the provisions of section 15 of this Act;

'Shehia' means all that area of jurisdiction formerly known as Chama cha Mapinduzi branch or as may be prescribed by the concerned authority.

15(1) Each Shehia shall be administered by a Sheha who shall be appointed by the Regional Commissioner with the advice of the District Commissioner of that Region in which that Shehia is situated;

17(1) Every Sheha shall be responsible in his Shehia for:

1. implementing all Government laws, orders, policies and directives, for maintenance of law and order;
2. reconciliation and settlement of all social and family disputes arising in that area in accordance with the cultural and customary values of that area and wisdom;
3. keeping records of all documents relating to the registration of marriage, divorce, births and deaths, *ngoma* permits, transportation of crops, livestock charcoal permits and so forth as directed from time to time by institutions concerned;
4. the control of immigration in his Shehia and keeping records thereof;

5. receiving notification for convening all public meetings;
6. to do all other things which are legal and he has been assigned to him by the District Commissioner

18(1) There shall be established an advisory council in each Sheha to be known as Shehia Advisory Council whose members shall not be less than twelve, and one third of them shall be elder persons who shall be appointed by the Sheha in consultation with the District Commissioner among the residents of that Shehia.

(2) ——

(3) The Advisory Council shall advise the Sheha in matters related to maintenance of law and order in the Shehia and other matters which are beneficial to the well being of the shehia"

In terms of section 18(1) of Act 1 of 1998, DW9 was a member of the Shehia Advisory Council whose function is to advise the Sheha in matters relating to the maintenance of law and order in the Shehia and other matters which are beneficial to the well being of the Shehia. The functions of the Council are purely advisory in nature and not executive or administrative, which are vested in the Sheha under section 17(1) above. Indeed PW4, Shadhir Othman Shaame, the Sheha of Chumbageni – Wambaa, when he was cross-examined by Mr Ussi stated in part:

> Shehas are only persons authorized to issue permit for transportation of cloves from one area to another area. The Councilors are not allowed to issue such permits.

The responsibilities of the Sheha are under section 17(1) and those of the members of the advisory council are under section 18(3). There is also section 63(4) of the Interpretation of Laws and General Provisions Act 1984 to take into account. It reads:

63(4) Where a power is conferred or a duty imposed on the holder of an office or such, the power may be exercised and the duty shall be performed by the person for the time being charged with the execution of the powers and duties of the office.

There is no evidence on the record that DW9 was charged with the execution of the powers and duties of the office of Sheha. DW9 was therefore not a licensing authority under section 2 of the Cloves Act under which a "licencing authority" means any public officer authorized by law to issue permits for any of the purposes for which a permit is required under the Act. DW9 was not a licensing authority for reasons hopefully amply explained above.

There is a second reason to fault Exhibit D1. It reads in part as follows:

> Ndugu Juma Ali Abdalla, na Suleiman Habib, Salum Muh'd Sefu wameruhusiwa kupeleka karafuu zao gunia 38 na mapeto 7 MkoaNumber

Section 3(1) and (2) of the Cloves Act 1985 provides as follows:

> 3(1) No person other than the corporation shall export cloves.
>
> (2) For the purposes of section 3(1) "export" included the taking or transportation of dry cloves from one area of the country to another without a valid permit issued for the purpose and the reason for such taking or transportation to be indicated therein.

Mr Ussi K. Haji's core complaint in this appeal concerned the rejection by the learned Regional Magistrate of Exhibit D1. Under section 3(1), the export of cloves is restricted to the corporation, that is the Zanzibar State Trading Corporation. However for any other person to do so, there must be a valid permit issued to that effect under subsection (2). The purpose and reason for the export of cloves must be indicated in the permit. There is no such indication of the purpose and reason for the transportation of the cloves from Kwamwinyikazi to Mkoani. This is a mandatory requirement whose absence, as it was in Exhibit D1, renders the permit invalid.

In the event, and for the reasons stated above, we dismiss the appeal in its entirety.

ALI ABDALLA AMOUR AND ABDALLA ALI ABDALLA v. AL-HUSSEIN SEFUDIN (SAFI STORES)

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 91 OF 2002

(From the Judgment of the High Court of Zanzibar at Vuga, Dourado, J.dated 26 November 2001, in Civil Appeal Number 25 of 2001)

Labour law – Terminal benefits – Assessment of terminal benefits – Assessment done by Labour Officer but disputed by the appellants – Whether assessment by Labour Office was reliable.

Labour law – Respondent had given money for purchase of motor cycle as means for transport for the first appellant while working for respondent – Whether the motor cycle belonged to the respondent on termination of the contract of employment.

Civil Practice and Procedure – Judgment – Judgment too scanty and contained in only two sentences – Whether meeting the requirements of a judgment – Order XLVI, rule 31 of the Civil Procedure Decree Chapter 8 of the Laws of Zanzibar.

In the Regional Magistrate's Court the appellants filed a suit against the respondent claiming a total of TZS. 1 560 000 as terminal benefits and the release, to the first appellant, of a motor cycle. The respondent disputed the claims. In its decision, the Regional Magistrate's Court ordered payment of TZS. 130 000 and TZS. 780 000 as terminal benefits to the first and second appellant respectively, based on a calculation done by the Labour Office. The appellants were dissatisfied and appealed to the High Court which dismissed their appeal, hence, this second appeal.

Held: (i) The judgment of the High Court in this case dismally falls short of what is provided for under Order XLVI, rule 31 of the Civil Procedure Decree Chapter 8; Judicial Officers at all levels of the judicial hierarchy are enjoined to adhere to this

provision of the Civil Procedure Decree in Tanzania Zanzibar and Order XX, rule 3 of the Civil Procedure Code 1966 in Tanzania Mainland;

(ii) In the circumstances of the case, the calculations worked out by the Labour Office, a well established and credible office, conversant with labour disputes, are sufficiently reliable;

(iii) It seems to us that the first appellant's version that he purchased the motor cycle is more credible than that of the respondent; as a civil case, it is our view that he had proved his claim for the motorcycle on a balance of probabilities.

Orders accordingly

Statutory provisions referred to:

1. Civil Procedure Decree Chapter 8, Order XLVI, rule 31.
2. Civil Procedure Code 1966 Order XX, rule 3

Mr Ussi Khamis Haji for the Respondent

JUDGMENT

(Dated 11 November 2003)

Lubuva, J.A.: In the Regional Court at Vuga, the appellants, Ali Abdalla Amour and Abdalla Ali Abdallah filed a suit against the respondent, Al-Hussein Sefudin (Safi Store).

The appellants were claiming a total of TZS. 1 560 000 terminal benefits and the release of the motorcycle Honda Registration Number ZNZ 18875. The claim was that the appellants had worked for sometime for the respondent who terminated their services without paying them terminal benefits. As observed earlier, the first appellant also prayed for the respondent to be ordered to release the motorcycle, Honda Registration Number ZNZ 18875 withheld by the respondent.

According to the respondent, he provided the money for the purchase of the motorcycle for use by the appellants in the course of working for him. Apparently, at some stage, the respondent had advised the

appellants to go to the Labour Office for calculation of the terminal benefits. In its decision, the Regional Court ordered payment of TZS. 130 000 and 780 000 as terminal benefits to the first and second appellants respectively. The appellants being dissatisfied appealed to the High Court which dismissed the appeal. Undaunted, the appellants have appealed to this Court.

In this Court, the appellants were unrepresented. They filed a five-point memorandum of appeal which we think in essence raises two issues. First, that the learned judge erred in arriving at the decision to dismiss the appeal without analyzing and considering the proceedings and evidence presented before the Regional Court. Second, that the judge also erred in not ordering the release of the motorcycle Honda Registration Number ZNZ 18875 in favour of the first appellant. Addressing the Court, the first appellant briefly stated that he is entitled to the motorcycle because there was evidence in support of his claim. For instance, he said the registration card for the motorcycle was in his name and that the sale agreement was also between him and the seller, one Ali Salum. To the contrary, he stated that the respondent had no evidence to support him in this regard.

For the respondent, Mr Ussi Khamis Haji, learned counsel, appeared. It was his submission that in the Regional Court, the magistrate framed three issues which he addressed, analysed and finally came to the conclusion that the first and second appellants were only entitled to the payment of TZS. 130 000 and 780 000 respectively. While conceding that the High Court ruling of 13 November 2001, subject of this appeal, scantly dealt with the matter in one line, he maintained that the decision to dismiss the appeal was sound. He urged for the dismissal of the appeal.

From the record, there is no gainsaying that the judgment of the High Court is too scanty for any meaningful opinion on the learned judges' own consideration and views of the evidence of the case as a whole. The judgment clearly shows that the judge having stated that the Regional Magistrate awarded TZS. 130 000 and TZS. 780 000 to the first and second appellants respectively and that the motor

cycle, Honda Reg. Number ZNZ 18875, belonged to the respondent, his analysis and views of the case is contained in the following two sentences.

> I am unable to upset these findings of fact. The appeals of both appellants are hereby dismissed.

From the scanty way in which the judgment was written, we appreciate Mr Ussi's anxiety and uncertainty on whether the judgment as it is, meets the requirement of the provisions of Order XLVI, rule 31 of the Civil Procedure Decree Chapter 8 of the Laws of Zanzibar. It provides:

> 31 - The judgment of the Appellate Court shall be in writing and shall state:
>
> 1. The points for determination;
>
> 2. The decision thereon;
>
> 3. Where the decree appealed from is reversed or varied, the relief to which the appellant is entitled.

We think that this provision of the Civil Procedure Decree provides sufficiently clear guidelines to the Courts for what is to be expected in a judgment. The guidelines are, with respect, too clear and unambiguous to require any further elucidation, all the more so at the High Court level. In this case, it goes without saying that the judgment, as extracted above, dismally falls short of what is provided for under Order XLVI, rule 31 of the Civil Procedure Decree. Judicial Officers at all levels of the judiciary hierarchy are enjoined to adhere to this provision of the Civil Procedure Decree in Tanzania Zanzibar and Order XX, rule 3 of the Civil Procedure Code 1966 in Tanzania Mainland.

The learned judge of the first appellate High Court having failed to analyse and assess the evidence adduced before the Regional Court, we shall step into the shoes of the High Court in order to do that which the High Court judge should have done. In doing so, we are fully aware of the fact that this is a second appellate Court which normally does not interfere in findings of fact, in order to satisfy

ourselves that there was sufficient evidence upon which the Court of first instance, namely the Regional Court could properly and reasonably come to the finding and conclusion it did.

From the record, it is clear that in the trial Regional Court, both the appellants testified that they had worked for the respondent at the shop for different lengths of time. They admit that there was no written agreement setting out the terms and conditions of their employment. As regards the total claim of TZS. 1 560 000 against the respondent, the appellants were not very clear how this amount was arrived. The first appellant stated that he was paid TZS. 50 000 per month by the respondent. This was admitted by the respondent in his evidence when stated that he was paying the first appellant TZS. 1 500 per day and that in a month he paid a total of TZS.50 000 including petrol and fare allowances. The second appellant, according to the respondent was paid TZS. 20 000 a month rising to TZS. 50 000 a month, when his service was terminated. According to the evidence of the respondent, upon his advice the appellants took the matter to the Labour Office where it was decided that the first and second appellants were to be paid 130 000 and TZS. 780 000 respectively. The appellants have refused to be paid these amounts, the respondent further testified.

With regard to the motorcycle Honda, Registration Number ZNZ 18875, the evidence of the first appellant was that, when he was re-engaged by the respondent, he had acquired the motorcycle. He said he had purchased it for TZS.600 000 from one Ali Salum. The sale agreement shows his name and that of the seller. Furthermore, it is in the first appellant's evidence that the registration card of the motorcycle is in his name and not that of the respondent. On this, the record also shows that the respondent gave the first appellant TZS.700 000 for the purchase of the motorcycle and that he had no time to enquire about the registration card. According to the evidence, the respondent had authorized and given money for the purchase of the motorcycle as a means of transport for the first appellant while on duty working for the respondent.

On the evidence as analysed, we are satisfied that the trial Regional Magistrate was justified in his finding that the first and second appellants were only entitled to payment of TZS. 130 000 and TZS. 780 000 respectively as terminal benefits.

Otherwise, we agree with the magistrate that there was no basis for granting payments over and above this amount. It is to be observed that there was no written agreement from which it could be said with certainty what the terms of the payment upon termination of service would be. In our view, in the circumstances of the case, the calculations worked out by the Labour Office, a well established and credible office which is conversant with labour disputes, are sufficiently reliable. We think had the learned judge addressed, analysed and considered this evidence as the trial magistrate did, still, he would have come to the same conclusion. In the event, we find no merit in the appeal pertaining to the terminal benefits. As found by the Courts below, the first and second appellants are entitled only to TZS. 130 000 and TZS. 780 000 respectively as terminal benefits.

On the other hand, with regard to the motor cycle Honda Registration Number ZNZ 18875, upon our own evaluation of the evidence, we think the learned judge was in error in not holding that the first appellant had proved the case on a balance of probabilities. It seems to us highly unlikely that the respondent, as a diligent businessman, would in the normal course of life allow such a free hand on the part of an employee to this extent. That is, giving money TZS.700 000 to the employee to purchase the motorcycle as transport in the course of duty without bothering in the least about the sale agreement, the registration card and the seller. To the contrary, an employer in the position of the respondent would normally buy the motorcycle, register it in his name or firm and then entrust it for use to the employee. For this reason, it seems to us that the first appellant's version that he purchased the motorcycle is more credible than that of the respondent. As a civil case, it is our view that he had proved his claim for the motorcycle on a balance of probabilities.

All in all therefore, for the foregoing reasons, we dismiss the appeal in respect of the first and second appellants with regard to the termination benefits. The appeal in respect of the first appellant, regarding the motorcycle is allowed. It is accordingly ordered that the motorcycle Honda Registration Number 18875 is to be released to the first appellant, Ali Abdalla Amour. No order as to costs.

EXPEDITO DAUDI CHUNGA v. NSOMBO AND CO. LTD

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Massati, J.)

(PC) CIVIL APPEAL No. 94 OF 2003

Probate and Administration – Sale of the estate under administration – Court orders sale by auction at a given price – Whether the sale may be conducted at variance with the orders of the Court.

Probate and Administration – Sale of the estate under administration – Requirement of Notice before effecting the order for sale – Rules governing execution proceedings in Primary Courts – The Magistrates' Courts (Civil Procedure in Primary Courts) Rules 1964.

The Primary Court appointed the appellant administrator of the estate of the late Angelo Daudi Chunga. But before the letters of administration had been filed, the beneficiaries unanimously consented that the deceased's house be sold. The house was then valued at TZS. 9 500 000 and the Trial Court ordered the respondent to auction the house accordingly. The respondent sold the house at TZS. 4 000 000 and the Trial Court endorsed the certificate of sale for that price. Aggrieved, the appellant field an application for revision in the District Court but was unsuccessful, hence this Appeal.

Held: (i) No sale other than that by public auction can be made without the express permission of the Court, and it was highly improper for the Court broker to sell the house at a price lower than the reserved price without obtaining an endorsement from the Court;

(ii) The applicable law governing execution proceedings in Primary Courts is the Magistrates' Courts (Civil Procedure in Primary Courts) Rules 1964, GN 310 of 1964, and the statutory period of notice is 30 days.

Appeal allowed

Cases referred to:

(1) *In* the *Matter of* the *late Mohamed Kisawaja*, High Court of Tanzania at Dar es Salaam, Probate and Administration Case Number 65 of 1992 (unreported).

Statutory provisions referred to:

(1) Magistrates Courts (Civil Procedure in Primary Courts), rules 1964, GN 310/64 rules 66, 74, 75 and 77.

(2) Court Brokers and Process Servers (Appointments, Remuneration and Discipline) Rules 1997 GN 315/97, rule 14.

Mr Ndanzi for the Appellant

JUDGMENT

(Delivered 11 November 2003)

Massati, J.: One person called Angelo Daudi Chunga died intestate in Dar es Salaam in September 1997, although the Primary Court of Buguruni in its judgment alludes to the existence of "a will". However, I have looked at the said "will" dated 29 July 1998 whose photocopy is in the record, and I am satisfied that technically it cannot quality as a will for the simple reason that it was not witnessed, let alone, that it was not original.

Be that as it may, the deceased's estate comprised, among others, one house at Mbagala Kisiwani, Dar es Salaam. The appellant herein, had applied for letters of administration. After hearing the parties, including the objections raised by the deceased's wife the appellant was appointed as an administrator of the estate in the judgment of Buguruni Primary Court dated 26 January 1999. But shortly before the application for letters of administration had been filed, the beneficiaries had unanimously consented that the deceased's house be sold. So after the house had been valued by a Ilala Municipal valuer at TZS. 9 500 000 the Trial Court ordered the respondent, a Court broker, to auction the house by its order dated 31 May 2001 which was a warrant of attachment, and later by a proclamation of sale dated 18 June 2001.

On 26 July 2001 the respondent filed his report that the house had not been sold as no bidders were forth coming. On 21 December 2001, the respondent was again ordered to auction the house. On 14 April 2002 the respondent filed a report in the Trial Court that he had sold the house for TZS. 4 000 000. On 17 April 2004 the Trial Court endorsed a certificate of sale for that price. Aggrieved by this outcome, the appellant filed an application for revision in the District Court of Ilala.

The gravamen of his complaint in the District Court and this Court is that the house was not sold by public auction and sold for only TZS. 4 000 000 far below the estimated value of TZS. 9 500 000. The appellant also complains that the respondent did not give a 14 days notice. The application was filed under section 22 of the Magistrates' Courts Act 1984, by way of revision. The learned District Magistrate, dismissed the application on 25 July 2000. He has now come before this Court to assail the decision of the District Court. In this appeal the appellant is represented by Mr Ndanzi, learned counsel, while the respondent stands unaided.

Mr Ndanzi, learned counsel has filed two grounds of appeal. In his first ground, the appellant submit that the laid down procedure

was not followed in selling the house because no 14 days notice was issued and there was no public auction.

Elaborating his grounds of appeal Mr Ndanzi, learned counsel submitted that the respondent did not comply with the order of the Primary Court in full because whereas the order of 18 June 2001 required him to post notices of sale of 14 days in the Court house and sell by public auction, the respondent, who was not able to sell the house as scheduled proceeded to sell the house on an extended date without notice and without a public auction. Mr Ndanzi submitted this was contrary to the Court Brokers and Process Servers (Appointment Remuneration and Discipline) Rules 1997. Secondly, it was established that the house was sold to one Peterson Gabriel Moshi for only TZS. 4 000 000 instead of TZS. 9 500 000. Mr Ndanzi relied on the decision of Bubeshi, J. in: *In the Matter of* the *Late Mohamed Kisawaja* (1) to press his point. He therefore prayed that the appeal be allowed and the sale be declared null and void, and for an order that another sale be ordered.

The respondent submitted that he followed the laid down procedure as ordered, and as no members of the public were willing to attend the auction he was able to sell the house for TZS. 4 000 000. He also submitted that rule 14(1) of the Court Brokers and Process Servers (Appointments Renumeration and Displine) was not directly relevant, as here there was no judgment debtor. On the issue of the price, the respondent submitted that the value of TZS. 9 500 000 was just an opinion, but not the actual value. He ended by submitting that the TZS. 4 000 000 was the actual market value of the house and that is what the house fetched. He therefore asked me to dismiss the appeal with costs.

I have carefully studied the proceedings of the Trial Court, the District Court and the submissions of the parties. It appears to me that none of them has paid their attention to the law applicable in the circumstances of this case, and this is what led to the present confusion.

The applicable law governing execution proceedings in primary Courts is the Magistrates Courts (Civil Procedure in Primary Courts) Rules 1964, GN 310/64, and in the present case the relevant rules are rules 66, 74, 75 and 77. Rule 74 provides:

> 1. The Court shall cause copies of the order of sale to be posted:
>
> (a) On the court notice board
>
> (b) When the property to be sold is a building, at the main door thereof and
>
> (c) On such other places if any, as the Court may direct:
>
> 2. The person appointed to conduct the sale shall cause the date and time of sale to be advertised by such means as are used locally to make public pronouncements as by publication in a newspaper having a substantial local circulation whichever may be appropriate.

It is clear from the above provision that any sale must be preceded by the following steps. First the order of the Court has to be fixed in the prescribed places. Secondly, the person appointed to sell has to advertise the sale by usual means of pronouncing public notice used in the locality, but the most conspicuous feature in this rule is that in the case of a building, that order must be posted on the main door of the building in question. This it appears was not complied with in this case.

Rule 75 of the Rules, provides:

> Subject to the provisions of rule 66, no sale of immovable property shall take place until after the expiration of thirty days from the day of issue of the order of sale.

Rule 66 provides:

> The Court shall make such arrangements as may be.....for the proper storage of property seized under attachment.

It will be noted that rule 66 applies to movable and not immovable properties such as the one in the present case. But again, the most

conspicuous feature in this rule is the duration of the order of sale. The statutory period of notice is 30 days whereas in the present case only 14 days was granted by the Court. This again, in my view, was wrong.

The last relevant rule is rule 77 with reads:

> Every sale in execution shall be by public auction except where the property is of a kind, the manner of sale of which is regulated by law or unless the Court for reasons to be recorded otherwise orders.

In my view by this rule, no sale other than that by public auction can be made without the express permission of the Court, and for reasons that it has to record. In other words, no sale by private treaty is allowed without the order of the Court, first had and obtained. This is especially so, where as in this case, the Court and parties had a reserve price of TZS. 9 500 000. It was, I think, highly improper for the Court broker to sell the house at TZS. 4 000 000 without first obtaining an endorsement from the Court. On this account I agree with the decision of Bubeshi, J. in *In* the *Matter of* the *Estate of Mohamed Kisawaja* (1) cited by Mr Ndanzi, learned counsel for the appellant.

Mr Ndanzi, learned counsel, has further noted and sought to rely on rule 14(1) of the Court Brokers and Process Servers (Appointments remuneration and Discipline) Rules 1997 (GN 315/97). I have carefully looked at the said rules; and it leaped to my eye that there is no rule 14(1) and that in any case it does not provide what learned counsel has quoted. What the learned counsel has quoted is provided in rule 4(1). But whatever be the case. I do not think that rule applies in the present case, for by definition the rule is meant to be applicable only where the executing officer is executing the order of the High Court, Resident Magistrate or District Court.

Applying the applicable law to the facts of the present case, it is pertinent to note, that in the initial place the order of the Primary Court itself was faulty, as it offered only 14 instead of 30 days notice, and it did not order that order be posted to the door of the house in

question. This defective order led to the defective execution by the respondent. I quite agree with the respondent that the valuer's opinion was just an opinion, and not the market value, but since the Court and the parties were expecting the reserve price of TZS. 9 500 000 it was inappropriate for him to have sold it at the price below the reserve price without the previous order of the Court. These are matters which the District Court should have discovered and revised.

In the result, I am firmly of the view that this appeal must succeed. I will set aside the order of the District Court endorsing the sale of the house in dispute as the said sale was a result of an illegal order of the Primary Court. Consequently, the sale of the deceased's house is also set aside. Since this order will affect the interests of a third party, who is not a party in the present proceedings, that is the buyer of the house, one Peterson Gabriel Moshi who may not have been conscious to the irregularities committed in the sale, I will make the following orders and directions:

(a) The Primary Court is to issue an appropriate order of sale with an appropriate duration, and post the same in the places shown in rule 77 of the Rules above cited.

(ii) Another broker be appointed to sell the house by public auction.

3. The present buyer should be allowed to bid in this auction.

4. If the house is sold for more than TZS. 4 000 000 to a person other than the present buyer, the Court shall order a refund of the TZS. 4 000 000 to the current buyer.

5. If the sale fetches less than TZS. 4 000 000 then the current buyer shall be declared the highest bidder, and the sale shall accordingly be confirmed.

Each party shall bear his costs in this appeal. Order accordingly.

KATIBU MKUU AMANI FRESH SPORTS CLUB *v.* DODO UMBWA MAMBOYA AND ANOTHER

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Lubuva, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 88 OF 2002

(From the ruling of the High Court of Zanzibar at Vuga, Dourado, J. dated 26 March 2001, in Civil Case Number 40 of 1999)

Civil Practice and Procedure – Objection proceedings – Duty of the Court in objection proceedings – Order XLVII, rule 1(i) and Order XXIV, rule 53 of the Civil Procedure Decree Chapter 8 and section 5(1)(c) of the Appellate Jurisdiction Act 1979.

In Civil Case Number 400 of 1999, Zanzibar High Court, the first respondent was awarded judgment. The Court, amongst other orders, ordered the sale of some properties including the shop at Amani Fresh One Salum Mohamed, the Secretary of Amani Sports Club instituted objector proceedings against the sale of the house at Amani Fresh which he claimed belonged to the club. Dismissing the application the learned judge held that because the objector had not produced evidence to prove its claim, the house belonged to the respondent and further that since the club was not a party to the main suit its application could not be sustained. From this ruling the appellant appealed to the Court of Appeal.

Held: (i) Under the provisions of rule 50(1) of order XXIV of the Civil Procedure Decree where a claim is preferred or an objection made to the attachment of any property, the Court is bound to investigate the claim or objection;

(ii) The fact that the appellant was not a party to the suit is all the more reason for the objection proceedings in which it is open for any claimant or objector to prefer a claim or make objection to the attachment of property.

Appeal allowed

Case referred to:

(1) *Bank of Tanzania v. Devram P. Valambhia*, Civil Reference number 4 of 2002 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Decree Chapter 8, Order XLVII, rule 1(j); Order XXIV, rules 53; 50(1) and 51

(2) Appellate Jurisdiction Act 1979, section 5(1)(c)

(3) Civil Procedure Code 1966, Order XXI, rule 62

Messrs Mbwezeleni and *Mnkonje* for the Appellant

JUDGMENT

(Dated 11 November 2003)

Lubuva, J.A.: This appeal arises from objection proceedings. It all started with Civil Case Number 40 of 1999 in which the first respondent, Dodo Ubwa Mamboya, filed a suit against the second respondent, Khamis Machano Keis, her former husband. Briefly stated, the facts giving rise to the case are as follows: Apparently, after sometime of living together as man and wife, the first and second respondents divorced. In Civil Case Number 40 of 1999, the first respondent claimed from the second respondent a total of TZS. 195 000 comprising: TZS. 100 000 for 20 packets of cement; TZS.45 000 withdrawn by the second respondent from a joint Bank Account with the People's Bank of Zanzibar, and TZS.50 000 paid to the second respondent. On 31 March 2000 the learned trial judge, Dourado, J. decided in favour of the first respondent. The Court also ordered the sale of some properties including the shop at Amani Fresh, subject of this appeal.

Following the decision of the High Court from which no appeal had been preferred, the first respondent, filed an application for

execution of the decree. The application was granted on 19 June 2000 when an order for the execution of the decree was made. On 26 March 2001, objector proceedings instituted by one Salum Mohamed, the Secretary of Amani Sports Club was heard. He had raised objection against the sale of the house at Amani Fresh which, it was claimed, belonged to the club. Dismissing the application, the learned judge held that because the objector had not produced evidence to prove its claim, the house belonged to the first respondent.

From this ruling, the appellant has appealed to this Court. Mr Mbwezeleni and Mr Mnkonje, learned counsel, advocated for the appellant. The respondents were unrepresented. For the appellant, three grounds of appeal were filed.

At the commencement of hearing the appeal, at the instance of the Court, Mr Mbwezeleni was asked whether in the instant case there was a right of appeal from the ruling of the High Court of 26 March 2001 concerning objector proceedings. Mr Mbwezeleni, learned counsel, was quick to answer affirmatively. He was firmly of the view that there is a right of appeal because under the provisions of Order XLVII, rule 1(j) of the Civil Procedure Decree Chapter 8 of the Laws of Zanzibar, this is one of the orders listed therein which are appealable. He said the order in the instant case was made in terms of Order XXIV, rule 53 disallowing the appellant's claim over the attached house at Amani Fresh. As such, he submitted that it falls within the provisions of rule 1(j) of Order XLVII, which is open to appeal. He further submitted that orders falling under the provisions of rule 1(j) of Order XLVII of the Civil Procedure Decree require leave of the Court or the High Court in order to appeal as required under section 5(1)(c) of the Appellate Jurisdiction Act 1979. In this case, he said leave to appeal had been granted by the High Court of Zanzibar. So, he urged the hearing of the appeal to proceed.

We have closely examined the relevant provisions of the Civil Procedure Decree Chapter 8 of the Laws of Zanzibar. These are Order XLVII, rule 1(j) and Order XXIV, rule 53 as well as section

5(1)(c) of the Appellate Jurisdiction Act 1979. It is to be observed that we had raised the issue pertaining to the right of appeal in this matter in order to satisfy ourselves if in Zanzibar, there is the equivalent of the provisions of Order XXI, rule 62 in the Civil Procedure Code 1966 of Tanzania Mainland. It is now settled that under the provisions of rule 62 of Order XXL of the Civil Procedure Code Tanzania Mainland which provides otherwise in terms of section 5(1) of the Appellate Jurisdiction Act 1979, there is no Right of Appeal in objection proceedings. The Court had occasion to examine closely the impact and application of the provisions of Order XXI, rule 62 of the Civil Procedure Code 1966 in *Bank of Tanzania v. Devram P Valambhia* (1). In more or less similar situation in which objector proceedings were taken regarding a garnishee order, the Court took the view that in terms of the provisions of Order XXI, rule 62 in Tanzania, unlike the situation in India where a similar provision had been amended, there is no right of appeal. Instead, the Court further held, a suit should be instituted. Otherwise, according to the wording of this rule, subject to the result of such suit, if any, the order shall be conclusive.

In the instant case, unlike the situation obtaining in Tanzania Mainland, curiously in Zanzibar, apparently there is no provision in the Civil Procedure Decree equivalent to rule 62 of the Mainland. In that situation, and as urged by Mr Mbwezeleni, learned counsel, the order from which an appeal is preferred falls under the purview of Order XLVII, rule 1(j) and Order XXIV, rule 53 of the Civil Procedure Decree. We are therefore in agreement with Mbwezeleni that there is a right of appeal subject to obtaining leave in terms of section 5(1)(c) of the Appellate Jurisdiction Act 1979. In this case, leave to appeal was obtained. In that case if we are correct our view of the law in Zanzibar in which we were supported by Mr Mbwezeleni, learned counsel, the principle enunciated in *Bank of Tanzania v. Devram Valambhia* (1) does not apply in this case.

Dealing with the merits of the application Mr Mbwezeleni vehemently criticized the learned judge in dealing with the application so casually

and superficially. It was his submission that the matter had been dealt with in such an unsatisfactory manner that he did not think it appropriate to invite the Court to step into the shoes of the High Court to evaluate and analyse the proceedings before the High Court.

With regard to the merits of the appeal, Mr Mbwezeleni advanced two points. One, that the learned judge did not investigate the appellant's objection as required by law. He contended that in order for the judge to satisfy himself that the property, subject of attachment, belonged to the objector, the appellant, and not the first respondent, the judgment debtor, it was necessary to carry out investigation. This, the judge did not do in this case, Mr Mbwezeleni emphasized. He further alleged that the appellant, as objector had evidence, documentary and otherwise, but was not given the opportunity to produce evidence.

Second he faulted the learned judge for disallowing the objector's claim because Fresh Sports Club were not a party to the suit. Mr Mbwezeleni castigated the learned judge stating that it was a misdirection on the part of the judge because in objection proceedings, it is, as a matter of law open for third parties who were not party to the suit, to raise objection against the sale of the property in question as the appellant did.

The respondents, who, as already indicated, being lay person and unrepresented, did not say much on the merit of the appeal. The first respondent wondered why the objector, the appellant, did not appear in Court to give evidence when the case was decided until now, almost two years later. For his part, the second respondent observed that the learned judge did not ask for evidence in support of the claim over the house.

We shall briefly make observation on what the first respondent stated. We can see no difficulty in the fact that the appellant, the objector, did not either appear in Court or give evidence. The appellant was not a party in the main suit between the respondents. It was only during the time when the house was due for sale that the appellant became aware of the matter and initiated the objector proceedings.

As regards the second respondent's complaint that the judge did not ask for evidence, we shall revert to it presently.

The central issue is whether the learned judge investigated the claim of the objector, the appellant before dismissing the application. For the appellant, as indicated earlier, the complaint is that the judge did not. As a matter of law, it is necessary for the Court to investigate claims and objections raised. Under the provisions of rule 50(1) of Order XXIV of the Civil Procedure Decree, where a claim is preferred or an objection made to the attachment of any property, the Court shall proceed to investigate the claim or objection. On the other hand, rule 51 provides to the effect that the claimant or objector must adduce evidence to show that at the time of the attachment he was in possession of or had an interest in the property.

In the instant case, it seems to us that the learned judge did not in any way investigate the claim by the objector, the appellant as Mr Mbwezeleni, learned counsel asserted. On this, Mr Mbwezeleni is apparently supported by the second respondent who stated in Court that the judge did not ask for evidence. From the short ruling it is clear that the learned judge did not in any way investigate the appellant's claim. This is evident from the ruling which reads:

> Amani Fresh Sports has not produced evidence that the shop belongs to the Club. I hold that it belongs to Bi. Dodo. The application is dismissed with costs particularly since Fresh Sport *(sic)* Club were not a party to the main suit.

From this sketchy ruling, it is apparent that another ground for the dismissal of the application was that the appellant were not a party to the main suit. With respect, this is yet another error on the part of the judge. The fact that the appellant was not a party to the suit is all the more reason for the objection proceedings in which it is open for any claimant or objector as is the case with the appellant, to prefer a claim or make objection to the attachment of the property. It was therefore absurd, to say the least, for the judge to base his decision to dismiss the application on this ground.

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In the instant case, it seems to us that the learned judge did not in any way investigate the claim by the objector, the appellant as Mr Mbwezeleni, learned counsel asserted. On this, Mr Mbwezeleni is apparently supported by the second respondent who stated in Court that the judge did not ask for evidence. From the short ruling it is clear that the learned judge did not in any way investigate the appellant's claim. This is evident from the ruling which reads:

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To sum up therefore, we are in agreement with Mr Mbwezeleni, learned counsel for the appellant, that the learned judge did not investigate the claim and the objection to the attachment of the suit house at Amani Fresh in terms of the law. Furthermore, we are also of the view that the judge applied wrong criteria, in dismissing the application namely that the appellant as applicant were not a party to the main suit.

For these reasons, the appeal is allowed and the order of the High Court of 26 March 2001 is set aside. It is ordered that the matter be remitted to the High Court with direction that the objection proceedings be heard afresh by another judge with a view to investigate the claim and objection of the appellant in terms of the law. No order as to costs.

JUMA JAFFER JUMA *v.* MANAGER OF THE PEOPLES' BANK OF ZANZIBAR LTD AND TWO OTHERS

COURT OF APPEAL OF TANZANIA
AT ZANZIBAR

(Lubuva, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 68 OF 2001

(From the Judgment of the High Court for Zanzibar at Vuga, Oredola, DCJ dated 8 May 2002, in Civil Appeal Number 5 of 2000)

Banking – Securities for bank advances – Mortgage over house – Whether mortgage is a simple mortgage – Preconditions for realization of a simple mortgage - Section 58(3) of the Transfer of Property Decree Chapter 150 of the Laws of Zanzibar.

Mortgages – Mortgage over a house – Whether the mortgage is a simple mortgage – Conditions for realization of a simple mortgage.

Land Law – Sale of mortgaged property – Sale by auction.– No evidence of foul play – Whether price obtained is the market price at the auction.

The appellant's house was mortgaged to secure an overdraft facility worth TZS. 1.5 million from the respondent, PBZ Ltd. When he failed to repay the facility the bank, through an auctioneer, sold the mortgaged house for TZS. 2.5 million. The appellant filed a suit in the Regional Magistrate's Court against the bank, the auctioneer and the purchaser of the house. He lost in the Trial Court and also lost his appeal to the High Court. Aggrieved he appealed further to the Court of Appeal on several grounds including that the mortgage deed executed by the appellant and the bank was a simple mortgage and therefore could not be sold without the intervention of the Court and without a three months' notice, and that the mortgaged house was sold privately and as a result the best possible price was not obtained.

Held: (i) The mortgage deed executed by the appellant and the bank was not a simple mortgage in terms of section 58(3) of Chapter 150 and therefore there was no need under the Mortgage Deed for the bank as mortgagee to cause the mortgaged property to be sold through the intervention of the Court since provisions of section 69 of Chapter 150 were not applicable to the matter at hand;

(ii) There is on the record no scintilla of evidence even remotely linking the three respondents to have colluded, hopefully to enable the third respondent to purchase the mortgaged house;

(iii) In the absence of evidence of foul play the purchase price that the third respondent paid was the market price at the auction.

Appeal dismissed

Statutory provisions referred to:

(1) Transfer of Property Decree Chapter 150, sections 58(3); 87; 69(1) and (3)

(2) Civil Procedure Decree Chapter 8, Order XVI, rule 1(5)

(3) Auctioneer's Decree Chapter 165, section 18

MrA Patel, for the Appellant

Mr Abdulhakim Ameir, for the first Respondent

Mr Ussi Khamis Haji, for the third Respondent

JUDGEMENT

(Dated 12 November 2003)

Nsekela, J.A.: The appellant Juma Jaffer Juma, was the owner of a Right of Occupancy registered under Title Number 325 A-3 of 1987. On the 24 May 1994 the appellant executed Mkataba wa Mkopo wa Fedha (Loan Agreement) under which the first respondent, Secretary, Peoples' Bank of Zanzibar (the bank), granted to the appellant overdraft facilities amounting to TZS. 1.5 million which was to be repaid within six months. As at 24 November 1994, apparently the appellant had not discharged his contractual obligation under the said Loan Agreement. Consequent upon this default in the repayment of the loan, the bank appointed the second respondent, Caravan Limited, (the Auctioneer) to sell by public auction a number of mortgage houses belonging to defaulters of the bank, including that of the appellant. The appellant's house was sold to the third respondent one Mr Said Khamis Hemed El-Gheity (the purchaser) for TZS. 2.5 million pursuant to powers conferred upon the bank by the Loan Agreement and powers of sale under the Mortgage Deed registered on the 31 May 1994 as number 33 of 1994 in Volume 1 Book A-1. The Mortgagor, of course, was the appellant. The appellant then instituted Civil Case Number 52 of 1998 against the bank, the Auctioneer and the Purchaser in the Regional Magistrate's Court at Vuga. On the 25 October 2000 the Regional Court (Mwampashi, RM) dismissed the suit. The appellant was dissatisfied with this decision and preferred an appeal to the High Court where it was also dismissed, hence the appeal to this Court.

The amended Memorandum of Appeal filed on the 21 October 2002 contained in all eight grounds of appeal, but Mr Patel, learned

advocate, abandoned the fourth ground of appeal, thus leaving the following seven grounds, namely that

201. The learned Judge erred in law and facts and ought to have held the Magistrate wrong in law and facts for not holding that the Mortgage as defined in section 58(3) of the Transfer of Property Decree Chapter 150.

202. The learned Judge erred in law and facts and ought to have held the Magistrate wrong in law and facts for not holding that the Court intervention was required compulsorily by the first respondent in the professed sale of the suit premises by public auction.

203. The learned Judge erred ain law and facts and ought to have held the Magistrate wrong in law and facts for not holding that a valid notice in law had not been served on the appellant prior to the professed sale of the suit premises by public auction.

204. (abandoned)

205. The learned Judge erred in law and facts and ought to have held the Magistrate wrong in law and facts for not holding that the first respondent had fundamentally breached the terms of the Mortgage Deed as supplemented by Mkataba ya *(sic)* Mkopo by charging compound interest rather than simple as permitted by the said Deed. Further he ought to have held that the ambiguity between the two documents should be held against the first respondent.

206. The appellant will also plead that both the learned judge and the Magistrate erred in law and facts for not holding that the sale of the suit premises was not sold by public auction but by private treaty contrary to section 18 of the Auctioneer's Decree Chapter 165.

207. The learned judge erred in law and facts and ought to have held the Magistrate wrong in law and facts for not holding that the sale of the suit premises was void as the conditions advertised for the sale of the suit premises by the professed public auction had not been complied with.

208. The learned Judge erred in law and facts and ought to have held the Magistrate wrong in law and facts for not holding that the first and second respondents had breached their statutory duty of care owed to the appellant to obtain fairer price possible of the suit premises.

As already indicated at the hearing of the appeal, Mr A Patel, learned advocate represented the appellant; Mr Abdulhakim Ameir, learned State Attorney represented the bank and Mr Ussi Khamis Haji, learned advocate represented the Purchaser. The Auctioneer did not enter appearance though was duly served with Notice of Hearing on the 6 October 2003.

For the sake of convenience and clarity we shall deal with the first three grounds of appeal together as the issues are closely related. We shall also combine the sixth and seventh. The fifth and eighth grounds will be considered separately.

Mr Patel's first complaint in the appeal is to the effect that the Mortgage Deed executed by the appellant and the bank was a simple mortgage as defined by section 58(3) of the Transfer of Property Decree Chapter 150 of the Laws of Zanzibar. He forcefully submitted that possession of the property was never given to the bank. In his own words "possession was the bedrock of a simple mortgage" Mr Ameir, however, was of a different view. He argued that the Mortgage Deed read together with the Loan Agreement was an anomalous mortgage which would bring into play section 87 of Chapter 150. As regards the second and third grounds of appeal, Mr Patel submitted that section 69(1) and (3) of the Transfer of Property Decree Chapter 150 was not complied with since the intervention of the Court was necessary and the requisite three month's notice before sale was not given and that the sale was not by public auction. Mr Ameir, however, submitted that the Mortgage Deed read together with the Loan Agreement was an anomalous mortgage under section 87 of Chapter 150. Under the circumstances there was no need for the intervention of the Court before sale. On the question of notice, the learned State Attorney was of the opinion that clauses 10 and 11 of the Mortgage Deed were complied with. The appellant was given enough notice before

the sale and the house was sold some seven months later after service of notice. Mr Ussi K Haji, learned advocate for the purchaser had nothing to add save to concur with the submissions of the learned State Attorney.

A convenient starting point is section 58(3) of Chapter 150. It provides as follows:

58(3) Where, without delivering possession of the mortgage property, the mortgagor binds himself personally to pay the mortgage-money, and agrees, expressly or impliedly that; in the event of his failing to pay according to his contract, the mortgagee shall have a right to cause the mortgaged property to be sold and the proceeds of sale to be applied, so far as may be necessary, in the payment of the mortgage-money, the transaction is called a simple mortgage and the mortgagee a simple mortgagee.

The question we ask ourselves is, was the Mortgage Deed executed on the 24 May 1994 a simple mortgage in terms of section 58(3) above? With the greatest respect to Mr Patel, learned advocate, we do not think so. The essence of section 58(3) is the persona obligation of the mortgagor to pay the mortgage-money and the power, express or implied to cause the mortgage property to be sold through the intervention of the Court. In other words, the power of sale cannot be exercised without the intervention of the Court. (See: **MULLA** on Transfer of Property Act 1882, 5 ed (1966) at page 383.). What was the position under the Mortgage Deed? This takes us to clause 11(a) of the Mortgage Deed which reads as under:

11(a) At any time after the principal moneys and interest hereby secured have become payable either as a result of a lawful demand by the Bank (or under the provisions of clause 10 hereof) the Bank shall thereupon immediately be entitled without any previous notice to or concurrence on the part of the Mortgagor to exercise all statutory powers conferred on Mortgagees by the Transfer of Property Decree Chapter 150 including the power to appoint a Receiver and the power of sale but without the restrictions imposed by the provisions

of the said Decree and PROVIDED that the right of sale shall not affect the right of the Bank to foreclose and PROVIDED FURTHER that any Receiver appointed thereunder shall after the statutory application of all monies received by him apply the balance in or towards the discharge of the principal moneys hereby secured before paying any residue to the person who but for the possession of the Receiver would have been entitled to receive the income of the mortgage property.

Under clause 11(a) above, there is a stipulation that the Bank is empowered to exercise all the statutory powers conferred on Mortgagees by Chapter 150 including the power of sale but without the restrictions imposed by the said Decree. This means the restrictions on the power of sale under section 69 referred to by Mr Patel are inapplicable to the case at hand. What are these restrictions? section 69 provides in part as follows:

69(1) A power conferred by the mortgage-deed on the mortgagee, or on any person on his behalf, to sell or concur in selling, in default of payment of the mortgage money, the mortgaged property, or any part thereof without intervention of Court, is valid in the following cases and in no others, namely:

(a) where the mortgage is an English Mortgage;

(b) ———

(2) ———

(3) The powers conferred by subsection (1) shall not be exercised unless and until –

(a) notice in writing requiring payment of the principal money has been served on the mortgagor, or on one of several mortgagors, and default has been made in payment of the principal money, or part thereof, for three months after such service; or

(b) Some interest under the mortgage amounting at least seven hundred and fifty TZS. is in arrear and unpaid for three months after becoming due.

The power of sale under section 69(1) above is a power of sale without the intervention of the Court and is restricted to the two cases mentioned therein. The argument by Mr Patel is that since, in his view, the Mortgage Deed under discussion is a simple mortgage, it is not covered by section 69(1) and therefore the conditions in section 69(3) are applicable. We think the answer to this is sufficiently clear in clause 11(a) of the Mortgage Deed. The Bank is entitled to exercise all the statutory powers conferred on Mortgages by the Transfer for Property Decree Chapter 150 including the power of sale but without the restriction imposed by the provisions of the said Decree. This means that the Bank could exercise the power of sale without the intervention of the Court, but under what circumstances? Again, under clause 11(a) the Bank and the appellant had agreed that all the statutory powers conferred on Mortgage by the Transfer of Property Decree Chapter 150 shall become exercisable without any previous notice only when the principal money and interest hereby secured have become payable. Clause 10 provides circumstances under which the principal moneys and interest secured become payable as under:

10. The principal moneys and interest hereby secured shall become immediately due and payable:

(a) If a demand is made by the Bank for the repayment of the principal moneys and interest hereby secured under provisions hereof and if the Mortgagor shall make default in repaying such sums in full within two days of such demand being made; or

(b) If the Mortgagor shall make default in the performance or observance of any of the covenants or obligation herein contained or implied (other than for payment of money); or

(c) Is distress or execution either by virtue of any Court order decree or process or by appointment of a receiver is levied upon any part of the mortgage property or against any of the chattels or other property of the Mortgagor situate on or about or belonging to the Mortgaged property and the debt for which levy is made or appointed is not paid for within seven days; or

(d) If a receiving order is made or any effective bankruptcy petition is filed against any of the Mortgagors; or

(e) If the title of any part of the mortgage property shall for any reason be terminated.

The appellant in the amended plaint had averred that the bank on the 24 May 1994 advanced to him a loan of TZS. 1.5 million upon the terms and conditions contained in the Mortgage Deed and the Loan Agreement. The Bank, on its part, in the written statement of defence to the amended plaint averred that the Bank sold the mortgage property since the appellant had defaulted in the repayment of the loan. Thus, from the parties' pleading, the bank only alleged that the appellant had defaulted to repay the loan advanced to him which is a breach of clause 10(a) of the Mortgage Deed.

The question then that arises for consideration and determination is whether or not the Bank made lawful demand upon the appellant in terms of clause 10 (a) DW3, one Michael Mangondi, General Manager of the auctioneers (second respondent) testified that on instructions from the bank, the appellant on the 28 August 1997 was served with notice to the effect that his mortgage house would be sold within seven days if he failed to repay the loan advanced to him. Indeed, the appellant's name is contained in Exhibit D2, which was admitted in evidence without objection from the learned advocates for the parties. DW3 added that the appellant paid a number of visits to the auctioneers seeking postponement of sale. It was not until the 25 May 1998 that names of defaulters, including the appellant were announced over Radio Zanzibar that his house was schedule to be sold by public action on the 14 March 1998. It was however sold on the 19 March 1998. We are of the settled view that the bank made a lawful demand upon the appellant on the 28 August 1997 and that the appellant had defaulted in the repayment of the outstanding loan thus resulting in the sale by public auction of the mortgaged house. There is evidence including that of PW3 that not less than twenty people were present at the auction on the 19 March 1998 when he went there.

On the evidence and circumstances of the case, we reject the unsubstantiated allegation that the house was sold to the purchaser (third respondent) by private treaty. To conclude, the first three grounds of appeal must fail. The Mortgage Deed executed by the appellant and the bank was not a simple mortgage in terms of section 58(3) of Chapter 150; there was no need under the Mortgage Deed for the bank as Mortgagee to cause the mortgaged property to be sold through the intervention of the Court since the provisions of section 69 of Chapter 150 were not applicable to the matter at hand and lastly, a valid notice under the Mortgage Deed had been served upon the appellant before the sale of the mortgage house. In view of this, we do not think it is necessary to consider and determine whether or not the Mortgage Deed was an anomalous which would then attract section 87 of Chapter 150 to come into play.

The fifth complaint by Mr Patel related to the charging of compound interest instead of simple interest on the loan. During the trial, the question of whether it was compound or simple interest that was chargeable under the Mortgage Deed was not one of the seven issues that were framed by the Court. It was therefore not an issue that was canvassed by the parties during the trial. Order XVI, rule 1(5) of the Civil Procedure Decree Chapter 8 provides:

(5) At the first hearing of the suit the Court shall, after reading the plaint and the written statements, if any, and after such examination of the parties as may appear necessary, ascertain upon what materials propositions of fact or of law the parties are at variance, and may thereupon proceed to frame and record the issues on which the right decision of the case appears to depend.

Needless to say, the parties and the Court are bound by the pleadings and issues framed and proceed to deliberate on such issues. This issue was not before the Trial Court and hence it was not dealt with. The first appellate judge therefore erred in deliberating and deciding upon an issue which was not pleaded in the first place.

(d) If a receiving order is made or any effective bankruptcy petition is filed against any of the Mortgagors; or

(e) If the title of any part of the mortgage property shall for any reason be terminated.

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The fifth complaint by Mr Patel related to the charging of compound interest instead of simple interest on the loan. During the trial, the question of whether it was compound or simple interest that was chargeable under the Mortgage Deed was not one of the seven issues that were framed by the Court. It was therefore not an issue that was canvassed by the parties during the trial. Order XVI, rule 1(5) of the Civil Procedure Decree Chapter 8 provides:

(5) At the first hearing of the suit the Court shall, after reading the plaint and the written statements, if any, and after such examination of the parties as may appear necessary, ascertain upon what materials propositions of fact or of law the parties are at variance, and may thereupon proceed to frame and record the issues on which the right decision of the case appears to depend.

Needless to say, the parties and the Court are bound by the pleadings and issues framed and proceed to deliberate on such issues. This issue was not before the Trial Court and hence it was not dealt with. The first appellate judge therefore erred in deliberating and deciding upon an issue which was not pleaded in the first place.

We now turn to the sixth and seventh grounds of appeal. Essentially, the combined complaint was to the effect that the mortgage house was sold privately and as a result the best possible price was not obtained. There was a faint attempt by Mr Patel to raise the issue that the sale of the house was done secretly and by collusion of the three respondents. At the trial before Mwampashi, RM the issue was framed as follows:

> 5. Whether there was a conspiracy between the third, second and first defendant to sell the house at TZS. 2 500 000.

The learned trial magistrate held that there was no evidence adduced at the trial to establish the appellant's conspiracy theory, a finding which was upheld by the learned appellate judge. On our part, we have carefully perused the evidence on the record and have found no scintilla of evidence even remotely linking the three respondents to have colluded, hopefully to enable the third respondent to purchase the mortgage house. On the contrary, the procedure was very transparent. A valid notice under the Mortgage Deed was duly served upon the appellant; there was even an announcement of the sale over Radio Zanzibar and there was a public auction conducted which was attended by a number of would be purchasers. Surely, these factors did not indicate that the sale was conducted secretly and in collusion by the three respondents. We find no merit in this complaint.

Lastly, the complaint as regards the purchase price of the house being on the low side is equally baseless. This was a sale at public auction and as explained above, there is no thread of evidence of foul play. The purchase price that the third respondent paid was the market price at the auction.

In the result, and for the foregoing reasons, we dismiss the appeal with costs.

HARISH AMBARAM JINA (BY HIS ATTORNEY AJAR PATEL) *v.* ABDULRAZAK JUSSA SULEIMAN

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Munuo and Nsekela, JJ.A.)

CIVIL APPLICATION No. 2 OF 2003

(From the decision of the High Court for Zanzibar at Vuga, Bakari, J. dated 9 January 2003, in Civil Case Number 2 of 2003)

Civil Practice and Procedure – Court process – Party pursuing two different avenues in different Courts at the same time – An abuse of the Court process.

Civil Practice and Procedure – Applications – Application to Court of Appeal – Notice of motion citing a wrong or non-existent provision of law – Whether valid.

Court of Appeal – Court of Appeal Rules – Application for revision – Form prescribed for application – Notice of Motion not substantially conforming to prescribed form –Whether Court can properly be moved – Rule 45(2) of the Court of Appeal Rules 1979.

Mr Patel's application to the High Court for leave to institute a suit as attorney for the applicant against the respondent was granted. Three days later, however, the Judge revoked the grant. Mr Patel then applied to the High Court for leave to appeal to the Court of Appeal against the decision of the High Court, and for extension of time to do so. Before the application was heard Mr Patel made an application to the Court of Appeal, by Notice of Motion, for revision of the High Court decision. The Notice cited section 2(3) of Appellate Jurisdiction Act 1979; the sub-section does not exist. Besides, the notice did not conform substantially to the form prescribed under rule 45(2) of the Court Rules. Mr Patel's application to the High Court was still pending when his application to the Court of Appeal came on for hearing. Counsel for the respondent submitted that the application was incompetent.

Held: (i) A recourse to two legal avenues in two different Courts at the same time in respect of the same matter is an abuse of the process of the Court;

(ii) The Court is not properly moved where a wrong or non-existent provision of the law is cited in a notice of motion;

(iii) Failure by an applicant to comply with rule 45(2) of the Court of Appeal Rules renders an application incompetent.

Order accordingly

Cases referred to:

(1) *National Bank of Commerce v. Sadrudin Meghji* [1998] T.L.R. 503

(2) *Jaffari Sanya Jussa and another v. Saleh Sadiq Osman* CAT – Civil Appeal Number 54 of 1997 (unreported)

(3) *Almas Iddie Mwinyi v. National Bank of Commerce and another* [2001] T.L.R. 83

Statutory provisions referred to:

(1) Appellate Jurisdiction Act 1979, section 4 (3)

(2) Tanzania Court of Appeal Rules 1979, rule 45(2) cited section 2(3) of Appellate Jurisdiction Act 1979; the sub-section (3) Civil Procedure Decree Chapter 8, Order III, rule 2.

Mr Mbwezeleni, for the Respondent

RULING

(Dated 14 November 2003)

Mroso, J.A.: The applicant through his attorney, Mr Patel, has brought an application by notice of motion for revision of High Court Civil Case Number 2 of 2003, citing section 2(3) *(sic)* of the Appellate Jurisdiction Act 1979 as the enabling provision. Mr Patel had applied to the High Court, Bakari, J., under Order III, rule 2 of the Civil Procedure Decree for leave to institute a suit as attorney for the

applicant, against the respondent. Leave was granted but three days later the judge revoked his Order for Leave for the reason that "it didn't follow the proper/formal procedure". Mr Patel wrote several letters to the Registrar of the High Court seeking clarification on what was meant by the words "proper/formal procedure". Eventually the Registrar wrote to say that Mr Patel was supposed to file a formal application which should accompany the Plaint. Only then would the Application for Leave to file the suit as an attorney be considered. Dissatisfied, Mr Patel brought this application to this Court. Before the application could be heard, Mr Mbwezeleni, learned advocate for the respondent, filed a Notice or Preliminary Objection, raising three points. First, that the application was incompetent and/or misconceived for want of form and propriety. Second, that the application was bad in law and not maintainable because of a pending application in the High Court for extension of time and for leave to appeal. Third, that the Application was an abuse of the process of the Court because the revocation order which was sought to be revised was either appellable or reviewable.

Mr Mbwezeleni started off by pointing out that section 2 of the Appellate Jurisdiction Act 1979 does not have a sub-section (3). At any rate the section has nothing to do with revisions. If the applicant meant to move the Court to call for and revise the Lower Court record he should have cited section 4(3) of the Appellate Jurisdiction Act 1979. That is the provision which empowers the Court to call for and examine a Lower Court record of proceedings to satisfy itself as to the correctness, legality and propriety of such a record.

Mr Mbwelezeni submitted that citing the wrong enabling provision of the law rendered the application incompetent. He cited *The National Bank of Commerce v. Sandrudin Meghji* (1) to back up his submission.

It was also pointed out by Mr Mbwezeleni that the notice of motion had another serious defect which rendered it incompetent. The Notice of Motion did not conform substantially to Form A in the First Schedule, as required under rule 45(2) of the Court Rules. In Form A, in the

Schedule, it is shown that grounds for the application need to be stated. But in the Notice of Motion which was filed by Mr Patel no reasons are stated for the Application for Revision. It was submitted that was yet another reason why the Notice of Motion was incompetent.

Mr Mbwezeleni sought to bring to the Court's attention that the applicant seeking extension of 14 days to apply for leave to appeal against the order of Mshibe Bakari, J. dated 9 January 2003. That application was filed. It meant that the applicant was trying to ride two horses at the same time, which could not be permitted. He cited a decision of this Court - *Jaffari Sanya Jussa and another v. Saleh Sadiq Osman* (2) in support of his argument. He submitted that the applicant should have exhausted that remedy in the High Court and pursue the appeal, if leave to appeal was granted, before applying for revision.

It was also a ground of objection that the notice of motion in which application for revision was made amounted to an abuse of the Court process. He said the order which was made by Bakari, J. on 9 January, 2003 by which he revoked his previous order was appellable with leave or reviewable. Since a revision is not a substitute for an appeal, it was wrong, he submitted, for the applicant to choose to apply for revision as a substitute for an appeal which could have been pursued. That conduct on the part of the applicant was said to amount to an abuse of the Court process.

In response to the arguments advanced by Mr Mbwezeleni in the preliminary objection Mr Patel said the citing of section 2(3) of the Appellate Jurisdiction Act 1979 was a typographical error and he meant section 4(3) of the Act. After all, he said, section 2 of the Act does not have subsections. He applied for leave to rectify that position which he called an obvious typographical error. He also argued that there are special circumstances which compelled him to apply for revision. Bakari, J. had adamantly refused to consider his requests to either clarify what he meant in his order or to dismiss his suit as requested in the letters he had been writing to the Registrar

of the High Court. Then, throwing his hands up, as it were, Mr Patel said if the Court considered the first ground of objection was enough to dispose of the Notice of Motion, it was futile for him to advance arguments against the other grounds which Mr Mbwezeleni filed.

We think Mr Mbwezeleni is on firm ground in saying that the Court is not properly moved if a wrong provision of the law is cited in a Notice of Motion. This Court said so in *National Bank of Commerce v. Sadrudin Meghji* (1) a decision which was later followed by the same Court in *Almas Iddie Mwinyi v. National Bank of Commerce and another* (3). In *Meghji* there was application to this Court for revision. In the Notice of Motion was cited section 4(2) of the Appellate Jurisdiction Act 1979. The correct subsection was (3), not (2). It was submitted in a Preliminary Objection which was raised against the Notice of Motion that the Court had not been properly moved. This Court, referring to the error said:

> It follows therefore that the application has been filed by Notice of Motion under an inapplicable section of the law. Consequently, as the Court was not properly moved, the application is likewise, incompetent.

In *Meghji* the correct section had been cited and the error was only in citing the incorrect subsection which did not empower he Court to call for the Lower Court record to consider the propriety of the proceedings and decision of the High Court. In the case before us a wholly inapplicable section was cited, which was a worse situation than in *Meghji*.

It may well have been a typographical error as pleaded by Mr Patel, but if that was so, he ought to have sought to correct the error before the preliminary objection was filed only seven days before the matter came for hearing before us. The application had been filed six months earlier. To allow a correction on the hearing date is to pre-empt the Preliminary Objection against that error.

It is also true, as pointed out by Mr Mbwezeleni, that the Notice of Motion does not conform substantially to Form A of the First

Schedule in the Court Rules, as required under rule 45(2) of the Court Rules. No grounds for the prayers in the Notice of Motion were given. It was as if Mr Patel wanted to be on a fishing expedition in Court. He would think of the reasons and present them to Court as the hearing proceed. That cannot be proper. The Court and the other party to the application are entitled to know the grounds on which the Application for Revision was being made. The failure by the applicant to comply with rule 45(2) of the Rules was sufficiently grave to render the application incompetent, even if the applicant were to cite the correct provision for revision. We do not find it necessary to discuss the second part of the first point of objection or any of the other points of objection in detail because, having held that this Court is not properly moved, there is really no application for revision before the Court to be considered on its merits.

We only need to say in passing regarding points 2 and 3 in the Preliminary Objection that we agree with Mr Mbwezeleni that there was indeed no need for the applicant to seek revision of Bakari, J.'s order because it was appellable with leave. Indeed, there was already pending in the High Court an Application for extension of time to apply for leave to appeal against the Order. Mr Patel should have pursued that correct course to its conclusion instead of coming to this Court for revision. It was unnecessary and an abuse of the process of the Court to pursue two different avenues in two different Courts at the same time.

For the reasons which we have given, the application is incompetent and is struck out with costs.

LAMSHORE LIMITED v. PRINCIPAL SECRETARY, MINISTRY OF WATER, CONSTRUCTION, ENERGY AND LAND AND ANOTHER

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Lubuva and Munuo, JJ.A.)

CIVIL APPEAL No. 20 OF 2003

(From part of the Ruling of the High Court of Zanzibar at Vuga, Oredo.l.a., D.C.J. dated 7 October 2002, in Civil Case Number 13 of 1994)

Civil Practice and Procedure – Decree – Execution of decree – Attachment of property in execution of decree – Whether property at the headquarters of judgment debtor is attachable property.

Civil Practice and Procedure – Instrument establishing parastatal stating the property to house the parastatal's headquarters – Whether instrument thereby transferred the property to the parastatal – Section 2 of Legal Notice Number 12 of 1980.

Land Law – Acquisition of property – Statutory provision empowering a public enterprise to acquire and own immovable property – Whether the provision vests property in the enterprise – Section 13 (1) of the Public Enterprises Decree 1966 and section 3 of the Public Enterprises Decree 1978.

Land Law – Acquisition of public land – Effect thereof – Effect of Decree Number 8 of 1964.

The appellant successfully sued Bizanje for damages for breach of contract in the High Court. In execution proceedings the building housing the headquarters of Bizanje and warehouses located at Saateni and Maruhubi were attached. Both respondents objected to the attachment and sale of the properties in Miscellaneous Civil Application Number 8 of 2001. The respondents, then applicants, had argued that the attached properties belonged to them and not Bizanje and sought them to be released from the attachment. The High Court granted the application holding that it had not been established that the properties had vested in Bizanje and ordered the release of the

property. The appellant appealed against the order of release. It was argued on appeal that the judgment debtor was the owner of the building because the instrument establishing it, the judgment debtor, vested ownership of the building in the judgment debtor. On the other hand the State Attorney representing the respondents argued that from the 1964 revolution all the buildings in question, among others, became the property of the Zanzibar Government and there was no legal instruments vesting the property in the judgment debtor.

Held: (i) The building, housing the headquarters of the judgment debtor, vested in the government of Zanzibar by Decree Number 8 of 1964 and remains so in the absence of any instrument of transfer to the judgment debtor.

(ii) The instrument establishing the two respondents merely stated where their headquarters would be located and did not vest the property in them.

(iii) No transfer from the Zanzibar Government to the judgment debtor ever took place and the property therefore belongs to the respondents.

Appeal dismissed

Mr Mbwezeleni and *Mr Mnkonje,* for the Appellant

Mr Ali Hassani, for the Respondents

Statutory provisions referred to:

(1) Legal Notice Number 12 of 1990, section 2

(2) Public Enterprises Decree 1966, section 13(1)

(3) Public Enterprises Decree 1978, section 3(1)

(4) Legal Notice Number 11 of 2000

(5) Zanzibar Free Port Authority Act 1998, section 25

JUDGMENT

(Dated 20 November 2003)

Lubuva, J.A.: This appeal arises from the decision of the High Court Zanzibar, in Civil Case Number 13 of 1994 (Oredola, D.C.J.). In this

case, the appellant, Lamshore Limited, successfully sued Bizanje for the sum of USD 700 000 as damages for breach of contract.

In execution of the decree against Bizanje, properties among which the building housing the headquarters of Bizanje and warehouses located at Saateni and Maruhubi, within the outskirts of Zanzibar Municipality, were attached. The first and second Appellants, the Principal Secretary, Ministry of Water, Construction, Energy and Land and Director General, Zanzibar Free Port Authority, first and second appellants respectively, objected to the attachment and sale of the properties. That pertained to Miscellaneous Application Number 8 of 2001.

The case for the applicants, the Respondents in this appeal, was that the properties attached in execution of the decree against the Judgment Debtor, Bizanje, belonged to them. Therefore they sought the release of the properties from the attachment. The learned Deputy Chief Justice granted the application. He held that it had not been established that the properties attached had vested in the appellant. The Judge was satisfied that the respondents had proved their claim to the properties. Accordingly, the judge ordered the properties to be released from the attachment. The appellant has preferred this appeal against part of the decision, namely the release from the attachment of the building housing the headquarters of Bizanje and the godowns at Maruhubi

In this appeal, Mr Mbwezeleni and Mr Mnakonje, learned counsel, appeared for the appellant. The following grounds of appeal were filed:

1. That the learned judge erred in law and fact in not holding that the instrument creating a Public Enterprises *(sic)* as an autonomous legal entity with power to own property and proclaiming her headquarters' building is an instrument vesting ownership for purposes of the Public Enterprise formation and ownership laws.

2. That the learned Judge erred in law when he contradicted himself by insisting and requiring an instrument of transfer of immovable

property from the Government to her public enterprise (the Judgment Debtor) as proof of ownership and not likewise requiring or insisting on an instrument of transfer of immovable property from the Government to the second respondent herein.

3. That the learned judge erred in law in assuming that because the Government gave the Maruhubi godowns to the use of the second respondent herein in the instrument declaring free port, then it had title on the godowns to be in a position to give them to the second respondent herein and the instrument declaring the right of use is a vesting instrument.

A fourth ground in the alternative was also filed. It was however, not argued separately by Mr Mnkonje who addressed us on behalf of the appellant because according to him, it was covered in the submissions relating to the above grounds. We deem it unnecessary to reproduce it.

In elaboration, Mr Mnkonje strongly urged that Bizanje, the Judgment Debtor, was the owner of the building housing its headquarters. He said this is so because the legal instrument establishing Bizanje vested the ownership of the building in the Judgment Debtor, Bizanje. According to him, among the specific particulars set out under section 2 of Legal Notice Number 12 of 1990 is the head office at Mizingani, House Number 11617. By usage and common practice, Mr Mnkonje also submitted, the section providing for the head office also vested the building in Bizanje. Reference was also made to section 13(1) of the Public Enterprises to acquire and own movable and immovable properties. In short, he urged that these provisions of law read together, vested the property in Bizanje.

Mr Ali Hassani, learned State Attorney, for the respondents, vigorously countered these submissions. He drew the attention of the Court to the fact that until the publication of Legal Notice Number 12 of 1990 Bizanje had not been formally established. Regarding the building used as the headquarters of Bizanje he maintained that there was no evidence to show that it belonged to Bizanje. He further pointed out that since the revolution in 1964, the building in question among

others, was owned by the government of Zanzibar. In the absence of any legal instrument vesting the building in Bizanje, Mr Hassan urged that it belonged to the Government, therefore there was no basis for attachment.

With respect, we do not agree with Mr Mnkonje, learned counsel in his submission of this point. The central and indeed the only issue in this appeal is the ownership of the building. As correctly submitted by Mr Ali Hassan, learned State Attorney, it is common knowledge that after the revolution of 1964 in Zanzibar and the enactment of Decree Number 8 of 1964, the building, subject of the attachment, among others, vested in the government of Zanzibar. So, Mr Mnkonje's claim that the building belonged to Bizanje would be tenable only if evidence was adduced to prove that the property was transferred from the Government to Bizanje. On this, the learned Judge closely addressed and came to the conclusion that there was no such evidence. As the learned State Attorney observed, it is erroneous on the part of Mr, Mnkonje to assert that Bizanje was vested with the ownership of the building, on the basis of the provisions of sections 2 of Legal Notice Number 12 of 1990 and 13(1) of the Public Enterprises Decree 1966, which was repealed and replaced section 3(1) of the Public Enterprises Decree Number 4 of 1978.

On our part, upon a close reading of section 2 of Legal Notice Number 12 of 1990 together with section 3(1) of the Public Enterprises Decree 1978, we are unable to accept Mr Mnkonje's claim that the building vested in Bizanje by virtue of these sections. It is plain that section 2 of Legal Notice Number 12 of 1990 sets out that the head office of Bizanje shall be in house Number 11617 at Mizingani. To read into this provision that the building housing the headquarters shall also be owned by Bizanje is to say the least, absurd. It is not there and it was not intended. It is not unusual that the headquarters of institutions, government ministries or departments to be housed in buildings which they do not own. In similar vein section 3(1) of the Public Enterprises Decree 1978, does not vest property in the building to Bizanje. Plainly, the section empowers Public Enterprises

so established such as Bizanje to own and acquire property. It is an enabling section for acquiring and owning property and not a vesting one.

Next, Mr Mnkonje dealt with the godowns at Maruhubi. It was also his contention that these go-downs belonged to Bizanje. The thrust of his argument was that Bizanje had acquired prescriptive ownership because it had been in possession of these go-downs for many years. Furthermore, he submitted that analogous to his earlier submission regarding the building housing the headquarters of Bizanje, Legal Notice Number 11 of 2000 recognized Bizanje as the owner of the godowns at Maruhubi in Bizanje. In view of this, Mr Mnkonje went on in his submission, Legal Notice Number 11 of 2000 vested the godowns at Maruhubi from Bizanje, the judgment debtor, to the Zanzibar Freeport Authority.

It is to be observed that the Legal Notice signed by the President of Zanzibar bears the Number 61 of 2000. However, it was published as Legal Notice Number 11 of 2000. We are appreciative to Mr Hassan, learned State Attorney's initiative to draw our attention to this fact. With due respect to Mr Mnkonje, again we think he is wrong in his interpretation and application of Legal Notice Number 11 of 2000. As Mr Hassan submitted, Legal Notice Number 11 of 2000 only specifically declared the area as a Free Port Zone. The Legal Notice was made under section 25 of Zanzibar Freeport Authority Act Number 9 of 1998. The section provides to the effect that the President may, by order published in the Gazette, declare any part of Zanzibar to be a Freeport Zone. Based on this section, Legal Notice Number 11 was made. In part, it reads:

> Bizanje Godown (Kiwanja cha Ghala ya Bizanje) situated at Maruhubi, Zanzibar, as prescribed in the Site Plan Number S138/91, Plot Number 48A, attached hereto.

These provisions are too clear to require any further clarification. As provided in section 25 of the principal legislation, the President declared the area in which the godowns at Maruhubi are situate, a

Freeport Zone. The ownership of the godowns is not in any way covered under the Legal Notice. The argument that the Legal Notice recognises Bizanje as the owner of the godowns at Maruhubi is a misconception of the provisions of the Legal Notice. It was not intended to vest property in the area to the Zanzibar Freeport Authority.

In a further attempt to show that Bizanje owned the godowns at Maruhubi, Mr Mnkonje referred to the handing over note Exhibit D3. From this note, he submitted that Bizanje was recognised as the owner of the godowns which were being handed over to the Ministry of Finance. We wish to point out at once that the handing over note does not deal with vesting of property, it deals with administrative arrangement between the Ministries of Trade and Finance in so far as the use of the godowns at Maruhubi was concerned. The vesting of property in the godowns at Maruhubi cannot legally be derived from the handing over note as Mr Mnkonje urged us to accept.

Finally, we wish to briefly observe on ownership by prescription. Mr Mnkonje persistently maintained that because Bizanje had been in possession and use of the godowns at Maruhubi it had been vested with the property. Suffice it for us to repeat what has already been stated earlier in this regard. There is no dispute about possession of the godowns by Bizanje for a long time. The issue pertains to the ownership of the godowns. As held by the learned Judge, it is trite principle that possession is good title against anybody else except the owner. In this case, this principle does not apply because there is the owner of the property. As already shown, in the absence of any evidence to prove that property in the godowns at Maruhubi had transferred to Bizanje, the government is the owner of the godowns as held by the learned judge.

For the foregoing reasons, we are satisfied that the learned judge correctly ordered the release of the building housing the headquarters of Bizanje and the godowns at Maruhubi from attachment and sale in execution of the High Court judgment.

In the event, the appeal is dismissed with costs.

NICHOLAUS HAMISI and 1013 OTHERS *v.* TANZANIA SHOE COMPANY LIMITED AND TANZANIA LEATHER ASSOCIATE INDUSTRIES

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Kisanga and Ramadhani, JJ.A.)

CIVIL APPEAL No. 62 OF 2000

(From the decision of the Resident Magistrate's Court of Dar es Salaam, Madam Kimaro, PRM, Extended Jurisdiction, dated 4 February 1999, in Civil Appeal Number 77 of 1998)

Civil Practice and Procedure – Case instituted by numerous plaintiffs – Whether only a few of them may testify on behalf of the others

Labour law – Payment of subsistence allowance – Appellants paid transport costs to places of domicile – Whether respondent also obliged to pay subsistence allowance to appellants.

This was a second appeal by the appellants who were claiming subsistence allowance for the period between the date of their termination of employment and their eventually being paid their travel costs to their respective places of domicile. In the Trial Court only four witnesses testified on behalf of the others. In this Court it was contended that payment of transport costs to the appellants also entitled them to subsistence allowance.

Held: (i) On the evidence, the two Courts below should have found that the appellants had indeed been employed by the first respondent until their services were terminated; one does not pay people salaries and terminal benefits if one does not imply that those people were his employees;

(ii) The first respondent's payment of transport charges did not impose a legal obligation to pay subsistence allowance; the law is that the first respondent would be liable to pay subsistence allowance only if he was legally liable to repatriate the appellants;

(iii) Legal liability to repatriate has not been established, and there can be no question of estoppel regarding the payment of subsistence allowance.

Appeal dismissed

Cases referred to:

(1) *Mathew Leonard Kato v. National Poultry Co. Ltd* High Court, DSM, Civil Appeal Number 122 of 1990 (unreported)

(2) *Marcky Mhango, on Behalf of 684 others v. Tanzania Shoe Company and Tanzania Leather Association Industries,* High Court, DSM, Civil Appeal Number 36 of 1996 (unreported)

(3) *Amos Kashuku v.* The *General Manager, Tanganyika Dyeing and Weaving Mills Ltd,* High Court, DSM, Miscellaneous Civil Appeal Number 6 of 1998 (unreported)

(4) *Transcan Timber Company Limited v. Arthur Kibona,* CAT, Civil Appeal Number 50 of 2000 (unreported).

Statutory provisions referred to:

(1) Employment Ordinance Chapter 366, sections132 and 53

Mr Bashaka for the Appellants

Mr Kilindu for the first Respondent

Mr Twaib for the Second Respondent

JUDGMENT

(Dated 21 November 2003)

Makame, J.A.: The appellants, advocated for in this appeal by Mr Bashaka, learned advocate, went to the High Court [on appeal, but were heard by] (Kimaro, Principal Resident Magistrate, Extended Jurisdiction, as she then was), dissatisfied with the judgment delivered in the Resident Magistrate's Court of Dar es Salaam where they had sued for subsistence allowance for the period between their undefined

termination of employment by the first respondent, a subsidiary of the second respondent, and their eventually being paid for their traveling costs to their alleged places of domicile. There was also a smaller group of one hundred and seven people who were claiming severance allowance.

Before this Court the first respondent was represented by Mr Kilindu, learned advocate, while learned counsel, Mr Fauz Twaib, appeared for the second respondent.

The learned Principal Resident Magistrate, Extended Jurisdiction, accepted the learned trial magistrate's view that only four appellants, the ones who gave evidence, had established that they had indeed been the first respondent's employees. The learned trial magistrate went on to say "As regard the rest the issue of employment will have a meaning if this Court gives such a relief..." We must confess that we find this piece of reasoning rather unusual. One would have thought it is the other way round: the question of relief would arise only if the fact of employment was established.

Be it as it may, after making that remark the learned trial magistrate nevertheless jumped on to the question of subsistence allowance and, agreeing with Mr Kilindu, and adopting Mackanja, J's exposition of the law in *Mathew Leonard Kato v. National Poultry Co. Ltd* (1), which exposition may be correct but in our view not relevant in the context of the matter before the trial magistrate, he concluded that subsistence allowance was not payable.

The learned Principal Resident Magistrate, EJ, noted that the trial magistrate rather skirted the issue of employment and on her part went on to remark that the people who gave evidence testified only on their own behalf and gave no evidence regarding the rest. A remark this Court made in *Marcky Mhango on Behalf of 684 others v. Tanzania Shoe Company and Tanzania Leather Association Industries* (2), was called in aid to reach the conclusion that the evidence adduced at the trial was too 'generalized' to lead to a finding that all the

appellants had been employees of the first respondent. On this we wish to distinguish the present issue from that in *Marcky Mhango*. In *Marcky Mhango* the issue was that in order to establish how much accumulated leave one was entitled to, each one had to show when the days were earned and whether the days were earned before or after a circular stopping the workers from going on leave was issued. That aspect of particularity cannot be imported and used here where, if the fact of employment is established, and the employees were terminated on the same day, the issue would only be how long an employee was detained in Dar es Salaam, if he was, and whether that was relevant.

We have had to consider the first appellate court's examination of the trial court's evidence in its totality and bear in mind that this was a civil matter, not criminal, so the measure must be a preponderance of probabilities.

The matter was instituted by a Labour Officer as a report to a Magistrate in terms of section 132 Chapter 366. Annexed to it were documents, A and B, detailing the names of alleged employees. The report and the documents, read together, clearly allege that the people named were employed by the first respondent and were all terminated on the same day, and for severance allowance it was shown when each person was engaged. The Annexures were part and parcel of the appellants' case.

The appellants were paid terminal benefits, less transport costs, and in the case of severance allowance only one hundred and seven people were involved. The four people who testified each referred to "we", i.e. "I and the others" in the context. Nicholaus Hamis said 'I was employed along with others... we were retrenched ..." and Mr Kilindu did not bother to cross-examine to find out who the witness was referring to if Mr Kilindu was really seriously in doubt.

We are satisfied that on the evidence, the two Courts below should have found that the appellants had indeed been employed by the first

respondent until their services were terminated. One does not pay people salaries and terminal benefits if one was not implying that those people were his employees.

What has bothered us considerably is the question of subsistence allowance. Subsistence allowance is payable upon repatriation, following termination of employment, to the former employee's place of engagement or his place of domicile. There should have been credible evidence that the appellants were taken on at places other than Dar es Salaam or that there was a contract obliging the employer to transport the employees to their places of domicile for the first respondent to be responsible for their repatriation and, with that, subsistence allowance during the journey; in terms of section 53 of the Employment Ordinance Chapter 366 or any other relevant law. From that one could conceivably argue that some form of allowance would be payable for detention for the number of days the appellants say they were forced to remain in Dar es Salaam awaiting their being paid their transport charges. The same argument would apply even if one applied the Parastatal Service Regulations, in our view.

The evidence on record would not support the appellants' claim for subsistence allowance. Between them were the four appellants who appellant Nicholaus Hamisi conceded, when being cross-examined by Mr Kilindu, 'I was employed when here in Dar es Salaam". It is true that the appellants were paid for transport costs to various places upcountry and from this one may be tempted to infer that the first respondent was admitting responsibility to transport the appellants and so the first respondent would be responsible for facilitating their travel out of Dar es Salaam to the various places. But the correct position is that it cannot be argued that the first respondent would be stopped from denying liability for subsistence because he paid their transport costs. The law is that the first respondent would be liable to pay subsistence allowance only if he was legally liable to repatriate the appellants. Legal liability to repatriate has not been

established as we have endeavoured to explain, and there can be no question of stopped regarding the payment of subsistence allowance.

In other words the payment of transport charges could have been *gratis;* or even as a result of a bungle, seeing that the matter was being handled by a number of different Government ministries. In which case the appellants may be said to have been lucky and, as Mnzavas, JK as he then was, said in *Amos Kashuku v. General Manager, Tanganyika Dyeing and Weaving Mills Ltd* (3), in a situation rather similar to the present one, making the proposed payment would be a second 'wrong', the first 'wrong', being the payment of transport charges, and the two would not make a right: The first respondent's payment of transport charges did not impose a legal obligation to pay subsistence allowance. As Mr Twaib suggested, perhaps the appellants could have sued for damages for detention and specifically proved such damages.

With respect to Mr Bashaka, in our opinion our decision does not in any way contradict what this Court said in *Transcan Timber Company Limited v. Arthur Kibona* (4) where the nearest relevant issue to the present one concerned the alleged responsibility of the employer, otherwise liable to repatriate an ex-employee, to pay subsistence expenses for the period the ex-employee resisted repatriation. In that appeal this Court decided in favour of the employer.

We accordingly dismiss the appeal but make no order as to costs.

IDD KONDO *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Munuo and Nsekela, JJ.A.)

CRIMINAL APPEAL No. 46 OF 1998

(From the Judgment of the High Court of Tanzania at es a e Salaam, Bubeshi, J. dated 1 September 1998, in Criminal Appeal Number 77 of 1998)

Criminal Practice and Procedure – Appeal – Summary dismissal of appeal by the High Court – Whether High Court may summarily dismiss an appeal – Section 364 of the Criminal Procedure Act.

Criminal Practice and Procedure – Appeal – Summary Dismissal of appeal by the Court – Whether the Court may summarily dismiss the appeal without giving reasons.

Criminal Practice and Procedure – Appeal – Appeal dismissed summarily by the High Court – Whether Court of Appeal may step into the shoes of the High Court and hear and determine that appeal – Section 4 of the Appellate Jurisdiction Act 1979.

The appellant was convicted by the District Court and sentenced to twenty years' imprisonment. At the trial he had raised the defense of alibi which was not considered by the Trial Court. Further, the prosecution evidence had a lot of discrepancies which the Trial Court did not take into consideration when it proceeded to convict and sentence the appellant. The appellant appealed to the High Court against conviction. The appeal was summarily dismissed hence this appeal to the Court of Appeal.

Held: (i) The High Court may peruse a Petition of Appeal and may summarily dismiss the Appeal under section 364 of the Criminal Procedure Act of 1985, but where important or complicated questions of fact and law are involved, the Court should hear the appeal and not summarily dismiss the appeal;

(ii) The Court exercising the powers of summary dismissal of appeal need not give reasons, but it is advisable to do so.

(iii) The general rule is that where the High Court wrongly dismisses an appeal summarily the Court of Appeal sends it back to the High Court to be admitted for hearing; but in some deserving cases the Court of Appeal may step into the shoes of the Lower Court and determine the appeal itself.

Appeal Allowed

Cases referred to:

1. *Allah Bakhsh v. Emp.* (1931) 53 All 797
2. *Mushtak Hussein* AIR 1953 SC 282
3. *Kariakoo s/o Gachohi v. Rex* (1950) 17 E.A.C.A. 141
4. *Lighton alias Morgege s/o Mundekesye v. Rex* (1951) 18 E.A.C.A. 309
5. *Mulakh Raj Mahan v. Reginam* (1954) 21 E.A.C.A. 383

Statutory provisions referred to:

(1) Criminal Procedure Act 1985, sections 362, 364

(2) Appellate Jurisdiction Act 1979, section 4

Mr Masaju, for the Republic

JUDGMENT

(Dated 24 November 2003)

Ramadhani, J.A.: The appellant, Iddi Kondo, was convicted by the District Court of Ilala at Kinondoni, Dar es Salaam, and was sentenced to serve a term of imprisonment of twenty years. His appeal to the High Court of Tanzania was summarily dismissed (Bubeshi, J.) under section 364(1)(c) of the Criminal Procedure Act 1985, (Act Number 9 of 1985). He has now come to this Court.

Before the District Court the prosecution adduced a total of four witnesses. Rehema Samatta (PW1) testified that the appellant was a friend of her uncle called Omary Abdallah. On 3 June 1997 at about

8:00pm while PW1 was alone at home, the appellant appeared and told her that he wanted to perform some charm which would enable her to get married. PW1 declined that offer saying that she had not yet thought of marriage and she asked him to repeat that offer before her parents when they returned home. There upon the appellant held her by the neck, stepped on her chest with one foot, undressed her and raped her. PW1's cries for help did not bear fruits. People turned out after she had been ravished and the appellant had escaped. The first person to emerge was her uncle followed by "another woman". She was taken to Police for PF 3 and eventually to hospital and that she was admitted at the Muhimbili Medical centre for two weeks. She answered the appellant that she was discharged on 16 June 1997.

The second Prosecution Witness was Swaumu Selemani, a girl of the age of 13 years and a younger sister of PW1. She said that on the material day at 6:00pm she returned home from school and that the appellant, who was known to her, came in and asked her about Indian and Europian films. She told him that she was not familiar with films. Then the appellant told her to take off her underpants and skirt. She refused and told him that she was going to report the matter to a tailor who was close to the house and also to her elder sister. The appellant deposited a TZS. 100 on the table and left. PW2 changed her clothes and went out to play. Suddenly at about 8:00pm she heard some cries coming from their home. So, she rushed back and found a mob gathered outside. Her elder sister was crying but would not say why she was crying.

The third witness was Khadija Abdalla. She claimed that PW1 is her grand daughter and that she was living three houses away from PW1. On the fateful day at 8:00 pm she heard some cries coming from PW 1 crying and complaining that she had been raped by her grand father. The witness did not know the person. She, however, examined PW1 and saw a lot of sperms on PW1's private parts. PW3 did not do anything as she had a patient at home to attend to. So, she left.

It may be not out of place to record our observations here: Would a grandmother leave a young granddaughter, who has just been raped, helpless and go home without doing anything because she has a sick person to attend to at home? We ask: If that was the case why did she care to go there at all in the first place?

The last witness was Omary Abdalla. He said that PW 1 is his niece and that the appellant is his friend. On 5 June 1997, at 8:00pm PW1 went to tell him that the appellant had raped her and she requested him to assist her to arrest the appellant. He managed to locate the appellant on the following day. He tricked the appellant into going to the CCM Branch and from there the appellant was taken to a Police Station.

Again let us soliloquize. The event is said to have taken place on 3 June 1997. PW1 was admitted at the Muhimbili Hospital for two weeks and that she was discharged on 17 June 1997. How could she have gone to PW4 on 5 June 1997, to tell him the episode and to ask for his assistance to have the appellant arrested? It also baffles us why the appellant was not arrested earlier if his identify was known? To add on to that, why did PW4 have to trick the appellant into going to the CCM Branch and then to the Police to be arrested instead of telling the Police to do their work straight away?

The appellant in his defence said that on the fateful day he left work at *Urafiki* at 4:00pm and went home to pick his wife to go to Vinguguti to visit some relatives and that they returned home at 9:45pm. Then on 6 June 1997, while he was at a mosque he met his one time friend, PW3, and, after some exchange of greetings, he went into the mosque to pray. After prayers his friend told him that he was required at the CCM Branch and from there they went to a Police Station where he was told that he was under arrest. He was locked up at Magomeni Police Station and was taken to the Magomeni Primary Court. The appellant did not know what he had done and why his case was transferred from Magomeni to Kivukoni. He even produced a news paper which reported of the matter having been at Magomeni. That was admitted as Exhibit D1.

The appellant called his wife, Amina Mohammed, DW2, as his witness. She reiterated the story of having gone to Vingunguti with the appellant on the day he is alleged to have raped PW1. In cross-examination she said she would not have known if the appellant had passed through the place of PW1 before going to take her for Vingunguti. She said further that on 7 June 1997, the appellant went to pray and that he never returned home. When she went to the Police she learnt of the rape story. They were told by the officer in charge to go and settle the matter at home but instead it ended up in Court.

When pondering this one of us remembered to have been on a panel of this Court which was confronted with the same issue of summary rejection of appeal and that it was decided to remit the matter back to the High Court. We decided to put the matter to the parties. Unfortunately, the appellant was not represented so he could not contribute anything to the legal issue. Mr George Masaju, learned Senior State Attorney, opined that this Court could resort to its powers of revision under section 4 of the Appellate Jurisdiction Act 1979, as amended.

We have not been able to lay our hands on the decision of this Court which one of us talked about. However, it would appear that this Court did not even hear the appeal but ordered the matter to go back to the High Court before another judge to be heard on merit first. We have a different view and, we depart from that decision.

Section 364(1)(c) of the CPA provides as follows:

> (1) On receiving the petition and copy required by section 362, the High Court shall peruse the same and
>
> (a) ...
>
> (b) ...
>
> (c) If the appeal is against conviction and sentence and the Court considers that the evidence before the Lower Court leaves no reasonable doubt as to the accused's guilt and that appeal is frivolous or is without substance and that there is no material in the judgment for which the sentence ought to be reduced, the Court may forthwith summarily reject the appeal by an order certifying that upon perusing the record, the Court is satisfied that the appeal has been lodged without any sufficient ground of complaint.

This power of summary dismissal under this provision is akin to that which was provided under section 421 of the Code of Criminal Procedure, 1898 (V of 1898) of India and now section 384 of the Code of Criminal Procedure, 1973 (Act II of 1974). In **The Code of Criminal Procedure** (C of 1898) 6 (1965) Ed DV Chitaley and S Appu Rao state at Page 2760 that the provision:

> is an exception to the general principles of Criminal law and Criminal Jurisprudence and gives an appellate Court a summary power of dismissing an appeal ...

Therefore, the powers under the provision have to be exercised sparingly and with great circumspection. This Court, too, has to be equally careful, when the matter comes to it on appeal.

Section 362 of our CPA requires all criminal appeals to the High Court to be by petition in writing accompanied with a copy of the judgment or order appealed against, unless the High Court orders otherwise. Then under section 364 a judge may peruse such petition and "may forthwith summarily reject the appeal". It has been held in India that a Court, exercising the powers of summary dismissal, need not give any reasons *Allah Bakhsh v. Emp.* (1). But it is advisable to give reasons just in case such an order is challenged in revision *Mushtak Hussein* (2). However, where important or complicated questions of fact and law are involved, it has been held that the Court should hear an appeal and should not summarily dismiss it [Dagadu, 1981 Cri LJ 724 (SC)].

At home here in East Africa a couple of appeals reached the Court of Appeal for Eastern African. In *Kariakoo s/o Gachohi v. Rex* (3) the Supreme Court of Kenya summarily dismissed the appeal under

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section 352(2) of the Criminal Procedure Code. (The Court of Appeal said that the Court.

> ... can only do so in cases where an appeal is brought on ground that the conviction is against the weight of evidence or that the sentence is excessive ...

The Court observed that the memorandum of appeal included a ground that the learned Magistrate wrongly construed the appellant's plea of guilty. So, the Court said.

> However little merit there may, or may not, be in this ground of appeal, it is not one of the two grounds on which a Judge can dismiss an appeal summarily.

The Court quashed the order and remitted the appeal to the Supreme Court of Kenya for a hearing.

Then there was *Lighton alias Morgege s/o Mundekesye v. Rex* (4) in which a magistrate convicted the appellant with theft. He had two grounds of appeal: one was against the weight of the evidence but the other was a complaint that he was convicted on account of his previous criminal record. The high Court summarily dismissed the appeal. The Court of Appeal observed that the High Court overlooked the second ground because a sub-inspector of Police gave evidence which indicated the appellant's bad character. The Court found that evidence to have been inadmissible and said at page 310:

> ... we cannot but be left with a feeling of uncertainty as to whether the Magistrate's mind may not have been affected by the evidence which should never been before him, and that but for this evidence it is possible that he might have come to a different conclusion as to the appellant's guilt.

The Court quashed the conviction and set aside the sentence and let the appellant at liberty forthwith.

A third case was *Mulakh Raj Mahan v. Reginam* (5), the Court held that.

> An appeal may only be summarily dismissed where it is limited to the grounds that the conviction is against the weight of the evidence or that the sentence is excessive.

The Court observed that

> ... the memorandum of appeal contained at least three other points raising matters which, if points of substance, would vitiate conviction.

The case was remitted to the Supreme Court of Kenya with instructions to admit the appeal for hearing.

From the authorities referred to, both of India and of East Africa, we can distil the following principles which have to be taken into account when considering summary dismissal under section 364 of the Criminal Procedure Act:

(1) Summary dismissal is an exception to the general principles of Criminal law and Criminal Jurisprudence and, therefore, the powers have to be exercised sparingly and with great circumspection.

(2) The section does not require reasons to be given when dismissing an appeal summarily. However, it is highly advisable to do so.

(3) It is imperative that before invoking the powers of summary dismissal a Judge or a Magistrate should read thoroughly the record of appeal and the memorandum of appeal and should indicate that he/she has done so in the order summarily dismissing the appeal.

(4) An appeal may only be summarily dismissed if the grounds are that the conviction is against the weight of the evidence or that the sentence is excessive.

(5) Where important or complicated questions of fact and/or law are involved or where the sentence is severe the Court should not summarily dismiss an appeal but should hear it.

(6) Where there is a ground of appeal, which does not challenge the weight of evidence or allege that the sentence is excessive, the Court should not summarily dismiss the appeal but should hear it even if that ground appears to have little merit.

As for this Court the general rule is to send back the appeal to the High Court to be admitted for hearing if this Court is satisfied that the power of summary dismissal was improperly used. However, in some deserving cases the Court may step into the shoes of the Lower Court and determine the appeal conclusively. This is so especially where there is a glaring irregularity or miscarriage of justice and that the appeal ought to have been allowed and the appellant be discharged. This could be done by exercising the powers of revision under section 4(2) of the Appellate Jurisdiction Act 1979, which provides as follows:

> For all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this Act, have the power of revision and the power, authority and jurisdiction vested in the Court from which the appeal is brought.

In this appeal before us the learned judge gave the following order:

> After a careful study of the appeal filed, this Court is of the view that the same has been filed without sufficient grounds of complaint. The evidence on record does justify the conviction and sentence meted out.

The memorandum of appeal contained five grounds three of them were not challenging the weight of evidence or complaining that the sentence was excessive. One ground raised the issue of *alibi* of the appellant which was not at all discussed by the District Magistrate. Then there was the admission of PF 3 which was tendered by the PW1 herself while the author was not made available for cross-examination. Lastly, the appellant complained that the learned District Magistrate did not warn himself against the danger of making a conviction on uncorroborated evidence of a single witness who happened to be the complainant in a sex case.

The appellant appeared in person and pointed out the contradictions within the evidence of PW1 that she was hospitalized for two weeks and yet two days after admission she went to complain to PW4. He also said, *albeit* from the dock, that at Magomeni the charge was malicious destruction of property and not rape.

Apart from what we have said above, rape is a serious offence and the punishment of imprisonment of a term of twenty years that was given is undoubtedly stiff. So, even for these two reasons the learned judge should have declined to dismiss summarily the appeal.

Mr Masaju did not support the conviction and we are also satisfied that the evidence in the Lower Court raises more questions than answers, as we have pointed out. We are of the decided opinion that had the learned judge on the first appeal properly exercised her mind on the lines we have prescribed above, she would have discharged the appellant. Courts hate to have an innocent man languish in prison even for one second. So, we allow the appeal. We quash the conviction, set aside the sentence and order the immediate release of the appellant unless his continued incarceration is otherwise lawful.

For the avoidance of doubt we are aware that the authorities quoted in this appeal were given at the time when summary dismissal of appeal was under section 317 of Chapter 20 and that now we have section 364 of Act Number 9 of 1985. However, we are satisfied that there is no material difference in the two provisions. There is a light one in sub-section (1)(c) but does not render the authorities inapplicable.

INDEPENDENT POWER TANZANIA LIMITED *v.* VIP ENGINEERING AND MARKETING LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mroso and Munuo, JJ.A.)

CIVIL APPEAL No. 54 OF 2002

(Appeal from the Ruling and Order of the High Court of Tanzania at Dar es Salaam, Chipeta, J. dated 12 March 2002, in Miscellaneous Civil Case Number 49 of 2002)

Civil Practice and Procedure – Arbitration – Application for stay of proceedings pending reference to arbitration – Application to be made before filing a written statement of defence or taking any other step in the proceedings.

Civil Practice and Procedure – Applications – Application for stay of proceedings pending reference to arbitration – Application for stay is followed by an oral application by the other party – Whether Court may entertain the oral application.

Natural Justice – Application for stay of proceedings is followed by an oral application by the respondent – Appellant constrained from effectively taking part in the oral application by respondent – Effect of participation by appellant in the oral application made by respondent.

In a dispute between the appellant and the respondent, the latter petitioned the High Court for the winding up of the appellant company. The appellant, intending to refer the dispute to arbitration, applied under section 6 of the Arbitration Ordinance Chapter 15, for stay of the winding up proceedings and prayed that the application for stay of proceedings be heard and decided before the respondent's petition was heard. The Court obliged and made orders relating to filing of written submissions. But before the Court could adjourn the advocate of the respondent made an oral application to Court for appointment of an "interim Provisional Liquidator" or, in the alternative, an order for payments known as capacity charges amounting to USD 195 million to

be deposited into Court. Despite resistance by the advocate for the appellant the Court decided to entertain that application and the appellant was ordered to deposit into Court the amount of the capacity charges. The appellant appealed against that order to the Court of Appeal on three grounds: that the judge erred in hearing and ruling on the respondent's oral application prior to disposal of the appellant's application for stay of proceedings; that the judge erred in hearing and determining the respondent's oral application without first establishing whether or not it was fit to entertain it; and that the judge erred in hearing and determining the respondent's oral application which in effect amounted to the disposal of an earlier application to the Court which the judge had agreed should be heard after the application for stay of proceedings had been disposed of.

Held: (i) In entertaining the oral application after the same Court had agreed to hear first the application for stay of proceedings, the Court was contradicting itself and was in effect forcing the appellant to take a step in the proceedings which the respondent had filed in Court;

(ii) The oral application for the appointment of "an interim provisional liquidator" is part of the winding up proceedings and the appellant was entitled to desist from taking part in that application in order not to prejudice his right to refer the dispute to arbitration;

(iii) In view of the application by the appellant for stay of proceedings the High Court should not have entertained the oral application by the respondent before deciding on the application for stay of proceedings;

(iv) The High Court erred in allowing the respondent to make the oral application for an interim order and in hearing it and deciding on it, more so because if the Court granted the stay order it would mean that all proceedings relating to the petition for winding up would be stayed pending the submission by the parties to arbitration;

(v) The appellant would not be able to canvass fully its objection to the application without compromising its right to submit the dispute to arbitration;

(vi) The Judge erred in hearing the oral application and since Mr Kesaria could not advance full arguments against the oral application the appellant was in effect condemned unheard.

Appeal allowed

Case referred to:

(1) *Cooperative and Rural Development Bank v. Filton (Tanzania) Limited* [1996] T.L.R. 122

Statutory provisions referred to:

(1) Arbitration Ordinance Chapter 15, section 6

(2) Civil Procedure Code 1966, Order XLIII, rule 2

Kesaria, for the Appellant

Nassoro and *Ndyanabo,* for the Respondent

JUDGMENT

(Dated 24 November 2003)

Mroso, J.A.: This is an appeal against a ruling and order of the High Court, Chipeta, J. dated 12 March 2002, after leave was duly obtained from the High Court under section 5(1)(c) of the Appellate Jurisdiction Act 1979. During a dispute between the appellant and the respondent, the latter petitioned the High Court for the winding up of the appellant company. But the appellant intended to refer the dispute to arbitration and considered that the winding up proceedings would prejudice the intended reference to arbitration. So, it applied under section 6 of the Arbitration Ordinance Chapter 15 for stay of the winding up proceedings. It was prayed that the application for stay of proceedings be heard and decided before the respondent's application was heard. The Court obliged and ordered the application for stay to be heard three days later, that is on 7 March 2002. On that date the High Court ordered the parties to file written submissions, the last such submissions to be filed by 29 March 2002, and that the ruling would be on notice.

Before the Court could adjourn to await the filing of written submissions as ordered Mr Ndyanabo, learned advocate for the respondent,

made an oral application to Court for the appointment of an "Interim Provisional Liquidator" or in the alternative, payments known as capacity charges be ordered to be deposited into Court. The amount involved, according to Mr Ndyanabo, was USD 195 million which he feared the appellant might use to pay dubious liabilities.

Mr Kesaria, learned advocate for the appellant, resisted that prayer, arguing that it would be more appropriate to wait for the decision in the application for stay of proceedings because, if that application were allowed, all proceedings including those relating to the appointment of an "interim provisional liquidator" would be stayed. Regarding that oral application by Mr Ndyanabo the Court fixed a ruling in which the High Court ordered the appellant to deposit into the Court the amount of the capacity charges, as an interim measure. It is that order which the appellant intends to challenge in this appeal.

Mr Kesaria filed and argued three grounds of appeal. First, that the learned High Court Judge erred in hearing and ruling on the respondent's oral application prior to the disposal of the appellant's application for stay of proceedings. Second, that the judge erred in hearing and determining the respondent's oral application "without first establishing whether or not it was fit to entertain the oral application ... in contravention of the *proviso* to rule 2 of Order XLIII of the Civil Procedure Code 1966". Third, that the learned judge erred in hearing and determining the respondent's oral application which in effect amounted to the disposal of an earlier application to the Court which the judge had agreed should be heard after the application for stay of proceedings had been disposed of.

Regarding the first ground of appeal Mr Kesaria's main bone of contention was that since the parties had agreed to a submission to arbitration it would be prejudicial to him to take part in the petition for winding up and the ancillary prayers made in it and that was the reason he applied to Court under section 6 of the Arbitration Ordinance Chapter 15 of the laws for stay of those proceedings. In entertaining the oral application after the same Court had agreed to hear first the application for stay of proceedings, the Court was contradicting

itself and was in effect forcing the appellant to take a step in the proceedings which the respondent had filed in Court.

Mr Nassoro, learned advocate who appeared with Mr Ndyanabo, contented that the appellant cannot claim to have been guarding itself against taking any steps in the winding up proceedings because it had in fact already taken part by praying for extension of time to file a counter affidavit to the petition for winding up. As for the second ground of appeal Mr Kesaria argued that conditions for allowing an oral application in terms of the *proviso* to rule 2 of Order XLIII did not exist and, therefore, the Court had no valid grounds for allowing the respondent to prosecute the oral application. He cited the case of *Cooperative and Rural Development Bank v. Filton (Tanzania) Limited* (1) to support his argument that an oral application is allowed only in rare, non-contentions litigation, which the application made to the judge was not.

In response Mr Nassoro said that the case which Mr Kesaria cited was authority that an oral application may be entertained if there is need for prompt action to protect the interests of a party. The oral application which the respondent made and which the Court entertained was intended to address a situation which could not wait for the formal procedure of filing a Chamber Application supported by an affidavit which would be met by a counter-affidavit and a formal hearing. The prevailing circumstances were such that an interim order of the Court was immediately needed. The formal procedure entailed a delay of an indefinite nature before a remedy was made available, which would prejudice the interests of the respondent, more so because the Court had observed intense mutual distrust between the parties. Since the order sought was only interim it did not pre-empt a subsequent full hearing of the main application or the application for stay of proceedings.

In arguing the third ground of appeal Mr Kesaria submitted that the High Court had acted on bare allegations which were not substantiated by any evidence, even by an affidavit, and that the appellant who could not advance before the judge arguments to oppose the oral application

for fear of contravening section 6 of the Arbitration Ordinance, was condemned unheard, contrary to the rules of natural justice. Mr Nassoro informed the Court that the petition by the respondent did not contain a prayer for an interim appointment of a liquidator. The interim order sought and granted in the oral application was merely preservatory. It was to expire as soon as the application for stay of proceedings was decided. It was therefore proper, according to Mr Nassoro, for the High Court to grant the order for the capacity charges to be deposited into Court where they would be safe from use by either of the parties. During the proceedings before Chipeta, J. there was no denial that there had been an agreement between the parties to submit to arbitration in the event of a dispute between them. A dispute had arisen and the respondent petitioned the High Court for, *inter alia*, a winding up order. How was the appellant to react? Section 6 of the Arbitration Ordinance reads as follow:

> 1. Where any party to a submission to which this Part applies, or any person claiming under him, in respect of any matter agreed to be referred, any party to such legal proceedings may, at any time after appearance, and before filing a written statement, or taking any other steps in the proceedings, apply to the Court to stay the proceeding; and the Court, if satisfied that there is no sufficient reason why the matter should not be referred in accordance with the submission, and that the applicant was, at the time when the proceedings were commenced, and still remains ready and willing to do all things necessary to the proper conduct of the arbitration, may make an order staying the proceedings.

The appellant intended to submit the dispute to arbitration in accordance with clause 18(a) of the Promoters/Shareholders Agreement. In that case he had to avoid appearing to be taking a step in the winding up proceedings and to apply to the High Court for stay of the winding up proceedings. We think that the oral application for the appointment of "an interim provisional liquidator" is a part of the winding up proceedings and the appellant was entitled to desist from taking part in that application in order not to prejudice his right to refer the

dispute to arbitration. In view of the application by the appellant for stay of proceedings the High Court should not have entertained the oral application by the respondent before deciding on the application for stay of proceedings. With respect, we agree with the appellant that the High Court erred in allowing the respondent to make the oral application for an interim order and in hearing it and deciding on it, more so because if the Court granted the stay order it would mean that all proceedings relating to the petition for winding up would be stayed pending the submission by the parties to arbitration.

Going by what is seen in the record, there was no justification for the High Court to entertain an oral application rather than a formal application by Chamber Summons supported by an affidavit. But even if the respondent had made a formal application under Order XLIII, rule 2 it would still be improper in the circumstances for the Court to hear and decide on the application. The appellant would not be able to canvass fully its objection to the application without compromising its right to submit the dispute to arbitration. The Court should have known that the appellant was handicapped and could not be heard.

Mr Nassoro contended that the appellant did in fact address the Court in the matter. The record shows that indeed Mr Kesaria addressed the Court albeit briefly. He is recorded as having said:

> My Lord there is already such application. If proceedings are stayed everything would be stayed. My Lord, submissions are made from the Bar and not on oath. It is already in the application. The money will be used for recurrent costs. Payments from TANESCO are required for costs of producing power. If a provisions *(sic)* liquidator is apointed *(sic)* TANESCO will terminate the agreement with IPTL under paragraph 16(1)(e) of the Agreement.

It may be argued that the brief address to Court by Mr Kesaria might have amounted to taking a step in the proceedings but that issue is not before this Court at present. Besides that in itself goes to show the difficult position the appellant was put into, being forced, as it were, to say something in connection with the unexpected oral application

which the High Court had wrongly entertained. Mr Kesaria believes he was still refraining from participating in the unscheduled hearing of the oral application. Be that as it may, we are satisfied that the judge erred in hearing the oral application and since Mr Kesaria could not advance full arguments against the oral application, the appellant was in effect condemned unheard. For what we have said is sufficient for us to dispose of the appeal in favour of the appellant. The observations that follow are made merely for the sake of completeness.

We agree with the appellant that the prerequisites for entertaining an oral application under the *proviso* to rule 2 of Order XLIII of the Civil Procedure Code 1966 had not been met. The Court had to consider if a fit situation existed before it could decide to entertain the oral application. The only reason given by Mr Ndyanabo for the oral application was that it was feared that the appellant would use the capacity charges to pay for dubious liabilities. The record shows that there was no elaboration of that serious allegation which was made from the bar. Had the High Court applied its judicial mind to that bare allegation it would have found that no proper circumstances were put before it to give justification for it to decide that it was fit to entertain the oral application. In the case of *CRDB Bank v. Filton* (*supra*) cited by the appellant the High Court found that an oral application which was made because a written application had not been admitted by the Court did not meet the requirements of the *proviso* to rule 2 of order XLIII of the Criminal Procedure Code 1966 because no grounds had been given to show that it was a fit matter for an oral application.

We also agree that the normal procedure for making an application in the High Court and the Subordinate Courts is by way of a Chamber Applications supported by Affidavit and that oral applications have to be justified before they can be entertained. The reasons which Mr Nassoro gave before us as to the urgency of the intended order for the appointment of an interim provisional liquidator do not appear

to have been given before Chipeta, J. So, even if it were assumed that the Judge could have entertained an oral application the grounds for it had not been laid.

We do not agree with the appellant that the oral application pre-empted an earlier application by the respondent which was filed on 25 February 2002. The oral application was for the appointment of an interim liquidator. If the High Court ruling is anything to go by it seems that the interim order sought related to the month of March 2002 only. The judge said:

> Mr Ndyanabo, learned counsel for the petitioner, made an oral application for an interim order appointing a provisional Liquidator or, in the alternative, an interim order that capacity Charges due to be paid to the respondent by TANESCO *at the end of this month* be paid into Court so as to protect the petitioner's interests because it is feared that the respondent could use the money to pay dubious liabilities [emphasis supplied].

If, therefore, what was said in the ruling was correct, it cannot be said that the oral application pre-empted the prayers in the petition. Even so, as we have already held, the oral application ought not to have been entertained in any case.

For the reasons which we have given the appeal is allowed. The proceeding and the ruling of the High Court regarding the oral application are quashed and the order to deposit the capacity charges in Court is set aside. The appellant to get the costs.

PROFESSOR IBRAHIM H. LIPUMBA *v.* ZUBERI JUMA MZEE

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 92 OF 1998

(From the Judgment of the High Court of Zanzibar at Vuga, Kannonyele, J. dated 10 December 1997, in Civil Case Number 4 of 1996)

Torts – Defamation – Libel and slander – Factors constituting libel and slander – Libel and slander distinguished.

Defamation – Damages for slander – Slanderous words imputing commission of a criminal offence – No need for proof of actual damage.

Torts – Defamation – Defences – Defence of fair comment – Comment based on rumours alleging corruption and uttered without any attempt to verify the rumours – Whether a justified fair comment on the national problem of corruption.

Damages– Damages for defamation – Purpose of damages for defamation – Factors to be considered in awarding damages for defamation.

This was an appeal against the High Court of Zanzibar awarding damages for defamation. The appellant was a national chairperson of a political party that had taken part in the 2000 general elections. At a public rally in Pemba he uttered words to the effect that the respondent, who was Chairman of the Zanzibar Electoral Commission must have been bribed (so as to rig the election) and that is why he was able to buy a house for TZS. 60 million shortly after the elections. At the appeal it was argued by the appellant, *inter alia,* that he was merely commenting on the wide spread problem of corruption, that the trial judge had failed to appreciate the distinction between libel and slander, and that the damages awarded were excessive.

Held: (i) A libel is a defamatory imputation made in permanent form, such as in writing while slander is a defamatory imputation made in a fugitive form such as by

speaking or gestures; in an action for slander there is need for proof of actual damage suffered whereas libel is actionable *per se,* i.e. without need for proof of actual damage suffered;

(ii) Although slander is ordinarily not actionable *per se,* it becomes actionable *per se,* i.e. without need for proof of actual damage when it imputes the commission of a criminal offence;

(iii) The trial judge was aware of the distinction between libel and slander and he found that the slanderous words complained of in this case imputed the commission of a criminal offence and were therefore actionable *per se.*

(iv) As the appellant did not bother to do any homework to substantiate the accuracy or otherwise of the rumours he had heard and which formed the basis of his defamatory utterances, the defence of fair comment cannot be available to him; war against corruption cannot be a licence for fabrication of lies under the pretext of fair comment on a matter of public interest;

(v) The purpose of damages for defamation is to provide compensation for damage done to one's reputation, to vindicate one's good name and for the wrong one has suffered, to compensate for the distress, hurt and humiliation suffered;

(vi) Factors which may be considered in awarding damages for defamation include the gravity of the defamation suffered, the degree or extent of injury to personal integrity, to professional reputation, to one's honours, the degree or extent of publication of the defamatory matter, the conduct of the defendant (like refusal to tender an apology), and so on;

(vii) As both the number of people who attended the public rally where the defamatory words were uttered and the circulation of the *Majira* newspaper which published them, are unknown to the Court and as according to the respondent's own witness the injury caused to him was minimal, the award of TZS. 30 million as general damages was excessive.

Appeal dismissed, damages reduced

Cases referred to:

(1) *Reynolds v. Times Newspapers* [2000] 2 LRC 750

(2) *John v. MGN Ltd* [1996] 2 All ER 35

(3) *Associated Newspapers Ltd v. Dingle* [1962] 2 All ER 737

(4) *Admiralty Commissioners v. S.S. Susquehanna* [1926] AC 655

Dr. Tenga, for the Appellant

Mr Kashumbugu, for the Respondent

JUDGMENT

(Dated 4 December 2003)

Nsekela, J.A.: The respondent, Zuberi Juma Mzee, was at the material time the Chairman of the Electoral Commission of Zanzibar. He claimed that the appellant, Professor Ibrahim Haruna Lipumba, had at a public rally at Tibirizi, Chake Chake, Pemba, uttered the following words:

> *Kama kumpandisha cheo kuwa Katibu Mkuu Ofisi ya Raisi, Mjumbe mmoja wa Tume ya Uchaguzi siyo rushwa tuiite kitu gani.*
>
> *Au Mwenyekiti wa Tume ya Uchaguzi ya Zanzibar kununua nyumba kwa zaidi ya TZS. Milioni 60 mara tu baada ya uchaguzi haikutokana na rushwa ni nini?* [emphasis supplied]

The respondent claimed that these words spoken by the appellant were defamatory and referred to him since he was the Chairman of the Electoral Commission of Zanzibar and that in their natural and ordinary meaning they meant and were understood to mean that the respondent was a corrupt person who was bribed and so bought a house worth over TZS. 60 million soon after announcing the Election results. The respondent claimed, *inter alia,* TZS. 100 million as general damages from each of the four defendants. The second, third and fourth defendants were the Editor of *Majira* Newspaper, then General Manager, Business Printers Limited respectively. After due consideration and analysis of the evidence, the trial judge (Kannonyele, J.) held that the respondent had been defamed and ordered that each of the four defendants should pay TZS. 30 million as general damages. The appellant was aggrieved by this decision, hence the appeal to this Court.

At the hearing of the appeal, Dr Tenga, learned advocate, represented the appellant and Mr Kashumbugu, learned advocate, represented the respondent. Dr Tenga raised three grounds of appeal namely:

(1) That the learned trial judge erred in law and in fact in failing to appreciate the distinction between libel and slander.

(2) That the learned trial judge erred in law and in fact, in holding the appellant equally liable as the rest of the defendants therein as if the standards of proof for the alleged wrongs are equal and the same.

(3) That the learned trial judge erred in law and in fact in awarding such a huge sum of money as damages to the respondent while the evidence adduced did not prove any special damage to the respondent/ plaintiff

The first ground of appeal need not detain us for it is clearly baseless. The trial judge was well aware of the distinction between libel and slander. In the course of his judgment, the trial judge referred to, *inter alia*, A **Dictionary of Modern Legal Usage** (Second Edition, 1995) by Bivam A Garner at page 527 where it is stated thus:

> In popular usage the terms libel and slander are synonymous, meaning a deliberate, untrue, derogatory statement, usually about a person, whether in writing or orally. In legal usage there are important differences. Each is an untrue and defamatory imputation made by one person about another which, if published (i.e communicated to a third person), can be a ground for a civil action in damages. Such imputation is a libel if made in a permanent form (writing, pictures) or by broadcasting. It is slander if made in a fugitive form (e.g. by speaking or gestures). A further distinction is that an action for slander cannot ordinarily succeed without proof of actual damage has been caused; in an action for libel this is unnecessary.

A slander is a false and defamatory statement by spoken words or gestures which tend to injure the reputation of another. The respondent complained that the words spoken by the appellant at Tibirizi, Chake Chake, were slanderous. The trial judge discussed this matter and

found that the spoken words imputed the commission of a crime and so actionable *per se*. In other words, there was no need for the respondent to prove special damages. The complaint by the respondent against the appellant was based on the spoken words. It is therefore totally unfounded for Dr Tenga to fault the trial judge on this ground.

We now turn our attention to the second and third grounds of appeal which were argued together. Dr Tenga submitted that the theme of the spoken words complained of was to brief the party faithful (CUF) that the elections in Zanzibar had been rigged and as a result their presidential candidate had lost the election. He added that the appellant appealed to President Mkapa to fight corruption which was rampant in the country. Due to corruption some members of the Electoral Commission had benefited by rigging the elections. This is what the appellant stated in his evidence:

> At the meeting I was commenting if it was not out of corruption proceeds with which the Chairman could have bought such a house as alleged. Actually I posed a question in view of the widespread news about the Chairman of the Zanzibar Electoral Commission's purchase an expensive house immediately after the elections

When cross-examined by Mr Kashumbugu, the appellant did not mince his words: He stated as follows:

> I still contend that the news in Unguja and Pemba after elections up to the date I made the speech at the rally in Pemba that the Chairman of the Zanzibar Electoral Commission bought a TZS. 60 million house after the elections are true. In other words, I still contend that the news in Unguja and Pemba that the Chairman of the Electoral Commission had bought an expensive house estimated at about TZS. 60million or more were true notwithstanding that I made no research to verify the news, as I usually don't on such matters. *I still contend that the Chairman of the Zanzibar Electoral Commission was corrupted or bribed in order to rig the Presidential Election results of 1995.*[emphasis supplied].

Mr Kashumbugu, on his part, submitted that the words spoken by the appellant imputed that the respondent had purchased a house by

corrupt means, which was a criminal offence. This allegation was repeated by the appellant while testifying on oath and the appellant did not feel any need to recant or verify the accuracy of those allegations. The learned advocate added that these words were false utterances and the mere fact that they were at a public rally was not a defence at all.

There is no dispute at all that the appellant spoke those words at Tibirizi. He did not make any attempt to disown them. In fact he reiterated his belief in what he had said. The spoken words clearly referred to the respondent. In this respect there was a lame attempt to suggest that the respondent was not the target of those words. Like the trial judge, we are not persuaded in the least that the respondent was not the person being referred to. It is evident from the testimony of the appellant himself; DW2, Said Miraji Abdalla and DW3, Ayoub Bakari Hamadi that the respondent soon after the elections, through corrupt means/bribery was able to purchase a house well beyond his legitimate financial resources. The appellant was not able to substantiate his allegations which were apparently founded upon rumours. Dr Tenga, however, forcefully argued that the words uttered were in the realm of politics and therefore protected as fair comment on a matter of public interest. It was a political discussion on an important national issue, namely, corruption.

It is trite law that the defence of fair comment is conce with the protection of comment. The appellant had to plead the facts upon which the comment was based and the facts must have been in existence. The trial judge found that the spoken words were statements of fact which were false. With respect, we concur with this finding. The appellant himself without shame testified that he did not bother to do any homework to substantiate the accuracy or otherwise of the rumours he had heard and which formed the foundation of the defamatory words. The "real sting of the matter" or "the real pith and marrow" was the statement that the respondent had soon after the elections purchased a house worth over TZS. 60 million by corrupt means. This was an imputation that the respondent had committed a criminal

offence. Corruption is a serious matter and coming from a national leader of a political party and a Professor of Economics, it was bound to have an impact upon those who heard or read the article in *Majira* newspaper. Admittedly, corruption both in the public service and the private sector should not be condoned but this was not a licence for the appellant to fabricate lies under the pretext of fair comment on a matter of public interest.

With the greatest respect to the appellant, we deprecate such behaviour. We expect from our leaders both in government and in politics to have respect for the truth. We wish to respectfully associate ourselves with the observations made by Lord Nicholls in *Reynolds v. Times Newspapers* where he stated at page 760:

> Reputation is an integral and important part of the dignity of the individual. It also forms the basis of many decisions in a democratic society which are fundamental to its well being: whom to employ or work for, whom to promote, whom to do business with or to vote for. Once besmirched by an unfounded allegation in a national newspaper, a reputation can be damaged for ever, especially if there is no opportunity to vindicate one's reputation. When this happens, society as well as the individual is the loser. For it should not be supposed that protection of reputation is a matter of importance only to the affected individual and his family. Protection of reputation is conducive to the public good. It is in the public interest that the reputation of public figures should not be debased falsely.

On our part, we do not entertain any doubts whatsoever that the words spoken by the appellant at Tibirizi were slanderous; were untrue in substance and in fact; they clearly referred to the respondent and imputed that he had committed a criminal offence. Under the circumstances, there was no need of proof of special damages as Dr Tenga had argued. The defence of fair comment therefore collapses.

We now proceed on to consider and determine the complaint against what Dr Tenga termed as 'a huge sum of money awarded as damages" to the respondent. The Trial judge considered at some length the question of damages and awarded as general damages, TZS. 30

million from each defendant. Dr Tenga submitted that the case against the appellant was based on slander, but in the assessment of damages, the appellant was lumped together with the other three defendants whose liability was on libel. More specifically, Dr Tenga faulted the trial judge for basing his assessment of damages on unpleaded matters, namely punitive or exemplary damages. He submitted that the quantum of damages be reviewed downwards to TZS. 1 million, which in his view, would meet the justice of the case.

For the respondent Mr Kashumbugu submitted that the essence of the suit were the words spoken by the appellant at Tibirizi which imputed the commission of a criminal offence. This was actionable *per se* without proof of special damages. He added that the trial judge took into account several factors including the amount claimed in the plaint; the conduct of the appellant in refusing to tender an apology and the reputation and standing of the respondent in society.

What then are the general principles that should guide a Court in assessing damages in defamation cases? We have sought inspiration from the case of *John v. MGN Ltd.* (2) at page 47 wherein Sir Thomas Bighham, MR had this to say:

> The successful plaintiff in a defamation action is entitled to recover as general compensatory damages, such sum as will compensate him for the damage to his reputation; vindicate for the wrong he has suffered. That sum must compensate him for the damage to his reputation; vindicate his good name; and take account of the distress, hurt and humiliation which the defamatory publication has caused. In assessing the appropriate damages for injury to reputation the most important factor is the gravity of the libel; the more closely it touches the plaintiff's personal integrity, professional reputation, honour, courage, loyalty and the core attributes of his personality, the more serious it is likely to be. The extent of publication is also very relevant: a libel published to millions has a greater potential to cause damage than a libel published to a handful of people. A successful litigant may properly look to an award of damages to vindicate his reputation: but the significance of this is much greater in a case where the defendant asserts the truth of the libel and refuses any retraction or apology than in a case where the defendant acknowledges the falsity of what was published and publicly expresses regret that the libellious publication took place.

There is no evidence on the record on the extent of the circulation of the Majira Newspaper in Unguja and Pemba or Tanzania Mainland for that matter. We do not know as well whether or not this newspaper has a website in this age of information and technology. The estimated number of people who attended the public rally is also unknown. The inevitable conclusion is that the circulation of the defamatory words was very limited indeed. The trial judge mentioned the fact that the appellant did not make an apology and this was indicative of malice. In the pleadings, however, the respondent did not demand an apology from the appellant and therefore it was not right for the trial judge to make adverse inferences against the appellant for not tendering an apology or as a factor to award punitive or exemplary damages. Another factor which featured prominently in the assessment of damages was the protection of the respondent's reputation. We respectfully agree that person's reputation should not be savaged without justification. PW2, Musa Juma, the only witness for the respondent, stated:

> We, meet with the plaintiff casually as a friend and to date I respect him, the article in the Majira notwithstanding. No doubt however, the article has the effect of lowering the plaintiff's estimation in society. *To the best of my knowledge, the article has not adversely affected the plaintiff in any manner.* [emphasis supplied].

From the respondent's own witness, the injury to the respondent's reputation was minimal. On the other hand, we have taken note, with despair, we must add, that the defamatory words were spoken by a prominent politician and distinguished academic but who unfortunately had no respect for the truthfulness of what he said concerning the respondent, a distinguished public figure in his own right. The power of the Court to review awards of damages on the ground either that they are too high or too low are limited. It must be shown that the

trial judge arrived at his figure by applying a wrong principle or through misapprehension of facts or for some other reason to have made a wholly erroneous estimate of the damage suffered. (see: *Associated Newspapers Ltd v. Dingle* (3) at page 743). It would appear to us that the trial judge was unduly influenced by the staggering claim of TZS. 100 million from each of the defendants as general damages made by the respondent. We would like to point out that the law presumes general damages to flow from the wrong complained of and which need not be specially pleaded. In the words of Lord Dunedin in *Admiralty Commissioners v. SS Susquehanna* (4) at page 661:

> If there be any special damage which is attributable to the wrongful act that special damage must be averred and proved, and if proved, will be awarded. *If the damage be general, then it must be averred that such damage has been suffered, but the quantification is a jury question.* [emphasis supplied].

The quantification of general damages should have been left to the Court to assess. In the result, and for the reasons hopefully amply explained above, we think that the award of TZS. 30 (thirty) million as general damages, was on the high side. We would substitute the figure of TZS. 10 (ten) million. The appeal is accordingly dismissed with costs.

MANENO MENGI LIMITED AND THREE OTHERS *v.* FARIDA SAID NYAMACHUMBE AND THE REGISTRAR OF COMPANIES

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Lubuva and Munuo, JJ.A.)

CIVIL APPEAL No. 45 OF 2003

(Appeal from the Judgment of the High Court for Zanzibar at Vuga, Dourado, J. dated 19 July 2002, in Miscellaneous Civil Case number 1 of 2001)

Civil Practice and Procedure – Appeals – Period within which to lodge an appeal – Rules 83(1) and 89(1) of the Court of Appeal Rules 1979.

Civil Practice and Procedure – Certificate of delay – Two certificates of delay in respect of the same matter issued concurrently – Effect of issuing and validity of the second certificate of delay.

Civil Practice and Procedure – Appeals – Extension of time in which to file an appeal – Jurisdiction to extend period in which to file an appeal.

Civil Practice and Procedure – Appeals – Notice of address – Failure to give notice of address – Effect of the failure.

The first respondent petitioned for the winding up of the first appellant company on the ground that the second and third appellants had illegally terminated the first respondent's directorship in that company. The High Court apparently accepted this ground and ordered the appellants to pay the first respondent USD 13 700 00 as compensation and allowances. The Court, however, declined to order for the winding up of the company. The appellants appealed. The record of the High Court proceedings appealed was supplied to the appellants on 14 March 2003, but without a drawn order, and not filed within 60 days. There was a certificate of delay of 8 June (or 20) 2003. A second certificate of delay was issued by the Registrar on 8 July 2003, and the appeal was filed on 9 July 2003. The respondents raised a preliminary objection on the grounds that the appeal was time barred as the second certificate was

incompetent, and that the record of appeal was wanting in that it did not include addresses of service of the parties.

Held: (i) Under rule 83(1) of the Court of Appeal Rules 1979, subject to the provisions of rule 122, an appeal must be instituted by lodging it in the appropriate registry, within 60 days of the date when notice of appeal was lodged; but where an application for a copy of the proceedings in the High Court has been made within 30 days of the date of the decision against which it is desired to appeal, then, such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of the record to the appellant will be excluded in computing the time;

(ii) In the case at hand, a copy of the proceedings was received on 14 May 2003, and the period of 60 days expired on 13 May 2003;

(iii) There cannot be two certificates of delay concurrently applicable in respect of the same matter; in this case the certificate of 8 June 2003 was the valid one and the second certificate of 8 July 2003 was of no legal consequence as it amounted to extending the time within which to file an appeal, something the Registrar had no power to do;

(iv) It was also wrong for the Registrar to issue a second certificate while the first one had not been withdrawn; if the intention was to withdraw the first certificate, then the Registrar should have indicated so when issuing the second certificate;

(v) An advocate's lack of diligence and inaction is no good ground for circumventing the clear provisions of the Rules; had the advocate for the appellants exercised diligence, he would have discovered that a drawn order was not included soon after the copy of the proceedings was received and would have taken necessary steps to correct the defect before the expiry of the 60 days' limit, but now the appeal was clearly time barred in terms of rule 83(1) of the Rules;

(vi) Under rule 89(1)(b) of the Rules, it is necessary for the record of appeal to contain a statement showing the address of service of the appellant and the respondent and the format is clearly spelt out in rules 79 and 89 read together with Form E in the first Schedule to the Rules.

(vii) Not every irregularity or non-compliance with a rule will necessarily render an appeal incompetent simply because the word "shall" is used in the rule; irregularities or non-compliance not going to the root or substance of the matter can be overlooked

provided there is substantial compliance with the rules read as a whole and no prejudice is occasioned and, in the case at hand, as the respondents were served with the memorandum and record of appeal in terms of rule 90(1), failure to furnish the statement of address in the record did not prejudice the respondents and was not fatal to the appeal;

(viii) ***Obiter:*** To comply with rule 79 where the respondent has not furnished full and sufficient address for service in respect of the notice of appeal, the record should show the last known address, that is, the address used in the notice of appeal; the appellants failed to do this but, in the circumstances, the failure was not fatal to the appeal.

Appeal struck out

Case referred to:

(1) *VIP Engineering and Marketing Ltd. v. Said Salim Bakhressa Ltd.*, Court of Appeal Civil Appeal Number 47 of 1996 (unreported).

Mr Nassoro for appellants

Mr Mbwezeleni and *Mr Mnkonje* for respondents

RULING

(Dated 10 December 2003)

Lubuva, J.A.: In High Court Miscellaneous Civil Case Number 1 of 2001, the respondent, Farida Said Nyamachumbe, petitioned for the winding up of the company, Maneno Mengi Limited. She was one of the three other directors of the company, namely the second, third and fourth appellants. In the petition, the ground advanced for the winding up of the company was that the first respondent's directorship was illegally terminated by the second, third and fourth appellants. The learned judge apparently accepted this ground but he declined to order for the winding up of the company. The appellants were ordered to pay the respondent a total of USD 13 700 compensation and allowances. The appellants were aggrieved, hence the appeal to this Court.

In this appeal, the appellants were represented by Mr Nassoro, learned advocate. At the commencement of hearing of the appeal, a preliminary objection on behalf of the respondent notice of which had been filed under rule 100 was raised. In support of the preliminary objection, three grounds were advanced. First, that the appeal is time barred, second, that the second certificate of delay of 8 July 2003 is incompetent as it was issued after the first certificate of 20 June 2003 and third, that the record of appeal is wanting for not including the address of service of the parties.

Grounds one and two were argued together. Mr Mbwezeleni and Mnkonje addressed the Court in turns. The thrust of their submission on these grounds was that the appeal instituted on 9 July 2003 was out of time. In terms of the provisions of rule 83(1) an appeal shall be instituted within sixty days of the date when the Notice of Appeal was lodged. In this case, if the time certified in the certificate of delay of 8 June 2003 as necessary for the preparation of the copy of proceedings and delivery of the copy to the appellant is excluded, in the absence of any extension of time, the appeal should have been lodged at the latest by 13 May 2003. That is within the period of 60 days from 14 March 2003 when the appellant was supplied with a copy of the proceedings. The second certificate of delay which purported to extend the time in which to institute the appeal is of no legal consequence because the Registrar does not have the power to do so.

Mr Mbwezeleni and Mr Mnkonje, learned advocates appeared for the first respondent and Mr Jadi Simai, Assistant Registrar of Documents, represented the Registrar of Companies, the second respondent. Mr Jadi Simai, did not wish to address the Court. He left it for Mr Nassoro to address the Court on the legal issue raised in the preliminary objection.

Mr Nassoro ardently maintained that if the time is computed on the basis of the second certificate of delay of 8 July 2003, the appeal was timeously instituted on 9 July 2003. He urged that as counsel for the first respondent, he diligently pursued the matter until the

certificate of delay of 8 July 2003 was issued. According to him, the second certificate was the valid one because with its issuance the first certificate of 20 June 2003, was cancelled. He also said that from the beginning when he applied for a copy of the proceedings, he had made it clear to the Registrar that the copy of proceedings was required for purposes of appealing. As such, he said it is common knowledge to the Registrar what documents are required under rule 89(1) to be contained in a record of appeal. He blamed the Registrar for not supplying a copy of the drawn order of the decree together with the copy of the proceedings and judgment on 14 March 2003, until the Registrar was reminded by letter of 11 June 2003. As to why he did not follow up the matter soon after receiving a copy of the proceedings on 14 March 2003, Mr Nassoro maintained that he was constantly reminding the Registrar either by letters or by sending someone from his office.

The institution of appeals is provided for under rule 83(1) of the Court Rules 1979. It provides:

> 83(1) Subject to the provisions of rule 122, an appeal shall be instituted by lodging in the appropriate registry, within sixty days of the date when the Notice of Appeal was lodged:
>
> (a) ...
>
> (b) ...
>
> (c) ...
>
> (d) ...

Save that where an application for a copy of the proceedings in the High Court has been made within thirty days of the date of the decision against which it is desired to appeal, there shall, in computing the time within which the appeal is to be instituted, be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of the copy to the appellant.

In this case, it is not disputed that a copy of the proceedings was received on 14 March 2003. In that situation and as correctly submitted by Mnkonje, from this date, the period of 60 days within which the appeal should have been instituted expired on 13 May 2003. We agree with Mr Mnkonje that there cannot be two certificates applicable in respect of the same matter. In this case, the certificate of 8 June 2003 was the valid one because the second certificate of 8 July 2003 was of no legal consequence. It seems to us that the second certificate of 8 July 2003 issued by the Registrar upon the request by Mr Nassoro by letter of 11 July 2003 amounted to extending the time in which to file the appeal. This, the Registrar had no power to do. It is the Court which has the power to extend the time in which to institute the appeal. Furthermore, the Registrar was also wrong in issuing a second certificate when the first one had not been withdrawn. If the intention was to withdraw the first certificate, then the registrar should have indicated so when the second certificate was issued.

In the circumstances, and as already observed, there is no gainsaying that the time expired on 13 May 2003. It follows therefore that from the time when Mr Nassoro applied for the drawn order of the decree on 11 June 2003, the matter was already time barred. His plea that he had diligently been following the matter with the Registrar or that it was the mistake of the Registrar in not supplying a copy of the decree is also of no avail. The Registrar supplied documents which were asked for, the drawn order of the decree was not requested for until 11 June 2003. So, the registrar cannot be blamed for not supplying a document which was not asked for. On the other hand, if Mr Nassoro had exercised a modicum of diligence, he would have discovered that a drawn order of the decree was not included soon after 14 March 2003 when a copy of the proceedings was received. Had he done so he would have taken necessary steps to rectify the position before the expiry of 60 days seeking extension of time from the Court. As happened in this case, the appeal is clearly time barred in terms of rule 83(1) apparently because of counsel's failure to take action in time. It is now settled that an advocate's lack of

diligence and inaction is no ground for circumventing the clear provisions of the rules.

This ground alone is sufficient to sustain the preliminary objection. However, we wish to briefly touch on the third ground in which Mr Nassoro raised a rather interesting point in his submission in reply to the preliminary objection. On ground three, it was the submission of Mr Mnkonje that the appeal was incompetent because the mandatory provisions of rule 89(1) were not complied with. He stated that under rule 89(1)(b) the Record of Appeal shall contain a statement showing the address for service of the respondent. In this case, he further contended that the record did not contain a statement of the address of the respondents and as a result hearing of the appeal had to be adjourned because the second respondent had not been served.

Countering these submissions, Mr Nassoro, conceded that under rule 89(1)(b) it is necessary for the record of appeal to contain a statement showing the address of service of the appellant and the respondent. In this case, he said the matter has to be looked at from its historical perspective. When the Notice of Appeal was filed, the first and second respondents were duly served using the address shown in the record. The respondents did not complain, he added. Furthermore, Mr Nassoro contended that despite the fact that the respondents did not comply with the provisions of rule 79(1)(a) by lodging in the Court Registry a notice of address, in the interest of justice he ensured that the respondents were served with the record in terms of rule 90(1). At any rate, Mr Nassoro went on in his submission, there is no particular format prescribed under rule 89(1) for furnishing the statement of address in the record.

We find no merit in this submission by Mr Nassoro regarding the format of the statement of the address for service to the respondent. This is so because Rules 79 and 89 read together with Form E in the First Schedule to the Rules are self explanatory. The format is clearly spelled out. Otherwise we need not be delayed in dealing with the fact that rule 89(1)(b) was breached. It is an aspect which Mr Nassoro conceded.

The issue is the effect of such non-compliance with the rule in the circumstances of the case. Mr Mnkonje for the first respondent was firmly of the view that as the record of appeal did not contain a statement of the address for the second respondent, the appeal was rendered incompetent. According to him the requirements of rule 89(1)(b) are mandatory because the word "shall" is used in the rule. Suffice it for us to observe that not in every situation that an irregularity or non-compliance with a rule renders the appeal incompetent simply because the word "shall" is used in the rule. As held by a Single Judge of this Court in *VIP Engineering and Marketing Limited v. Said Bakhressa Limited* (1) irregularities or non-compliance which do not go to the root or substance of the matter can be overlooked provided there is substantial compliance with the rule read as a whole and no prejudice is occasioned. In this case having regard to the fact that the respondents were served with the memorandum and record of appeal in terms of rule 90(1), we do not think that in the circumstances of the case, failure to furnish the statement of address in the record was fatal to the appeal and that prejudice was occasioned to the respondents.

Finally, we wish to observe on what the appellant is expected to do in order to comply with rule 79 when the respondent does not respond to the notice of appeal. In the instant case, as the respondents had not furnished full and sufficient address for service in response to the notice of appeal, the record should have shown the last known address, namely the address used in the notice of appeal. This again, as already shown was not done. So, in this regard, there was non-compliance with the rule which, nonetheless we have held was not in the circumstances of the case fatal to the appeal.

All in all therefore, for the foregoing reasons we are satisfied that ground one of the preliminary objection is well founded, the appeal was instituted out of time, it is incompetent. The preliminary objection is sustained and the Notice of Appeal is struck out under rule 82 with costs.

ABDALLA YUSSUF OMAR *v.* PEOPLE'S BANK OF ZANZIBAR AND ANOTHER

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Lubuva and Munuo, JJ.A.)

CIVIL APPEAL No. 93 OF 2002

(From the Judgment of the High Court for Zanzibar at Vuga, Oredola, D.C.J., dated 14 March 2002 in Civil Case Number 43 of 2000)

Contract – Loan agreement – Default to pay consecutive installments – Whether the failure constitutes breach of contract.

Contract – Loan agreement – Power of sale of mortgaged property securing the loan – When the power of sale is exercisable.

Torts – Defamation – Advertisement of sale of mortgaged property over the radio – Whether the advertisement is defamatory of the defaulting borrower.

The appellant had obtained a loan in the sum of TZS. 15 000 000 from the first respondent on 28 January 1999 repayable within six months together with interest at the rate of 24% per annum. He mortgaged his house as security. After drawing TZS. 14 000 000 of the loan he failed to repay within the stipulated period. He obtained extension and entered into a new agreement which required him to repay the loan by twenty six monthly installments of TZS. 654 610 55 each from December 1999, and any outstanding balance was to be paid by January 2002. The new agreement gave the first respondent the right to sell the mortgaged property. When the appellant failed to pay seven consecutive installments the first respondent gave the appellant seven days' notice of its intention to sell the mortgaged property and instructed the second respondent to auction the mortgaged house. The sale of the property was announced over the radio, which publicity the appellant claimed defamed him. He then sued both respondents jointly and severally, claiming TZS. 15 000 000 from both respondents and TZS. 20 000 000 damages for breach of contract and, from the first respondent only, TZS. 15 000 000 as compensation for special and general damages. The trial

judge found either party had breached the loan agreement in that the appellant had failed to repay the loan while the first respondent had prematurely exercised its power of sale before January 2002.

Held: (i) The terms of the loan agreement required the appellant to repay the loan in twenty six monthly installments and the remaining balance by January 2002;

(ii) The trial judge was wrong to hold that the first respondent had prematurely exercised its power of sale since payment was due from December 1999 and not January 2002, which was the end of the repayment period;

(iii) By failing to repay any of the installments due until May 2002, when he was served with a demand notice the appellant was in breach of the loan repayment terms and the bank was entitled to exercise its power of sale of the mortgaged property;

(iv) The advertisement of the sale of the mortgaged property over the Radio was not defamatory since the first respondent had a legal right to exercise a right of sale

Appeal dismissed

Mr Uzzi K Haji, for the Appellant

Mr Ali H Hassani, for the first Respondent

Mr Mbwezeleni, for the second Respondent

JUDGMENT

(Dated 11 December 2003)

Munuo, J.A.: The appellant, Abdallah Yusuf Omari, through the services of Mr Ussi K Haji, learned advocate, is appealing against the dismissal of Civil Case Number 43 of 2000 in the High Court of Zanzibar, before Oredola, Deputy Chief Justice, as he then was. In the said case, the appellant sued the first respondent, the Peoples Bank of Zanzibar for:

(a) TZS. 20 000 000 damages for breach of contract and

(b) TZS. 15 000 000 compensation for special and general damages.

The appellant jointly claimed from the Peoples Bank of Zanzibar and its agent, the second respondent, the Managing Director of Caravan Ltd., TZS. 30 000 000 compensation for defamation, interest and costs of the suit. The respondent jointly and severally denied the claim.

The appellant applied for and obtained a loan of TZS. 15 million from the first respondent, the Peoples Bank of Zanzibar, hereafter referred to as the bank. The terms of the loan agreement are reflected on the loan agreement, Exhibit P1 which is dated the 28 January 1999. The loan was to be repaid within six months with an interest rate of 24% per annum as stated under Clause 2(b) of Exhibit P1. The appellant mortgaged his Mtoni house as security. Thereafter the appellant drew TZS. 14 million from the bank but defaulted in repaying the loan so he sought extension of time to settle the same. The Bank and the appellant then made a new loan agreement, Exhibit P4. Clause 6 of the new loan agreement required the appellant to pay the debt within a period of 26 months with effect from December, 1999 in monthly installments of TZS. 654 610 55, and any remaining balance to be paid by January, 2002. Clause 7 of the new loan agreement, Exhibit P4, gave the bank power to sell the mortgaged house to liquidate the debt upon the appellant's failure to pay the loan as scheduled. Like under the previous loan agreement, Exhibit P1, the appellant failed to execute the terms of repaying the loan under the second loan agreement, Exhibit P4 whereupon the bank, after serving a seven days notice on the appellant, instructed its agent, the second respondent, the Managing Director of Caravan Ltd., to auction the mortgaged house to pay the overdue debt. The sale of the mortgaged house was announced over radio Tanzania, Zanzibar, which publicity, the appellant complained, defamed him. Hence the present suit for damages against the bank and its agent, the co-respondents. Before the sale of the mortgaged house the appellant got an injunction to restrain the respondents from selling the mortgaged house. To date the house has not been sold and the appellant has not repaid the loan.

The learned judge found either party had breached the loan agreement in that the appellant defaulted in paying the debt while the bank exercised its power of sale prematurely, before January 2002. The learned judge observed.

> Thus in essence and conclusion on this issue as a whole and as framed; I find and hold that there has been breaches of agreements on both sides, of the divide, that is, plaintiff and first defendant respectively. Howbeit, the resultant effects of the said breaches, will be pronounced upon at the end of this judgment ...

At the end of the judgment, the learned judge held:

> In conclusion, having considered, weighed, assessed and evaluated the totality of evidence adduced by the parties herein, coupled with the cogency of the evidence, credibility of witnesses and probability of the pieces of evidence in the light of surrounding circumstances, I am of the firm view point that there is lack of evidence to support, both case and claims of the plaintiff ... The plaintiff's case against both the first and second defendants is hereby dismissed with costs ...

Mr Ussi K Haji, learned advocate, as stated earlier on, represented the appellant. Mr Ali H Hassan, learned State Attorney, represented the first respondent, the Peoples Bank of Zanzibar. Mr Mbwezeleni, learned advocate, represented the second respondent, the Managing Director of Caravan Ltd. Counsel for the appellant had initially filed eight grounds of appeal but at the hearing of this appeal, he abandoned grounds 1, 2, 3, 4 and 7 and argued grounds 5, 6 and 8 of the appeal together. Grounds 5, 6 and 8 of the appeal state:

> 5. The learned Judge having held that the respondents were not entitled and could have no validity and legality to sell the appellant's mortgaged property before the month of January 2002 he ought to have held that their action amounted to a breach of the agreement.
>
> 6. Further the Court having made the decision as in para above, it ought to have held that to advertise the sale of the house of the appellant and labeling him as a bad debtor had injured his credibility and tarnished his business reputation.
>
> 8. The learned Judge had erred in law and facts and ought to have held that on the balance of probability the appellant was libeled by the respondents thus causing him damages.

In his submission, Mr Ussi Haji criticized the bank for advertising the mortgaged property for sale before the agreed time, which was, January 2002. The radio announcements, counsel for the appellant contended, defamed the appellant for their *innuendo* was that the appellant was neither a creditworthy nor trustworthy businessman, disrepute which seriously tarnished the appellant's business image and esteem. It was the view of the advocate for the appellant that the learned trial Judge should have awarded the damages the appellant claimed for defamation from the respondents. Counsel for the appellant prayed that the appeal be allowed with costs resulting in the judgment being entered for the appellant as prayed for in the plaint.

Mr Ali Hassan, learned State Attorney supported the decision of the Trial Court. He maintained that the announcements over Radio Tanzania, Zanzibar, publicizing the sale of the mortgaged property were necessary and justified because the appellant had breached a fundamental term of the loan agreement, Exhibit P4, namely the appellant's default to pay installments of TZS. 654 610 55 for six consecutive months before the notice to sell the mortgaged property was served on him by the respondents. The appellant's breach of the said fundamental term under Clause 6 of the loan agreement, Exhibit P4, Mr Ali Hassan asserted, caused the bank to move the second respondent to sell the mortgaged property to settle the debt. It was the appellant's own failure to pay the debt which gave rise to the radio announcements so the said radio announcements were justified. The learned State Attorney urged the Court to dismiss the appeal with costs.

Mr Mbwezeleni, learned advocate for the second respondent, adopted the submission of the learned State Attorney. He pointed

out that the second respondent duly served a seven days demand notice on the appellant before publicizing the sale of the mortgaged property but the appellant did not respond to the demand notice. Counsel wondered why the appellant did not protect his business reputation by paying the due monthly installment or even paying the debt when the demand notice was served on him. Contending that the appellant was himself to blame for the radio announcements of the sale of the mortgaged property, Mr Mbwezeleni urged us not to interfere with the decision of the Trial Court.

The issue is whether by announcing the sale of the mortgaged property over Radio Tanzania, Zanzibar, the respondents defamed the appellant.

Like the learned trial Judge, we have to resolve the above question negatively. As counsel for the parties conceded, the appellant failed to repay the loan under the first loan agreement, Exhibit P1. The bank favoured the appellant with extension of time to pay the debt by entering into a new loan agreement, Exhibit P4. Under the new loan agreement, the period of paying the debt was enlarged to 26 months on monthly installment of TZS. 654, 610/55 as provided under Clause 6 of the material loan agreement Exhibit P4. Initially, the first loan agreement, Exhibit P1, had required the appellant to repay the loan within six months which he failed to do. But even after time had been enlarged under Clause 6 of the second loan agreement, Exhibit P4, the appellant did not make any attempt to pay the monthly installments. The bank then issued a demand letter, Ref. PBZ/DDB/CR/97-99/339 dated May 26 2000 Exhibit D1 in which it gave the appellant seven days to pay up the arrears of monthly instalments he had defaulted to pay for six months or else face legal action. The appellant did not respond so the bank moved their agent, the second respondent, to sell the mortgaged house by public auction to realize the debt.

We are of the settled view that Clause 7 of the loan agreement, Exhibit P4 gives the bank power to sell the mortgaged house. Exhibit P4 is written in Kiswahili but Clause 7 of the said agreement, translated into English provides:

> If the customer fails to pay the debt, the bank will sell the mortgaged house without the consent of the customer or Court. If the debt has not been satisfied, the bank will attach other properties of the customer to settle the debt.

It is our view that because the appellant failed to repay the loan by installments as scheduled, the bank properly exercised its power of sale under Clause 7 of the Loan Agreement, Exhibit P4. It is so because the appellant breached a fundamental term of the agreement, namely Clause 6 of the loan agreement. We wish to quote Clause 6 of the loan agreement in the Kiswahili text which states:

> Kwamba, mkopaji anaahiidi ya kwamba, kuanzia mwezi wa Desemba 1999 atakuwa akilipa si chini ya TZS. 654 610 55 kila mwezi, kwa muda wa miezi ishirini na sita (26), na hivyo kuweza kumudu kulipa deni hilo lililosalia ifikapo mwezi wa January 2002.

The English translation of the above would be:

> That, the borrower promises to pay the loan from December 1999 in monthly installments of TZS. 654 610 55 for twenty six months (26) and in that way manage to pay the remaining debt by January 2002.

We are clear in our minds that Clause 6 of the loan agreement, Exhibit P4, required the appellant to pay the debt by installments of TZS. 654 610 55 per month for 26 months and any remaining balance would be paid by January 2002. We think the learned judge misconstrued Clause 6 when he held that the date for payment would fall due in January 2002 because the date of payment was to commence in December 1999 and end in January 2002. We are also of the settled view that because the appellant failed to honour the terms of payment under Clause 6 of the loan agreement, Exhibit P4, the bank was justified in exercising its power of sale of the mortgaged property under Clause 7 of the said loan agreement.

Under the circumstances the appeal is devoid of merit. We accordingly dismiss the appeal with costs.

WILLIAM MUGURUSI *v.* STELLA CHAMBA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Massati, J.)

CIVIL REVISION No. 169 OF 2002

Civil Practice and Procedure – Jurisdiction – High Court – Jurisdiction of the High Court when a matter is in the Court of Appeal – Application of the provisions of the Civil Procedure Code.

William Vedastus Mugurusi and Susan Mugurusi jointly filed a summary suit, RM Civil Case Number 393 of 1999, in the Resident Magistrate's Court at Kisutu against Stella Chamba for vacant possession of property. Stella filed Civil Application Number 426 of 2000 for leave to defend the suit, but failed to obtain such leave and on 7 January 2000 judgment was entered *ex-parte* against her. But from the said application Number 426 of 1999, a "decree" was extracted where it was ordered in mediation that the first plaintiff (William Vedastus Mugurusi) should pay Stella Chamba TZS. 500 000 and the suit be withdrawn. On (12 June 2002, William Mugurusi filed another summary suit in Kinondoni District Court against Stella Chamba for the same relief as in the previous case. Again, on 15 July 2002, Stella Chamba filed her application for leave to defend the suit but the application was dismissed on 23 October 2002. William Mugurusi immediately applied for the eviction of Stella Chamba who then, on 31 October 2002, applied for stay of execution but on 4 November 2002 the application was struck out for being incompetent. Stella Chamba was then evicted from the property. She then wrote to the District Magistrate of Kinondoni with a copy to the District Registrar, High Court, apparently complaining about the turn of events. The Resident Magistrate of Kinondoni then wrote an inspection note and sent the proceedings to the High Court. On 29 November2002, the High Court (Luanda, J.) ordered William Mugurusi to re-roof the property within three days so that Stella Chamba could occupy the house by 4 December 2002. On 30 November 2002, William Mugurusi filed a Notice of Appeal against that order, and an application of execution of the order of the High Court. On 6 February 2003, Stella filed an application in the High Court for contempt of Court proceedings against William Mugurusi and the

application came for hearing on 28 March 2003. Counsel for the respondent William Mugurusi submitted that as the matter was in the Court of Appeal, the High Court had no jurisdiction. Counsel for the applicant submitted that as the matter was interlocutory, there was no right of appeal and the appeal was therefore incompetent. He also said that an appeal is no bar to execution. He relied on the Civil Procedure Code and rule 9 of the Court of Appeal Rules 1979.

Held: (i) Once proceedings of appeal to the Court of Appeal have been commenced, the High Court cannot properly apply the Civil Procedure Code and so the whole Civil Procedure Code is disapplied.

(ii) It is not for the High Court to decide whether the intended appeal was competent or not. That was for the appellate Court to say. The High Court had no jurisdiction in the matter. Contempt proceedings adjourned *sine die.*

Ordered accordingly

Case referred to:

(1) *Aero Hellicopters (T) Limited v. FN Jansen,* [1990] T.L.R. 142

Statutory provisions referred to:

(1) Tanzania Court of Appeal Rules 1979, rule 9

(2) Civil Procedure Code 1966, sections 2, 68 and 95

Mr Taslima, for the Applicant

Mr Maira, for the Respondent

RULING

(Delivered 15 December 2003)

Massati, J.: The facts giving rise to this ruling are not without interest. It appears from the available records that William Vedastus Mugurusi and Susan Mugurusi had jointly filed a suit against the applicant, Stella Chamba on 25 October 1999 in the RM's Court, Kisutu Dar es Salaam. This was RM Civil Case Number 393 of 1999 to demand vacant possession of property on Plot Number 278 and 279 Block J.

Mbezi Beach, Dar es Salaam. On 7 January 2000 judgment was entered *ex parte* upon the applicant's failure to obtain leave to defend although an application for leave had been filed on 14 December 1999 and registered as "Civil Application Number 426 of 2000". From this "a decree" was extracted where it was ordered in mediation that the first plaintiff/respondent pay to the defendant/applicant the sum of TZS. 500 000 as costs, and the suit be withdrawn.

On 21 June 2002 the respondent William Mugurusi filed another suit in the District Court of Kinondoni (Civil Case Number 129 of 2002) against the applicant for the same relief under summary procedure. On 15 July 2002, the applicant filed her application for leave to defend. This application was dismissed by Makwandi, RM, on 23 October 2002, whereupon the respondent immediately applied for eviction and obtained the Order on 31 October 2002. On 31 October 2002 the applicant through her counsel Taslima Law Chambers filed an application for stay of execution. This was again struck off as incompetent by Mbuya, SRM, on 4 November 2002. Having been evicted the applicant wrote to complain to the District Court Kinondoni, with a copy thereof to the District Registrar. On 7 November 2002, the Resident Magistrate wrote an inspection note forwarding the proceedings to this Court.

These proceedings landed on the desk of Luanda, J. who, upon perusal, on 29 November 2002 ordered that the respondent re-roof the house within three days so that the applicant should occupy the house by 4 December 2002. This order did not please the respondent. So on 30 November 2002, he filed a notice of appeal through the services of Ms Maira and Company Advocates.

On 6 February 2003, the applicant filed contempt proceedings against the respondent for failing to comply with the order of Luanda, J.

On 14 March 2003 Luanda, J. ordered that this application be fixed for hearing on 28 March 2003. On that day, Mr Maira appeared and argued that since there is a Notice of Appeal filed in the Court of Appeal along with the Civil Application Number 140 of 2002,

therefore this Court has no jurisdiction to proceed with this application. Mr Taslima, counsel for the Applicant, submitted that this was a revisional proceeding, and the order is interlocutory, and therefore not appellable. Secondly, while it was true an appeal has been commenced that in itself was not a bar to execution. He relied on the Civil Procedure Code and rule 9 of the Court of Appeal Rules 1979. He therefore prayed that the order of this Court dated 29 November 2002 proceed to execution. In reply, Mr Maira submitted that if Mr Taslima conceded that there was an appeal that was enough to stay. He submitted that one of the prayers in the application he had filed was to seek for a suspension of that order. He said Act 3 of 2002 was not relevant.

The issue that I have to decide is whether this Court has power to proceed with contempt proceedings once there is a notice of appeal? I have no doubt in my mind in answering that question in the negative. According to the decision of the Court of Appeal of Tanzania in *Aero Helicopters (T) Ltd v. FN Jansen* (1). Once proceedings of appeal to the Court of Appeal of Tanzania have been commenced the High Court can not properly apply the Civil Procedure Code as the proceedings are no longer in this Court as required by section 2 of the Code. The application for contempt proceedings have been filed under Sections 68 and 95 of the Civil Procedure Code. 1966. According to the decision of the Court of Appeal above cited once proceedings are commenced in the Court of Appeal not only section 95 of the Code but the whole Code is disapplied.

There is no doubt, and Mr Taslima does not object, that a Notice of Appeal to the Court of Appeal has been filed on 30 November 2002. All what he is saying is that the decision was interim or interlocutory and, therefore, in terms of Act Number 25 of 2002, it is not appeallable. But it is not for this Court to decide whether the intended appeal is competent or not. That is for the appellate Court to say. This Court has no such jurisdiction.

In the result I uphold Mr Maira's objection that this Court has ceased to be seized of jurisdiction to entertain any other matters excepting those that are specifically vested in it such as application

for leave or application for a certificate on a point of law. The contempt proceedings are therefore adjourned *sine die* pending the disposal of the intended appeal. There shall be no order as to costs.

MWAJUMA MBEGU *v.* KITWANA AMANI

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mroso, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 12 OF 2001

(From the judgment of the High Court of Tanzania at Dar es Salaam, Mkude, J. dated 18 May 1993, in Civil Appeal Number 25 of 1989)

Appeals – Powers of appellate Court – Power to re-evaluate evidence taken by Trial Court and to make factual findings therefrom – Whether appellate Court can make factual findings based on a document not adduced at the trial.

Evidence – Public Documents – Report of Principal Secretary – Whether the report is a public document of which judicial notice can be taken – Sections 3(1), 59(1) and 83(a)(iii) of the Evidence Act 1967.

The appellant's Right of Occupancy over a piece of land was purportedly revoked by the President and the land granted to the respondent. It was not in dispute that the President could only have revoked the Right by giving the appellant Notice of Revocation. There was no firm evidence that such notice was given to the appellant. Accordingly, in a suit the appellant instituted in the Resident Magistrate's Court the trial magistrate held that the appellant was still the rightful occupier of the plot. On appeal to the High Court, that decision was reversed. The decision of the High Court was essentially based on a report prepared by the Principal Secretary, Ministry of Lands, which recommended to the President that the appellant's Right be revoked.

That report was however not adduced in evidence. The crucial issue, on further appeal, was whether the High Court was right to act on a document that was not before the Trial Court.

Held: (i) Though a first appellate Court has power to re-evaluate the evidence adduced at the trial and make factual findings therefrom, it cannot make such findings based on a document that was not before the Trial Court;

(ii) The report prepared by the Principal Secretary, though a public document, was not a document of which judicial notice could be taken.

Appeal allowed

Statutory provision referred to:

(1) Evidence Act 1967, sections 3(1), 59 and 83(a)(i), (ii) and (iii)

Mr Maleta, for the Appellant

Mr El-Maamry, for the Respondent

JUDGMENT OF THE COURT

(Dated 16 January 2004)

Nsekela, J.A.: This appeal concerns a dispute over a plot of land number 53 Ex Daya Estate which was allocated to the disputants herein at different times. The respondent, one Kitwana Amani, was the plaintiff in RM Civil Case Number 6 of 1983. The appellant, Mwajuma Mbegu, was the defendant. The respondent claimed that he was the lawful owner of that property since it was granted to him by the Land Office, Ilala on the 6 February 1978. He paid the necessary fees and on the 7 March 1978 obtained a building permit from the City Council. The case for the appellant however is to the effect that she was granted an offer for a Right of Occupancy over that same piece of land from the 1 January 1973 to 30 June 1974 and thereafter from year to year until terminated in writing by either party giving three months' notice. In the Court of the Resident Magistrate, the trial Magistrate held that the appellant/defendant was the lawful

owner of Plot Number 53 Ex Daya, Ilala. The Respondent/Plaintiff was dissatisfied with this decision and appealed to the High Court (late Mkude, J.) which reversed the Lower Court's decision and declared that the respondent Kitwana Amani was the lawful owner of the plot in dispute, hence the appeal to this Court.

The appellant through his learned advocate, Mr R Maleta, lodged five grounds of appeal, namely:

(i) The learned judge erred in basing his decision on the report prepared by the Principal Secretary, Ministry of Land, *(sic)* which the *(sic)* report was not admitted as an exhibit in the Trial Court.

(ii) The learned judge erred in considering the report while the same was not proceed *(sic)* and was not served on the appellant at all.

(iii) The learned judge erred in holding that the appellant was aware of the revocation of her title to the disputed plot while there is no evidence of service of notice of revocation to the appellant.

(iv) The learned judge erred in law and in fact in assessing the evidence of the appellant.

(v) The learned judge erred in drawing conclusion in favour of the respondent.

Mr Maleta in arguing the appeal combined the first and second grounds of appeal as well as the third and the fifth grounds of appeal. He abandoned the fourth ground of appeal. The main complaint by Mr Maleta against the decision of the High Court was the reliance of the Court on a report that was prepared by the then Principal Secretary, Ministry of Lands, which was not tendered in evidence at the trial. The learned advocate contended that the appellant was the one who had acquired the disputed plot earlier in 1968 from his father and that later on in 1973 the Land Office allocated it to her. The second complaint revolved around the lack of evidence before the Trial Court that the President had revoked the appellant's Right of Occupancy according to law. The appellant had testified that after she had noticed that someone was developing the disputed plot, she made a follow-up with the Ministry of Lands but was not given any Revocation Notice

or order apart from being verbally informed that her Right of Occupancy had indeed been revoked by the President.

Mr El-Maamry, who advocated for the respondent, forcefully submitted that there was only one issue for consideration and determination by the Court and the issue was the revocation of the disputed plot. The learned advocate contended that the appellant was well aware of the fact that her Offer of Right of Occupancy had been revoked. There was apparently an inspection report which showed that she was in breach of a condition to complete building a house within one year. As regards the report by Mr Minja, Mr El-Maamry submitted that it was prepared in the course of business and that it was a government report which was an official record. We take the liberty to quote the relevant part of the judgment of the learned High Court Judge since it was central to the conclusion that he arrived at. This is what the late Mkude, J. said:

> As a first appellate Court this Court can re-evaluate the evidence and make findings of fact therefrom. As the letter from Minja was written in the ordinary course of business and forms part of the official records on this matter in the files of the Ministry of Lands I agree with Mr El-Maamry, learned counsel for the appellant that the Trial Court was wrong to have disallowed its reference or production by PW3 merely because he was not the author of the latter. That letter sets out the background to the revocation of the title given to the respondent Mwajuma Salehe Mbegu, and says categorically that the title given to her had to be revoked as she had failed to develop the plot as required by the development conditions. The evidence of Mrs Lucy Bundala, a Land Officer, clearly shows that according to the records in the Ministry of Lands a Notice of Revocation was sent to Mwajuma Mbegu but no reply was received from her.

It is evident that the decision of the High Court was essentially based on the contents of the report prepared by Mr Minja to the Principal Secretary, President's Office and on the testimony of PW4, Mrs Lucy Bundala. With the greatest respect to the late learned judge, there was no factual foundation on the record on which to base such a conclusion. The learned judge correctly said that Mr Minja's report

had not been admitted in evidence. It was therefore not part and parcel of the Court record. Yet somehow inexplicably the learned judge was able to make findings of fact on the basis of a report which was not before the Court. Yes, it was a public document in terms of section 3(1) and 83(a)(iii) of the Evidence Act 1967. However, section 87 provides for the mode of proving certain public documents. Section 87(a)(i) and (ii) provides as under:

> 87. The following public documents may be proved as follows:
>
> (i) Acts, orders or notifications of the Government of the United Republic, the Executive of Zanzibar, the High Commission or the Organization or any service thereof or any local authority or of a ministry or department of any of the foregoing-
>
> (1) by the records of the service, authority, ministry, or department certified by the head thereof; or
>
> (2) by any document purporting to be printed or published by order of the Government or other body concerned.

A public document may be proved by the production of the original or by a certified copy under section 86 or in the manner prescribed under section 87(a)(i) above. Under the circumstances, we are of the settled view that the learned judge erred in taking into consideration a public document which had not been tendered in evidence as proof of the facts stated therein. It is true that certain matters need not formally be proved. The principal matters of which the Court will take judicial notice are contained in section 59(1) of the Evidence Act 1967 and that report cannot be said to be covered as well. There was therefore no justification at all for the Court to make findings of fact based on a report which was not before the Court. In the event, we are satisfied that the first two grounds of appeal are justified.

The third and fifth grounds of appeal are closely related to the first two. The complaint here is that the appellant's Offer of Right of Occupancy was not revoked by the President. PW4, Mrs Lucy Bundala, a Land Officer with the Ministry of Lands, testified that

the appellant had a short-term lease of year to year. When the disputed plot was inspected, it was found that it had not been developed. She added that a Notice of Revocation was sent to the appellant. PW4 however was not certain whether or not the said notice was served upon her or not, though the office records indicated so. Apart from the testimony of PW4, there is no other evidence to the effect that the appellant had been served with the notice of revocation. The appellant when cross-examined by Mr El-Maamry stated thus:

> It is not true that my R/Occupancy was cancelled because of failing to develop it. Kobelo told me that the plot was cancelled but I was not satisfied with the reply. I was told the R/Occupancy was cancelled since 1976.

From this evidence, the learned judge concluded that the appellant was aware of the revocation of her Right of Occupancy. In her evidence the appellant denied that she had been served with any notice of revocation from the Land Office but was verbally notified to that effect. The letter of Offer of Right of Occupancy dated the 28 September 1973 from the Ministry of Lands, Housing and Urban Development to the appellant contained a number of conditions which included the following:

> 1. Term: From 1 July 1973 to the 30 June 1974 and thereafter, year to year until terminated by either party giving on the other three months period notice in writing to expire at any time.
>
> 6. Revocation: the President may revoke the Right of Occupancy for good cause including the failure of the Occupier to comply with these conditions.
>
> 8. Notices: Any notice to be given to the Occupier shall be duly given to his last known postal address or left with any person in physical occupation of the land, or left affixed in a conspicuous position on the land or on any building thereof.

The President could only revoke the Offer of Right of Occupancy by giving to the appellant notice in writing in terms of condition number 8. Neither PW3 nor PW4 tendered any Notice of Revocation

before the trial Court. On appeal to the High Court there was reliance on the report by Mr Minja which purportedly recommended that the appellant's Right of Occupancy be revoked. We have already said that it was improper for the learned judge to act on a report which was not before the Court. We should perhaps also mention here that neither the appellant nor the respondent tendered evidence as to whether or not the disputed plot was registered under the Land Registration Ordinance Chapter 334. The only conclusion which in our considered view is justified by the evidence before the Court is that the appellant's Right of Occupancy was not revoked by the President. In the result, and for the above reasons, we allow the appeal with costs.

LALAGO COTTON GINNERY AND OIL MILLS COMPANY LIMITED *v.* LOANS AND ADVANCES REALIZATION TRUST (LART)

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Lubuva, Mroso and Nsekela, JJ.A.)

CIVIL APPEAL No. 51 OF 2002

(From the Judgment and Decree of the LART Loans Recovery Tribunal at Dar es Salaam, Msoffe, J. dated 12 June 2002 in Tribunal Case Number 13 of 2001)

Civil Practice and Procedure – Appeals – Appeal from the LART Tribunal to the Court of Appeal – Enabling and applicable legal provisions.

Statute – Interpretation of statutes – Meaning of "Registrar" – Whether the Registrar of the LART Tribunal is also "Registrar" under the Court of Appeal Rules – Rule 76 of the Tanzania Court of Appeal Rules 1979.

Constitutional Law – Right of appeal as a constitutional right – Appeal from the LART Tribunal to the Court of Appeal – Relevant laws not providing for the procedure applicable in such appeals – Whether appellant may for that reason be denied the right to appeal – Article 13(6)(a) of the Constitution, section 20(1) of the Loans and Advances Realization Trust Act 1991, section 4(1) of the Appellate Jurisdiction Act 1979, and rules 76(1) and 3(2)(a) of the Tanzania Court of Appeal Rules 1979.

Civil Practice and Procedure – Appeals – Notice of Appeal – Notice of appeal and signature of the Registrar – Notice of appeal not signed by the Registrar – Validity and effect of such notice – Rule 76 of the Court of Appeal Rules 1979.

In an appeal against the decision of the Loans and Advances Realization Trust ("LART") Tribunal, the Notice of Appeal was not signed or endorsed by the Registrar of the High Court or the Registrar of the LART Tribunal but by some other unknown person. The LART Act 1991 provided that a judgment or order of the Tribunal "shall be challenged in the Court of Appeal" but the Appellate Jurisdiction Act 1979 and Rules made thereunder did not include in their provisions appeals from the LART Tribunal, nor were the Court of Appeal Rules 1979 incorporated in the provisions of the LART Act to govern appeals from the decisions of the LART Tribunal. The respondent accordingly raised a Preliminary Objection to the effect that the Notice of Appeal was invalid as it offended rule 76(1) of the Court of Appeal Rules 1979.

Held: (i) The LART Act 1991, as amended by Act Number 6 of 1994, now provided for a right of appeal from the decisions of the LART Tribunal to the Court of Appeal but the Appellate Jurisdiction Act 1979 was not amended so as to include appeals from the LART Tribunal and, therefore, the Court of Appeal Rules 1979 do not as yet provide for appeals from the decisions of the Tribunal;

(ii) The Registrar of the LART Tribunal before whom the impugned Notice of Appeal was lodged was not the Registrar of the High Court envisaged under rule 76(1) of the Court of Appeal Rules 1979;

(iii) Since by the provisions of article 13(6)(a) of the Constitution the right to appeal to a higher Court is a constitutional right, it would be wrong in principle to deny an appellant the right to appeal to the Court of Appeal against a decision of the LART Tribunal simply because section 20(1) of the LART Act 1991, which provides for appeals to the Court of Appeal did not provide for procedures to apply in appeals to the Court; therefore, pursuant to rule 3(2) of the Court of Appeal Rules 1979, those

rules should apply, *mutatis mutandis,* to appeals from the decisions of the LART Tribunal

(iv) The Registrar of the LART Tribunal is not the same person as the Registrar of the High Court under rule 76(1); in the circumstances, therefore, since this is a matter for which no provision is made by the Rules, the Court may, pursuant to the provisions of rule 3(2)(a), give directions as to the procedure to be adopted or make any other order it considers necessary;

(v) A Notice of Appeal must be lodged in accordance with the provisions of rule 76; as in this case the Notice of Appeal was not signed by the Registrar of the LART Tribunal but by someone else on behalf of the Registrar, the said Notice of Appeal is invalid.

Appeal struck out

Cases referred to:

(1) *Atlantic Electric Ltd. v. Morogoro Region Cooperative Union (1984) Ltd.* [1993] T.L.R. 12

(2) *Blanket Manufacturers Ltd. v. OTTU on behalf of Millanzi and others* CAT, Civil Appeal Number 64 0f 2000 (unreported)

(3) *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.* (unreported)

(4) *William Loitiame v. Asheri Naftali,* [2003] T.L.R. 320

(5) *Jackson Reuben Maro v. Hubert Sebastian,* CAT, Civil Appeal Number 8 of 2001 (unreported)

Mr Rweyongeza, for the Appellant

Dr. Tenga, for the Respondent

RULING OF THE COURT

(Dated 20 January 2004)

Nsekela, J.A.: When this appeal came for hearing Dr Tenga and Mr Mnzava, learned advocates for the respondent, raised a Preliminary Objection notice of which had been given in terms of rule 100 of

the Court Rules. The complaint by Mr Mnzava was to the effect that the Notice of Appeal filed by the appellant offended rule 76(1) of the Court Rules which requires that such a Notice of Appeal should be lodged with the Registrar of the High Court and that under rule 76(6), it should substantially comply with Form D of the First Schedule to the Court Rules. The impugned Notice of Appeal was not signed by the Registrar of the High Court and this rendered it invalid. In support of his submission the learned advocate cited two decisions of this Court, *Atlantic Electric Ltd. v. Morogoro Region Cooperative Union (1984) Ltd.* (1) and *Blankets Manufacturers Ltd. v. OTTU on behalf of Millanzi and others* (2).

On his part, Mr Rweyongeza, learned advocate for the appellant, forcefully submitted that under rule 15 of the Court Rules, there is no requirement that the Notice of Appeal must be signed by the Registrar of the High Court, but that the Registrar should cause the document lodged in the Registry to be endorsed. He added that the word "sign" had not been specifically used in both Rules 15 and 76(1). In addition, the learned advocate submitted that the absence of the Registrar's signature was a technical error which was "harmless" as he put it, and the Court could cure it under article 107A (2)(e) of the Constitution as amended by Act Number 3 of 2000.

However, Mr Rweyongoza was very candid in conceding that the Notice of Appeal was signed by a person other than the Registrar of the High Court. Despite this, he was of the view that this is a fit case in which the Court should step in and invoke rule 3 of the Court Rules in order to fill a gap occasioned by the absence of rules applicable to the situation at hand.

In reply to Mr Rweyongeza's submission, Dr Tenga submitted that the decisions of this Court have been consistent since *Atlantic's* case that Form D of the First Schedule to the Court Rules must be substantially complied with Dr Tenga however shared the views of his learned friend that the Court should entertain this appeal under rule 3 of the Court Rules.

This Preliminary Objection has caused us considerable anxiety. It is not the usual objection that had come before this Court seeking to invalidate a Notice of Appeal since this appeal emanates from a decision of the LART Loans Recovery Tribunal (a Tribunal established under the Loans and Advances Realization Trust Act 1991, (LART Act). Section 4(1) of the Appellate Jurisdiction Act 1979, provides as follows:

> 4(1) The Court of Appeal shall have jurisdiction to hear and determine appeal from the High Court and from Subordinate Courts with extended jurisdiction.

The Court Rules 1979 made under the Appellate Jurisdiction Act govern the procedure for appeals from the High Court and Subordinate Courts with extended jurisdiction to this Court. At the time when the Appellate Jurisdiction Act 1979, and Rules made thereunder were enacted, the LART Act 1991, was not in our statute books. More importantly, however, section 20(1) of the LART Act 1991, at that time did not provide for appeals to this Court from decisions of the LART Tribunal whose decisions were final. The LART Act 1991, was however amended by Act Number 6 of 1994. Section 20(1) as amended, now provides:

> 20(1) A judgment or order of the Tribunal on any matter before it shall not be final; and shall be challenged in the Court of Appeal.

The LART Act 1991, as amended, now provides for a right of appeal from decisions of the Tribunal to this Court. Inadvertently, the Appellate Jurisdiction Act 1979, was not amended so as to include in section 4(1) appeals from the LART Tribunal. A possible alternative legislative route would have been to incorporate the Court Rules to govern appeals from decisions of the Tribunal in the LART Act itself, but this was not done. It is therefore clear to us that the Court Rules do not as yet provide for appeals from decisions of the LART Tribunal. The Registrar of the LART Tribunal before whom the impugned Notice of Appeal was lodged is not the Registrar of the High Court envisaged under rule 76(1) of the Court Rules.

Having said that however we cannot turn a blind eye to article 13(6)(a) of the Constitution. The right to appeal to a higher Court or tribunal is a constitutional right. It would be wrong in principle to deny the appellant the right to appeal to the highest Court of the land against the decision of the LART Tribunal simply because Parliament in enacting section 20(1) of the LART Act 1991 as amended, did not provide for procedures applicable for appeals to this Court. What is missing as it were, is a bridge connecting decisions of the Tribunal with the Court. Needless to say, the Registrar of the LART Tribunal is not the same person as the Registrar of the High Court under rule 76(1). In the circumstances, we are inclined to agree with Mr Rweyongeza and Dr Tenga, learned advocates, that this is a fit case in which to invoke the provisions of rule 3(2)(a) of the Court Rules which provides-

> 3(2) Where it is necessary to make an order for the purposes of:
>
> (1) dealing with any matter for which no provision is made by these Rules or any other written law;
>
> the Court may, on application or on its own motion, give directions as to the procedure to be adopted or make any other order when it considers necessary.

As stated before, section 20(1) of the LART Act 1991, as amended, provides for appeals to this Court. In order to construct a bridge linking the Court with the decisions of the LART Tribunal, we would invoke rule 3(2)(a) above and direct that the Court Rules 1979, shall apply *mutatis mutandis* to appeals from decisions of the LART Tribunal.

This is not the end of the matter. It will be recalled that Mr Mnzava's complaint was non-compliance with rule 76(1) and (6) read together with Form D of the First Schedule of the Court Rules, in that the Notice of Appeal was not signed by the Registrar. In this case, Mr Mnzava contended that even if it is taken that reference to the registrar should be Registrar of the LART Tribunal still the provisions of rule 76(1) and (6) were not complied with. This is because the person who signed the Notice of Appeal was not the said Registrar, but some

other undisclosed person. Mr Rweyongeza had an answer to this. He was of the view that under rule 15 of the Court Rules, there was no requirement for the Registrar to sign the Notice of Appeal. The function of the Registrar was to cause it to be endorsed. This is an attractive argument but only recently, this Court had occasion to construe rules 15 and 76 in *Tanzania Revenue Authority v. Al Naeem Enterprises Ltd.* (3). The complaint here was to the effect that both the Notice of Appeal and the Memorandum of Appeal were not endorsed by the designated officials under the Court Rules.

This Court stated in part as under:

> It is our considered opinion that rule 15 is a general rule for lodging any document. However, as for the lodging of a notice of appeal, there is a specific rule, that is, rule 76 [emphasis supplied]

Thus a Notice of Appeal must be lodged in accordance with the provisions of rule 76. (For what it is worth, rule 15 is in Part II – General Administrative and Procedural Provisions" and rule 76 is in Part V "Appeal in Civil Matters". The Notice of Appeal was not signed by the Registrar of the LART Tribunal but by someone else on behalf of the Registrar. This Court has consistently held that such Notices of Appeal are invalid.) (See: *William Loitiame v. Asheri Naftali;* (4) *Jackson Reuben Maro v. Hubert Sebastian* (5) and *Blankets Manufacturers Ltd. v. OTTU on behalf of Millanzi and others*.

In the event, and for the above reasons, the Notice of Appeal is incompetent. It is struck out with costs.

FATMA IDHA SALUM v. KHALIFA KHAMIS SAID

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Munuo and Nsekela, JJ.A.)

CIVIL APPEAL No. 28 OF 2002

(From the judgment of the High Court of Zanzibar at Vuga, Dourado, Ag. J.dated 18 May 1998 in Civil Appeal Number 2 of 1998)

Civil Practice and Procedure – Pleadings – Claim for compensation not pleaded at the trial – Whether it is competent to raise it on appeal – Order VII, rule 8 of the Civil Procedure Decree Chapter 8 (Zanzibar).

Civil Practice and Procedure – Judgment – Contents of a judgment – Order XLVI, rule 31 of Civil Procedure Decree (Zanzibar).

Land Law - Land tenure – All natural land declared public land vested in the President – Effect thereof – Land Tenure Act 1992.

Land law – Right of occupancy – Power of minister to grant or terminate occupancy – Section 3(4) of the - Land Tenure Act 1992.

The respondent sued the appellant in the District Court for possession of a plot of land at Mazizini area which he said had been allocated to him by the Commission of Lands and Environment on 10 June 1993. The appellant counterclaimed that she was the rightful owner of the plot as she had bought it from one Shamte on 4 September 1989 and sought vacant possession. The District Court found for the respondent and ordered the appellant to vacate the plot. The Court also ordered the Commission to compensate the appellant for the land taken from her. Aggrieved the appellant unsuccessfully appealed to the Regional Magistrate's Court and the High Court. She then appealed to the Court of Appeal citing four grounds of appeal. It was agued on her behalf that the High Court Judge had treated the appeal in a perfunctory manner in that he did not make a thorough review of the proceedings and did not consider the grounds before him. It was further argued that the appellant had been evicted from her plot and should be compensated for the unexhausted improvements on the land

granted to the respondent. For his part the respondent argued that the appellant was a trespasser and was not therefore entitled to compensation.

Held: (i) The question of compensation was not pleaded before the Trial Court either in the plaint or in the counterclaim and could not therefore be introduced on appeal.

(ii) With effect from 8 March 1964 all natural land was declared public land vested in the President on behalf of the people of Zanzibar; as such the President has superior title over the land and the sale agreement had therefore no validity.

(iii) The Right of Occupancy was properly granted to the respondent was valid.

Appeal dismissed

Cases referred to:

(1) *James Funke Ngwagilo v. Attorney General,* [2004] T.L.R. page 161

(2) *Kaderdina Yusuf Osman Hassania v. Sadiq Osman Hassania and Two others,* CAT, Civil Appeal Number 15 of 2000 (CA) (unreported)

Statutory provisions referred to:

(1) Civil Procedure Decree (Chapter 8) Orde r VII, rule 8; Order XLVI, rule 31

(2) Transfer of Property Act (Chapter 150), sections 3(1)

(3) Land Tenure Act 1992, Sections 3 and 5

Mr Mbwezeleni and *Mr Mnkonje* for the Appellant

The *respondent* in person

JUDGMENT OF THE COURT

(Dated 10 February 2004)

Nsekela, J.A.: This appeal concerns a dispute over a plot of land now occupied by the respondent Khalifa Khamis Said. The appeal originates from the District Court at Vuga wherein the plaintiff (now respondent) in his plaint claimed that he was the owner of Plot Number

464 in Mazizini Area, by virtue of Offer Number 1422 from the Commission for Lands and Environment dated 10 June 1993. The appellant in her written Statement of Defence claimed also that she was the lawful owner of part of the disputed plot as she had bought it from one Juma Saidi Shamte on 4 June 1989 as evidenced by a Sale Agreement to that effect. She also relied on the Statutory Declaration dated 10 September 1991. On 14 August 1995 the District Court framed and recorded two issues, namely:

(a) Je, ni kweli wadaiwa *(sic)* alikiingilia kiwanja cha mdai?

(b) Je, ni nani hasa mwenye milki ya kiwanja kinachobishaniwa?

The appellant in her written Statement of Defence included a counter-claim claiming ownership of the disputed plot and seeking vacant possession. It is therefore not surprising that the Court did not frame and record an issue that the appellant be paid compensation. We shall revert to this matter later on. The District Court ordered that the appellant should vacate the suit premises on which she had encroached upon; that *Kamisheni ya Ardhi na Mazingira* should pay compensation for the land taken from the appellant and declared the Statutory Declaration as null and void. The appellant was aggrieved by this decision and appealed to the Regional Magistrate's Court. The Regional Magistrate's Court dismissed the appeal in its entirety. Undaunted by this set-back, the appellant appealed to the High Court where, in a terse judgment, the appeal was also dismissed, hence the appeal to this Court.

Before this Court, the appellant raised four grounds of appeal, namely:

(1) That the Honourable learned judge erred in law and in fact by not making a thorough review of the proceedings before him and in not considering the grounds of appeal before him.

(2) That the Honourable learned judge erred in law and fact in not considering the findings of the Trial Court on Government acquisition of land without compensating the shamba owners contrary to the Constitution.

(3) That the Honourable learned judge erred in law in not addressing himself properly to the issue of compensation of bona fide purchaser improvements as provided under the law.

(4) That the Honourable learned judge erred in law in not addressing himself to the issue of the learned Regional Appeal Magistrate turning himself into a forensic expert and a witness contrary to the law, hence arriving to an erroneous conclusion to the injury of the appellant.

At the hearing of the appeal, Mr Mbwezeleni and Mr Mnkonje, learned advocates, represented the appellant. The respondent appeared in person, unrepresented.

The first ground of appeal was a general complaint. It was the contention of Mr Mbwezeleni that the learned judge treated the appeal in a perfunctory manner contrary to the letter and spirit of Order XLVI, rule 31 of the Civil Procedure Decree Chapter 8. There is considerable merit in this complaint. The relevant part of the judgment reads as under:

> Both the learned District Magistrate and the Regional Magistrate held that the plot was legally conveyed to the respondent by the Land Commission. The Director of land Commission who was delegated authority signed the document conveying the plot to the respondent. I am unable to see any grounds for upsetting these findings.

As can be gleaned from this key part of the judgment of the High Court, there is a general reference to the decisions of the District Court and the Regional Court with which the learned judge concurred without explaining the reasons for so doing. The judgment of an appellate Court should show on the face of it that the points in dispute were clearly before the mind of the Judge and that he/she exercised his/her own mind in deciding the dispute. The provisions of Order XLVI, rule 31 of the Civil Procedure Decree are mandatory in nature. The judgment of an appellate Court has to set out the points for determination; record the decision thereon and the reasons for the said decision. A wholesale adoption of the judgment of the Court below cannot be considered as sufficient compliance with the law.

The second and third grounds of appeal are closely connected and will be considered together. Mr Mbwezeleni forcefully submitted that the appellant had been evicted from the plot and should therefore be compensated for the unexhausted improvements on the Land she previously occupied and subsequently granted to the respondent. The learned advocate cited article 17 of the Constitution and section 51 of the Transfer of Property Act Chapter 150 in support of his submissions. The respondent on his part submitted that the appellant was a trespasser on the plot and was not entitled to payment of any compensation. The respondent added that under Land Tenure Act 1992, all land belongs to the Government and the Government could acquire land and pay compensation. Furthermore, there was no evidence of any improvements on the land.

It is surprising to us that the appellant should at this stage be raising the question of compensation being paid to her for the purported acquisition of her plot. It is our settled view that if any compensation at all is payable to the appellant is a matter which should have been properly pleaded before the Trial Court and not raised and decided upon in an ad hoc manner as it was done in the Lower Courts. In the pleadings, both the appellant in her counter-claim and the respondent in the plaint did not raise the question of acquisition and non-compensation by the Government of Plot Number 424. Understandably, this was not one of the two issues framed and recorded by the District Court. Inexplicably, both the District Court and the Regional Court discussed the matter and made a decision upon it. The High Court (Dourado, J) declined to discuss the matter since the Government was not a party to the suit. With all due respect to both the District Court and the Regional Court, these issues were not pleaded and should not have been considered. It is now settled law that the only way to raise issues before the Court for consideration and determination is through pleadings and, as far as we are aware of, this is the only way. Order VII, rule 8 of the Civil Procedure Decree provides:

> Every plaint shall state specifically the relief which the plaintiff claims either simply or in the alternative, and it shall not be necessary to ask for

general or other relief which may always be given as the Court may think just to the same extent as if it had been asked for. And the same rule shall apply to any relief claimed by the defendant in his written statement.

In the counter-claim, the appellant was the plaintiff and therefore as a general rule the appellant is not entitled to reliefs which were not specified in the counter-claim. It is for this reason that we are saying that both the District Court and the Regional Court had no mandate to decide upon an issue which was not raised before the said Courts through pleadings; see: *James Funke Gwagilo v. Attorney-General* (1). The learned authors of **Moghas Law of Pleadings in India** (15 ed) at page 6 have this to say:

> The whole object of pleadings is to give fair notice to each party of what the opponent's case is, and to ascertain with precision, the points on which the parties agree and those on which they differ, and thus to bring the parties to a definite issue ... The main object of pleadings is to find out and narrow down the controversy between the parties. Contentions which are not based on the pleadings cannot be permitted to be raised either at the trial stage or at the appellate stage [emphasis supplied].

In the fourth ground of appeal, Mr Mbwezeleni launched a scathing attack on that part of the judgment of the trial Magistrate which doubted the authenticity of the signature of the appellant on the Statutory Declaration. In the words of the learned advocate, the trial Magistrate had turned himself "into a forensic expert and a witness contrary to the law ..." We would like to point out at the outset that the said Statutory Declaration was not evidence of the ownership of the property described therein. It was a mere assertion on oath that the appellant owned the disputed plot. It was not evidence that she had a better title than that of the respondent (see: *Kaderdina Tussuf Osman Hassania v. Sadiq Osman Hassania and Two others* (2). Under the Land Tenure Act 1992 public land is vested in the President and the power of disposition of such public land is delegated to the Minister responsible for lands. As stated before, the basis of the appellant's claim to the plot is the sale agreement between Juma Said Shamte and the appellant Fatma Idha Salim dated the 4 June 1989. The respondent on the other

hand claims to have acquired the disputed plot vide an Offer dated the 8 June 1993 issued by the Commission for Lands and Environment. Section 3 of the Land Tenure Act 1992 provides as follows:

> 3 (1) All natural land within the islands of Zanzibar occupied or unoccupied, is hereby declared to be public land and shall be deemed to have been so declared from 8 March 1964:
>
> (b) Public land is declared to be vested in, and at the disposition of the President, to be held by him, for the use and common benefit, direct or indirect, of the people of Zanzibar.
>
> (c) Subject to the provisions of subject *(sic)* 2 and to any directions of the President public land shall be administered in accordance with this Act by the Minister, who may make dispositions of public land and perform all powers and duties contained in this Act on behalf of the President.
>
> (d) The Minister may subject to the provisions of this Act both distribute public lands which are under the control of the Government by grants or *(sic)* occupancy as well as terminate those rights of occupancy when appropriate as defined by this Act."

It is the contention of the respondent that he was granted Offer Number 1422 "*Barua ya Haki ya Utumiaji wa Ardhi*", by Kamisheni ya Ardhi na Mazingira in respect of Plot Number 464 (Commission for Lands and Environment) under the Land Tenure Act 1992. In terms of section 3(1) of this Act, all natural land was declared to be public land as from the 8 March 1964 and became vested in the President on behalf of the people of Zanzibar. This meant that the President had superior title over land in Zanzibar. Under the said Act, the Minister responsible for lands has powers of granting rights of occupancy to individuals. The respondent was such a grantee by being granted an Offer Number 1422 by the Commission for Lands and Environment. Therefore the rights and obligations of the respondent over Plot 464 is governed by the Land Tenure Act 1992. Contrary to the appellant's contentions, the Transfer of Property Act Chapter 150 is inapplicable. Section 5 of Chapter 150 provides:

5. In the following sections, transfer of property means an act by which a living person conveys property, in present or in future, to one or more other living persons or to himself and one or more other living persons and "to transfer property" is to perform such act.

The respondents was granted that piece of property by the Commission for Lands and Environment, a non-living person. In view of the position we have taken that the Transfer of Property Act does not apply to the dispute at hand, it is unnecessary for us to consider sections 51 and 54 of the said Act. Needless to say there was no sale of the disputed plot by the appellant to the respondent. Any remedy that the appellant may have for the purported acquisition of his land does not fall under the Transfer of Property Act Chapter 150.

In the result, we dismiss the appeal in its entirety with costs.

NATIONAL BANK OF COMMERCE LIMITED *v.* SOMO CONTRACTORS LTD

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kimaro, J.)

COMMERCIAL CASE No. 241 OF 2001

Banking – Securities against advances – Value of property offered as security being far higher than the facility given – Whether such security is acceptable.

Civil Practice and Procedure – Pleadings – Final submissions not confined to pleadings – Whether proper.

For a credit advance of TZS. 15 million from the plaintiff, the defendant offered his property worth around TZS. 400 million as security. When a dispute arose between

the parties the defendant questioned the propriety of the plaintiff accepting, as security, property that was much higher compared with the facility. In the course of hearing the case the advocate for the defendant made submissions that were outside the pleadings,

Held: (i) It is unreasonable on the part of the defendant to question why the property which was of a very high value as compared to the amount of the credit facility which was small, was accepted as security;

(ii) Final submissions must be confined to the pleadings and evidence.

Judgment for the plaintiff

Case referred to:

(1) *Vidyrithi v. Ram Rakha* [1957] EA 527

Mr Mtafya, for the Plaintiff

Mr Rutashoborwa, for the Defendant

JUDGMENT

(Delivered 13 February 2004)

Kimaro, J.: The pleadings and evidence adduced during the trial show that the defendant was granted an overdraft facility of TZS. 10 000 000 by the plaintiff on 13 October 1998. The validity of the facility was one year and it was to expire on 11 October 1999. The loan carried an interest of 21% p.a., floating, and a penalty interest rate of 3% p.a., above the normal rate on expired limit and any excesses created without prior arrangement. This is what Exhibit P1 shows. Exhibit P1 is the agreement for the overdraft facility. On 6 August 1999, the facility was enhanced to TZS. 15.0 million. The interest remained the same.

The loan was secured by a legal mortgage over Certificate of Title Number 43896 for property on Plot Number 5 Block A Sinza Service Trade Area, Dar es Salaam (Exhibit P3).

In this suit, the plaintiff is praying for judgment and decree against the defendant for TZS. 15 514 210; comprised of TZS. 8 097 167 being the outstanding principal and TZS. 7 317 041 accrued interest and costs.

When the trial started, (15 December 2003) the defendant had paid all the outstanding principal. Payment was made during the pendency of the suit. The suit was filed in this Court on 5 October 2001. The parties remained in contest on the amount of interest which is payable to the plaintiff by the defendant.

The issues framed by the Court for determination were:

(1) What is the exact amount which is owed to the plaintiff.

(2) Whether the defendant fully discharged the debt.

(3) Whether the plaintiff closed the defendant's account.

(4) To what relief are the parties entitled to.

The Learned Advocates appearing in this case; IMMMA Advocates for the plaintiff and Mr Rutashoborwa for the defendant have filed lengthy final submissions. The effort put in is appreciated.

As stated above, the parties went to trial on the point of interest only. Mr Rutashoborwa's submissions are focused on this point only. His submissions show that the defendant is disputing the rate of interest and the methodology used in the computation of the interest as well as the outstanding balance upon which the calculation of interest is based. Mr Rutashoborwa's argument was that the plaintiff was not able to prove that at the time of filing the suit the outstanding balance was TZS. 15 514 210 vide the bank statements which were tendered in Court collectively as Exhibit P5. His opinion was that after the expiry of the overdraft date (11 October, 1999), the bank was entitled to claim interest on the outstanding balance of the overdraft only as per bank statements supplied to customer from time to time. He said:

> This interest (which the bank had probably kept in a suspense account) should not itself be subjected to interest charges. Charging of interest on interest accruing from the expired overdraft is not proper: This is because after the expiry date of the overdraft, the outstanding (unpaid) balance was by all standards, doubtful. From the expiry date onwards, therefore, the outstanding balance ought to be treated as a loan (as opposed to an overdraft) with interest being charged on principal amount only.

Mr Rutashoborwa was of the view that, going by his argument, the plaintiff would only be entitled to an interest of TZS. 6 427 402 as the outstanding interest, calculated at the rate of 24% as per the bank statements supplied to customer from 11 October, 1999 when the facility expired to 16 February 2002 when the outstanding debit balance was cleared.

Mr Rutashoborwa expressed concern on how the interest was calculated saying that the calculation was wrong. According to him, interest was charged daily and the total was again charged at the end of each month. He said that amounted double accounting.

While acknowledging that charging interest on compound interest is a banking practice, he required this Court not to view the same as a sacrosanct rule of practice. His opinion was that since the parties had a contract which did not contain a condition that interest would be charged on a compound basis, the Court should interprete the loan agreement in favour of the borrower (weaker side) and treat the same as simple interest.

Mr Mtafya in reply admitted that the Loan agreement (Exhibit P1) had a provision for calculation of interest at 21% plus a penal rate of 3% making the total rate 24% p.a. However, he cautioned that Exhibit P7 should not be ignored. Exhibit P7 is a letter which was written by the plaintiff to the defendant on 21 November, 2000. It is a response to the defendant's letter dated 10 October 2000 which required confirmation on the outstanding liability and repayment arrangements. The Exhibit shows that the outstanding principal at 31 October 2000 was TZS. 1 872 806 60 comprised of TZS. 13 738 519 as the principal sum and TZS. 4 989 542 accrued interest. The agreed amount of TZS. 18 728 061 60 was due and payable as at

31 October 2000 at an interest rate of 26%. A repayment schedule was also made.

Exhibit P7 had other conditions too. The defendant was informed that it constituted an absolute undertaking on the part of the defendant as regards the terms contained there. The defendant was requested to counter sign at the bottom of the letter to signify his acceptance of the terms of Exhibit P7 of which Mr Leonard Gujwile, the Managing Director of the defendant did. This was done on 27 November, 2000 and it has a signature which Mr Leonard Gujwile (DW1) admitted to be his.

Mr Mtafya submitted quite correctly that the defendant bound himself to have the interest calculated at 26%.

A reproduction of Paragraph 2 and 7 of Exhibit P7 and signature and stamp of the defendant will show that Mr Mtafya is right.

> 2. We have therefore agreed that the amount due and as at 31 October 2000 is TZS. 18 728 061 60 at an interest rate of 26% per annum. You are informed that this letter constitutes an absolute undertaking on your part with regard to the terms contained herein. You are therefore, requested to countersign at the bottom of the letter to signify your acceptance of its terms.
>
> Yours Faithfully,
>
> NBC Limited
>
> Signature
>
> DEREK DE VILLIERS
>
> MANAGER
>
> COLLECTIONS
>
> c.c. The Branch Manager
>
> Ubungo Branch
>
> DAR ES SALAAM

> Handwritten signature of
>
> Officer of the defendant.
>
> Remarks:
>
> Original letter received.
>
> Date 27 Nov. 2000.

In as far as the question of the rate of calculation of interest is concerned, the defendant bound himself to have the same be calculated at 26%. The defendant agreed to be absolutely bound by Exhibit P7 when the defendant signed and stamped it on 27 November 2000. It can not be heard to complain why interest should be charged at 26%. It bound itself to have the interest calculated at that rate.

The other question which arises from Mr Rutashoborwa's submission is the outstanding principal upon which the calculation of interest should be based. Although Mr Rutashoborwa submitted that the principal amount which is being claimed by the plaintiff was not proved, the testimony of his client defeats his submission. Mr Leonard Gujwile told the Court as follows:

I have paid the whole principal amount of TZS. 15 000 000

Nowhere in his testimony did DW1 express doubt on the principal amount. His testimony shows that his concern was on the rate of interest and the methodology for the calculation of the interest. The defendant signed exhibit P7 acknowledging the outstanding principal as of 31 October 2000 plus the interest outstanding then. PW2 – Venant Lawrence testified that much as the defendant committed itself through signing exhibit P7 to liquidate the full loan by March 2000 the defendant did not repay the loan. The defendant did not complain over the outstanding principal and so Mr Rutashoborwa should not import into the proceedings matters which did not come up during the proceedings.

The other point requiring determination by this Court is the methodology for calculation of interest. The defendant admitted that

the plaintiff is entitled to be paid interest. According to DW1, the calculation of interest should be based on the simple method calculation and not compound method calculation. If the above method was used, the defendant admitted an interest of TZS. 6 427 407. The defendant's witness testified that an account of TZS. 1 583 031 has been paid. The balance which remains is TZS. 4 926 571.

Mr Rutashoborwa submitted that the common banking practice is to charge compound interest. However, the Court should bear in mind that the practice is not sacrosanct rule of practice. The Court should be guided by the fact that the parties had a contract which was silent on the methodology for calculation of interest and interprete the same in favour of the defendant who is the weaker party, by allowing charging of interest by the simple method. Mr Rutashoborwa requested the Court to consider the fact that the defendant acted gentlemanly and reasonably when he continued to service the outstanding debt even after the case was already *sub-judice*. My response to the defendant's action is that there was nothing unusual which was done by the defendant. The defendant had taken a loan which was to be repaid. Time for repayment was fixed. That was not done. The defendant bound himself, vide Exhibit P7, to repay the loan. It was not repaid. It was until after the case was filed in Court that the defendant repaid the principal. Under such circumstances, I would not assess the defendant's action to fall within the description given by Mr Rutashoborwa. If the defendant had strictly complied with the terms of the loan agreement, I do not think that it would have found itself paying so much money. The failure to repay the loan in time is what has given rise to the huge amount which the defendant is finding difficult to repay.

In the circumstances of this case there are no convincing factors for this Court to intervene in the business practice of the banks by calculation of interest by compound method. The analysis of what is in dispute between the parties brings me to the following conclusion and I will go by the issues.

As for the first issue, the defendant admitted that there is an interest which is due to the plaintiff which has not been repayed.

PW1 said that the bank statement (Exhibit P5) shows that as of 30 April 2001, the interest stood at TZS. 7 416 040 93. In his final submission, Mr Mtafya said that on 16 February, 2002 when the defendant cleared the principal amount outstanding, the interest which was outstanding was TZS. 10 633 094 36. With due respect to Mr Mtafya there is no such evidence on record. The evidence on record as per PW1 is that the interest which remained outstanding was TZS. 7 416 040. This is the amount which the Court declares that the plaintiff is entitled to.

The next issue which follows is whether the defendant fully discharged the debt. The answer is No. Mr Leonard Gujwile, the defendant's Director, made an admission that there is an outstanding interest which has not been paid to the plaintiff. According to his testimony, he admitted that the plaintiff is entitled to interest and only TZS. 1 583 031 has so far been paid. In the process of answering the first issue, the Court made a finding that the plaintiff is entitled to an interest of TZS. 7 416 040 93 which was still outstanding on 30 April 2001.

The other issue relates to the defendant's accounts. While giving his testimony, DW1 said that the Defendant's Accounts Number 6543000056 and 6543000113 were closed in September 1999. He could not withdraw any money from the Accounts and the deposits which were made went into the General Collection Account. The plaintiff's witnesses on the other hand, denied closing the Accounts. PW1 said the Accounts were charged of. Only deposits were accepted but withdrawals were not allowed. This explanation appears to be reasonable and satisfactory. I will answer this issue in the negative. That the defendants accounts were not closed. The position in which the defendant placed itself made it operate the account by only making deposits but not withdrawals.

Lastly, is the reliefs to which the parties are entitled to. Perhaps it is important to look at the question of the security for the loan which was raised by Mr Rutashoborwa first. His argument was that the security offered for the overdraft facility was far beyond the

amount of the loan which was taken by the defendant. According to Mr Rutashoborwa it was not reasonable on the part of the plaintiff to accept it as security for such a small amount of the loan.

Mr Mtafya replied that it was the defendant who offered that security. He disputed the value of TZS. 400 million which Mr Rutashoborwa put on the property saying that there was no evidence to prove that the property is worth that amount. It is true that there is no evidence to show that the property is worth TZS. 400 million. Mr Mtafya submitted further that Mr Rutashoborwa raised matters which were not pleaded. He is right. Mr Rutashoborwa submitted on matters not pleaded, nor evidence led. The amended written statement of defence is completely silent on the property which was mortgaged. Final submissions must be confined to the pleadings and evidence. The case of *Vidyrithi v. Ram Rakha* (1) is a good illustration on this point. The Court of Appeal of East Africa held that:

> It is now established that the evidence and arguments in legal proceedings should be confined to the pleadings.

In addition, Mr Mtafya referred this Court to distinguished authors of the **Law of Contract** who argue that the Courts will not inquire on the adequacy of consideration so long as it is sufficient, unless the transaction between the parties is tilted with fraud, duress, undue influence, mistake, misrepresentation and undue influence. These authors are Massawe AAF on **A Digest of the Tanzania Law of Contract**, 1989, TMP Tabora at page 26 and Furmston MP, **Cheshire and Fifoot's Law of Contract,** (10 ed). 1981 Butterworths, London page 70. In this case there was no evidence of any of the above factors being committed.

Moreover, it was the defendant who offered the property as security for the loan of TZS. 15 000 000. At that time, the value of property and the amount of the loan was known. It is unreasonable on the part of the defendant to question why the property which was of a very high value as compared to the amount of the loan which was small was accepted as security.

The last issue is on the relief. The plaintiff is granted interest of TZS. 7 416 040 93 being the interest outstanding on 30 April 2001 plus interest of 26% on the amount of TZS. 7 416 040 93 from the date of filing of the suit till judgment. Thereafter interest at the court's rate of 7% till payment in full, plus costs of the suit.

SEKUNDA MBWAMBO *v.* ROSE RAMADHANI

HIGH COURT OF TANZANIA
AT MOSHI

(Rutakangwa, J.)

(PC) CIVIL APPEAL No. 55 OF 2002

(From the Judgment of the District Court of Moshi at Moshi, Mgonja, PDM (Rtd), in Civil Appeal No. 11 of 2002)

Probate and Administration – Intestate succession – Appointment of Administrator or Administratrix – Necessary considerations for appointment.

The appellant was a wife of the deceased who died intestate. The respondent is the mother of the deceased. During the subsistence of their marriage the appellant and her deceased husband were not blessed with any issue. However, the deceased had four children born of different mothers, recognized by the deceased's family and the appellant, and all along living with the respondent. Before the Moshi Urban Primary Court, the respondent and appellant were appointed joint administratrixes of the Estate of the deceased. The appellant was dissatisfied and appealed to the Moshi District Court which struck out the appellant's appointment and confirmed the respondent's appointment, hence this appeal to the High Court.

Held: (i) An administrator of an estate of a deceased person is not supposed to collect and monopolize the deceased's properties and use them as his own and/or dissipate them as he wishes but he has the unenviable heavy responsibility, which he

has to discharge on behalf of the deceased, of distributing the estate to beneficiaries impartially.

(ii) An administrator may be a widow/widows, parent or child of the deceased or any other close relative; if such people are not available or if they are found to be unfit in one way or another, the Court has the power to appoint any other fit person or authority to discharge this duty.

Appeal dismissed

Mrs E Minde, for the Appellant

JUDGMENT

(Delivered 23 February 2004)

Rutakangwa, J.: The appellant herein was the undisputed wife of the late Major Charles Kilochi Mbwambo, who died intestate on first August, 2001. The two had lived together for five years before death parted them. The respondent is the mother of the deceased. It is a conceded fact that during the subsistance of their marriage, the appellant and her deceased husband were not fortunate enough to be blessed with any issue. All the same, the deceased did not die childless. He was survived by not only the appellant but also by four children born of different mothers, who are recognized by the deceased's family and the appellant. These children have all along, up to now, been living with the respondent.

Following the death of Major CK Mbwambo his clan members met under the chairmanship of PW2 Iddi Kikumbi. At that meeting, the respondent was unanimously recommended to be the administrator of the deceased estate. Unfortunately, however, the appellant never attended that meeting. With the blessings and mandate of the deceased's clan, the respondent applied before the Moshi District Primary Court, Moshi Urban to be appointed the administratrix of the deceased. This was in Probate and Administration Cause Number 6 of 2002 filed on 21 January 2002.

The respondent named the following to be the beneficiaries of the estate of the late CK Mbwambo:

(1) Edmund CK Mbwambo

(2) Juliet CK Mbwambo

(3) John CK Mbwambo

(4) Jenepha CK Mbwambo

(5) Mrs Secunda C Mbwambo (appellant)

(6) Rose Ramadhani (respondent)

She also listed the following properties to be forming the estate of the late Major Mbwambo:

(1) One house under construction.

(2) One Plot at Ukonga

(3) One Plot at Mbagala

(4) One Pistol.

(5) One gun.

(6) Death gratuities and other employment benefits of the deceased and

(7) Moneys lying in the deceased's bank account.

No sooner had the application for appointment been filed that it was vigorously resisted by the appellant. She filed her caveat in early February 2002. The mainstay of her objection was that she feared that if the respondent was to be appointed as the administratrix of her husband estate she would be discriminated against and miss her lawful share in the estate. She predicated this fear on the declarations made at the clan meeting to the effect that she was not a member of this Mbwambo clan and had not had a child with their son CK Mbwambo. The objection was given a full hearing by the trial Primary Court, but it raised no complicated controversies, either of fact or of law.

The respondent assured the Trial Court that she recognized the appellant as a lawful surviving widow of her son and that if appointed she would make sure that she gets her rightful entitlement in the estate of her late husband. The same recognition and assurances were given by PW2 Iddi. All these did not impress the appellant. In her evidence and that of her witnesses, DW2 Assey (who is married to the sister of the appellant) and DW3 William Mduma, she maintained her grave misgiving on not getting a fair treatment in the distribution of assets of her late husband's estate because of the misunderstandings between her on the one side and the respondent and clan members on the other.

The Trial Court at first appeared to have grasped the crucial issue for decision before it. In it's judgement the trial Primary Court properly directed itself when it said:

> ... Kitu muhimu ni kwamba tunachunguza ni nani anastahili kuwa msimamizi wa mirathi hii, yaani kukusanya mali ya marehemu, pili kulipa madeni na tatu kugawa kile ambacho kitakuwa kimebakia kwa warithi wa marehemu... Madai ya SU.1 kwamba anaona SM. 1 hatamtendea haki, wakati bado haujafikia".

In short, the Trial Court, in view of the evidence before it, found itself having one vital issue for decision, that is to appoint an administrator who will diligently and faithfully administer the estate of the late Major CK Mbwambo by collecting the properties of the deceased and the debts of the deceased and costs of the administration and thereafter to distribute the estate to the persons entitled thereto. It is very unfortunate that thereafter it faltered and failed to make up its mind and appoint that suitable person.

I have advisedly said that the Trial Court "failed to make up its mind." This is because of the final decision it eventually reached or made. In what is patently seen as a lack of firmness (or an obvious indecision) the Trial Court seeking shelter behind the lack of trust by the appellant of the respondent, decided to appoint them to be joint administratrixes of the said estate "for the benefit of the family".

But it went even further than that. In a rather appalling order, it directed the administrators after collecting the properties and the debts of the estate, to surrender the remaining properties to the Trial Court itself for distribution to the entitled beneficiaries by it. These grotesque orders did not amuse the appellant. She went to the District Court of Moshi on appeal to challenge the entire decision.

The appeal was handled by Mr L Mgonja, a retired Principal District Magistrate, in his capacity as Honorary Magistrate. He gave a highly illuminating judgement in my objective opinion which he wrote in Kiswahili. After giving a brief background of the case and a resume of the evidence proffered by both sides, he had these instructive words to tell the litigants and I think the trial magistrates who handled these cases/applications:

> It is important, before venturing further into the appeal, to remind ourselves of the objectives and purposes of having an administrator of the deceased estate.
>
> The objective of appointing an administrator of the estate is the need to have a faithful person who will, with reasonable diligence, collect all the properties of the deceased. He will do so with the sole aim of distributing the same to all those who were dependants of the deceased during his life-time. The administrator, in addition, has the duty of collecting all the debts due to the deceased and pay all the debts owed by the deceased. If the deceased left children behind, it is the responsibility of the administrator to ensure that they are properly taken care of and well brought up using the properties left behind by their deceased parent. After the administrator has so faithfully administered and distributed the properties forming the estate he has a legal duty to file an inventory in the Court which made the appointment giving a proper account of the administration of the estate. This action is intended to help any one of the beneficiaries who feels aggrieved at the way the property was distributed and thus dissatisfied to lodge his/her complaints to the Court which would in turn investigate the same and decide the matter in accordance with the dictates of the law. In view of all this, it is evident that the administrator is not supposed to collect and monopolize the deceased's properties and use them as his

> own and/or dissipate them as he wishes, but he has the unenvitable heavy responsibility which he has to discharge on behalf of the deceased. The administrator might come from amongst the beneficiaries of the estate, but he has to be very careful and impartial in the way he distributes the estate. Furthermore, it must by now be very obvious to all, that such an administrator must be a person who is very close to the deceased and can therefore, easily identify the properties of the deceased. He must also have the confidence of all the beneficiaries or dependants of the deceased. Such a person may be the widow or the widows, the parent or child of the deceased or any other close relatives of the deceased. If such people are not available or if they are found to be unfit in one way or another, then the Court has the powers to appoint any other fit person or authority to discharge this duty.

This, to me, is a classic exposition, which fully subscribes to, of the qualifications of a person fit to be appointed as an administrator or administratrix and his/her functions, duties and/or responsibilities. That is the actual position of our law. If all of us were to adhere to this at all times, it is my conviction that there would have been less problems and protracted struggles in the appointment of administrators and in the administration and distribution of deceaseds estates. It indeed needs a lot of self sacrifice to be an honest and faithful administrator of any estate.

After the learned appellate magistrate had so properly directed himself on the general qualifications and legally imposed responsibilities of any administrator, he proceeded to take the bull of the horns. He evaluated the personal qualities of the appellant and respondent guided by the evidence on record and conceded facts. At the end of the exercise the learned magistrate found the appellant not a fit person in this particular case to be appointed the administrator of the estate of the late husband. He so decided after being satisfied that the welfare of the four children will be in jeopardy if she is so appointed. He predicated this stance on the fact that all along the appellant had shown no love for them and that's why they were staying with their grandmother (respondent) even during life time of their father. It is

not insignificant to point out to her, that it is not dissipated that the last two children one by now aged 11 years and 14 years respectively. He found the respondent to be a fit person to be the administrator of the deceased's estate and who will best have the interest and welfare of all the dependants at heart. After noting that the respondent is yet to be given the opportunity to administer the estate he dismissed the contention of the appellant's counsel to the effect that the appellant would be discriminated against as too premature. The District Court then proceeded to set aside the appointment of the appellant as the co-administratrix of the estate and appointed the respondent as the sole administratrix of the same. It also quite rightly, quashed and set aside the absurd order of the Trial Court arrogating to itself the powers of distributing the assets of the deceased's estate. The appellant was dissatisfied and hence this appeal.

As in the District Court the appellant was advocated for in this appeal by learned counsel Mrs E Minde, while the respondent stood on her own.

I have carefully gone through the Petition of Appeal and Written Submissions of both parties to this appeal.

The determination of this appeal should be cares *(sic)* if one should confine himself/herself to the determining issue and leave alone extraneous arguments on whether or not the appellant will get her rightful share and under what law. The law (i.e. the Magistrates' Courts Act 1984) confers jurisdiction on the Primary Courts to hear and determine administration of deceased's estates cases where the law applicable to the administration, distribution or the succession to, the estate is customary or Islamic law. The respondent herein, following the death of her son, applied to be appointed the administratrix of her son's estate under this law, before the Primary Court. Fortunately the appellant had no objection to the court's jurisdiction and she willingly submitted herself to its jurisdiction. She only entered a caveat objecting to the appointment of the respondent as the administratrix of the estate. She would have preferred to be the administratrix.

The issue here is not the inheritance of the estate of the late major Charles K Mbwambo, and who will get what from that estate we are yet to reach that bridge and so we cannot cross it before we reach it. The issue here is not whether or not the appellant will get her property and/or rightful share in the estate of her undisputed late husband. Trying to resolve that issue in proceedings of this nature would be tantamount to patting the cart before the horse. We shall be condemning the to be administrator unheard. The only determining issue here worth any serious consideration as clearly discerned by two Courts below is who as between the appellant and respondent is a fit person to be appointed to administer the estate of the later Major CK Mbwambo. The respondent was favorably seen by both Courts below to be such fit person, although the trial Primary Court had so also found the appellant.

I agree with the appellate District Court in striking out or revoking the appointment of the appellant by the Trial Court for reasons which are obvious now as they were at the trial stage as can be gleaned from the reasons which prompted the entering of the objection. I can liken that decision of the trial Primary Court to a decision that has to satisfy two different and at bottom incompatible specifications.

Such a decision is not a decision but a prayer for a miracle. As past experience has taught us, the trouble with miracles is not, after all, that they happen rarely; it is that one cannot rely on them. In the instant case the Trial Court was legally bound, in the peculiar circumstances, to either appoint the respondent as the sole administratrix, or reject her application, or appoint the appellant or any other fit person if it found both of them unfit for good reasons. By trying to appease both parties in appointing them as joint administratrixes it was praying for a miracle.

The respondent applied to be appointed the administratrix, being the mother of the deceased. By virtue of this relationship, she had in law, one of the necessary qualification to be so appointed. Any interested person coming from and making an objection to her application, had to satisfy the Court that despite meeting this basic requirement,

the respondent was not the type of person who could be trusted to administer the said estate. Did the appellant succeed on this in her objection? By objective answer to this question, after dispassionately going over her entire evidence is in the negative. Her objection was predicated more on her fears and feelings than proven facts. If after her appointment the respondent proceeds to administer the estate unfaithfully or in a discriminatory manner or in any other way unsatisfactory to the appellant or any other beneficiary the law gives the aggrieved party the right to go to the appointing Court to apply for the revocation of the appointment. Or if any of the beneficiaries will be denied his full entitlements or part of it, he or she will have a legal right to go to Court and claim the same from the administrator or administratrix. That's what the Trial Court meant when it stated that the claims of the appellant to the effect that justice won't be done to her were premature. If we allow ourselves to play along with the fears of the appellant, we shall find ourselves being engaged in an endless game, for the respondent or even the children might come up with similar objections. Nobody will benefit from the scenario. The appellant should therefore, be patient until, that stage is reached and all her arguments raised in this case will be before the proper forum. Other wise I find nothing unconstitutional in the appointment of the respondent.

Of course, I must make myself very clear on this particular, point. Notwithstanding what I have stated above, I am not obvious of the fact that the appellant was naturally shocked and upset by some of the declarations or utterances, touching her personally, at the clan meeting and hence her current fears and suspicions. I only want to assure her that those were empty rhetorics and a relic of the past. They cannot supplant the law. It is always good to have in mind and be guided by what Sir Thomas More, the great just and wise Lord Chancellor of his time, said about 500 years ago. He said:

> The world must construe according to its wits. This Court must construe according to the law.

So it will be in this case. The law is very clear on the entitlements of the beneficiaries of the category of the appellant. It is not as anachronistic as Mrs Minde would like us to believe it is. If, it is so, I want to assure her that if the need to construe it will arise, it shall be so construed as to make justice to reveal for all. Nobody including the appellant herself if she were to be appointed the administratrix shall be allowed to circumvent it or flout it with impunity. As an administratrix duly appointed by the Court, the respondent shall be guided by the relevant prevailing laws of the land in the administration and distribution of the deceased's estate and not by the wishes of the clan or any other body of persons. Having so observed, as the respondent enjoys the trust and confidence of the majority of the dependants or beneficiaries and all of the deceased's clan members, I hereby confirm her appointment as the sole administratrix of the estate of the late Major Charles K Mbwambo. I am confident that the appellant will give her the necessary co-operation so that this burdensome task can be smoothly accomplished without further bruises in the family, within the framework of the law.

I have noted in the judgment of the District Court that the appellant has already received TZS. 629 640 from the employer of her deceased husband. Unfortunately, there is no evidence on record to support this. If this is true, anyway, I would advise her to account for the same to the appointments of the Lower Courts are clear on this and the orders made therein should be fully implemented if that has not been done.

In fine, this appeal fails. However, given the nature of the dispute and in a spirit that will help to promote reconciliation in the family I will order that each party bear her own costs in this Court and the Courts below.

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